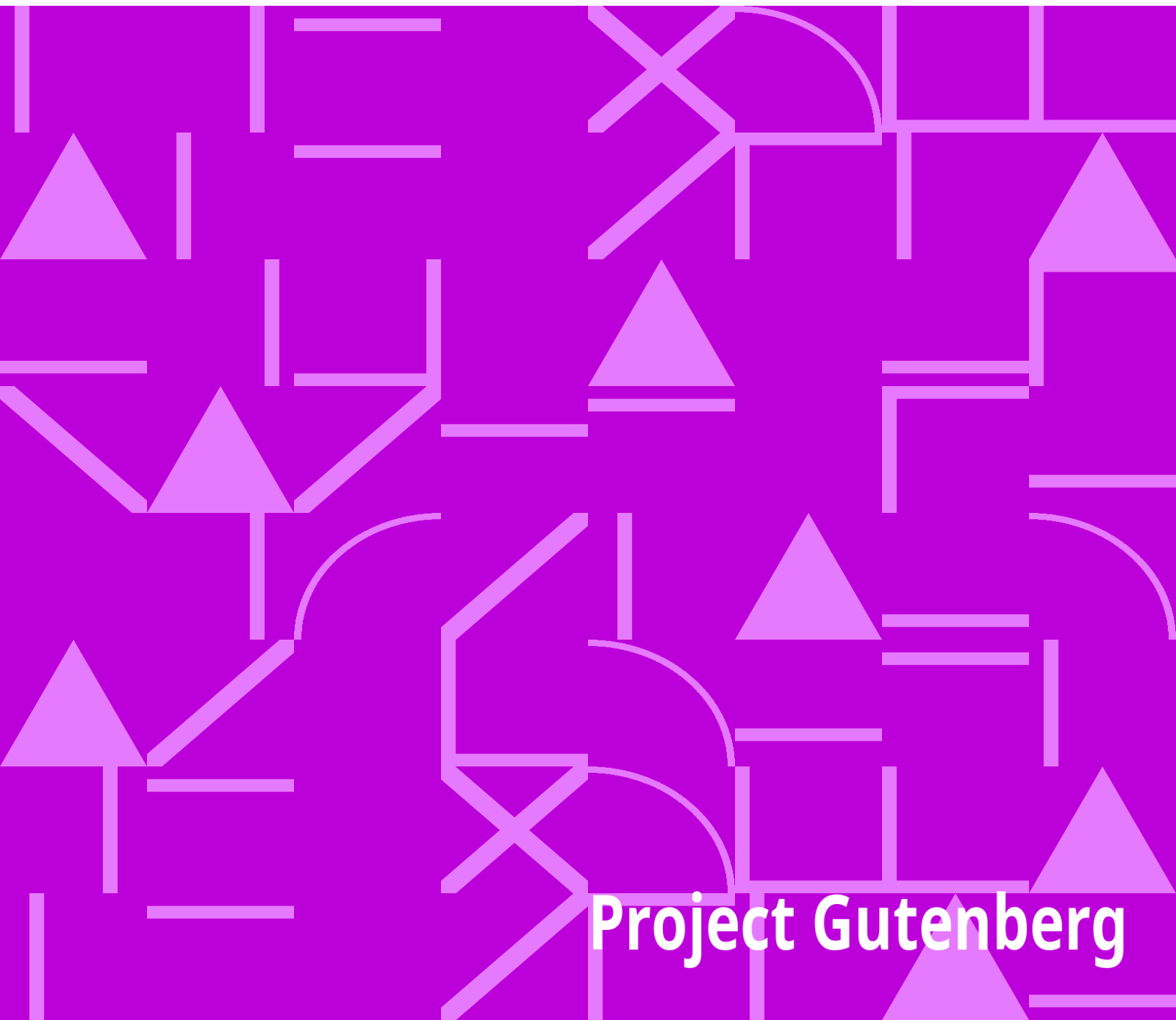


The Village Notary: A Romance of Hungarian Life

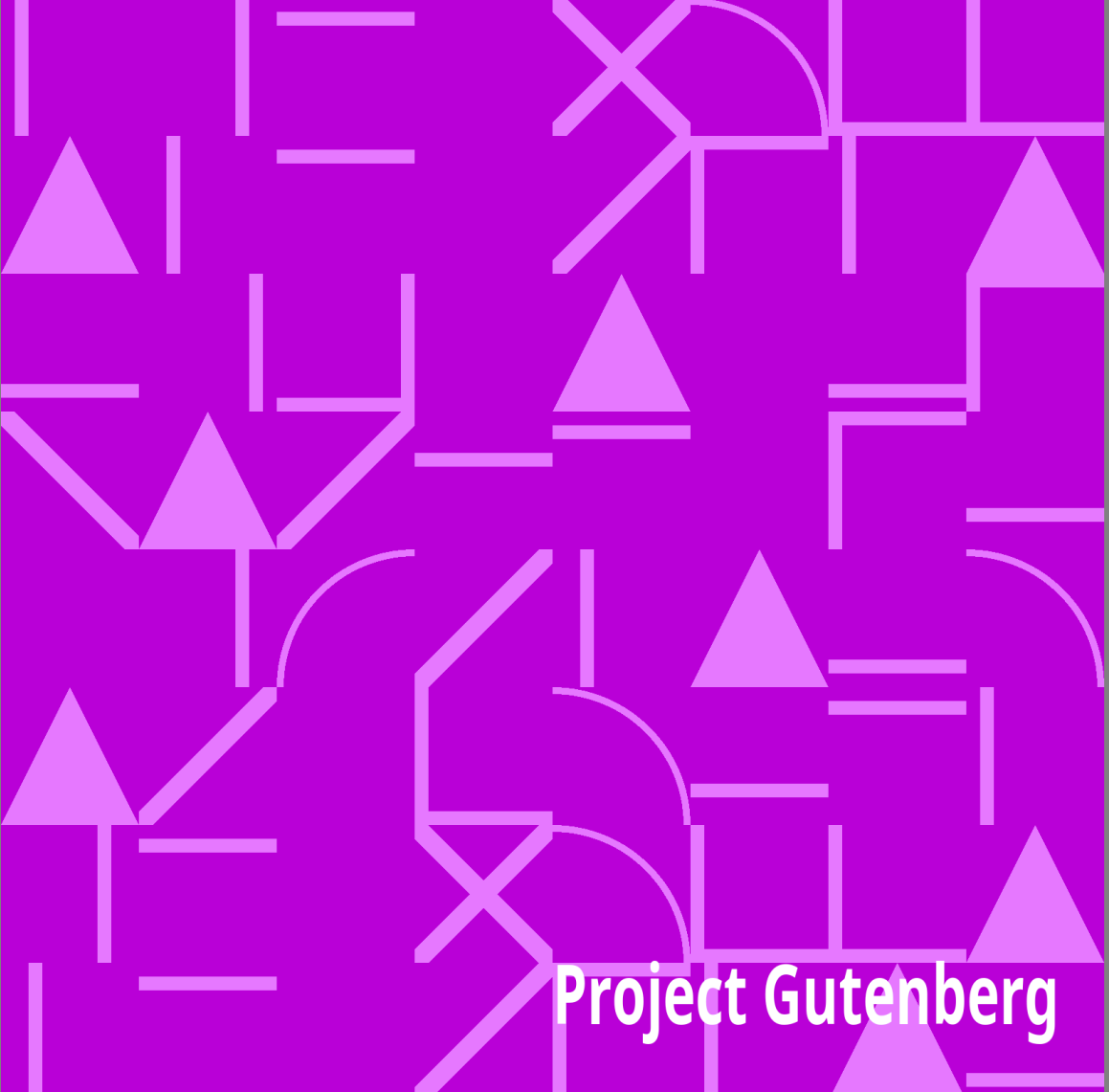
báró József Eötvös



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*** START OF THE PROJECT GUTENBERG EBOOK THE VILLAGE
NOTARY: A ROMANCE OF HUNGARIAN LIFE ***

THE VILLAGE NOTARY;

A
ROMANCE OF HUNGARIAN LIFE.

TRANSLATED FROM
THE HUNGARIAN OF BARON EÖTVÖS,

BY
OTTO WENCKSTERN.

WITH INTRODUCTORY REMARKS BY
FRANCIS PULSZKY.

IN THREE VOLUMES.

VOL. I.

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PREFACE.

When Joseph, Baron Eötvös, wrote his "Village Notary," and when he dedicated that work to me, neither he nor I could anticipate the sudden and unexpected downfall of the political and social institutions which he attempted to portray. It is true that my friend did not, in the present work, make an exclusive use of his poetical faculties. The dregs of opposition were fermenting in his mind, and his ostensible object, to give a sketch of life in a Hungarian province, was mixed up with the desire to make his story act as a lever upon the *vis inertiae* of our political condition. In those days, the liberal party in Hungary was divided into three factions. Our great reformer, the Count Széchenyi, was worn out by his long and seemingly resultless struggles against the policy of the Court of Vienna. He made a

surrender of the leading ideas of his political life. He had ever since 1829 been the champion of equal taxation and of legal equality. He had advocated the abolition of feudal burdens on the land. But he lived to consider these objects of his former aspirations as matters of secondary import. He became a practical man, and directed his energies to the steam-navigation on the Danube, to the damming and dyking of the river Theiss, to railroads, &c.; and for the furtherance of these plans the Count Széchenyi, though still faithful to his principles, had drawn close to the conservative party, and become reconciled to the government at Vienna. He did not, indeed, deprive himself of the pleasure of recounting numberless anecdotes and sketches from life, all of which tended to prove the incapability and the malevolence of that government; but his voice was silent in the debates of the Parliament, and the whole of his energies were devoted to the execution of practical improvements. "*Make money, and enrich the country!*" such was the advice he gave to us, his younger friends; and he added,—"*An empty sack will topple over; but if you fill it, it will stand by its own weight.*"

Count Széchenyi's practical clique was flanked by a more numerous and influential party. M. Kossuth's parliamentary opposition, taking a firm stand on the letter of the law, waged an unceasing warfare against the machinations of the Vienna bureaucracy. His party advocated the institutions of the counties, the free election of civic magistrates, and the independence of boroughs; and they stood ready to repel any direct or indirect blow which might be aimed at these institutions. This party was supreme, both in strength and in numbers. The middle classes and the gentry belonged to it; while Széchenyi's followers were members of the high aristocracy, who resided in the metropolis, and who scarcely ever busied themselves about the county elections.

Baron Eötvös was the leader of a third party. He was imbued with the levelling tendencies of French liberalism. The men of Eötvös's school admired the theoretical perfection of Centralisation, and vied with the Vienna party in their aversion to the county institutions, with their assemblies and elections. But the Austrian Camarilla wished to establish the so-called "Paternal Absolutism" in the place of the county institutions; while the Eötvös party dreamed of a free parliamentary government. His party considered Hungary as a "*tabula rasa*," and they endeavoured, in

defiance of history, to raise a new political fabric; not on the ground of written law, but on the treacherous soil of the law of nature. It was chiefly composed of young men of letters, who, full of spirit and ability, were but too prone to discover the weak and faulty parts of the county government, while they were unable to appreciate its practical soundness and its salutary influence. This circumstance caused them to withdraw from the elections, and to look down upon the struggles and contests of parliamentary life. Their doctrines could not, therefore, have any influence. To obtain a license for printing and publishing a newspaper was extremely difficult. Nevertheless, the Eötvös party had got possession of a newspaper. Their leaders, though spirited and witty, failed in bringing their ideas of centralisation home to the minds of their readers. The national instincts of the Hungarian people were opposed to such notions. But so convinced was Baron Eötvös of their truth and justness, that he resolved to publish them and make them popular, at any hazard. He wrote a novel, in which he put together a variety of small sketches and studies from nature, and formed them into one grand picture, for the express purpose of caricaturing the political doings in our counties. But, fortunately for the public, Baron Eötvös was a better poet than a politician, and his political pamphlet ripened, very much against his will, into one of the most interesting works of fiction that the Hungarian literature can boast of. His book was eagerly read and enthusiastically admired, it was devoid of all political action. Baron Eötvös missed the object at which he aimed; but he carried off a higher prize. Instead of popularising his ideas, he popularised himself, and the poet atoned for the sins of the politician. Nor was this difficult. Baron Eötvös was a thoroughly romantic character. He was more than the hero of a novel: his adventures and his fortunes made him a real hero. His years, though few, had been full of strange vicissitudes, and his life, from the cradle to his mature age, was one uninterrupted chain of strange and untoward events.

The grandfather of Joseph Eötvös was a Hungarian government officer of high rank; his grandmother was a passionate woman, and a furious Magyar. She was therefore greatly incensed at her son (the poet's father) marrying a foreigner, viz., the Baroness Lilien, especially as the young lady had been so utterly neglected as to be ignorant of the Hungarian language. Often did the old lady vent her feelings on this point in the presence of the Baron

Lilien, and emphatic were her protests that the German woman would remain childless—a prediction which it may be supposed was not at all calculated to gratify the baron. But when it became apparent that the family of Eötvös was not likely to become extinct, she changed her tactics by protesting, with the utmost boldness, that a German woman could not, by any chance, give birth to a boy, and that the family of Eötvös would become extinct in default of male issue. Baron Lilien put in a demurrer, and at length laid her a wager of one hundred ducats in favour of his daughter giving birth to a boy. The wager was duly accepted by the baroness, who lost it, and paid the amount, saying: "It's a boy after all, but he will turn out to be a German and stupid. I'll never see him, for I'll never prize him at a hundred ducats!" But the young Baron, Joseph Eötvös, lived to defeat all his grandmother's prophecies. She did indeed remain true to her word, for she never cared for him, and devoted all her tenderness to his younger brother; in her will she cut him off with an old piece of household furniture, which, after all, was taken from him, and given to a distant relative, by virtue of a codicil; but the German grandfather made up for the grandmother's harshness.

Young Joseph's earlier years fell in that period of apathy which weighed down upon Europe after the feverish excitement of the French wars. Constitutionalism and nationality were sneered down as idle and reprehensible things. Hungary, too, partook of the lethargy of Europe; and the government, which alone was on the alert, made sundry successful attempts to wrest from us part of our old historical rights. The borough elections and the meetings of the counties were interfered with; pains were taken to extend the iron net of Austrian bureaucracy over Hungary; and, in 1823, it was thought that all power of resistance had left us. It was thought that the Hungarian Constitution was breaking up, and ready to be buried in the same grave with the Constitutions of Spain and Italy. The Cabinet of Vienna ventured to strike the last blow. Without consulting the parliament, they raised the taxes, and decreed a larger levy of recruits. These two points, if carried, abolished our Constitution, and crowned the endeavours of the House of Hapsburg-Lorraine. Great hopes of success were entertained at Vienna: the love of our ancient constitution had seemingly become extinct in Hungary; the German language had of late come to be the fashionable idiom at Pesth; and several of the most powerful magnates were

willing to assist in completing the ruin of their country. The men at Vienna knew, indeed, that all the counties would demur to the decrees of the Hungarian Chancery, especially since the Chancellor, Prince Kohary, had entered his protest against the intended violation of the Hungarian Constitution. But the Cabinet of Vienna were resolved to execute their plan; and, if all other means failed, to *force* the Hungarians into submission. Commissioners with unlimited powers were sent to the refractory counties. These men were instructed to coerce the county meetings by means of the military force. Baron Ignaz Eötvös (the poet's grandfather) was appointed commissioner. He accepted the office. His wife disapproved of the course he had taken, and left his house. The Vienna Cabinet were at length forced to yield to the obstinate resistance of the counties. They revoked their illegal decrees, and the convocation of a parliament was declared to be at hand. But the public voice spoke loud against the commissioners. The Count Illyeshazy became the most popular of all the magnates, because he had declined to accept the post of a commissioner, while those who had consented to act as the tools of oppression were scorned and insulted by the multitude.

Young Joseph Eötvös, was, of course, profoundly ignorant of these events. Pampered by his grandfather, and idolised by his mother, he passed that period of bitter reality amidst all the bright dreams of happy childhood. He was, indeed, informed of the honours and dignities which the emperor had been most graciously pleased to confer upon his father and grandfather; but he knew nothing of the curses of the people; he knew nothing of the contempt with which his family name was pronounced by the Hungarians. But the time was at hand for him to learn it all, and feel it too. Young Eötvös was sent to a public school.

His father, an able diplomatist, had hitherto placed the boy under the care of a tutor, Mr. Pruzsinsky. This gentleman was a staunch republican. In his earlier years he was a party to the conspiracy of Bishop Martinovich, the friend of Hajnotzy.^[1] Pruzsinsky, with no less than thirty of his associates, had been sentenced to capital punishment. They were compelled to witness the execution of five of their friends. At the same time, they were informed that their punishment had been commuted into imprisonment for life. Hajnotzy, on his way to the scaffold, entreated Pruzsinsky to protect his only sister, whom his death would deprive of her last friend. Pruzsinsky

promised to fulfil the last request of the dying man; but it was long before he could redeem his pledge. During eight years he was confined in several Austrian prisons. When the French armies invaded the country, the state prisoners were taken from the Kuffstein to the Spielberg, from the Spielberg to Olmütz, and from Olmütz to Munkatsh; and everywhere they met with that barbarous treatment which, at a later period, has been so faithfully recorded by Silvio Pellico. After eight years of imprisonment, Pruzsinsky was at length released; and, after ascertaining the residence of Hajnotzy's sister, he informed her of the promise he had given to her brother; adding, that his poverty allowed him no other means of protecting her than by offering her his hand. The poor girl, who at that time was reduced to severe distress, joyfully accepted the proposal. They were married. Pruzsinsky lived in the greatest happiness with his wife, whose love and devotion made ample amends for his past sufferings. But this blissful period was of short duration; at the end of two years Mrs. Pruzsinsky died.

[1] He was executed in 1795.

The events which we have detailed had their due share of influence in forming Pruzsinsky's character. Naturally severe and independent, it was by misfortune rendered harsh and all but repulsive. Baron Eötvös chose this man to be a tutor to his son, because he expected (and not without some show of reason) that the tutor's severity and his unamiable character would disgust his pupil with the political ideas of which he was the advocate and the martyr. But the boy took a liking to his master, in spite of the harshness and coldness of the latter; and an event which at that time took place gave Pruzsinsky an opportunity of gaining a still stronger hold on his pupil's mind. Joseph Eötvös was sent to a public school just at the period when every liberal speaker in parliament denounced his family name, and when the country cursed it. The boys shunned young Joseph; the form on which he sat was deserted, and though he would fain have considered this circumstance as a mark of respect, paid to him as the only member of the aristocracy that his school could boast of, he was soon given to understand that there is some difference between honouring a peer and sending him to Coventry. His grandfather, too, on visiting the school, was received by the boys with unmistakeable signs of disrespect; and when young Eötvös demanded an explanation, he was told that his grandfather was a traitor. "And you, too, are a traitor," added they. "You are almost thirteen years of

age, and you cannot speak Hungarian. We are sure you will be a traitor!" Young Joseph was not a little shocked at this prediction, and of course consulted his tutor about the likelihood of its ever coming true. Pruzsinsky said simply, that the boys were right, and continued grinding his pupil in Cornelius Nepos and the Latin grammar. But Joseph's mind was not what it had been. He studied the Hungarian language, and devoted his attention to the political conversations in his father's *salon*, asking his tutor for an explanation of those things which he did not understand. Thus, for instance, he asked why the decease of the Count N. was so greatly lamented? "Who was the Count N.?" "The Count N.," said Pruzsinsky, "was, by his talents and learning, one of the most eminent men in Hungary: his character was odious. He filled a high post in the state. As for you, boy, you will never equal him in spirit and knowledge." A fortnight afterwards the tutor asked whether Count N.'s death was still the subject of conversation; and when Joseph replied that nobody thought of it, Pruzsinsky said: "This is well. That man has been dead a fortnight, and nobody remembers his death, in spite of his talents. The society to which he sacrificed his name and his honour wants but two weeks to forget his existence. Mark this, boy, and see what thanks you will get from the noble and great!" At another time Pruzsinsky took his pupil to the green behind the Castle at Buda, on which his five friends had been executed. "Here," said he, "they shed the blood of five true friends of the country. No monument marks the spot where they bled and lie buried, but the feet of the passing crowd have worn the green into the form of a cross, and thus marked the place. The time will come when these men will have their monument. That monument will be a triumphal arch for the liberated people—it will be a gallows for those who opposed our liberties!"

Words like these were calculated to make a deep impression on the mind of young Eötvös, who manifested his political conversion by addressing his schoolfellows in an Hungarian oration, by which he informed them that, though his ancestors had served the house of Austria, and betrayed the interests of Hungary, he (the Baron Joseph Eötvös) was resolved to atone at once for the crime of his fathers, and that he (the said Baron Eötvös) meant to be "liberty's servant, and his country's slave." The boys received this speech with the greatest enthusiasm. They rushed up to the master's desk, which the young orator had converted into a tribune, and, seizing the object

of their admiration, lifted him on their shoulders, and carried him to the next coffee-house!

But, alas! how short is the step from the capitol to the Tarpeian rock! The procession had no sooner reached its destination than the school-master's servant appeared to arrest the speaker. His *début* began on the master's desk; it ended in the black hole.

Amidst these, and similar impressions, passed the boyhood of Baron Eötvös. In the year 1826 the Emperor Francis was compelled to conciliate the good will of the Hungarian parliament. He reiterated his promise to respect the constitutional rights of the country. The season of popular excitement was over, and the hatred to the name of Eötvös grew gradually less. In 1829, the Count Széchenyi published his plans of reform; the old aristocratic opposition of Hungary became a liberal opposition, and the party of national progress grew in strength and numbers. The youth of Hungary joined this latter party. Tours to foreign countries became the order of the day with all young men of education. Baron Eötvös, too, made the grand tour of Europe. He was amiable, and a great favourite with women; some of his occasional pieces had introduced him to the public as a poet; he was rich,—in short, he had all that is requisite to act a brilliant part in the capitals of the Continent.

In the course of the carnival of 1837, Baron Eötvös, who was then at Paris, was invited by a young Frenchman to accompany him to Mademoiselle le Normand, the notorious Parisian soothsayer. The poet consented; and leaving a brilliant and merry party in the Faubourg du Roule, the two young men repaired to the house of the mysterious lady. Mademoiselle le Normand, after gazing long and earnestly at the handsome face of our hero, said at length, "You are rich. The day will come when you will be poor. You will marry a rich woman. You will be a minister of state in your own country. You will die on the scaffold." Nothing was so unlikely as this prophecy: Baron Eötvös was greatly amused with it, and after his return to Hungary, he used to tell the anecdote for the amusement of his friends.

The financial crisis of 1841, and the money speculations of the old Baron Eötvös, led the family to the brink of ruin. Joseph Eötvös was compelled to live by his pen; anywhere but in England and France, the bread of literature

is poverty indeed. In 1842, he married an amiable and accomplished woman; but still he smiled at Mademoiselle le Normand's prophecy. As a peer and as a public writer, he belonged to the extreme opposition; and although his party had the greatest influence in the country, there was no reason to suppose that it would ever be called upon to grasp the reins of government. The movements of the year 1848 changed the aspect of affairs and the position of parties. A cabinet was formed under the auspices of the Count Batthyany; and Joseph Baron Eötvös was one of the members of that cabinet. In the month of August the political horizon of Hungary became clouded: Jellachich, the Ban of Croatia, prepared to invade our country. The duplicity of the Vienna Cabinet became daily more manifest. The landsturm assembled in Pesth. The Count Lamberg fell a victim to the unbridled passions of the people. The Croats advanced almost to the very gates of Buda. Le Normand's prophecy came home to Baron Eötvös's mind, and scared him to Vienna. But he had scarcely reached the Austrian capital, when the revolution of October broke out. Eötvös fled. He hastened to Munich, and remained in voluntary exile, without taking any active interest in the fate of his country and the wayward fortunes of his friends. His career as a statesman is ended for many years to come. It is to be hoped that his faculties as a writer will survive the blow which crushed his country; and that his countrymen will have many a song and a few more novels from so clever and spirited a pen. It is the pleasing office of fiction to reconcile us to the anxieties and misfortunes of real matter-of-fact life. May my friend succeed in pouring balm into the fresh wounds of the country; and may his works alleviate, though it be but for a moment, the anguish which in this season of sorrows eats into the heart of every Hungarian!

FRANCIS PULSZKY.

THE VILLAGE NOTARY.

CHAPTER I.

The traveller in the districts on the lower Theiss, however narrow the circle of his peregrinations, may be said to be familiar with the whole of that part of Hungary. Some families boast of the resemblance, not to say the identity, of their members. To distinguish one from another, we must see them long and often. The case of these districts is very much the case of those families; and the traveller, after a few hours' sleep on our sandy roads, has no means of knowing that he has made any progress, unless, indeed, it be by looking at the setting sun, or his jaded horses. Neither the general character nor the details of the country will remind him of his having been subjected to locomotion. As well might the seaman on the Atlantic endeavour to mark his course on the watery plain which surrounds him. A boundless extent of pasturage, now and then diversified by a broken frame over a well, or a few storks that promenade round a half dried up swamp; bad fields, whose crops of kukuruz and wheat are protected by God only, and by that degree of bodily fatigue to which even a thief is exposed;—perhaps a lonely hut, with a couple of long-haired wolf-dogs, reminding you of the sacredness of property; and the ricks of stale hay and straw, left from the harvest of last year, impressing you with the idea that their owners must either have an excess of hay, or a want of cattle:—such were the sights upon which you closed your eyes, and such, indeed, are the sights which you behold on awaking. The very steeples, which, before you fell asleep, were visible on the far plain, seem to have gone along with you; for there is as little difference between them, as between the village which you were approaching in the early part of the afternoon and the one to which you are now drawing near. The low banks of the Theiss, too, are the same; our own yellow Theiss is not only the best citizen of our country,—for it spends its substance at home,—but it is also the luckiest river in the world, since nobody ever interferes with it. The Theiss is, in fact, the only river in Europe of which it may be said that it is exactly such as God has made it.

Somewhere on the banks of the lower Theiss, in any of its districts,—say in the county of Takshony,—close to where the river flows in the shape of a capital S, and at no great distance from three poplars on a hill (there is not a hill for many miles in whichever direction you may go, and, least of all, a hill with trees upon it), lies the village of Tissaret, under the lordship of the Rety family, who have owned the place ever since the Magyars first came into the country,—a fact which Mr. Adam Catspaw, the solicitor of the family, is prepared to prove at all times, and in all places, to any one that might be inclined to doubt it.

Than the family of the Retys none can be more ancient; and it cannot therefore be a cause for wonder that the village of Tissaret came in for a few spare rays of that dazzling brilliancy which surrounded its masters. There is a large park, in which the trees, which were planted as early as thirty years ago, have grown to a fabulous height. There is a pond, the waters of which are sometimes rather low, but which, no matter whether high or low, are always beautifully green, like the meadow around. In rainy weather that meadow is rather more sandy than the paths, which, though frequently covered with fresh earth, are still sometimes in a condition which induces strangers to call them dirty, thereby astonishing the gardener, who thinks that they are exactly what paths ought to be. And, besides, there is a large castle, with a high roof with gilt knobs on the same; and with a Doric hall, in which the sheriff used to smoke his pipe; and with a gothic gate, in front of which a crowd of supplicants might at all times be seen loitering and losing their time. There is a yard, with stables to the left, and a glass-house and a hen-roost to the right, without mentioning the grand dunghill which covers more than one half of the stables. Every thing, in short, is grand and comfortable, and shows—especially the high-road from the door of the house to the county-town, and which has been made expressly for the Retys—that the place is the residence of a sheriff.

All the buildings of the Retys are of a monumental character; and the more so, since one distinguishing feature in monuments, viz. their being built at the public expense, belonged to every fabric, road or bridge, made by the Retys. Every one in the county knew of this fact; and, though a few persons pretended to blame them for it, the great majority of the people were quite satisfied, as, indeed, it was their bounden duty to be.

But there will be plenty of occasions in the sequel to make my readers acquainted with the beauties and comforts of the seat of the Retys, and of the village of Tissaret. For the present, I will take them by the hand and lead them about two miles from the said village, to the hill which is commonly called the Turk's Hill, and which is remarkable, not only for its three trees, but also for the distant view you enjoy on it of the mountains of Tokay, which, on a clear day, like the one that opens this tale, may be seen looming in the distance like dark-blue haystacks.

The warm rays of an October sun fell upon the plains of Tissaret; there was not a cloud in the sky, not a speck of dust on the heath. The solemn silence of the scene was interrupted only by those vague sounds which herald the approach of evening,—the carol of the birds, the faint tinkling of distant sheep-bells, and the song of a lonely workman wending his way homeward, with his scythe on his shoulder. The view from the hill commands the country to the wood of St. Vilmosh, the acacias of Tissaret, and the far windings of the Theiss. On that hill there are two men, whom I take the liberty of introducing to my readers as Mr. Jonas Tengelyi, the notary, and Mr. Balthasar Vandory, the curate of the village of Tissaret.

Every aristocracy has its marks of distinction. Long nails, a tattooed face, a green or black dress, a button on the hat, a ribbon in the button-hole, a sword or a stick with an apple,—these are a few of the marks which in various times and places have served, and still serve, to separate them from the common herd; which, wherever that strange animal—man—has left the savage state and become domesticated, part them asunder from their birth to their dying hour; and which, in the most civilised countries, show you by the very gallows that the culprit is not only a thief, but also a plebeian. Nature, too, has her nobility; she, too, puts marks of distinction on her aristocrat, by which you may know her elect, in spite of all the preachers of a general equality. Nature does not, indeed, compete with civilisation in ennobling a man's fathers that lived before him, or the babe unborn that is to call him father,—but there are cases in which Nature's nobility is unmistakeably expressed in individuals. Any man that has once seen the notary Jonas Tengelyi, will confess that my statement is correct; and to make this fact still more comprehensible, I will add that Tengelyi's nobility dates more than a hundred years back, and that, in the present instance, Nature had all the advantages which the "usus" could give her.

Tengelyi is about fifty years of age, though his thin locks sprinkled with flakes of grey, and the deep wrinkles with which Time has marked his forehead, would cause you to think him older; but then he is like a sturdy oak, with gnarled roots and branches bearing witness to its age, while its leaves are still fresh and green, and show that there is a strong and hearty life in it. Tengelyi's manly form and erect bearing under his silvery locks, and his shining eyes beneath his wrinkled forehead, bespeak him at once as a man whom Time has not broken, but steeled,—and who, like colours that have seen many a battle-field, in the course of years, had lost nothing but his ornaments.

The man who, sitting at Tengelyi's side, counts the petals of a flower, while his eyes are directed to the blue mountain-tops of Tokay looming in the distance, appears still more advanced in age, and his mild and regular features form a striking contrast to the severity which is the leading characteristic of Tengelyi's face. That face exhibits the traces of fiery passions and fierce contentions, which, though soothed into oblivion, might still under circumstances break forth afresh; while Vandory's features might be likened to a clear sky, on which the passing storm has left no trace. Vandory's appearance needs no aid from his clerical dress to inform you that you accost one of those men whom God has sent to represent his mercy upon earth. The notary's bearing shows an honest man, who had but little happiness in the world,—while Vandory is a living demonstration of the old adage, that virtue is its own reward, even in this world of ours.

Vandory at length interrupted the silence which the two friends had observed for the last half-hour, by saying, "Where are your thoughts, my friend?"

"I scarcely know," was Tengelyi's reply. "I thought of my youth,—of Heidelberg,—of my career as a 'jurat.' Do you sometimes think of Heidelberg? *I* do; and whenever my thoughts return to the green mountains and the bright rivers of that country, I feel inclined to quarrel with fate for casting my lot in this desolate champaign."

"Do not, I pray, abuse our country," said Vandory, smiling. "What can be greener than this meadow? Is not that river beautiful, flowing as it does among the reeds? And what can be more striking than the far steeples and

the mountains of Tokay? As for the blue sky and the rays of the setting sun, they are beautiful anywhere. You are very unjust, sir, and that is the long and the short of it."

"And you are the greatest optimist I ever met with," rejoined Tengelyi; "there is not a man on earth but you can talk of his good qualities, and by the hour too. But your taking this country under your protection makes me verily believe that God, for all that he is omnipotent, cannot create anything so bad but that you would hit upon some redeeming point in it."

"Why should I quarrel with His works?" said Vandory. "We ought to be at peace with all men,—and with all countries, too," added he, smiling.

"We ought—but all cannot!"

"We can. Believe me, we are all optimists, every man of us. God made his creatures for happiness; and as Scripture says that heaven and hell are both peopled by the denizens of paradise, so is each joy and each sorrow the result, not of our nature, but of our will."

"But experience!" interposed Tengelyi.

"Experience proves but what we wish it to prove. If you are pleased with the present, you will find pleasant reminiscences in the past, and *vice versâ*. Go merrily to the glass, and you will see a smiling face in it; and even Echo, lovelorn woman though she be, will speak in joyful notes, if you but address her with accents of joy."

Tengelyi laughed. "There is no disputing with you. I trust when Mr. Catspaw's 'canonisation' comes on, that they will retain you as Heaven's advocate. You will then have a fair chance of showing how many occasions for the exercise of signal virtues that worthy Catspaw gave in his life; for every body who ever refrained from thrashing him, exercised the virtue of self-denial to a remarkable extent. The very hare which the young gentlemen are hunting down yonder ought to be counselled not to appeal to you. You would tell her that to be hunted to death is a hare's happiness and pride. Indeed," added Tengelyi, with great bitterness, "you have undertaken quite as difficult a task in endeavouring to convince your parishioners of what you are pleased to call their happiness, and in pointing out to them for what they ought to be thankful to Providence."

But this taunt was lost upon Vandory, whose whole attention was with the hunt, which then took the direction of the Turk's Hill. "This is savage sport," cried the clergyman at length, "one unworthy of Christian men. I cannot understand how men of education and parts can delight in it!"

"Still it engages your interest," said Tengelyi; and, casting a look at the hunting-party, who were just assembled round the body of the wretched hare, he added, with a sigh, "Alas! *these* men are happy!"

"As for me," repeated Vandory, "I cannot understand how men of education can delight in that sort of thing."

"I dare say you cannot," rejoined Tengelyi, smiling. "Rarely as we understand the sorrows of others, their joys are a sealed book indeed. But this sport is much the same with other enjoyments which pride or strength procures us. To spy an object out, to hunt it, to gain upon it, and at length to seize it, is indeed a happy feeling—no matter whether the object is a hare or whether it is the conquest of a country. It is always the same sensation; and the difference, if any, is for the spectator, but not for the actor."

"But this is cruel. Consider the sufferings of the poor animal! What an unequal contest! A score of dogs and horsemen after *one* hare. It is really shocking."

"You are quite right about the inequality," retorted Tengelyi, "but where in this world do you see a fair fight? The cotton-lord and the factory-workman—the planter and the negro—they are all unequally matched. Believe me, friend, hare-hunting is not a very cruel sport, if compared to some which I could name."

Vandory sighed, and though, as an optimist, fully convinced of Tengelyi's being in the wrong, he resolved to reserve his reply; for Akosh Rety and his party, seeing the two friends on the hill, advanced from the plain and put a stop to the conversation.

Of the company which now assembled round the notary and the old clergyman, there can be no doubt that my lady-readers would be most struck with Akosh Rety and Kalman Kishlaki. They were very handsome; indeed it was a common saying in the county of Takshony, that handsomer young men could not be found in any six counties of Hungary. They

showed to great advantage after the hunt, with their flushed faces, and their curly hair escaping disorderly from beneath their small round hats. Their short blue shooting-coats, too, gave them an appearance of great smartness, and——but I am conscious of my duty as a Magyar author, and I know that the Justice ought to have the precedence in his own district. I therefore beg leave to introduce to my honoured readers the justice and his clerk, Mr. Akosh Rety's companions in the hunt.

Learned men maintain that our country is inhabited by a race of classic, viz., of Scythian, origin. At times we may forget this fact; for, even among the men whose names most unmistakeably proclaim our Eastern source, there are many whom any one but a philologist would class with quite a different race of people. It is notorious that the current of the Rhine loses itself in mud and sand. Even so are the descendants of families who were glorious in their generation, intent upon magnifying their fathers by eschewing to eclipse the brilliancy of ancestral fame. There are men of whose high descent we are only reminded by the impossibility to conceive what they could live on, unless it were on the inheritance of their fathers.

Far different is Paul Skinner, the justice of the district. Every doubt about the authenticity of our national origin must vanish on seeing him on his dun horse and lighting his pipe; for Paul Skinner is a striking evidence of the fact that the Scythian blood of our ancestors still flourishes in the land.

For the benefit of those unacquainted with the administration of Hungary, I ought to remark that the office of a district justice is unquestionably the most troublesome and laborious in the world. A district justice is a firm pillar of the state; he upholds public order,—he protects both rich and poor,—he is the judge and the father of his neighbourhood; without him there is no justice—or, at the least, no judicature. All complaints of the people pass through his hands; all decrees of the powers that be are promulgated and administered by him. The district justice regulates the rivers, makes roads, and constructs bridges. He is the representative of the poor, the inspector of the schools; he is lord chief forester whenever a wolf happens to make its appearance; he is "protomedicus" in the case of an epidemic; he is justice of the peace, the king's advocate in criminal cases, commissioner of the police, of war, of hospitals; in short, he is all in all,—the man in whom we live, move, and have our being.

If, among the six hundred men holding that office in our country, there is but one who neglects his duty, the consequence is that thousands are made to suffer: a want of impartiality in one of them kills justice for many miles round; if one of them is ignorant, Parliament legislates in vain for the poor. And whoever will condescend to compare the reward with the labour, and consider that, besides a salary of from 100 to 150 florins per annum, a district justice must expect, after three years' impartial administration of his office, to lose it by the instrumentality of some powerful enemy,—whoever, I say, considers all this, must confess that there are in this country either six hundred living saints, or as many hundred thousand suffering citizens.

From what I have stated it is easy to see that there are two drawbacks to the office of a district justice, viz. too much work and too little pay. There are indeed some justices who endeavour to doctor their dignity, by neglecting part of it, viz. the work,—and who of the other part,—that is to say, of the pay,—take more than the law obliges them to take. But the more enlightened, scorning such petty improvements, advocate the principle of out-and-out reform in all that regards the faulty composition of their office. Most wisely do they accept of what the office yields with such profusion, (viz. work,) only when it promises to yield what they lack, viz. pay. Most wisely, I say; for how else could Spectabilis Paul Skinner rear his four sons to be pillars of the state? and how else could he possibly make the respectable figure which suited his office, and on the strength of which, whenever he, as chief dignitary, perambulates the happy meads of the district of Tissaret, he imparts a salutary quaking to the said happy meads?—of course I mean to their humblest part,—to the abandoned population which presumes to solicit a share of the most precious treasure of civil liberty, viz. justice, and for nothing too.

But even those who know nothing of all this cannot fail to feel, in Paul Skinner's presence, that sacred awe which is so necessary for the maintenance of order. His external appearance is calculated to frighten both the innocent and the guilty. Fancy a bony man, bilious, and wrinkled like a baked apple; add to these graces a black beard, a pair of large mustaches, green piercing eyes, which, it appears, are made to wound rather than to see, and the short pipe which sticks to him like any other member of his body,—fancy a tone of voice so shrill, so cutting, that it alone can frighten the whole population of a village, and you will confess that every body in

the district (with the sole exception of the rogues) must tremble on beholding Paul Skinner. But never did Justice assume a more terrible shape than when she appeared in the guise of the said Paul Skinner travelling his circuit. Then might be seen the four horses with their postilion, furnishing a living demonstration of the rapid progress of Hungarian justice; behind the postilion, the county hussar with his feathered calpac; and—"post equitem sedet atra cura,"—behind the hussar a bundle of sticks, reminding the lovers of antiquity of the old Roman lictors (thus named from their *licking* propensities); and behind the sticks the judge, always smoking and sometimes cursing, his feet stuck in a huge but empty sack, which, "quia natura horret vacuum," travels with its master that it may be filled. Even the boldest were frightened out of their wits by this gradation of terrors.

It is impossible to conceive the idea of a district justice without a clerk. Nature produces all creatures in pairs; and the Hungarian Constitution, proceeding from natural principles, and acting up to them, produces Justice only by the joint agency of two beings, viz. judge and clerk. After introducing my readers to Mr. Skinner, it is but just that I should recommend Mr. Kenihazy to their notice. That gentleman is at this moment engaged in an interesting conversation with one of the dogs, and in the joy of his heart—for that lucky dog caught the hare!—he has just uttered certain quaint imprecations, which a shepherd was fined at the last sessions for using. Andreas Kenihazy, or Bandi Batshi, as his most intimate friends are in the habit of calling him, is his master's right hand. He is not such a right hand as may sometimes be found among other assistants, who, according to the words of Scripture, unconscious of the doings of the left hand, that is to say, of the justice, do the very reverse of what he did. No! Bandi Batshi is a loyal right hand, co-operating to the welfare of the whole of which it is part. As a good Christian, Kenihazy practised the lesson about the smiting of cheeks. Whenever his superior was insulted (that is, when he was bribed, which is the greatest insult you can offer a judge), Kenihazy would hold out his hand also, nor would he be pacified unless he was exposed to a like indignity. Nevertheless, Kenihazy was not easy to be bribed. To insult him was a difficult and dangerous business; and those who had once witnessed the outpourings of disgust with which the honest man resented so gross an outrage, trembled when they offered their gift to that righteous judge, who, for all that, remained mindful of his oath, and who, to

make matters even, showed himself most favourable to those who had tried his temper, unless, indeed, the other party gave still greater offence.

We are sure to meet Kenihazy again, and we will not therefore expatiate on his blue jacket, which once upon a time boasted of a dozen buttons,—or his waistcoat, which owes its present colour to the sun,—or the time-honoured neckcloth, which gave the wearer a hanging look—and much less on his grey pantaloons. We mention his round hat and his boots and spurs merely in order to say that Kenihazy is the very picture of seedy gentility; and, having said thus much, we turn to a certain prejudice, which, though luckily obsolete in life, is generally accepted in theory. The prevailing opinion of the venality of judges is, I protest, utterly groundless. It has no foundation but those feelings of envy, which low people are wont to indulge in with respect to their betters.

Not to mention the fact, that according to our laws—and according to laws of which the boldest innovator dare not say that they are obsolete, inasmuch as their antiquity makes them venerable—our judges are allowed to accept presents: we need only point out the high estimation in which gratitude was held by all nations, both ancient and modern. To be good, a man ought to be grateful; and is it not therefore very wrong to insist upon a judge showing himself insensible to kindness? We are told we ought to do by others as we wish them to act by ourselves. Supposing now A., the judge, to be in the place of him from whom he accepts a present; that is to say, suppose A., the judge, were to plead a cause, about the justice of which he entertained some modest doubts, would not A. be very happy if the learned gentleman who sits on his case were to take a present and pronounce judgment accordingly?—and this being the case, ought not A. to deal with his fellows as he wishes to be dealt with by them?

It is a legal maxim that the judge ought to consider and weigh the proofs which are preferred in the suit. Supposing now the proofs of the claimant and those of the defendant are of equal merit, or nearly so, and supposing the claimant adds a few bank-notes to the legal documents, without the adverse party making a rejoinder to a plea of such universal power; what, in the name of fair dealing, can the judge do, but give judgment for the best pleader?

Returning to the party on the hill, we find Kalman eagerly disputing with Vandory. Their conversation was, of course, of the merits of hare-hunting. Tengelyi and Akosh took no part in it;—the former because he protested that the subject was one about which on consideration there could be but *one* opinion, while every body would at times act in opposition to that opinion; and Akosh declined to second his friend's argument, because his mind and heart were hunting on another track. He inquired of old Tengelyi how his daughter Vilma was, and his blushing face showed that he thought more of Vilma than of all the hares in the world. Tengelyi gave him but short answers, and even those reluctantly. Paul Skinner and his clerk conversed about the election, and of the means of gaining the public confidence. The names of certain villages occurred frequently in their interesting dialogue; and when Mr. Skinner, brightening up, murmured, "Ten butts, one dollar," Kenihazy was heard to respond with, "That will do to keep us in!" and, giving vent to his satisfaction, the worthy clerk, knocking his spurs together, blew an immense column of smoke from his pipe. In fact, he smoked with such violence, that one might have likened him to a steam-engine, but for the indecency of comparing a vulgar working machine with an Hungarian gentleman.

The party were about to leave, when their attention was suddenly directed to something which was going on in the plain below. Two men on horseback, and one on foot, were seen approaching over the heath; and it was remarked that the individual, whose means of locomotion were so unequally matched with those of his companions, walked in front of the horses, and sometimes even between them. The servants of the party, nay, the very justice, were in doubt as to who or what they were; whether Pandurs or robbers, for at that distance it was quite impossible to make out the difference, which doubtlessly does exist, between brigands and the familiars of the Hungarian Hermandad. On a nearer approach, however, all doubts were removed by the considerate manner in which the cavaliers sought to divert the attention of the pedestrian from the length of the way, by beating him; and it was at once clear that these were servants of the county escorting a prisoner, whom they were subjecting to the customary introductory proceedings.

"Let somebody ride down to the Pandurs and tell them to bring the culprit to this place," said Mr. Skinner to his clerk. "I'm sure he is one of Viola's

gang; his case ought to be tried by a court-martial.^[2] What did I tell you?" he continued, turning to Akosh, "I was sure we should catch the birds; and though I may not be re-elected, I mean at least to deserve the confidence of the county by hanging a parcel of the beggars on this hill."

^[2] See [Note I.](#)

"Not before you've caught them, and I doubt whether you ever will. Tengelyi says it is next to impossible to find an honest man. Now your example proves that nothing is more easy, because hitherto you've caught none but honest men; and I would almost swear," added Akosh, "that Viola's comrade, the mighty outlaw whom your people are bringing us, and to whose hanging you mean to treat the county,—that other Jaromir and Angyalbandi^[3],—is no less a personage than our old gipsy."

^[3] See [Note II.](#)

Upon this everybody recognised old Peti, and there was a general burst of laughter.

"Poor Peti!" cried Akosh with a great show of sentiment. "The country cannot boast of a man more gifted, more useful. When a house is built, it is he who makes the bricks; when a lock is out of order, he puts it to rights. He is a born blessing to property. He shoes your horse and fastens your spurs; there is not a wedding but he plays the first fiddle at it; nay, he is useful to the last moment of your life, for he digs your grave. It is said of him that, in his youth, he served the state as a hangman. Truly, truly, the world is ungrateful to great men, but still more so to useful men!"

"I don't see anything to laugh at," said Mr. Skinner, looking still more solemn and black than was his wont. "Possibly there is a case for a 'statarium.' As for me, I don't think it is your old gipsy, but if——"

"If it is not Peti," cried Akosh, laughing; "if that fellow dares to sport a white skin, there is not, of course, any obstacle to his being hanged."

"Enough of this! who says the fellow yonder is not a gipsy? but I say, who knows whether that old rascal, whom you mistake for an innocent musician ——?"

"Has not masqueraded as a gipsy all along! But you will bring the truth to light. You, Skinner, will skin the culprit. You'll strip him of his brown hide; you'll show the world that Viola the great robber is identical with Peti the gipsy."

"Don't make a fool of *me*, sir! I won't suffer it!" cried the justice, whose pipe had gone out with the excess of his rage. "Paul Skinner is not the man whom you can fool, I can tell you! But never mind; who knows what that fellow Peti has done all his life besides brick-making? and I apprehend that if he set out with being a hangman, he'll end with being a hanged man."

This said, the justice lighted his pipe, muttering his imprecations against untimely jokes and bad tinder.

Poor Peti had meanwhile proceeded to a distance of five hundred yards from the Turk's Hill; and so great was the good man's natural politeness, that even at that distance he bowed to the party on the hill. Little did he know the intensity of Paul Skinner's rage; but the first words of the worthy magistrate showed him that it was an evil hour, indeed, in which he had come before his judge.

"Hast at last gone into the snare, thou precious bird?" thundered Skinner. "Never mind, you old rascal! never mind! I'll pay you, and with a vengeance, too!"

"Most sublime——" sighed the wretched musician; but the justice, unmindful of this appeal to his better feelings, continued:—

"Hold your tongue! I know all! all, I tell you. And if you will not confess, I'll freshen your memory!"

"Most sublime Lord!" sighed Peti; "I am an innocent, poor, old man. I——"

"Dog!" retorted Mr. Skinner. "If you dare to bark, I'll pull your ears, that you shall not forget it to the day of judgment. Is it not horrible? the profligate fellow would give me the lie!"

"No, sweet, gracious Lord!" cried Peti, weeping; "I do not deny any thing, but——"

"It's better for you; at all events, we need not ask you any questions. The judge knows every thing." Turning to the Pandurs, Mr. Skinner added: "Now Janosh, tell me, what did you bring that culprit for?"

"Only because we have been told to arrest all suspicious characters."

"Ah!" cried Akosh, "and the old musician is a suspicious character! You are fine fellows, and ought to be promoted!"

"We'll see that by and by!" snarled Mr. Skinner. "Now tell us, Janosh, what is the old rascal's crime?"

"Why," said the Pandur, "the long and the short of it is, that it was about three o'clock,—was it not, Pishta?—after having had our dinner and rest at the Murder-Tsharda, we rode up to St. Vilmosh forest. We had been on our legs from an early hour this morning, and were apprehensive that we should not be able to obey his worship's orders about arresting at least one suspicious character, when Pishta spied a horseman near St. Vilmosh forest, and a man to whom he was talking. 'Suppose this is Viola,' said Pishta, who was just lighting his pipe. 'Ah, indeed! suppose this is Viola!' said I; and when I looked at the horseman, I thought it was——"

"Viola?" said Mr. Skinner, with a voice which left no doubt about the answer which he expected.

"I'm sure it was he, your worship," replied Janosh; "I'll bet any thing it was he."

"Now this fellow is short-sighted," interrupted Akosh; "I wonder how many robbers Pishta saw."

"We'll see that by and by!" said Mr. Skinner, angrily. "The devil may be a judge when robbers and vagabonds find such protection. Go on. What happened next? Did you see any thing more of the criminal?"

"How was it possible? We spurred our horses on, but the poor beasts were so tired they would not run; and when we came to the place, we found no one but the old gipsy, walking to St. Vilmosh."

"Well?" said the judge impatiently.

"Of course they handcuffed him, for who knows what outrage he might have committed if he had come to St. Vilmosh," cried Akosh. "They are the very fellows to be sent after robbers. They will soon starve all robbers, by preventing honest men from leaving their houses."

Old Peti saw that he had found a protector. Growing bolder, he asked to be freed from his handcuffs, and though the justice opposed, he yielded at length to the entreaties of Kalman, Akosh, and Vandory, though not without muttering something about "patibulandus" and "fautores criminum."

"And what happened when you came up with the gipsy?" said Mr. Skinner, again addressing the Pandurs. "Was there any thing very suspicious about the old hang-dog scoundrel?"

"There was indeed!" said Janosh, twirling his moustache. "When we came up with the gipsy,—which was rather late, for the old Moor ran very fast,—Pishta called out to him, at which he appeared frightened."

"Frightened?" said Mr. Skinner. "Frightened, indeed; I'd be glad to know the reason;" and the Clerk, shaking his head, added, "This is indeed suspicious!"

"Begging your lordship's pardon," cried the gipsy, "the gentlemen swore at me, and cocked their pistols, which made me believe that they were robbers."

"Hold your tongue, you cursed black dog! If you say another word, you shall have beating enough to last you a twelvemonth." Having thus mildly admonished the prisoner, Mr. Skinner proceeded with the "benevolum."
"Go on, Janosh," said he.

And Janosh went on: "Upon this Pishta asked him, 'Where is Viola?' and he answered, 'I never saw him.'"

"But we saw him in conversation with Viola!" cried the second Pandur. "I said, 'Peti, you are a liar; we have seen you talking to Viola! and unless you confess it, we'll make you dance to a queer kind of music.'"

"What did the gipsy say to that?" asked the Clerk.

"He said he did not know who the horseman was, which made me angry; for your worship is aware that Peti knows every body. When he saw me angry, he wanted to run away."

"Oh, Goodness gracious!" cried the gipsy; "why should I not run away, when they fell to beating me, and offered to handcuff me?"

"An honest man," said Kenihazy sententiously, "cares not for handcuffs."

"I thought so too," quoth Janosh; "therefore, when we saw that he was indeed a criminal, we hunted him down, bound his hands, and took him to his worship."

"You did your duty," said Mr. Skinner. "Now take the old fox to my house. To-morrow we'll commit him to gaol."

"But," cried Peti, "I assure your worship I am as innocent as the babe unborn!"

"I dare say you are!" said the justice with a bitter sneer. "You don't know Viola,—of course you don't. Who shod Viola's horse? eh?"

"Yes, I do know him," sighed the gipsy; "but is it my fault that I lived in the same village with him Heaven knows how long! for Viola was the best man in the world before he fell into the hands of the County Court. I confess that I did shoe his horse; but what is an old man to do against robbers armed with sticks and pistols?"

"But why do the robbers come to you? Why don't they employ honest smiths?"

"I think," said Peti, quietly, "the robbers prefer coming to my house because I do not live in the village."

"And why do you not live in the village? you scarecrow!"

"Because, my lord, the sheriff will not allow the gipsies to live in the village since Barna Jantzi's house was burned. This is hard enough for an old man like myself."

Every one of these answers was, in Mr. Skinner's eyes, a violation of the judicial dignity. The best of us dislike being mistaken in our opinion as to the merit of our fellow men. We would rather pardon their weaknesses, than be brought to shame by their good qualities. No wonder then that Paul Skinner, whose knowledge of self had given him a very bad idea of his species, would never believe a man to be innocent, whom he once suspected of any crime. It is but natural that, in the present instance, he did all in his power to make the gipsy's guilt manifest.

"Never mind," said he, "I wonder whether you'll give yourself such airs when you are in *my* house; Viola too will be caught by to-morrow morning. Take him to my house, and don't let him escape,—else—"

Upon this the Pandurs prepared the handcuffs, when Akosh interfered, offering to be bail for the gipsy's appearance. Mr. Skinner, however, was but too happy to have his revenge for the jokes which the young man had made at his expense in the course of the interrogatory.

"You know I am always happy to oblige you," said he, "but in the present instance it is impossible. By to-morrow Viola will be caught, and it will be then found that this gipsy is one of his accomplices."

"If you keep Peti until Viola is caught," said Kalman Kishlaky, "you'll keep the poor fellow to the end of time."

"We'll see that!" sneered the justice. "All I say is, I am informed that he is to be at the Tsharda of Tissaret this very night. He'll find us prepared. We take the landlord and his family, bind them, and lock them up in the cellar, while the Pandurs, disguised as peasants, wait for him at the door. It is all arranged, I tell you."

"Of course always supposing Viola will come," said Akosh.

"This time he will come," replied Mr. Skinner with great dignity. "I have trusty spies."

Old Peti seemed greatly, and even painfully, struck with this intelligence. His brown face exhibited the lively interest he felt in Viola's danger; and his features were all but convulsed when he heard of the preparations for the capture of the robber. It was fortunate for him that his excitement was not

remarked by any but Tengelyi; and when Mr. Skinner at length turned his searching eye upon his captive, he saw no trace of old Peti's emotions in his imploring attitude. The Pandurs were in the act of removing their prisoner, when the latter, turning to Akosh, said:—

"I most humbly intreat you, since I *must* go to prison, to tell my Lord, your father, that old Peti is in gaol, and that it is not my fault if the letters do not come to hand."

"What letters?" said Akosh.

"My Lord's letters, which he gave me," answered the gipsy, producing a packet from beneath the lining of his waistcoat, and handing it to Akosh. "I am my Lord's messenger; and I should not have been too late, for my lady promised me a present for taking these letters to St. Vilmosh before sunset, but for these——gentlemen, who caught me when I entered the forest."

Akosh took the letters, opened them, and, having perused their contents, he handed them to Mr. Skinner, who appeared not a little distressed after reading them.

"You've spoiled it," said Akosh in a low voice. "If you lose your election you have at least one comfort, namely, that you have defeated your own plans. With the three hundred votes from St. Vilmosh against you, you have not even a chance."

"I trust not," murmured Mr. Skinner; "I trust not. The men of St. Vilmosh _____"

"Are by no means fond of you; and if they elect you, they do it to please their notary, who is, indeed, on my father's side; but Heaven knows how long! This morning we learned that Bantorny's party were negotiating with him, but that they could not agree. My father writes these letters, promises to comply with all the notary's demands, and invites the St. Vilmosh gentry to come to him and pledge their votes. So far all is right. But you interfere with your Pandurs, you stop our messenger, and assist our enemies, who will by this time have repented of their stinginess."

"But who could have foreseen that your father would send an important message by a man like Peti?"

"Did not I tell you," said Akosh, evidently amused by the judge's perplexity, "that old Peti is our servant and messenger. Who would ever have thought of the sheriff's quick-footed gipsy being taken up and handcuffed?"

"It is true," said Mr. Skinner, despondingly. "But why didn't he speak?—why not mention the letters? Come here, you d—— old rascal!" thundered the judge, who was one of those amiable men whose rage reaches the boiling point at a minute's notice, and whose words are most offensive when they ought to be most conciliating. "You dog! why did you not say that you were sent by the sheriff? I have a mind to give you two dozen—I have!"

The gipsy was aware of the favourable change in his prospects, and he replied, with considerable coolness, that the cruel treatment of the Pandurs had caused him to forget all about it; "besides," added he, "my lady told me not to show the letters to any one; and, moreover, I was sure my innocence would come to light."

"Your innocence! it is shocking," cried the justice, holding up his hands; "the fellow has a letter from the sheriff in his pocket, and the blockhead relies on his innocence! Here are your letters;—go!—run!—and woe to you if the letters come too late to St. Vilmosh!"

The gipsy nodded his head, and hastened in the direction of St. Vilmosh! He was scarcely gone, when Mr. Skinner vented his passion upon the Pandurs. He expressed his astonishment, intermixed with curses, at the impertinence of these worthy men for having caught the sheriff's gipsy; and when they appealed to Mr. Kenihazy, all the comfort they received was a gentle hint of certain misgivings that gentleman entertained respecting their being suffered to go at large. Akosh and the rest of the company were amused with Mr. Skinner's violence and the agility of the gipsy, who every now and then looked back, and ran the quicker afterwards. The notary and the clergyman remained serious: and when the party had left, and neither the merry laugh of Akosh nor Skinner's ever-ready curses fell upon their ear, Tengelyi turned to his friend, saying, "Do you still think that hare-hunting is the *cruellest* pastime of these gentlemen?"

"No, indeed!" sighed Vandory; "and to think that these men are public functionaries, and that the weal and woe of thousands is in their hands!"

"Ha!" cried Tengelyi, turning round, and directing the attention of his friend to a dark point which moved over the vast expanse of the heath, "is not that our gipsy?"

"Yes; but he runs rather in a line with us, instead of to St. Vilmosh."

"So it seems," said Tengelyi, "and for once the sheriff's orders will not be obeyed. Perhaps he is bribed by the other party; but who knows? Skinner may be right, and Peti is leagued with Viola. In that case he is now on his way to inform the outlaw of what the judge most wisely communicated to him, for I am sure that gipsy does not run so fast without good cause. But what does it matter to us?"

And the two friends returned to the village.

CHAP. II.

On a ridge of the Carpathian mountains, where, gradually lessening, they descend to the green Hungarian plain, lies the village of Bard, amidst meadow land, forests, and vineyards. Its situation is most pleasant, though lonely; and, removed as it is from the busy high road and the means of traffic and communication, the village is both unknown and poor. About fifty years ago, there lived in this village Esaias Tengelyi, the curate of Bard, and father to Jonas Tengelyi, whom we mentioned as notary of Tissaret. The life of Esaias Tengelyi passed peaceably and unnoticed, like the place in which he exercised his sacred calling, or the valley and the mountain side which sheltered his humble cottage. The condition of the Reformed Church in Hungary does not by any means deserve the epithet of "brilliant," even in our own days; but the present village pastors are most enviably situated in comparison to their brethren of fifty years ago. Still the life of the Reverend Esaias Tengelyi, though full of privations, was rich in enjoyment. He loved his cottage, its straw-covered roof, and the brown rafters of its ceiling. Sometimes, indeed, he wished to have the windows of his room a little larger,—and he went even so far as to take the resolution of administering, at his own expense, to this drawback to the comforts of his

home. The huge stove, too, which served also the purpose of an oven, made his room preposterously small, and on baking days it threw out a greater quantity of heat than was consistent with comfort. The neighbouring curates, whenever they came to pay their respects to the Reverend Esaias, were violent in their strictures upon the parish of Bard, for neglecting to provide their pastor's study with a decent flooring: nay, more, the good man was seriously reproved, and earnestly adjured to follow the example of his brethren in office, who had successfully petitioned the Synod respecting the gross indecency of pastoral clay floors. But Tengelyi could not be moved to stir in behalf of his house: perhaps he liked it better as it was. Its windows were indeed small; but then he had often sat by them reading the Scriptures; and they had seen the roses on his wife's cheek. The stove was large,—of course it was,—but in winter it offered a convenient and warm seat; and the clay floor of his study was the same on which his father's feet had trod, when he was meditating his sermons, while the son made his first attempt to stand on a pair of trembling little legs. After all, there was nothing like the window, the stove, and the floor, for a countless number of sweet and tender emotions were connected with them. Esaias Tengelyi was happy; he felt that the largest window, that the smallest stove, and the most splendid floor of old oak, could not add to his happiness.

But that happiness could be lessened. The pastor's wife died, and the heart which had harboured so much bliss was henceforth the home of bitter sorrow. Tengelyi gave no words to his anguish, nor did he strive to add to or lessen his grief; but his friends felt that time was as nothing to the sorrow of his heart, and that his hopes and wishes were not on this side of the grave. His little son, Jonas, was the only tie which bound the old pastor to the world. The boy was but four years of age when his mother died; what would become of him, if he were also bereft of his father? People have scarcely a heart for their own children; how then is an orphan to fare for love? And the boy was most beautiful, when he cast his deep blue eyes upwards to the father's sad face! His voice had the tones of that dear voice which taught him his first words; his yellow locks were smooth and orderly, as if fresh from his mother's hands;—what was to become of the child on this wide earth, and with no kindred, but his parents in the grave? Tengelyi would not be comforted, but a sense of his duty kept him alive.

Little Jonas thrived under his father's care. He knew not what it was to be motherless in this world, where the heart finds that trusty, faithful love it yearns for, only at a mother's breast. A child's heart is a little treasury of joy, and there is no room in it for great griefs. In the first days after the event, little Jonas called for his mother, and receiving no answer from that mild, loving voice, he sat down and wept his fill; in the night he dreamed of her, and lisped her name. But as time wore on, his mother's name was rarely mentioned, and when spring came, with its flowers, her memory passed away like the distant notes of a song. All this was natural. Children are most enviable, because they are most forgetful. A thousand flowers are blooming round a child: why should it ponder on the sorrows of the past? A thousand melodies flit around it, and the young heart leaps to them: it has no ear for the sad accents of distant love.

Thus did the first years pass away. When Jonas had completed his eighth year, his father commenced his education. The old pastor's plan was extremely simple. He made the child ask questions, and answered them in a manner which was at once explicit and adapted to the boy's capacities. He had no idea of making his son a phenomenon; on the contrary, he did all in his power to limit his mental activity to a narrow circle, to prevent his being confused by a variety of subjects. The classical languages, as far as Jonas could understand them, and the rudiments of natural and political history, were all that old Esaias taught his son; they were all he thought necessary for that son's future vocation.

For old Tengelyi, like the majority of fathers, had already chosen a profession for his son, and though, on consideration, he would have shrunk from the idea of forcing anybody, and much less his own boy, into a career which might be repugnant to his tastes, still, when he thought of his child's future life, he could not possibly fancy that his son should wish for any thing besides the curacy of Bard. Old Tengelyi had himself followed his father in that sacred office. It was so natural to think that he in his turn would be followed by his son. But while the father was thus tracing out his future career, and planting in the garden, besides improving the house, as he thought, for the child of his heart, the boy Jonas Tengelyi anticipated other scenes and a different sphere of action. The poor curate's library contained but few books, but among them was a great treasure; namely, a copy of Plutarch—a relic of college life, with a portrait of the hero to each

biography. This illustrated copy of Plutarch was the only book of its kind in the vicarage, and indeed in the village of Bard. Jonas passed many hours in looking at the solemn faces of the classic heroes, nor was it long before he knew all their names and actions; and though the old pastor regretted that the book was not an illustrated Bible, by which means he might impress upon his boy's mind the history and the deeds of the heroes of our faith, still his heart grew big with joy when the child expatiated on the virtues of Aristides, or (his little cheeks glowing all the while) told of the death of Leonidas and Socrates. And old Esaias blessed the pagan author who wrote the book, and the college-chum who made him a present of it, and even the very printer who had produced it. The whole future life of Jonas was influenced by these early lessons; and though the milder doctrines of Christianity made a deep impression on his heart, yet his mind would always return to the models of classic excellence. His sympathies were all with the heroes of Plutarch.

At times, when old Tengelyi was from home, Jonas would follow his fancies through the dark shades of the woods. He would sit on the ruins of Bard Castle, looking at the forest-clad mountains and the wide distant plain, and there he sat and pondered until the sun went down and the evening breeze woke him from his dreams. There he was happy; for there is no greater happiness than the delight which a pure heart feels when thinking of great deeds and generous men. The childhood of nations and individuals idolises all heroes, and thus did Jonas.

A child's perceptions of distance are very weak: it is the same in the moral world. Children try to grasp any shining bauble which strikes their eyes, no matter whether far or near. Life has not yet taught them to wait, to plod, and perhaps to be disappointed. The boy is equally ignorant of the bitter truth, that there is usually but *one* road which leads to the high places of this world, and that the ascent, though easy to some, is impossible to others, for from where they stand there is no path which leads to the top. And yet how closely is our boyish admiration of a great man allied to the idea that he is our example and our hope! Children, when isolated,—that is to say, when they are deprived of the society of other children,—are apt to become dreamers: and this was young Tengelyi's case. His dreams were of a dangerous kind, and his conversation was such that his hearers became

convinced of fate having destined that boy to be either very great or very wretched.

Old Esaias did not indeed suffer from these apprehensions. His son's enthusiasm, his hatred of tyranny, his love of his kind, proved nothing to old Tengelyi but that Jonas would turn out a first-rate village pastor. He never dreamt of this enthusiasm being applied to other purposes than those of the pulpit; and he did all in his power to develop the talents of so hopeful a preacher. He enlarged on the sufferings of the poor and the cruelty of the rich; on the equality of mankind before God, and the duties we owe to our fellow men.

In the course of time Jonas was sent to school at Debrezin. Though he was only thirteen, his character was already formed. His was a boundless enthusiasm for all things noble and generous; his was an equally boundless hate against all that is mean; his was the daring which is ever ready to oppose injustice with words and with deeds; and his was that austerity of principle which is apt to make a man unjust. In short, poor Jonas would have proved a model man in Utopia. In our own civilised society, the excess of his good qualities was likely to cause him to be shunned, if not hated. Nevertheless he was popular with the masters and the boys; and the happiest years of his life were spent in the dull routine of a public school. The masters admired his ambition, and the rapid progress it caused him to make; and though he seldom condescended to join in the plays and athletic exercises of his comrades, they paid a free tribute of admiration to his love of justice and his courage. His studies delighted him, for his soul yearned for knowledge. Jonas was indeed happy!

Old Esaias Tengelyi continued meanwhile in his life of tranquillity and contentment. His humble dwelling grew still more quiet when his son left it; and the grey-headed pastor walked lonely among the fruit-trees of his garden, where he formerly used to watch the gambols of his child; but the serenity of his mind was still the same. His life passed away like the course of a gentle stream which mixes with the ocean. Esaias was aware that his days were numbered; but there was nothing appalling in the thought. He was at peace with God and the world; and though he grieved to leave his son, his soul yearned for her that had left him. His last remaining wish was to expire in the arms of his son. His wish was granted. Jonas returned to

Bard, and a fortnight after his return his father was laid in the grave. The poor of Bard wept with Jonas, for they too were the old man's children; a simple stone with an inscription of rude workmanship (for the hands of poor peasants wrought it) marks the last resting-place of Esaias Tengelyi.

His father's death threw Jonas into a different career. Hitherto he had sacrificed his ambition to his sense of duty, but now his choice was free; and, at his time of life, there are few who will tread an humble and tranquil path. Jonas preferred to embark in a political career; and since the study of law is the first condition to eminence, he devoted the whole of his energies to the rudiments of that dry and uninteresting science. Having turned his paternal heritage into money, and realised the modest sum of six hundred florins, he passed three years at the German universities, but especially at Heidelberg, where the strongest bonds of friendship united him with that very Rety, in whose village our readers have seen him established as notary. His studies ended, we find Jonas Tengelyi at Pesth, in the act of entering into public life. He had great hopes, great ambition, and very little money. But Jonas was not a man to be daunted by privations. He took his oath, was admitted as "juratus," rattled his sword for eighteen months on the steps of the Curia, and, being thus duly prepared, he was at length admitted to the bar.

This period of our hero's life contains nothing whatever for his biographer or the public to take an interest in, excepting always the negative wonder of Tengelyi having been a "juratus" for eighteen months without having once fought, got drunk, or played at billiards. Need we add that he was very unpopular among his comrades?

But we will add that Jonas Tengelyi, though deeply read in law, could not prevail upon his examiners to insert into his diploma a better qualification than the simple word "laudabilis," while two young gentlemen, whom he himself had ground for the examination, passed triumphantly each with a "præclarus." Poor Jonas, though thus roughly handled at the very threshold of public life, forgot all his grief that very evening, when he took his seat in the humble conveyance which was to take him to the county of Takshony. The jolting of the coach which bore him to the scene of his future struggles, opened the brilliant realms of a fanciful future to his mind. The past was forgotten.

The reasons why the young barrister proposed to practise in the county of Takshony are very obvious. He was not, indeed, a large landholder in that blessed county, nor could he expect the patronage and the support of powerful friends. He chose Takshony because, of the fifty-two Hungarian counties, there was not one which offered more, nor, indeed, less chances for him, poor and friendless as he was. Hungary was all before him where to go, and he went to Takshony. If he was to trust the evidence of the natives of the county, it was the most enlightened district in the kingdom; and, if credit could be given to the assertions of its neighbours, there never was a county so destitute of common sense: a man of Jonas's stamp was therefore certain to prosper in any case. In an enlightened county his merits were sure to be appreciated, and in a dull county they were as certain to be wanted. Besides, he trusted the promises, and looked for the support of his friend Rety, who was son to the sheriff of Takshony. Tengelyi was, consequently, not a little elated and excited when, after a tedious journey, the coach deposited him safe and sound in the high street of the county town, whose appropriate name in English would be Dustbury. This town, unless a traveller happens to see it on a market-day, has little to distinguish it from the common run of Hungarian villages; indeed, there would be considerable danger of its being thus lowly estimated but for the imposing bulk of the county house, before whose massive gates a batch of culprits may at all times be heard roaring under the beadle's rod, and thus proclaiming the force of the laws of Hungary.

Dustbury, the capital of the county of Takshony, was to be the scene of Tengelyi's future labours and triumphs. He sent his letters of recommendation to their various addresses, read his diploma in the market-place, hired a small study, and waited for clients. Nor did he wait long. Young physicians and young advocates have in general plenty to do, but their practice is rather laborious than profitable. As a tax upon entering public life, they are called upon to exert themselves in behalf of the poorer members of the community. Tengelyi's turn of mind made him eminently fit to be the advocate of the poor. He embraced the cause of his humble clients with uncommon enthusiasm, and pleaded it with equal warmth. He was the friend and protector of the oppressed, and his love of justice made him soon something like a marked man in the town of Dustbury.

At first his position was rather tolerable, for he confined his practice to criminal cases. A prisoner whom he defended was indeed condemned to death, and some other clients of his received a severer sentence than they had a right to expect; but this was, after all, the gentlest means for the court to show their sense of the impertinence which prompted "such a vagabond counsel to lecture his betters;" and certainly the court showed an admirable tact by this indirect manifestation of the contempt in which they held Tengelyi's pleadings. But there was no feeling of personal animosity against him, until he dared to take up a civil process against one of the assessors, whom he all but forced to refund a certain sum of money which that gentleman had condescended to accept as a loan from a poor peasant. This affair settled Tengelyi. The young counsel's impertinence was the nine-days' wonder of Dustbury. His colleagues shunned him,—his landlord gave him warning to leave his house,—and there is no doubt that the self-constituted advocate of the poor would have been ignominiously suspended from his functions but for the intercession of the sheriff Rety, who pleaded Tengelyi's extreme youth in extenuation of his offence. "He is sure to profit by our example," said old Rety; "and when he has once sown his wild oats he will be a credit to the county."

An event occurred meanwhile which promised to establish Tengelyi in his career. The counsel of the Baron Kalihazy died, with sundry cases still pending on his hands; and the head of the family of Kalihazy, who had made Tengelyi's acquaintance at Dustbury, thought of appointing the young barrister to the vacant post of fiscal; that is to say, he proposed to make him the legal friend and adviser of the Kalihazy family. So determined was the whimsical Baron to turn the young man's talents to account, that not all the persuasions of his friends could induce him to relinquish his insane project, which he was on the point of executing, when Paul Hajto, the leading counsel of the Dustbury bar, interfered. Mr. Paul Hajto was the most intimate friend of our hero. Instead of censuring him for his violence, as others were apt to do, that worthy man seized every opportunity (when alone with Tengelyi) to urge him to still more violent attacks upon the court. In the present instance, too, Mr. Hajto did all in his power to remove Tengelyi from the temptations which beset the life and threaten the integrity of an advocate.

"You are not fit for the bar," he was wont to say: "you are made to shine in a more elevated sphere. If I were in your place, I would devote myself wholly to politics. As it is, you lose your cases; your labours are not only unprofitable, but useless. Hungary wants a thorough reform; you are the man to regenerate the country. Besides, you can be an advocate and a politician too, if you *will* stick to the bar." Tengelyi resisted; but flattery is too persuasive, especially for youthful minds; and he set about seriously to prepare a speech for the next Sessions.

The day came. Tengelyi made his speech, which astonished the whole assembly, not solely by its classic Latin and its most modern sentiments. No! The astonishment of the meeting was chiefly caused by the unheard-of fact that a young advocate, scarcely twenty-four years of age,—and a man who was not even an assessor, and much less a landowner,—dared to speak at all. Such effrontery was so marvellous, so unaccountable, so unheard-of, that the noble members of the meeting were utterly at a loss to express their disgust. But they did express it somehow; and the sheriff, and the notary, and the recorder of the county overwhelmed the young intruder with a torrent of words, of which we will only say that they were rather sincere than elegant. Tengelyi, nothing daunted, replied to each of them, and carried the matter so far that every man in the room cried "Actio!"^[4] whereupon the discomfited reformer was obliged to pay the usual fine of five-and-twenty florins into the recorder's hands.

^[4] See [Note III.](#)

The loss of this sum was a severe blow to Tengelyi, who had not another florin left. Besides this, he lost the fiscalship and the briefs of Kalihazy's family; for that gentleman was among his opponents, and Tengelyi had not spared his future patron's arguments or feelings. The Kalihazy briefs were that very evening made over to his friend, Mr. Paul Hajto.

To make a man a martyr is the surest means of making him popular, at least with *one* party. Every sheriff, recorder, or notary has at least *one* enemy, namely, the man who wishes to oust him in the next election. The truth of these great political axioms was tested in Tengelyi's case. His attack upon the magistrates of the county, and his subsequent martyrdom, gained him some friends. Konkolyi, in particular, who thought of opposing Rety at the next election, was loud in his praises of the young man's courage and

common sense. The smaller nobles were not fond of Konkolyi, for they thought him proud; but they idolised Rety, who had an amiable way of calling them his cousins, and of taking a vast interest in the health of their wives and children. Konkolyi had not, therefore, any chance of prevailing against Rety, though he, too, exerted himself to the utmost, by means of bounties, drinking-bouts, and dinners, to convince his fellow nobles of his merits. Hajto was Konkolyi's fiscal. He was aware that his patron possessed large domains, a fine castle, and an income of twenty thousand florins a year, and that a man of such transcendent merits wanted but one thing for the shrievalty, namely, a trifling majority of votes. But so great was Rety's popularity, that Hajto had lost all hopes of carrying his patron's election, when Tengelyi's quarrel with Rety opened a fresh field for intrigue.

Hajto came that very evening to see the poor young man; he praised his speech, censured Rety's tyranny, protested that the county magistrates *must* go out at the next election, and finally persuaded him to come to Konkolyi's house.

Konkolyi was a courtier, and chamberlain to his Majesty the Emperor. The great man received Tengelyi with unwonted condescension; and, corroborating every one of Hajto's words, he protested that poor Jonas must allow his friends to elect him to the justiceship of the district, as the only means of giving his opinions the weight which they deserved. Jonas pleaded his youth, his poverty, his being a stranger to the county; but his objections were overruled.

"We know you, my dear Sir, we know you," said the chamberlain, with his kindest smile. "You have made a speech; that's enough. 'Ex ungue leonem.' We have put our hearts upon making you a justice. You are noble; and a nobleman, however poor and unknown he may be, is entitled to the highest place in the kingdom."

What could Tengelyi do? He consented, and became a distinguished member of Konkolyi's party. It was Hajto's task to make him friends among the lesser nobility. Nothing could be better adapted for this purpose than the speech which had caused Jonas to be fined at the Sessions. Hajto took possession of that speech, and translated it,—of course with a few unimportant alterations. Wherever Tengelyi mentioned the poor, his

translator inserted the words "poor noblemen;" and the blame which Tengelyi bestowed upon the undue length of criminal prosecutions and the ill-treatment of the prisoners, was artfully changed into denunciations of the unseemly despatch which was used in criminal proceedings against noblemen, and the unjustifiable tyranny of the county magistrates who refused to bail certain incarcerated noblemen for the election. If the author had seen his production in its altered state, the chances are that he would have disapproved of it; but certain it is that Hajto's edition of the speech insured its popularity. The noble constituents of the parishes at Ratsh and Palfalva were in raptures with their new advocate; and though Rety's party endeavoured to disenchant them by publishing the original text of the speech, they found it impossible to undermine Tengelyi's popularity, confirmed as it was by the martyrdom of an "actio." Whenever the noblemen came to Dustbury, they made a point of paying their respects to their tribune; whenever he accompanied Konkolyi to some neighbouring seat, he was received with deafening cheers. His popularity brought him some more substantial benefits, in the shape of briefs and fees, for his professional advice; in short, he had every reason to be satisfied with the progress he had made. His future promotion was all but certain. But suddenly a compromise was talked of. Rety was willing to withdraw from the contest under the condition that his son was accepted as justice. Konkolyi's party opposed, because that very place was promised to Tengelyi; but Hajto interfered, and, as usual, succeeded in arranging matters to the satisfaction of all parties concerned. Tengelyi was at that generous time of life when men are prone to make sacrifices. He, therefore, was prevailed upon to withdraw his claims to the justiceship, and to solicit the votes of the county for the inferior post of deputy-justice. The election commenced in due course, and Konkolyi and the younger Rety were returned. Tengelyi was pleased with the triumph of his friend, and not the less because that triumph was obtained at his own expense; but who can picture his dismay when the election of the deputy came on, and another man, a friend of Konkolyi's, was chosen to fill that place? His heart was crushed within him, for he, the proud man, saw too late that he had been the tool of a party which cast him off the very moment that his services could be dispensed with. His popularity passed away like a dream. The part which young Rety had acted in the election was, to say the least, suspicious; and that brotherly attachment, which distinguished the two young men at

college, received a serious shock. But this was not all. Jonas loved for the first time in his life; he loved as only those can love who are alone in the world, for whom there is no other being on the face of the earth whom they place their trust in, whom they hope for, and to whom they cling. Erzsi, the object of Tengelyi's attachment, was fully deserving of his love; but she was poor: nevertheless our hero married her. He was consequently still more imperatively called upon to resign his early dreams of glory, and to devote his energies to gain a livelihood.

Tengelyi and his wife left Dustbury; but they returned two years later poorer than ever, and the more disappointed from the very humbleness of their wishes and plans. In the course of those two years he had tried to keep a village school, to be tutor in a rich man's family, and to act as steward on another rich man's lands; but he signally failed in each. His return to Dustbury marked the saddest period of his life. Up to that time he had undergone privations; now he suffered from want; his struggles with the world had been full of disappointments, but now he was borne down by utter hopelessness. Thus he passed three years of misery; and although Rety had by this time succeeded to his father's estate, and to the almost hereditary dignity of sheriff of the county, he never assisted his old friend. He respected Tengelyi too much to relieve the poor man's necessities by a gift of money: his principles were too rigorous to allow him to use his influence and his patronage in behalf of his friend. Nevertheless, after three years of unutterable wretchedness, Tengelyi was surprised to see Rety enter his little house. The sheriff came to tell his old friend that the notary of Tissaret was just dead; and offering that place to Tengelyi, he assured him, with a generosity which did honour to his heart, that the new notary should have the same immunity from local and parish burdens which had been from time immemorial enjoyed by all his predecessors in office.

Jonas thanked Rety for this unexpected favour. That very week he went to Tissaret, where we found him at the commencement of our tale, as a village notary of twenty years' standing, and with grey hair, but still sound in mind and body. The twenty years he lived at Tissaret had passed as such a number of years in the life of a poor village notary is likely to pass; nor did they contain any notable events beyond Tengelyi's acquiring a small freehold in the parish of Tissaret, and the birth of two children, a daughter and a son, the former of whom grew up to be the prettiest girl in the county.

Perhaps we might add, that Mrs. Ershebet had lately lost part of that sweetness of temper which formerly warranted the name of "*good* Erzsi," which Tengelyi was pleased to give her, and that his friendship with Rety had ever since the last election fallen into the seer and yellow leaf. But this is all. Years had passed over his head without changing his character; his sufferings had, in a manner, soured his temper, but his love of justice was the same, and his courage in behalf of the oppressed remained undaunted. Mrs. Ershebet had a right to say, as indeed she did, that her husband would never come to be prudent and make his way in the world.

Tengelyi had but one friend, viz. Balthasar Vandory, the whole tenour of whose mind was in the strangest contrast with his own. Where Tengelyi condemned, Vandory was sure to excuse; and whenever the perpetration of some great wrong turned all Tengelyi's blood to gall, his strictures upon the cruelty and injustice of mankind failed to move Vandory to any more determined sentiment than deep grief. The notary was at war with the world; the curate was reconciled to it.

Little was known of Vandory's previous history. He never made any allusion to his family, but his accent gave unmistakeable proof of his Magyar origin. His parishioners adored him, and even the Retys made no exception to the general rule.

My readers are now informed of all that can be said of the character and the history of the notary and his friend. I will therefore leave them alone to improve their acquaintance with Tengelyi, who, after parting with the curate, proceeded to the gate of his house, which he was prevented from entering by his daughter Vilma.

"I cannot let you go in," said she; "I want to ask something, and you must grant it."

"Well, what is it?" said Tengelyi, smiling at her earnestness.

"I want you not to be angry."

"Why should I be angry?"

"Because we have done something without your knowledge."

"Very well then," said Tengelyi, laughing, "I pledge my word I will not be angry."

"But you must also approve of it."

"That is a different thing altogether; but if *you* did it, I think I can promise as much." With these words the notary followed his daughter into the house.

CHAP. III

The village of Tissaret was peaceful and quiet when the notary returned to his house. A few workmen wending their way homewards from the meadows, with their scythes on their shoulders, walked slowly along, stopping every now and then to say good night to the people in the houses. The evening-bell swang slowly to and fro, sending its drowsy tones over the country. The very tavern was all but deserted; and Itzig, the Jew, who usually sold his liquors at high prices because he was in the habit of giving credit on the security of next year's harvest, lounged in the hall, listless and sullen. The manor-house, and the surrounding fields and gardens, were not less quiet, which is saying a great deal, for a Hungarian manor-house is usually the noisiest place in the village. But we know that the son of the house, accompanied by all the dogs, was out hare-hunting; and as for the sheriff, he was closeted with the chief bailiff and the recorder. The conversation of the three dignitaries would doubtless have touched upon very weighty matters, had it not been for the sultriness of the day, which set them "All a-nodding," as the old song has it. And the sheriff's lady's voice, which usually filled the house as the song of the nightingale does the woods, with the sole difference that Lady Rety's voice waxed louder in tone, and more frequent in use, as she advanced in the summer of her years; Lady Rety's voice, too, was silent in the hall, for that lady walked in the garden. That garden was a splendid place! It contained a hermitage, an oven to dry plums in, a pigeon-house built like a temple, a fishpond, with a fisherman's hut, a grotto, a cottage, and a variety of other things, bearing witness to the inventive genius of the Retys, and astonishing the travellers who were favoured with a view of its marvels, its stout Bacchuses, thin

Pomonas, artificial ruins, and Chinese arbours. Its furthest end merged in a poplar wood—a real wood of real poplars, and which, but for the unaccountable fancy which the lord lieutenant had taken to it, would long ago have been compelled to make room for a batch of new wonders which the sheriff Rety longed to establish in his garden. For truly that poplar wood was quite a savage place; there was no trace of modern civilisation and refinement in its luxuriant foliage and the sturdy generation of brushwood which surrounded the massive trees. A single path wound through it, or, rather, round about in it. In this path we see Lady Rety engaged in an important and interesting discussion with her most humble and obedient servant and solicitor, Mr. Catspaw.

Lady Rety is of a *certain* age—I cannot possibly say more on so delicate a point—she is tall and full-grown. Her hair—though we have none of us a right to judge of her hair until we see her without a cap, an event which is very unlikely to happen—is most probably dark, unless, indeed, we are deceived by the colour of her thick eyebrows, and of that slight but treacherous shade on her upper lip. Lady Rety's face is full of majesty, but at certain times (and these times are very *certain*, for they embrace a regular period of six months out of thirty) that face is beyond all measure condescending and kind, though its usual expression is one of scornful pride, which, by the agency of two warts on her upper lip and chin, becomes so strongly marked that it merges into something like an habitual sneer. The lucky possessor of that sneer is as high-bred a lady as any in the country; her household is on a grand scale; none of her dinners was ever shorter than two hours, and her courts and outhouses are full of poultry and guests, of which the latter, if of high rank, are waited upon with the kindest consideration. Lady Rety's voice is of an easy flow, like a generous fountain, and sweeping, for it would shake even stronger walls than those of Jericho, besides causing the servants to quake. Her discourse is admirable, for it is a verbal repetition of the sayings of her liege lord. This rare instance of conjugal harmony alone would entitle Lady Rety to our respect; but we are free to confess that we venerate her for that sound knowledge of common and statute law, which her conversation betrays, and which marks her as a practical woman, besides giving to her words, as such knowledge never fails to do, a peculiar grace and amiability. There was not a lawyer in the kingdom fonder of arguing a point of law; and so great was her

discernment and readiness of mind, that Mr. Catspaw would often confess that he purloined the substance of his best pleadings from the conversations of the most noble, the Lady Rety.

Mr. Catspaw himself is a small spare man of more than fifty years of age, with a pale face, a pointed nose, and a pair of small restless eyes, whose look, though piercing, it is difficult to catch. His back is bent, more from habit than from age. Add to this his high bald forehead, and his scanty hair of bristling grey, and you will have a tolerable idea of Mr. Catspaw's outward man. He was most devoted to the Rety family, in whose service he had passed the last thirty years, and with whom he had at length come to identify himself. This last assertion of his was of course contradicted by his enemies, who protested that his attachment to the Retys sprang from motives of the most sordid selfishness. But however this may be, certain it is that on the evening in question the worthy solicitor was by no means identified, either with the Rety family in general, or with Lady Rety in particular; for while that majestic lady stalked through the poplar wood, with Mr. Catspaw following at her heels, she favoured him with a very violent oration; nor would she condescend to listen to the humble remonstrance, by means of which the lawyer sought to assuage her anger. For, shaking her head with great impatience, she gave that learned gentleman to understand that it was easy to talk,—that every body was aware that Mr. Catspaw would not allow any one to speak,—and that real devotion showed itself by deeds. "I will candidly tell you," said Lady Rety, stopping short, and thumping her parasol on the ground, "what you told me drives me to despair!"

"But, my lady, allow me to observe, that there is no reason why you should despair, for I am sure——"

"Oh! I dare say! You don't despair—not you! What do *you* care for our troubles? You do not mind what becomes of us!—you have your profession, and who knows but——"

Here she was in her turn interrupted by Mr. Catspaw. "Is this my thanks," cried the solicitor, in a generous passion; "is this my thanks for my service of thirty years? I, Adam Catspaw, have more than once risked my life in

promoting the interests of your family, and, in lieu of gratitude, you suspect me!"

"I really beg your pardon," said Lady Rety, very humbly, for she saw at once that her zeal had led her too far, and that she was not now addressing her husband,— "I am a woman, and my unfortunate circumstances—and _____"

"All this is very fine, my lady," retorted Mr. Catspaw, emboldened by his success; "but your ladyship talks always advisedly. All I can do is to look out for another place. A solicitor whom his employers suspect——"

"But who tells you that we suspect you?" entreated Lady Rety. "It is you on whom we rely. What could we do without you? Besides, you know our promise about the grant."

"As for the grant," muttered Mr. Catspaw in a milder tone, "the Lord knows I toil not for the sake of gain; but if, for my faithful service—*ob fidelia servitia*—you will remember me, I am sure my gratitude will outlast my life."

"I know that your generous mind scorns to be selfish; but for all that it is a fine grant, and though its value is as nothing to your services, still it is a splendid property."

"And I will obtain it, in spite of a thousand obstacles!" exclaimed the solicitor.

The lady sighed. "Are you still confident? As for me, I have no hope!"

"But why? because our first attempt had no success? This is mere childishness. Consider: the man who broke into Vandory's house was as expert a thief as any. To avert suspicion, I instructed him to take not only the papers which your ladyship wants, but also some money and trinkets—it made the affair look like a *bonâ fide* robbery. But the fellow did not find any money, and while he was rummaging the drawers, the curate came home and alarmed the neighbours. Tzifra had not time to look for the papers; all he could do was to escape through the window. Those papers are at present in Tengelyi's house, who, I am informed, keeps them in the iron safe near the door, with his own papers and the parish records. I pledge my

word that we find them, and perhaps something else, for I have an account to settle with that notary."

"But the notary's house is much frequented. I tremble lest Tzifra should be caught."

"In that case we will hang him fast enough," said Mr. Catspaw, with great composure; "God be praised! the county has the Statarium."

"But supposing he were to confess?"

"Oh! he won't confess. Leave me to manage that; and if he were to attempt it, I promise you he shall be hanged before he can do it."

"Oh, if you could but know,"—cried Lady Rety—"if you could but know what it costs me to take this step; and when I consider—that—but who can help it? The honour of my name, the welfare of my children—all that which makes life worth having, compels me——"

"A mother shrinks from no sacrifice for her children's sake!" said Mr. Catspaw, wiping his eyes, for the darkness allowed him to dispense with tears. "Nobody," continued he, "knows the goodness of your heart as I do; but, Lady Rety, if the world could know it, it would go down on its knees before you!"

"God forbid!" cried Lady Rety, alarmed but still pleased; for she was happy to see the ease with which so ugly a thing as theft undoubtedly is could be brought to assume the more grateful names of motherly devotion and generosity of feeling. "God forbid that any body besides you and I should know of this matter. The world is severe in its judgments, and perhaps it might be said——"

The lady did not finish her sentence. She was astonished, for she felt herself blush.

Mr. Catspaw understood the feelings of his patroness. "Why should you thus torment yourself?" said he. "It is an every-day affair, to say the worst of it. Such things are so common in Hungary, that nobody ever thinks twice of them, excepting perhaps the party who fancies he is aggrieved. Title deeds, mortgage deeds, and promissory notes are lost somehow or other;

but who cares? The present case is not half so bad—for what are the papers your ladyship wishes to possess? Why, they are simply some confidential letters, most of them in the sheriff's own handwriting, which you have an objection to leave in the hands of strangers. The matter is most innocent, though the manner is perhaps in a way open to objection."

"Yes! yes! the manner!" sighed Lady Rety. "It is house-breaking—robbery—Heaven knows how they might call it!"

"It is indeed burglary," observed the man of the law; "but who is the burglar? The man who actually breaks into the house, I should hope. Suppose A. talks to B., who, though not a very respectable character, is not at the time under any criminal prosecution, and whom the law consequently supposes to be an honest man; and suppose A. tells B., in the course of conversation, of a certain packet of papers in a certain closet in Mr. Vandory's house, which packet of papers A. wishes to possess, either from curiosity, or caprice, or for some scientific purpose; and suppose A. were to remark, quite incidentally of course, that he would gladly give one hundred florins to any man who should bring him the said packet: suppose all this, and tell me whether such a conversation could be called criminal? Of course not. Very well then; now suppose A. adds that the curate is to be from home on Saturday night, he being asked to take supper at the manor-house, and that it has been observed that the door which leads to the garden is never locked, and that there was indeed danger of some dishonest person scaling the garden wall and committing the abominable crime of stealing the said papers,—than which indeed nothing could be more easy; suppose A., who is something of a gossip, says all this in the course of conversation, is there anything criminal in mentioning a neighbour's imprudence? By no means. Well then, and if B. is wicked enough to abuse A.'s confidence, if B. scales the garden wall, enters the house and steals the packet—can you accuse poor A. of having committed a robbery? And if B. takes the packet to A.—thereby reminding A. of his promise to pay a certain sum of money to any man who should bring the packet—is not A. bound to abide by his word? That is my case. As an honest man, I pay the money; the rest does not concern me."

"You are quite right," said Lady Rety; "but the world judges differently."

"Of course the world does; but then it is always wrong. However, the world will never know of this business."

"I, too, should think so, if those papers were still at Vandory's," returned Lady Rety; "but they are at Tengelyi's. His house is much frequented; besides, there is a watchman at night."

"True, but the papers are in an iron safe; and though there are but two keys to the said safe, there are plenty of locksmiths in the world."

Here the conversation was interrupted by young Rety's retriever breaking through the brushwood and running up to Lady Rety.

"My son is come home," said she; "let us go to the house." She was in the act of going when the manner and the barking of the dog directed her attention to the thicket, and to a slight rustling among the branches. The dog advanced, but returned, after a few minutes, yelping and limping. Akosh Rety and his sister, Etelka, came up at that moment and joined the pale and trembling pair.

"What is the matter?" said Akosh.

"Did you not hear any thing?" replied his mother.

"Of course! My retriever barked. There must be a dog or a fox somewhere."

"No, young gentleman," cried Mr. Catspaw, with his eyes still directed to the spot whence the noise had proceeded, "I'll stake my life on it, it was a man."

"Perhaps some poor fellow from the village," said Akosh, caressing the dog.

"The fellow has heard our conversation. I am positive he came to listen!" said Lady Rety, greatly excited, and to the signal annoyance of Mr. Catspaw.

"I cannot think he did," said Etelka. "Mr. Catspaw is indeed known to be the worthiest person alive, but I cannot believe that anybody will creep up in the darkness to listen to him, and in October too."

The attorney frowned. "My dear Miss," returned he, "you do not understand these things. We were discussing matters of great moment—there are several suits now pending——"

"Ah! I understand!" cried Akosh, laughing. "You mean to say that the counsel for the other side has lurked among the trees to find out the plans of our crafty attorney. But why not arrest the culprit? Gallant Mr. Catspaw, I understand, does not shrink from any odds."

"I!" said the little man, trembling, "I should——"

"Of course. Why should you not? Come along with me. If there's any one hidden in these bushes, we will have him out in no time!"

"I really beg your pardon, *domine spectabilis*!" cried Mr. Catspaw, in great distress, while Akosh pulled him along; "but, *domine spectabilis*, we are quite defenceless, and the night is very dark—and—and—shall I call for help?"

"Nonsense! The fellow will be gone long before anybody can come to assist us. Come along, dear sir! Let my mother and Etelka go home, while you and I, heroes both, brave all dangers. Let us conquer or die, or run away. Is it not so, most intrepid of fee-taking counsel?"

Mr. Catspaw was by far too much engrossed with fear for his personal safety to care for the jokes of his companion; nevertheless he protested that it might be advisable to send for the servant. But Lady Rety entreated him to accompany Akosh; and, after some further delay (for he wisely thought his best plan would be to give the listener a good start), the little attorney at length buttoned his coat with great deliberation, and loudly protesting that he had no fear, as far as his own safety was concerned, he followed Akosh into the thicket, while Lady Rety and Etelka directed their steps to the house: the dog, thinking perhaps that one beating was enough for one evening, accompanied them.

Young Rety and his reluctant companion were meanwhile beating the bushes in search of the mysterious stranger. Mr. Catspaw was vastly comforted by the darkness, which his instinct taught him would defeat the plans of any assassin who might fire at them; and, besides, if by ill-luck they should fall in with a stranger, he was firmly resolved to run away and

call for assistance. But there was little chance of any unpleasant *rencontre*, for, what with the darkness and the brushwood, and the time which had been lost by Mr. Catspaw's prudent delay, Akosh could not expect to do any thing, except to annoy his mother's man of business. And annoy him he did, by madly rushing into the thickest part of the wood, and causing the branches of the trees to strike Mr. Catspaw's face, until at length they arrived at the furthest border of the plantation. Here Akosh stopped, and, turning to Catspaw, who stood breathless by his side, he said, "I'll take my oath there is no one in the wood; will you now confess that you were mistaken, or frightened by a hare or partridge, or some such formidable animal?"

"It was a sound of human footsteps; Lady Rety is my witness, and I——"

"Of course, if that is the case, let us go back and beat through another part of the plantation, until the fellow is caught."

"Don't, don't!" sighed Mr. Catspaw. "I am sure no one is there; goodness knows our search was minute enough. I can scarcely stand on my feet," added the little attorney, wiping his forehead.

"Very well, sir, if you are satisfied that nobody is hid here, I am so too. But let us cross the ditch; there is some chance of finding him on the other side." Saying which, Akosh leaped over the ditch, while Mr. Catspaw descended into the depth of the cutting, from whence a few bold gymnastic evolutions brought him to the other side. Having joined his companion, the two men walked silently on, and disappeared at length round the corner of the garden-wall.

All around was hushed. The night was as dark and comfortless as October nights usually are. The brilliant setting of the sun was followed by a looming and cloudy sky. The wind sighed over the boundless heath, shaking the yellow leaves from the trees. Here and there a solitary star, or the watch-fire on the far pasture-land, threw a faint and melancholy light on the scene. The footsteps of the two men were lost in the distance, and the stillness of night was at intervals interrupted only by the distant barking of a dog, or a shepherd's song floating on the breeze, when a man rose from the ditch close to the place where Akosh and Catspaw had crossed. His broad-brimmed hat, and the rough sheep-skin which hung over his shoulders, were

enough to hide his features and stature, even if the night had been clearer. The man listened to the song as it rung through the still night, and, after looking cautiously round to satisfy himself that no one was near, he stepped out of the ditch and hastened towards the fire.

But it is time we should return to Tengelyi, whom we left just when, accompanied by his daughter, he crossed the threshold of his humble dwelling.

Reader, did you ever know domestic happiness? did you merely see it in others, or are you among the blessed whose homes are heavens of peace and love? If sacred family love is known to you; if you are convinced that this, the most precious gift of heaven, can only fall to the share of a pure heart; if you feel that all the distinctions, all the glory we struggle for, all the wealth we covet, are an nothing to the joy and love of the domestic hearth; then you will enter the notary's house with a feeling of reverence, and you will pray that happiness and peace may continue to dwell there.

After Tengelyi sat down, he said to his daughter, "Now tell me the great secret, for you must know," added he, addressing his wife, "that Vilma would not allow me to enter the house until I consented to pass a bill of indemnity in her behalf.'

"I know," said Mrs. Ershebet; "and I consented only to please my daughter. Speak, Vilma!"

But Vilma did not speak. She looked vainly for a form of words in which to prefer her suit.

"Am I to be informed of the matter or not?" said Tengelyi, impatiently. "She cannot have committed a crime!"

"Of course not, dear father. But you promised me not to be angry."

"To be angry? do I look like a tyrant? Tell me girl, where have you learned to fear your father?"

"No, father, I am not afraid of you," said Vilma. "If I did wrong, I know you will tell me that it was wrong, and I shall have your pardon for it. But I do not think I did wrong. You know there was an execution in the village, and

you went away with Vandory, for you said you could be of no use to the poor people, and their sorrow grieved you too much. Mother and I remained at home, and saw all the horror. They took our neighbour's cows, and from John Farkash they took the pillows and blankets of his bed, and Peter's widow (you know she used to sell eggs, and do jobs in the town,) has lost her donkey. The son of the woman Farkash would not allow them to take his mother's bed away, and they beat him and bound him with cords, and took him to the justice's. They say he is going to prison to-morrow. We saw and heard all this," continued Vilma, wiping her eyes, "and we wept bitterly. Mother said it must be so, for the taxes are put on by law, and these poor people were not able to pay their dues. But I prayed that you might come home soon, for you read so often in your law-books, and I should say there *must* be some little law in those books providing that something at least ought to be left to the poor who cannot pay their taxes, hard though they may work."

"You are wrong, dearest child," said Tengelyi, "you would vainly look for such a law in my books. The nation have been so busy for the last 800 years, that they have not found time to make such a law."

"Have they not? Then I am afraid their laws will do little good, for they want God's blessing!" said Vilma, with a deep sigh. "But though the law may not, our Creed assuredly does command us to pity our neighbour's sufferings, and therefore I went to Mrs. Farkash to see whether I could not help them in some way. We are not rich, but we can do something for an honest man, and the Farkashes were always good neighbours."

"You did right, my daughter," said Tengelyi, whose eyes filled with tears. "You did right; may God bless you! I, too, have eaten the bread of poverty; and I will not shut my door against my neighbour."

"I thought so, too," said Mrs. Tengelyi, pressing her husband's hand.

"When I came to the house," continued Vilma, "I found them all in despair. Old Farkash sat on the floor, leaning his head on his hands, and looking at the empty stable; his wife was bewailing the loss of her son. The lesser children sat by the stove: they could not understand what had happened, but they wept with their mother. In the room were a few broken chairs; and the straw from the bed was spread about the floor, just as if the German soldiers

had sacked the house. And the neighbours were there, comforting the poor family, and cursing the officers;—my heart bleeds to think of it! I did my best to console Mother Farkash. I promised her that the curate should talk to the sheriff, and that her son should not go to prison; for she was most afraid of that, saying, that all men who were sent to prison, were sure to come back robbers. She thanked me for my promise, but declined our assistance; for she said, if her son were free, they could manage to go on. 'We poor people,' said she, 'stand by each other; one of my neighbours gives me some bedding, another gives me bread, and a third, a few pence; and so, mayhap, the Lord will help us on. If Mr. Kenihazy had paid for the two horses which my husband sold him at Whitsuntide, we would never have come to this. But there's the misfortune. We are distrained for the taxes, and yet we are not allowed to claim our own. But at the Restauration^[5], I mean to go and speak to the Lord-Lieutenant. At the last Restauration, he helped several of our neighbours, who had claims on Mr. Skinner, the justice.'

"'Oh, you are well off, you are!' said old Mother Liptaka. 'You have got a husband, and Missie tells us that John shall not go to prison, and he will work for you. Besides, you are an honest woman; but what is to become of Viola's wife? She is dying,—she, and her baby, and the little lad, and she has got a sentinel in the room, for the justice has ordered them to arrest every one that comes near the house—let alone entering it; for he says they are Viola's pals, every man of them. And that same Susi was a pretty girl and a good girl, when a child; it is not her fault, is it, that her husband is a robber? Missie, if you could help poor Susi, 'twere a good deed!'

"I inquired after Susi," continued Vilma, "and understood that Viola, formerly a wealthy peasant, had become very poor, for that he, as a robber, could not attend to his husbandry. His cattle and his ploughs were taken away, his fields are untilled, and his poor wife is left alone with two children. She is ill, almost dying. I told them to show me to the house, for I knew they would not suspect me of being an accomplice of Viola."

"You were right," said the notary; "pray go on." Thus encouraged, Vilma continued,—"*The misery of the Farkash family was indeed as nothing to the wretchedness which I saw at Viola's. On approaching the house, I was struck by a fearful noise. The justice has been informed that Viola intends to see his family this very night; he has put three haiduks into the house, ordering them to lie there and to catch Viola in case he should enter. The haiduks were drunk, and would not allow anybody to leave the house, lest Viola might be informed of the snare that was laid for him,—although their drunken noise rendered this precaution perfectly superfluous. The house was quite empty; nothing was left but a heap of ashes on the hearth, and the seat by the stove, which is of clay, and which could not be taken away; every other particle of furniture that might have been there had fallen into the clutches of the justice. When I entered the kitchen the corporal recognised me at once, for he has often brought letters to our house. He came up to me, and asked me what I wanted; and on my telling him that I had come to look after the sick woman, he said it was scarcely worth while, and that the woman might be dead, for all he knew to the contrary; but if she lived till to-morrow, she would be a widow by the hangman's grace. His comrades laughed at this rude joke, but when I insisted on seeing the*

woman Viola, the corporal took me to the room where she lay. I asked them to remain quiet, though only for a little while, and entered the apartment, which was so dark that it was a good while before I could discern any thing. The poor thing lay in a corner on a heap of musty straw. The baby and the little boy lay by her side. They did not speak. The noise of the revellers outside contrasted painfully with the silence in the room. The woman was asleep, and so was the baby, but the little boy knew me, and creeping up to me and nestling in my arms, he told me the history of their misfortunes. Three days ago his mother had fallen sick. She had a bed to lie on; but early this morning the justice came, and ordered her to pay one hundred and fifty florins. She had no money, and could not pay; the justice cursed her, and told the haiduks to take everything away. His mother was driven from her bed, and old Liptaka was kicked out of doors by the justice, who told the haiduks to sit and drink in the kitchen. 'After this the justice went away; and mother has been in a sad state ever since,' added the poor boy, weeping; 'and I have made her a bed of the straw which they tore from our good bed. It was all that mother could do to creep up and lie on the straw, and she has been wandering in her mind ever since. The justice and the soldiers said terrible things. They said father would come in the night, and they would hang him. Mother has gone on about that. I was quite frightened. After that, my little brother fell a-weeping, and it struck me that he had not had anything to eat. As for me, I was very hungry,—so I stole out to ask our neighbours to give me some bread; but they would not, for the justice has said that no one should give us any thing, and that we are to die like dogs! I brought nothing but some water, and a few flowers which I broke from the hedge for my little brother to play with, for I would not come back empty-handed.' That is the boy's story. He wept bitterly while he told it."

"Poor little fellow!" said Tengelyi, "his is indeed an early knowledge of life's bitterness;" and, turning to Mrs. Ershebet, he added, "I trust you sent some relief to those wretched people. I'll go at once and see what can be done for them."

"Do not trouble yourself, father, dear," interposed Vilma. "We did not send them any thing; we have brought them to this house."

"To my house!" exclaimed Tengelyi. "Did you consider the consequences?"

"I did. I considered that they were sure to perish if they remained where they were; and I entreated the corporal, and implored him, and vowed that I would bear the blame, until he gave me his permission to remove the woman to this house. Nay, more, he helped me to carry her."

"You were right in taking them away," said Tengelyi, walking to and fro, evidently distressed; "I only wish you had taken them to some other place. I would willingly pay for any thing they want. But here! the robber's family in the house of the notary of Tissaret! What will my enemies say to that?"

"But, father, you often told me that we need not care for the judgment of mankind, if we know and feel that we do that which is good and right."

"Of course, if we are quite convinced of that. But they tell me Viola is passionately fond of his wife. She is ill, and he will brave all dangers to come and see her. What am I to do? My duty, as a public functionary, forces me to arrest him, while my feelings revolt at the idea."

"I know you will not arrest him, dearest father," said Vilma, softly. "You cannot do it."

"And suppose I allow him to escape, what then? I shall lose my place. I bear the stigma of being the accomplice of a robber, and nothing is left to us but to beg our bread in the streets."

"No, father, that will never be!" said Vilma, confidingly, though her eyes filled with tears. "God cannot punish you for a good action."

"God may not, but men will sometimes. But do not weep," added Tengelyi, seeing his daughter's tears, "we cannot now undo what you have done, and perhaps my fears are worse than the reality."

"Oh do not be angry with me," sobbed Vilma. "I never thought of the consequences. I never thought that I *could* be the cause of so great a misfortune."

"Angry?" cried the old man, pressing her to his heart—"I be angry with *you*? Art thou not my own daughter, my joy, and my pride? my fairest remembrance of the past, my brightest hope of the future?"

"But if Viola were to come," said Vilma, still weeping, "and if things were to happen as you said just now?"

"I know he will not come," replied the anxious father, who would have given anything to have concealed his apprehensions. "And if he were to come, it is ten to one that nobody will know of it. You know I am always full of fears. At all events it is not *your* fault, for if I had been at home, and if I had known of this woman's distress, I too would have taken her to my house—ay! so I would, though all the world were to turn against me. Dry your tears," he continued, kissing Vilma's forehead, "you did but your duty. Now go and look after the woman, while I go to Vandory: he is half a doctor."

Saying this, the notary hastened away to hide his tears, and as he went he passed some severe strictures on his own weakness, which caused him to indulge in tears, a thing which is only pardonable in a woman.

CHAP. IV.

The stranger of the ditch, whom we left in the act of approaching the fire, had meanwhile accomplished that object, and proceeded to the place where a man sat squatting by the flame, poking the burning straws with his staff, and singing a low and mournful melody.

"Are you at it again? again singing the Nagyidai Nota?"^[6] said the stranger, touching the singer's shoulder.

^[6] See [Note IV](#).

Peti the gipsy (for it was he who kept his lonely watch by the fire) started up, and, seizing hold of the stranger's hand, dragged him away from the light, whispering, "For God's sake, take care! Some one might see you!"

"Are you mad?" retorted the stranger, disengaging his hands, and returning to the fire. "I've lain in the ditch, and am all a-muck. I must have a warm."

"No, Viola, no!" urged Peti, "the village is filled with your enemies. Who knows but some of them are by? and if you are seen you are done for!"

"Now be reasonable, old man," replied Viola, taking his seat by the fire.

"Not a human being is there on this heath that I wot of. What is it you fear?"

"Oh! you know this very afternoon you and I, we were near the wood of St. Vilmosh, and the Pandurs were here close to the park palings, and yet they knew you even at that distance."

"Yes, very much as we knew them. They presumed it was I. But if they have a mind to make my acquaintance, I'd better look after the priming of my pistols. So! Now let them come. After sunset I fear no man."

"Oh! Viola, Viola!" cried Peti. "I know your boldness will be your bane. You laugh at danger, but danger will overtake you."

"But, after all, were it not better to die than to live as I do?" said the robber, feeling the edge of his axe. "I curse the day at dawn because the light of the sun marks my track to the pursuer. The wild bird in the brake causes me to tremble. The trunk of a fallen tree fills me with dread; for who knows but it may hide the form of an enemy? I fly from those I love. I pass my days among the beasts of the forests, and my dreams are of the gallows and the hangman. Such is my life! Believe me, Peti, I have little cause to be in love with life!"

"But your wife and your children!"

"Ah! you are right! my wife and my children!" sighed the robber, and stared fixedly at the fire, whose faint glow sufficed to display to Peti the cloud of deep melancholy which passed over the manly features of his companion.

Viola was a handsome man. His high forehead, partly covered by a forest of the blackest locks, the bold look of his dark eyes, the frank and manly expression of his sunburnt face, the ease and the beauty of each movement of his lofty form, impressed you with the idea that in him you beheld one of those men who, though Nature meant them to be great and glorious, pass by humble and unheeded; happy if their innate power for good and for ill remains a secret; yes, happy are they if they are allowed to live and die as the many, with but few to love them and few to hate.

"Don't be sad, comrade," said Peti. "It's a long lane that has no turning. But go you must, for here you are in danger of your life. The election is at hand, and Mr. Skinner has every chance of losing his part in it. He will move heaven and earth to catch you. After I met you this afternoon, the Pandurs arrested me, and took me to him. May the devil burn his bones! but he treated me cruelly: he was so savage that my hair stood on end. Had it not been for the younger Akosh (God bless him!), I'd be now taking my turn at the whipping-post. He has his spies among us; he did not mention their names, but certain it is that he knows of every step you take; I protest nothing short of a miracle can have saved you! But certainly if we had not agreed to meet by this fire, you could scarcely have escaped him. The landlord and his servants are bound and locked up in the cellar, and Pandurs, dressed up as peasants, watch in the inn. There are also Pandurs in your house; and the peasants have been ordered to arm themselves with pitchforks, and to sally out when the church-bells give the signal. When I was Mr. Skinner's prisoner he cursed me, and mentioned his preparations; I have found out that he said rather too little than too much."

Viola rose. "There are Pandurs in my house, and you tell me that my wife is ill?"

"Oh! do not mind *her*. Susi has left the house; she is as comfortable as a creature can be with the fever. They have taken her to the notary's house."

"To Tengelyi's? Is she a prisoner?"

"Oh, by no means; it's all Christian love and charity. Oh! friend, that same Christian love is a rare thing in these times. May God bless them for what they do for her!"

"Christian love and charity! Fine words! fine words!" muttered Viola. "But who tells you that this is not a snare? My wife is in the notary's hands, and with her my life."

"For once you are mistaken!" cried the gipsy. "I, too, had my suspicions at first; why should I not? since I am no peer, but merely a gipsy. It's not my fault, surely, that I mistrust those officials; and when they told me that Susi was at the notary's, I did not half like it. But I understood that old Tengelyi knew nothing at all about it, and that his daughter, Vilma, did it all. Now

Vilma is a born angel, take my word for it. But do not stop here. I ought to be at St. Vilmosh before the sun rises, and every minute you stay is as much as your life is worth."

"I'll not stir a single step unless you tell me all about Susi. I cannot understand it."

Peti knew Viola too well not to yield to this peremptory demand; and he tried, therefore, to inform his friend, in as few words as possible, of all the particulars of Susi's illness. Viola, leaning on his fokosh, listened with eagerness. He stood so still, so motionless, that, but for the deep sighs which at times broke forth, he might have been mistaken for a statue.

"Poor, poor woman!" cried the robber at length, "has it indeed come to this? A beggar, eating the bread of charity! a vagabond, abiding under the roof of the stranger! God, God! what has *she* done that thy hand should strike *her*?"

"Let us be off!" urged Peti. "Your wife is all snug and comfortable, and we ought not to stand here like fools, railing at the injustice of the world. Besides, the day of settling our accounts is perhaps nearer than you think. I owe Mr. Skinner more than one turn. Cheer up, comrade! many a man has been in a worse scrape than you are, who got out of it after all."

"What do I care for myself? I am used to it. There is blood on my hands, and, perhaps, it is but just that Heaven's curse pursues me. But she, whom I love,—she, who never since her birth did harm to any one,—she, who stands by my side like an angel of light, withholding my arm from deeds of blood and vengeance! Oh! she kneels at church, and prays by the hour. That she loves me is her only crime,—why, then, should *she* be punished? Let them hunt me down—torment me; ay! let them hang me! what care I, if she is but safe and free from harm?"

"So she is!" cried Peti, impatiently. "She was never better off in her life, man! Come along, or else we are done for, and by your fault too!"

"Do you mean to tell me that none of the villagers helped her?—that none of them would shelter her?"

"No! I told you, no! the judge forbade it; and none of them dared to look at her."

"Very well; I mean to be quits with them. I never harmed any of them. None of them ever lost a single head of cattle; and now that my family are in distress, there is not one of them but thinks that this is as it ought to be. But Viola is the man to make bonfires of their houses!"

"You are right!" cried Peti, seizing the robber's hand. "A little revenge now and then serves your turn. It puts them on their guard! It reminds them that there is still some justice in this world. But come to St. Vilmosh. You are safe there, at least for a few days, for the kanaz^[7] there is one of our people. We will go down to him, and see what can be done."

^[7] See [Note V](#).

"You had better go first; I have some business here."

"Where?" cried Peti, stopping his friend as the latter turned to leave the place.

"I tell you to go first to St. Vilmosh, and to wait for me at the kanaz's. I want to speak to the notary. By the time the sun rises I mean to be with you. Get something to eat, for I am hungry."

"Maybe the ravens are hungry, and have told you to go and be hanged, to make a dinner for them!"

"What a coward you are! I tell thee, man, it is not so easy to catch Viola as you may think. Go and tell them to cook me some gulyash^[8]; and if you think it will ease your mind, I will bring you the chief haiduk gagged and bound."

^[8] See [Note VI](#).

"All this were well and good if the people of Tissaret were still on your side, for in that case you might do as you please. But since the parson's house has been broken into, they are all against you, they will have it that you committed that robbery."

"I did no such thing; and it is just on that account I want to speak to Tengelyi. I have never been obliged to any man, who had the dress and appearance of a gentleman. The notary is the first of the kind to whom I owe any thing, and, by G—d, he shall not call me ungrateful."

"But of what use can your capture be to the notary?" said Peti, who now yielded to Viola's obstinacy, and accompanied him to the village.

"Some villany is abroad, and Tengelyi is to suffer. It's the same affair as it was with the parson. I'll inform him of it."

"Not to-night?"

"Ay, this very night! Who knows but to-morrow it might be too late? The birds are greedy for their prey. It will scarcely take me an hour. You ought to go to St. Vilmosh."

"Not I!" said the gipsy. "If you are mad, and won't be advised, you cannot, at least, force me to leave you alone in this scrape. If they hang you, they must hang me too."

Viola said nothing; but he pressed the hand of his faithful comrade. The two adventurers approached the village, where every thing was prepared for the capture of the robber. Not only was Viola's house occupied by the Pandurs, not only was the inn garrisoned, and its inmates gagged and bound, but the streets of Tissaret, and the cottages of those peasants who were suspected to be in communication with the robber, were occupied by soldiers, or, at least, closely watched. Rety's servants, armed with pitchforks and cudgels, were assembled in a barn, and every peasant was prepared, at the first signal from the steeple, to rush out and attack the outlaw. Some generous men, devoted to the public safety, and fearing for their cattle, and some not less generous women, had contributed a few hundred florins as a reward for that lucky peasant, or Pandur, who should succeed either in capturing or killing the robber. There could be but one opinion about Viola's fate, in case he should happen to come to Tissaret; but whether he would come or not was an open question, to say the least of it; for while the justice and his clerk were out hare-hunting, the inspector Kanya had thought proper to publish Mr. Skinner's instructions by means of the public crier, who, on this important occasion, was preceded by a couple of drums, and whose commands to the peasantry were backed by the threat of five-and-twenty lashes, as a punishment of the refractory or negligent; and though the justice on his return had poured out a most energetic volley of imprecations on Mr. Kanya and his zeal, and though he had immediately given orders that no one should be permitted to leave the village, yet there was good reason to fear

that Viola would smell more than one rat. Indeed, so much probability was there for this supposition, that by the time Viola and Peti drew near to the village the inhabitants of Tissaret to a man had thought proper to retire for the night, leaving the soldiers and Pandurs to follow their example, which, to do them justice, they did.

"Wait a few moments," said Peti to his companion, when they came to the threshing-floors, "I'll look out for you. It is just here where they have placed a guard of those rascals in frogged jackets. I'll try to find out what they are after." Saying which, the old man crept through the ditch and disappeared. He returned almost immediately. "They are fast asleep. If the others are equally vigilant, we are safe enough." Viola advanced with Peti. They entered the village, and walked quickly, but noiselessly, along the hedges and under the shadow of the houses.

Tengelyi's house, the neatest building in the village, was on one side bordered by a narrow court-yard, and on the other by a garden of somewhat larger dimensions. The buildings in his immediate neighbourhood were on the one side the Town-hall, and on the other the workshop of the village smith; while over the way there was the only shop in Tissaret, the property of Itzig, the Jew, and remarkable, not only for its amazing stores of European and Indian produce, but also for its bright yellow paint, and its pillars of glaring sky-blue which ornamented the hall outside.

There were but two roads to Tengelyi's house—one leading by the Town-hall, and the other touching the smithie; and though the sound of a hammer ringing on the iron of the anvil was still to be heard from the last named place, still Peti thought it advisable to take the latter road, and this the more, since he perceived that there was no light in Itzig's house,—a circumstance which led him to suppose that that "toad of a Jew" had retired into the interior of his den, there to sleep on his dollars. Quitting, therefore, the dark corner between the smith's shop and the main road, the two men hastened up to the house of Tengelyi. The fire from the smithie threw a ruddy glare on the road and on the Jew's shop, the closed shutters of which seemed to denote that all the inmates had retired to rest. But while they were in the act of crossing the road, Peti suddenly seized Viola's hand, and pointing to the Jew's house, he whispered, "They have seen us!" A human form was indeed visible behind the pillars. It moved quickly to the door, and disappeared.

"Go to the notary's! Just by the wall there's a hole in the hedge. Creep through it, and hide yourself as best you may; but for God's sake don't enter the house! I'll come to fetch you as soon as the alarm is over."

So saying, Peti crossed the road and disappeared among the buildings. Viola hastening onward, found the opening in the hedge. He had scarcely crept through it and hidden himself among the shrubs, when he saw that the gipsy was fully justified in his apprehensions. Voices were heard in the streets, lanterns were carried by, and the quick tramp of steps, and the sound of the village bell, proved to him that the alarm was indeed given, and that the people of Tissaret were up and in arms to arrest him. Mr. Skinner's and Mr. Kenihazy's answering imprecations might have proved, to any one who doubted the fact, that the public justice of this country is not always asleep, but that its eyes are sometimes open as late as 10h. 30m. P.M.

Viola was in a dangerous position. The notary's garden was but an indifferent hiding-place. It was small, and but thinly planted with trees. A strong light from the windows of the house illumined part of it, and nothing could save Viola, if the hole in the hedge was discovered, and a lantern passed through it. But the robber was accustomed to danger. He kept his weapons in readiness and waited. After some time the noise of the robber hunters grew gradually less. The crowd rushed to another part of the village. The sound of distant voices and the continued ringing of the bell showed that the danger was at least in part over.

On these occasions it is only the first quarter of an hour which is dangerous in our country; after that '*mauvais quart d'heure*' has once passed, there is none but seeks for an excuse for discontinuing the search. For we are an Eastern people, nor did we come to the West to toil and slave. Indeed, that man was a profound historian who protested that our ancestors left their homes in search of a country where the sun rose late, and allowed them to sleep longer than they could in their former abodes. Viola, who had often been hunted, and who was perfectly familiar with the leading features of our national character, rose from the ground and walked boldly up to the house.

That house harboured his wife, the only being on the face of the earth who loved him; the only being he could call his own, and whose mild words

made him feel that, though exiled, pursued, and condemned, there was still something which he could call his own, which the world could not take from him, and which bound him to life and to his Creator. And Viola's heart, however unmoved by danger, beat loud and fast when, creeping by the windows of the house, he stopped at length in front of the one window for which he sought. Everything was tranquil in that room. His wife lay sleeping, and Vilma sat by her side, watching her, while the old Liptaka was seated at some distance, reading her Bible, and rocking a cradle. His little boy lay in an arm-chair. He was fast asleep. The robber looked long and earnestly at the group before him. He wept.

The child in the cradle awoke. Old Mother Liptaka took it up and carried it to and fro. Little Pishta too awoke; he rubbed his eyes and stared around, as if uncertain where he was, or how he came to be there. But looking up to the window he beheld Viola, and jumping from the chair he clasped his hands and shouted—"Father! father!"

"God forbid that he should be here!" said Mother Liptaka, walking up to the window. "You are half asleep, child, and talk in a dream: you see there is no one here."

"He is not there now,—but he was there. He is gone now, but I am sure he is in the garden. I will go and call him in."

"Don't think of it!" said the Liptaka, seizing the boy's hand. "You know your father is——" Here the good woman stopped, for she was at a loss to find gentle words for a harsh fact.

"I know!" said the boy, "my father must hide himself; but I am sure it is not true, what they say about his being a robber."

"Of course not, child: be quiet, and don't say a word about it, not even to Miss Vilma. I will go, and if your father is in the garden, I'll speak to him." And the old woman left the room.

Viola's situation had meanwhile become more dangerous. When he retired from the window where his boy recognised him, he found that his movements were watched by a man, who stood in the opening through which he had entered the garden, and who withdrew when the robber's face turned in the direction of the hedge. Viola was at a loss what to do. He

could not stay in the garden, for it was too small; the streets were filled with peasants and Pandurs, and the inmates of the house were strangers to him. He could not trust his life to their keeping. The tocsin was again sounded, and the approach of lights and steps showed him that his pursuers were aware of his hiding-place, and that they came to take him.

At this critical moment the Liptaka entered the garden, and called the robber by his name. Seeing no other means of escape, he walked up to her and informed her of the danger of his situation.

"Ay, brother, why *did* you come this blessed night?" said the old woman. "Two days later you might have been safe."

"But what is to be done? Can you hide me in the house?"

"I can, for the notary is not in, and Vilma will not betray you. Stand here until I call you." She returned into the house, and Viola stood up against the wall to hide himself. The noise increased meanwhile, and the sonorous voice of the justice was heard, denouncing the eyes, souls, and limbs of his trusty Pandurs, when the door opened, and the Liptaka appeared, motioning Viola to advance cautiously, lest the light from the windows might mark his figure: the robber crept along the wall and entered the house.

"Where is he? where?" screamed Mr. Skinner, from the other side of the hedge.

"Steady, boys!" shouted his clerk, from the furthest rear. "At him! Why should you fear the scoundrel? The man that catches and binds him shall have a hundred florins."

"Are any of you at the other side of the garden?" bawled the commissioner, with a stentorian voice.

Nobody answered.

"Smash your souls, you cursed hellhounds!" roared Mr. Skinner. "Why are you all here? Why are you not at the other side of the garden?"

"Your lordship's lordship told us to come to this place," said a Pandur; but a blow from Paul Skinner's stalwart arm sent him sprawling to the ground.

"Be off!" shouted the intrepid justice; "be off a few of you—but not too many. Seize him and bind him!"

"Shoot him on the spot, if he shows fight," urged the clerk.

"Shoot him—indeed!" roared the justice. "I'll brain the man that dares to shoot him, for I must have the satisfaction of hanging the fellow."

Amidst these preparations for the capture of the robber, the person "wanted" had quietly entered the house, where old Liptaka stowed him away behind some casks, which lay in the room. Vilma trembled.

"Fear not, Missie," said the Liptaka; "they dare not enter this house. Of course, if it were a poor man's case, they'd ransack every corner, and turn the whole house out of the window. But it's a different thing with a nobleman's curia."

The Liptaka was mistaken, and she had soon ample opportunity of convincing herself of the fact that the keeping of the law is one thing, and the law itself another. For Mr. Paul Skinner, after surrounding the garden on all sides, and after summoning Viola to come forward and be hanged, found it necessary to proceed to a close investigation of the premises. He opened the garden door and entered with his *posse* of Pandurs and peasants. Vilma's flowers and Mrs. Ershebet's broccolis were alike trodden down by the intruders, and great exertions were made to start the game. But their search was fruitless. So were their curses. Mr. Skinner protested that the robber must be hid in the house, and Kenihazy instantly suggested the propriety of searching the suspected habitation. The justice consented, and walked up to the door which communicated between the house and the garden, when the door was opened from the inside, and Mrs. Ershebet appeared on the threshold.

"What is the meaning of this?" cried the notary's wife, with a voice which, on the present occasion, was more remarkable for its energy than for its sweetness. "Who is it that dares, at this hour of the night, to break into an honest man's house? Are you robbers, thieves, or murderers? Be off, instantly, every one of you! This is a nobleman's curia, and no one has a right to be here, unless it be with my consent!"

Mr. Skinner, not a little abashed, tried to stammer some excuses; but Mrs. Ershebet, knowing that she had the law on her side, refused to listen to his explanations. Her abuse of the justice kept pace with the hate she bore him, and she eagerly seized the opportunity to give him what we poetically call "a bit of her mind." She did this so effectually that the justice was at length compelled to muster all his courage to make a reply.

"Mrs. Tengelyi," said the worthy functionary, his voice trembling with suppressed rage, "Mrs. Tengelyi, moderate yourself; consider that you stand in the presence of a superior officer."

"Superior officer, indeed!" screamed Mrs. Ershebet. "You are the master of robbers and thieves, but not mine. What care I for the county! What care I for the justice? I am a nobleman's wife, and I'd like to see the man who dares to enter my house without my permission!"

"You shall have that pleasure!" roared the justice. "Forward, my men! enter the house! search it, and capture the robber. Knock them down and bind them, if they offer you resistance! I'll teach you to know who is master here!"

"A stick! a stick! give me a stick!" cried Mrs. Ershebet. Her maid handed her Tengelyi's cane. She raised it, and exclaimed triumphantly, "I protest!"

Mr. Skinner stepped back; but, after a few moments, he rallied his forces, resolved, in open contempt of the Hungarian law and its formal protest^[9], to force an entry into the notary's house. There can be no doubt that he would have accomplished his purpose, but for the opportune arrival of Akosh and Mr. Catspaw, who restrained his violence; for the attorney, to whom the justice stated the case, and who had his reasons for supposing that Viola was not in the house, did his utmost to prevent the premises from being searched. He did this not from any love he bore Tengelyi, but because he knew that the affair might at a later time serve to cast a suspicion on the notary's character. His dispute with Mr. Skinner was suddenly interrupted by a new and unforeseen event.

[9] See [Note VII](#).

"Fire!" cried a voice in the street; and the crowd in the garden roared "Fire! fire, at the Castle!" The tocsin sounded, and the peasants hastened in the

direction of the fire. The Pandurs alone were kept back by Mr. Skinner's express commands, for he still hoped to find Viola. But when one of the servants from the House came down to tell them that the conflagration was in the sheriff's barns, and that his whole store of hay was in flames, it was thought necessary to dispatch the power of the law to the threshing-floors to save the sheriff's hay. Not one of the intruders remained on the spot.

"For God's sake, save him!" whispered Vilma, addressing the Liptaka. "Be quick, and save him before they come back."

"Never fear, Missie. Give him but a fair start, and he is not the man to be caught. But keep your counsel; your father would never pardon you!"

The Liptaka turned to Viola's hiding-place behind the casks. "Now get thee gone," said she. "There is a fire at the sheriff's. Get out at the other side of the village, where nobody will stop your way. I can't help thinking the fire is on your account."

"Listen to me!" said Viola. "You know I owe the notary a debt of gratitude. His family have taken my wife to his house: may God bless them for it! They have saved my life, too; and I mean to show my sense of it. Tell them I know that the notary keeps some papers in an iron safe. Those papers are of great value to him and to the parson. Tell him to find another place for them, and to keep a good look out. He has powerful enemies; I know of some people who would do any thing to get those papers. Tell this the notary, and may God be with you!"

The robber was in the act of leaving the garden, when a hand held him by his bunda. "Who is it?" said he, raising his axe.

"It is I, Peti! What do you think of my illumination?"

"That it saved me for once. I knew it was your doing. Thanks! may God bless you!"

"Now let us be off to St. Vilmosh," said Peti, crawling through the opening of the hedge. "Look there," he added, pointing to the next house; "I'll lose my head if that fellow Catspaw does not stand there!"

"And if he were an incarnate devil I *will* go on!" muttered Viola, as they turned the corner of the street. Mr. Catspaw, for it was he, had recognised the robber. He shook his head and walked leisurely up to the Manor-house.

CHAP. V.

The day which followed this eventful night was a Sunday. Already had the church-bells of Tissaret called the parishioners to prayers; and the lower classes, obedient to the summons, crowded the little church, there to forget the disturbance of the night and the whole of their worldly cares. At the House, or Castle, as the family seat of the Retys was sometimes styled, preparations on a large scale were on foot for the reception of the guests who were expected to arrive that day. Akosh and his sister Etelka walked in the garden. Neither of them spoke, as they trod the paths which were already covered with the leaves of autumn; while Tünder, their favorite greyhound, bounded to and fro, now starting a bird, now hunting a falling leaf. The dog had its own way of enjoying the beauty of that bright day.

"What is the matter with you, Etelka?" said Akosh, at length. "You are out of spirits to-day."

"Am I?" replied Etelka, smiling, and with a slight stare. "I dare say you are like Mr. Catspaw, who in his annual fits of jaundice flatters himself that the whole world is yellow."

"Very true," rejoined Akosh; "I am a dreadful bore to-day."

"Of course you are. To be a bore is one of the privileges of a Hungarian nobleman. But do not put yourself under any restraint on *my* account!"—saying which the young lady turned away, and busied herself in smoothing the shrivelled leaves of a half-faded flower. Thus pursuing their walk, they reached a hill in the plantation, from the summit of which they looked down on the village, the river, and the boundless plain.

"They are coming!" said Etelka, turning her eyes in the direction of St. Vilmosh.

"I wish to God I were a hundred miles off!" sighed Akosh.

"Would not a lesser distance do? Shall we say the village, or the notary's house?"

"Don't mention it. It makes me weep to think of it. You know what has happened?"

"I should think so."

"Well, I have no hope."

"Do not say so! Vilma loves you. You are not likely to change your mind, and our father——"

"Our father,—oh, if there were no obstacle but his denial!" exclaimed Akosh. "I venerate our father; but there are limits to my veneration,—and if he compels me to choose between Vilma's love and his, I am prepared to sacrifice the man who prefers his prejudices to his son's happiness. But is Vilma prepared to follow my example? And, believe me, old Tengelyi is far more inexorable than my father!"

"But he idolises his daughter——"

"You do not know him as I know him. Yes, he idolises his daughter! He would sacrifice any thing to her, except his honour. On that point he is inexorable. After that cursed conversation with my step-mother, in which she hinted that she would be well pleased to see his daughter less frequently at our house, Tengelyi came to me. He told me all that had happened, and asked me to discontinue my visits to his family, for—such was his bitter expression—it was not well for young gentlemen of rank to hold intercourse with poor girls. Ever since that day, when I meet him in the street and accompany him to his house, he bows me off at the door, and sends me about my business. I have spoken to his wife, but she tells me that she cannot do any thing to soften him. I have spoken to Vandory, but he, too, has no comfort for me. Now consider that Tengelyi is sure to lay the blame of that disgraceful scene of last night at our door, and that our party at the next election will do all to oppose his. No! I tell you there is no hope left for me!"

"And yet I hope!" said Etelka, taking her brother's hand: "I know but too well on which side the victory is likely to be, in a contest between a woman's head and her heart."

"Do you really think so?" exclaimed Akosh, kissing her hand. "Oh if I could but know,—if I could but feel sure that my enemies will not succeed in estranging her heart from me!"

"You are mad, my respected brother," interposed Etelka; "pray who are your enemies? Old Tengelyi loves you as a son, though he does not say so; but suppose he *did* hate you, believe me, though father, and mother, and the whole country were to sit down for a twelvemonth abusing you, Vilma's feelings would remain as they are."

"Oh if I could but see her! if I could but see her, though it were only for a moment!"

"Be patient. Who knows what may happen when Tengelyi goes to the election? But we must turn back now; the Cortes^[10] are about to make their appearance. I would not for the world lose the spectacle of their arrival."

^[10] Constituents.

They turned and walked to the house, whence arose the sound of many voices, like the roll of a distant thunder-storm. The Hungarians are wont to commence their affairs, no matter whether they be great or small, not with light—but with noise. I leave my readers to imagine the fearful din with which the halls of the Retys resounded. Servants and haiduks ran in all directions, fetching and carrying all sorts of things. The cook and his boys, —the bailiff and the butler, the housekeeper and the maids, were shouting at, ordering about, and abusing one another; and Lady Rety, who every moment expected the arrival of her guests, had just sent her third maid with most peremptory instructions to cause the people to be silent,—without, however, obtaining any other result from the mission than a still greater confusion of tongues and voices. Great was her rage, and violently did she struggle to preserve that gracious smile which the Cortes were wont to admire in her at fixed periods every three years, viz., at the time of the general election.

The Sheriff Rety, Valentin Kishlaki, Mr. Paul Skinner, the justice, and sundry "*spectabiles*" of his party, were smoking their pipes in the hall, and a couple of poor relations, who were always invited on such occasions, filled and lighted their pipes for them, and made themselves generally useful, to show their deep sense of the honour which was done to them. Mr. Catspaw stood leaning against the wall. He looked the very picture of watchful humility.

This company, the like of which may be found in Hungary every where, especially at the time of the election, but which it were next to impossible to discover anywhere else, consisted but of a limited number of individuals. They were the grandees of the county of Takshony.

The man who first attracts our attention is Valentin Kishlaki, the father of Kalman Kishlaki, whom my readers had already the pleasure of meeting on the Turk's Hill. The good old man offers much to love, but little to describe. He is a short man, and withal a stout one; his hair is white, his cheeks red. He has a good-natured smile, and a pair of honest blue eyes. He is fond of telling a story without an end, but this weakness is his greatest crime.

Among the other persons in the sheriff's hall, the most remarkable are, doubtless, Augustin Karvay, the bold keeper of the county house, and Thomas Shaskay, the receiver of the taxes. The former was a Hungarian nobleman of the true stamp: bred on the heath, fagged at school, and plucked at college. The insurrection of 1809 afforded the noble youth a brilliant opportunity of displaying his talents for homicide, which were supposed to be astounding. But the speedy termination of the war nipped Mr. Karvay's martial honours in the bud; nor does history record any of his deeds of bravery and devotion, except the fact that he left his regiment at the commencement of the first and only battle in which that gallant body took part, and in which it was routed; and that, regardless of the fatigue and toils of the way, he hastened home to defend his household gods and the female members of his family. But so modest was Mr. Karvay, that the slightest allusion to this act of unparalleled devotion was observed to cause him pain, and even to spoil his temper. This modesty we take to be a proof of true merit.

Mr. Karvay's gallantry, or, perhaps, his touching modesty, did afterwards so much execution upon the heart of Lady Katshflatty, a young widow of fifty, that she consented to bless the youthful hero with all the charms and gifts of fortune which her years and her late husband's prodigality had left her. The blessing, in either respect, was by no means very great, and Mr. Karvay was reduced to the extremity of living upon his wits, which in his case would have been tantamount to the lowest degree of destitution, but for the good fortune he had of making some enemies by his marriage with Lady Katshflatty. His enemies belonged to the opposition in the county; that is to say, they were members of the minority;—reason enough for the party in power to take him up; and under the sheriff's protection Mr. Karvay was successively appointed to the posts of Keeper of the County House, Captain of the Haiduks, and Honorary Juror, and promoted to all the honours, bustle, and emoluments of these respective dignities.

Such was the person to whom Mr. Thomas Shaskay was bound by the ties of a cordial and mutual dislike. The two men seemed to be created for the express purpose of hating one another. Shaskay was a small and spare man; his face reminded one of an old crumpled-up letter, his hair was scant, his nose sharp and long, and his narrow forehead covered with a thousand wrinkles. Karvay's huge bulk, mottled face, and curly black hair, were in bodily opposition to this frail piece of humanity. Candour was Mr. Karvay's characteristic feature; indeed, there were people in the county of Takshony who protested that the gallant captain would be more amiable if he were less candid. Now Shaskay was the closest man breathing. He answered reluctantly even to the simplest questions. Some of his friends protested that his closeness and secrecy were quite out of place, for that Nature, when she framed him, had treated him as druggists do their goods, and that "Poison" was as distinctly written on his face as it ever was on an arsenic bottle.

Shaskay had met with many misfortunes in the course of his life; but so great was his strength of mind that he was never known to allude to them, and least of all to his greatest misfortune, which, however, was mentioned in the records of the county. While he held the office of receiver-general of the district, sundry monies which were entrusted to his care disappeared; and though Mr. Shaskay protested that the money was stolen, and though the whole county believed him; nay, though no one had the least doubt that Shaskay (who said it) had *seen* the thief as he left the room, still the

government, grossly violating the laws both of nature and of the country, dismissed the unfortunate receiver-general from his office. The county of Takshony made no less than thirteen petitions in his favour, but the worthy man could never succeed in regaining the office, of which he had discharged the duties to the unqualified satisfaction of the nobility, and from which he had not only derived no gains, but also sacrificed his own private property at cards. But so great is the virtue of a truly good man, that Mr. Shaskay, instead of joining (as might have been supposed) the opposition, remained faithful to his politics and his party, exerting the whole of his influence in behalf of the government, which had treated him so unjustly.

Mr. Rety, the sheriff, stands in the centre of his own hall. He is dressed in a blue attila with silver buttons, his boots are armed with silver spurs, and his Meerschaum pipe is embossed with silver. His thoughts were of the approaching election, and of the speech which he intended to address to the Cortes; but the brilliant phrase upon which he had just stumbled, was interrupted by a distant howling and bellowing, which became gradually more distinct.

"Eljen Rety! Eljen Skinner! Eljen the liberty of Hungary! Hujh rá!" and similar exclamations, with now and then a curse, and the report of a pistol, resounded through the village. And besides there was the wonderful burden of the song:—

"May the tulip flowers bloom for aye,
And Rety be our sheriff this day!"

which will do for any election, and which is remarkable for the ease with which it may be adapted to the case or the name of any candidate. And there was a van with a gipsy band performing the Rakotzi, and all the dogs of the village stood by and barked their welcome.

"This is indeed enthusiasm! this is indeed popularity!" said Karvay, stroking his moustache, and looking pleased; "by my soul it is a fine thing to be so much beloved! I am not rich, but I would give fifty florins any day to hear myself extolled in this manner."

"Ah! but I trust to goodness they won't burn any thing!" said one of the poor relations, whose reminiscences of the last election were not of an agreeable

kind.

"Burn any thing! Terrem tette! of whom dost dare to speak?" roared Karvay. "Dost not know that thou speakest of noblemen? that St. Vilmosh has three hundred votes? The sheriff's house is insured, and if the worst were to come to the worst, and if all the village were burnt down, we ought to bless our stars that they have come to us instead of siding with the other party!"

"Karvay is right," said Rety to his trembling cousin; "How dare you speak disrespectfully of my guests? I know the gentlemen of St. Vilmosh."

"So do I!" roared Karvay, "every tenth man of my prisoners is from St. Vilmosh. Capital fellows they are! Your thief and murderer is a capital fellow in war, *or* at an election."

"There are some exceptions to that rule," interposed Shaskay. "In the insurrection of 1809, I understand the men of St. Vilmosh——"

It was lucky for Shaskay that the Cortes had by this time come to the gate, for Mr. Karvay was preparing to pay the ex-receiver-general in kind, by an allusion to sundry monies. His biting jokes on that tender topic were, however, cut short by the arrival of the whole noble mob in not less than thirty large vans. The vans in front and in the rear were ornamented with large yellow flags with suitable mottoes, such as

"Rety for ever!"

"No nobleman will condescend to build streets and
dykes!"

and mongrel rhymes in the following fashion:—

"To pay no taxes, to pay no toll;
To be exempt from the muster-roll;
To make the laws, and to live at we can,
Abusing the salt-prices:
This befits a nobleman."

Every nobleman had a green and yellow feather stuck in his hat or kalpac; these colours being emblematical of the hopes of their own party, and the

envy of their adversaries, while they served the practical purpose of a badge of recognition.

The sheriff advanced, amidst violent cheering, to the front steps of the hall; the mob of noblemen shouting Halljuk^[11]! formed a circle, and the notary of St. Vilmosh, stepping forward, addressed the patron in a speech of extraordinary pathos; in the course of which the words—Most revered,—Greece,—Rome,—Cicero,—patriotism,—singleness of purpose,—load star,—fragrant flowers,—forked tongues, pyramids, and steeple—were neither few nor far between, and which concluded with an assurance of the unbounded attachment of the constituency to the illustrious patriot he (the orator) had the supreme honour of addressing, and the quotation of "Si fractus illabatur orbis, impavidum ferient ruinæ," or to adopt the translation of the whipper-in of the Cortes:—

^[11] Hear! hear!

"May the tulip-flowers bloom for aye,
And Rety be our sheriff this day!"

This speech, but especially its conclusion, called forth a torrent of applause; and the enthusiasm reached its culminating point, when Mr. Rety, as usual, assured them that he was overwhelmed with confusion—that he was unprepared—that this was the happiest day of his life—that he had no ambition, but that it appeared his friends of St. Vilmosh commanded his services, and that he was always the man who——

The assurance that Mr. Rety was "always the man who" excited cheers of the most deafening magnitude from his audience; and after the whipper-in had informed the sheriff that but one thing was wanting to the happiness of the noble mob, and that this one thing was the permission to kiss Lady Rety's hand, the crowd uttered another frantic shout of Eljen! and rushed into the house.

A sumptuous repast awaited them in the sheriff's dining-room and in the barn. The former apartment was occupied by the *élite* of the company, while the lower precincts of the barn sheltered a less select, though by no means a less noble party. The *élite* feasted on four-and-twenty different kinds of sweetmeats, with Hungarian Champagne, Tokay, and ices; and the great

mass of the Cortes filled their noble stomachs with Gulyash and Pörkölt, Tarhonya, cream-cakes, dumplings, roast meats, wine and brandy.

Etelka left the company immediately after dinner, while the Lady Rety conversed with some of the rising assessors and clergymen of the district. The gentlemen smoked their pipes in the hall, and in front of the house; and if the notary of St. Vilmosh was not among their number, his absence may perhaps be accounted for by the fact that Etelka's maid, Rosi, lived in another part of the house.

Akosh and Kalman were walking in the garden. They were equals in age and station, and of course they were sworn friends. Nevertheless, the two young men were utterly different in their characters and tempers. Kalman was, by his education and constitution, a Betyar, that is to say, a root-and-branch Magyar of the old school; but it was his great ambition to be mistaken for a man of high European breeding and refinement. Akosh, on the other hand, who had the advantage of the best education which Paris and London can afford, had taken it into his head to act the Magyar, *par excellence*. Neither of them succeeded in maintaining his artificial character; and especially on that day they had both signally failed in their endeavours to falsify the old proverb: "Naturam expellas furcâ; tamen usque recurret."

Akosh was indeed a Betyar when the dinner commenced; but he grew less talkative and noisy as the talking and the noise around him increased, until at length he found himself fairly silenced. Kalman, who sat by Etelka, and who was greatly cheered by the kind manner in which she treated him (for poor Kalman was desperately in love with Miss Rety), took but little wine, and for a time his conduct and conversation were all that he or Etelka could wish. But by degrees he fell back into his Betyarism, until the displeased looks and curt replies of the lady made him aware of his error. At the end of the dinner he was as silent as his friend. He scarcely ventured to look at Miss Rety; and when dinner was over he hurried Akosh to the garden, there to bewail his sad and cruel fate.

"I am the most wretched of mortals!" cried he. "Did you observe the manner in which your sister treated me? She does not love me—nay, she detests and despises me!"

"Are you mad?" replied Akosh.

"No! I am not mad. Etelka does not love me; nor will she ever love me, and she is right. She is too good for the like of me."

"You ought never to take any wine, Kalman; it makes you sad."

"So you *did* see it? And she, too, is disgusted with me! I will leave the country! I will go to a place where nobody knows me! where your sister will not be annoyed by my presence!"

Kalman's lamentations were here cut short by Akosh, who, on being informed of the reason of this extraordinary distress, pledged his word that he would reconcile his sister to his friend; and Kalman's grief having given way to the hope of fresh favour, the two young men turned back to the house to find Etelka, and to solicit and obtain her pardon for any offence which her lover might have committed. But fate had willed it otherwise.

Old Kishlaki, misled by the excitement of the day, had taken rather more wine than he ought to have done; his ideas were consequently less steady than they might have been. A match between Miss Rety and his son had always been among his pet projects. Urged on by the conviviality of the day, he had undertaken to address the Retys, and to solicit their daughter's hand for Mr. Kalman Kishlaki, his son and heir. Rety's answer to this unexpected offer was that he could not presume to judge of his daughter's inclinations; and the Lady Rety, in her turn, gave Mr. Kishlaki to understand that it would be more wise to reserve matters of such moment for the period after the election. The good man was too much excited to understand the real meaning of these answers. He fancied that everything was arranged; and, walking from group to group, he told the great secret to every one whom he met.

The Cortes were meanwhile actively employed in rehearsing their votes for the election. They had already disposed of some of the lower places, and they now proceeded to elect Kalman Kishlaki a justice of the district. They strained every nerve of their lungs in shouting "Eljen Kalman Kishlaki!" Old Kishlaki was transported with joy, but he was grieved that his son's glorification should be lost within the walls of the barn. He called his servant, and informing him of the great secret, he hinted at the pleasure

Miss Rety was sure to feel if the Cortes were to seize Kalman and to carry him in triumph to her room. The servant was, of course, quite of his master's opinion. He made his way to the barn, shouted "Halljuk!" and spoke so much to the purpose that the whole crowd of electors consented to accompany him to the garden. We ought to observe that Kishlaki's messenger gained his point chiefly by informing the Cortes of the proposed alliance between Etelka and Kalman.

The three hundred noblemen of St. Vilmosh set up a deafening shout of "Eljen!" and directed their steps to the garden, while old Kishlaki wept with joy, and muttered: "Hej! it is a fine thing to be so popular!"

Akosh and Kalman were close to the house when they met Kishlaki with all the Cortes at his heels. The old man had just time to embrace his son, and to cry out, "Do you hear it, Kalman? This is meant for you, my boy!" The very next moment they were surrounded by the men of St. Vilmosh. Their shout of "Eljen Kalman Kishlaki! Etelka Rety!" put a stop to all further conversation. The two young men were astonished. They did not know what to do or to say. But when old Kishlaki's servant proposed that the young man should be taken to "Miss Etelka, his betrothed bride;" and when a score of arms were stretched out to seize the fortunate lover, then it was that Kalman began to see how matters stood. He resisted, he prayed, he imprecated; and his father, too, who had no idea of proclaiming the affair in *this* way, did his utmost to prevail upon them to leave Miss Rety's name unmentioned. His endeavours were in vain. Kalman's resistance was of no avail. There was a sudden rush—a scuffle—and he found himself hoisted on the shoulders of a couple of stout fellows. His hair was dishevelled and his coat torn. He had lost his cravat and his hat. But the crowd, unmindful of these drawbacks to the personal graces of their favourite, bore him onward to the apartments of his mistress. Great was the uproar, and violent were their cheers of "Eljen Kalman and Etelka!"

The guests in the house rushed to the door, and, hearing the names of Kalman and Etelka, they turned to the sheriff and wished him joy. Mr. Rety received their congratulations with a sickly smile. Lady Rety, though mindful of Kishlaki's influence, protested with some warmth that there must be some mistake. But Karvay raised his powerful voice in honour of the

young couple, whose St. Vilmosh friends had by this time arrived at the threshold of Etelka's room.

Kalman was more dead than alive. He was about to appear before the lady of his love with his coat torn and his hair out of curl, and borne on the arms of three hundred Cortes! Entreaties, tears, imprecations—all were in vain; and they certainly would have introduced him to Miss Rety in the most disgraceful plight that ever lover faced his mistress in, if that lady had been in the room. But, when the door opened, they discovered in her stead Rosi, Miss Rety's maid, and at her side no less a personage than the hopeful notary of St. Vilmosh. This event brought matters to a favourable crisis. Akosh interfered, and pointing out to the assembly that a justice must needs have a juror, and that nobody was better qualified to fill that office than his friend, the notary of St. Vilmosh, he caused that gifted individual to be raised on the arms of the Cortes, who carried him after the justice that was to be, and at length presented both justice and juror to the sheriff.

It need scarcely be said that Rosi was greatly shocked, but she became comforted on beholding her beloved notary on the shoulders of the Cortes, and when she understood that the public voice designated her chosen husband to fill the office of juror. She busied herself with arranging the things in the room, which had been put in disorder by the tumultuous entry of the Cortes. While she was thus occupied she heard Mr. Catspaw's voice in the next room (which was his own). He was, it appears, in the act of dismissing some individual, for he said:—

"Well, then, at seven o'clock precisely, near the notary's garden."

"Yes, your lordship! I mean to be punctual, your lordship," said another voice, which, though Oriental, did not seem to belong to a Hungarian.

"You know your reward," rejoined Mr. Catspaw, as his interlocutor left the room.

"Confusion!" exclaimed the frightened maid. "Mr. Catspaw was in his room! He knows all now, for he is wondrous sharp of hearing. What if he were to peach to my lady?" And uttering maledictions on the head of the attorney and his Jew, Rosi locked the door of her mistress's room and made the best of her way to the kitchen.

The sheriff had meanwhile informed the most influential of his guests that he wished them to meet him for the purpose of a consultation. The Dons of the county assembled in the dining-room, which had been arranged for the sittings of a committee. In a corner of this room, which was ornamented with Rety's family portraits, and which still retained a faint smell of the dinner, there were three men of note standing together. They were Mr. Slatzanek, the agent and plenipotentiary of the Count Kovary; Baron Shoskutty; and Mr. Kriver, the recorder. Their conversation ran in the most natural course, that is to say, it turned on the chances of the election.

"Are you sure," said Mr. Slatzanek, addressing the recorder, "of that wretched Vetshösy having joined Bantorny's party?"

"I grieve to say that there can be no doubt about it."

"Did I not always tell you," cried the Baron—"did I not tell you a thousand times that I suspected Vetshösy? Three years ago, just a fortnight before the election, on a Friday afternoon, unless I am mistaken, I met you, Mr. Kriver, at the coffee-house. There were some of us, and some officers likewise, and I lighted my pipe and sat by you, and I said: 'That fellow Vetshösy——'"

"You were quite right, sir; but——"

"That fellow Vetshösy, said I, is a liberal, and, what is worse, he talks of his principles; he has some property, and——"

"Just so!" interposed Slatzanek. "Vetshösy is an influential man; the more fools we for making him justice of a district in which there are so many votes; but——"

"I know what you are about to say!" cried the Baron. "He might be gained over. Now, I'll tell you, I live in his district. Very well then, what do you say to a hunt—a legal hunt—a wolf hunt? We will have the peasants to drive the game. You will all come, and he, as justice of the district, must be one of us. Of course our wolf hunt is but a legal fiction, but he, as district judge, must be one of us, and we'll snare him, that we will."

"Alas!" sighed the recorder, "this is well and good; but the great obstacle is your son, the young Baron. He has more influence in the county than you

have, and he is against us."

"Devil of a boy! devil of a boy!" cried the Baron, "and yet how often did I not say: My son Valentine——"

"Suppose you were to exert your paternal authority?"

"Just so! You are right. My paternal authority authorises me to force my boy to any thing I like. And we are always of the same opinion, that boy and I; and he obeys me in all things, that boy does; and I think he had better, so he had! but on that one subject he is most unreasonable, I tell you."

"But it is on that very subject that he ought to yield to your superior wisdom."

"You are right! indeed you are. I'll disinherit that boy, confound me if I do not!"

Slatzanek, who was aware that the old Baron had very little to leave, and whose sagacity taught him to expect little or no effect from so vague a threat of a remote contingency, inquired whether there was no other means of compelling the young man; to which the Baron replied that there was no lack of means, especially if the lad could but be induced to marry.

"You have no idea, sir, how strongly marriage tells upon a man," said he, "especially in our family. When I was a bachelor, I was the most liberal man you could meet with in three counties any summer's day; and at present ——. But the boy won't marry!"

"How do we stand in this district?" said Slatzanek, addressing Mr. Kriver.

"As bad as can be. Tengelyi is against us."

"Tengelyi!" cried the Baron. "Tengelyi indeed! A mere village notary! Bless my soul! Tengelyi! How many Tengelyis does it take, do you think, to face *me* at the election?"

"Alas!" said Slatzanek, "votes are counted in this country, and not weighed; I know few men that are more powerful than this notary."

"And Akosh Rety," suggested Mr. Krivier, "does not indeed oppose us, but that is all."

"Ah!" cried the Baron; "just like my own son! I said just now——"

"However, if the Kishlakies stand but by us, we are pretty certain of this district."

"But we cannot rely on the Kishlakies," said Krivier. "Kalman is out of temper; he is jealous of the Count Harashy."

"You don't say so! Miss Rety was proclaimed as his future wife."

"Ay, but the Cortes did it," whispered the recorder, "and it struck me that Lady Rety was not at all pleased."

"You are right," said the Baron. "It struck me too. I sat by Lady Rety, talking of the weather, when the Cortes bore Kalman about, and when I heard them shouting,—'Dear lady,' said I——"

"We must be careful," said Slatzanek; "I fear ours is a bad position."

"As for me," said Mr. Krivier, "you are aware of my zeal; and I assure you that I will keep our party *au courant* of all the enemy's manœuvres."

"And to know your adversary's plans is half the battle!" cried the Baron, clapping his hands.

"Oh! if the noblemen in the county were all like my own tenants!" cried Slatzanek. "They vote with me; if they do not, they lose their farms. They are the men for an election!"

Here the conversation was interrupted by the arrival of the sheriff, and the labours of the committee commenced in due form with a provisional election of functionaries: Rety came in for the shrievalty; Mr. Krivier, the recorder, was appointed his Vice; and almost every one of the persons present obtained the promise of a place, either for himself or a friend. This done, the committee directed their attention to the means of fighting the battle of the real election; and, after a lengthened conversation on the usual electioneering tactics,—the favouring of a class, the kidnapping of electors, and the devising of plans for the especial annoyance of the hostile party, it

was finally resolved to arrange the reception of the Lord-Lieutenant, who was to conduct the election, in such a manner as to impress that great functionary with a favourable opinion of the Rety party. But the most arduous duty of the committee was the "finding the ways and means" for the confirmation of their political friends, and the conciliation of such among the enemy's troops as had some scruples about the justice of the cause which they had espoused. But Slatzanek's talents of persuasion, and the Lady Rety's sarcastic remarks, prevailed against the prudential considerations of certain timid assessors and justices; and the subscription having terminated to the general satisfaction of Rety and his friends, the meeting dispersed.

CHAP. VI.

While the committee were carrying on their deliberations in the castle of Tissaret, the house of the notary stood in peaceful tranquillity, and only the lights, which shone through the windows, gave evidence of the presence of its inhabitants. The house had two rooms fronting the street; one of these apartments, which had a back door communicating with the court-yard, was devoted to the use of Tengelyi, who kept his papers in it. The other room, which opened into the former apartment and the kitchen, was occupied by Mrs. Ershebet and her daughter. The kitchen had two doors, one leading to the garden, and the other to the yard. Next the kitchen was the store-room in which Viola had been hidden. At the further end of the house was the servants' room, and a small chamber in which lay Viola's wife. Tengelyi had spent the day at Tsherepesh, at Mr. Bantornyi's house; for the Bantornyi party, too, had their meetings and committees. Mrs. Ershebet, and Vandory who had dined at the notary's, were in the sick chamber, and Etelka and Vilma sat chatting in the second front room.

"Then you did not see him after all!" said Etelka. "'Tis a pity. I would give any thing to meet Viola, for I take a great interest in him."

"How *can* you talk in that way! God knows I pity the poor man; but I certainly do not wish to make his acquaintance. You are bold and

courageous! but as for me, I am sure it would kill me to see him. They say he is a murderer."

"Nonsense! a man who is so fond of his wife as Viola cannot be so wicked as they say he is. I do not know of any man—except your father—who would brave so great a danger to see his wife under such circumstances: I can admire that love, even in a robber; and thus I too wish to be beloved, no matter by whom!"

"If that can satisfy you," said Vilma, "I am sure there is nothing but what Kalman will do for you."

"Always excepting the being sober, and eschewing swearing, and all the clumsy affectation of a cavalier. Kalman would do any thing for me, but the one thing I ask him to do."

"Now you are unjust. I am sure he would leap into the fire for your sake."

"Of course he would, especially if some of his friends were present to extol his bravery. Kalman is very brave; it is his nature to be so; he cannot help it. He has many good qualities, I grant, but pray do not tell me that he loves me."

"I see you are again at odds with him. What is his crime?"

"He—but never mind! I will not talk about it. I cannot respect him, nor can I believe that he loves me."

"Akosh has a far different opinion of him."

"So he has!" rejoined Etelka; "but may I not question the justness of his views? Men are wont to prize their friends for those qualities which are of the greatest use to them. A good sportsman, a man that sticks to his word, and who will fight a duel for his friend at a moment's warning—such a man is their idol; they are half astonished, and more than half disgusted that we should ask for more. But I do!"

Vilma was silent. She saw that Etelka was hurt, and Etelka too wished to change the topic of their conversation. Addressing Vilma again, she said:—

"I can fancy your father's disgust last night, when he came home and learned what had happened."

"I never saw him in such a state. But Vandory came with him; he succeeded in quieting my father. I tremble when I think of it. He says he will have his right in this business."

"Never fear," said Etelka.

"But do you know whom he suspects of being the cause? He lays it all at the door of your father and mother?"

"Of my *stepmother*; and I am afraid he is right in his suspicions."

"Yes; but my father is again angry with all your family, except yourself. He is most violent against Akosh, who saved us from ruin. Only think if they had searched the house and found Viola! My father——"

"He will never know it."

"But if my father were to bring an action against Mr. Skinner? He protests he will do it."

"He will never do it. He was angry at the time, and I am sure he will reconsider the subject. But do not speak to him about it. If he knew it, he would not keep quiet, and there are many people who would be glad of any opportunity of showing their enmity against him."

"That's what old Mother Liptaka said. But you cannot think how distressing my situation is. I, who never kept any thing secret from my father, must now face him with an untruth. Every noise alarms me; for with my secret I lose my father's love. Oh! I cannot bear it!"

"And yet you must bear it," replied Etelka, embracing the weeping girl.

"The peace of mind and the welfare of your father demand this sacrifice."

"I think so too," said Vilma; "but then you have no idea how kind my father is, and how I long to kneel down and confess my fault to him!"

"My poor Vilma," sighed Miss Rety, "I am at a loss whether I am to pity you, or to envy you. I am not in a position to confide in my parent. But be

comforted: trust me, things will be altered. I understand my father is to resign after the election, and Mr. Tengelyi's anger will subside. Vandory will perhaps provide for Viola's wife. In a few weeks you will be able to tell your father all your sorrows."

"But what am I to do in the meantime? Viola came, though he knew that the whole village was in arms against him. The Liptaka tells me that he loves his wife more than I can think or understand. May he not come to-morrow, or to-night, or any time?—Jesus Maria!" shrieked Vilma, turning her pale face to the garden—"there he is!"

"Who?" asked Etelka, looking in the same direction.

"He! he is gone now,—but trust me, there he stood! I saw his face quite plainly!"

"Do you speak of Viola? Believe me you will not see him here, so long as Mr. Skinner, with half the county at his back, keeps infesting the place. How foolish and how pale you are! Come. I will fetch you a glass of water; it will do you good."

Just as Etelka got up to leave the room, some one outside knocked softly at the door.

"Oh, pray do not go!" cried Vilma. "Who can it be that knocks. It is so late! I fear——"

"Some one for your father; but we'll see. Come in!" said Etelka.

The door opened, and a Jew entered with many low bows and entreaties to excuse the liberty he was taking in saying good evening to the high and gracious ladies.

Vilma's fear, and the Jew's humility, formed so strange a contrast, that Etelka could not repress a smile, especially when she saw that Vilma remained still in bodily fear of the stranger, who stood quietly by the door, turning his brimless hat in his hands. His appearance was not that of a robber; on the contrary, he was a sickly and unarmed man; still his aspect was of a kind to make even a bold man feel uncomfortable in his presence. Jantshi, or John, the glazier (such at least was his name in *this* county) was

the ugliest man in the whole kingdom of Hungary. His diminutive body seemed as if bowed down by the weight of his gigantic head; his face was marked with the small-pox, and more than one-half of it was covered with a forest of red hair, and a wiry, dirty beard of the same colour. He had lost one of his eyes—its place was covered with a black patch; the searching and roving look of his other eye, his shuffling gait, and his cringing politeness, made him an object of suspicion and dislike to every one that chanced to meet him. Even Etelka felt disagreeably touched by the man's looks, and she became positively alarmed when Vilma whispered to her, that that was the face which she had seen at the window.

"Mr. Tengelyi is out, I tell you," said Etelka. "You may come to-morrow morning."

"Most gracious lady," said the Jew, still turning his hat and looking round, "this is indeed a misfortune! I have some pressing business with the high-born Mr. Tengelyi."

"Well then, come back in half-an-hour; perhaps he'll be home to supper."

"If so, may I wait outside?" asked the Jew, without, however, moving from the place where he stood. "Has his worship any dogs?"

"Dogs?" said Vilma.

"Yes, if there are no dogs in the yard I can wait; but if there are any I cannot wait. I am afraid of them."

"You may wait!" said Etelka, angrily; "there are no dogs in the house."

"Yes: but there may be some in the next house. I am a stranger, and it was but last year, in the third village from here, that the dogs nearly tore me to pieces. Since that time I fear them." And the stranger told them a long story, how he was walking through the village, how the dogs attacked him, and how he was saved by a shepherd who happened to hear his cries. "Bless me!" added the Jew, "if that man had not come they would have torn my cloak, and it was a very good cloak; it was not new, but it was a good cloak, for I bought it at Pesth for five florins and thirty kreutzers."

The Jew was so cunning, and withal so awkward, that Etelka could not help laughing at him; but Vilma felt uncomfortable, and asked him to go and come back in half an hour. Whereupon the Jew said that he would wait in the servants' room.

"No!" said Vilma; "there is a sick woman lying close by the servants' room; besides, we have told you over and over again that you must come back in half an hour, and that you shall not stay."

The Jew bowed very humbly, and walking to the door which led into the kitchen, he opened it.

"Stop!" said Vilma; "where are you going to?"

"I throw myself at your feet! I ask a thousand pardons! I am so confused. May I go through that door into the yard?"

"That door is locked. Get out by the door through which you came in."

The Jew made another low bow, and walked across Tengelyi's room to the door by which he had entered; not, however, without looking to the adjoining room, dropping his hat on the floor, and turning the handle of the door in every direction but the right one, while his eye seemed to peer into and examine every corner of the apartment.

"What do you say to that?" asked Vilma, when he was gone; "I will bet you any thing that fellow is a spy."

"Nothing is more likely; for he seems to be capable of any thing, and in war he would certainly act as a spy. But why should he exercise that noble trade in your house?"

"He was looking after Viola and his wife. You know how eager Mr. Skinner is to arrest the robber."

"I know that yesterday he was in pursuit of the poor man; but to-day he has other matters to think of. No, I am sure the Jew has some request or some complaint to make to your father."

"But he asked so many questions; he looked into every corner of the room."

"He was afraid of the dogs, and perhaps he hoped to discover a broken pane of glass. It would have been a job for him, you know."

But Vilma was by no means easy in her mind. She was about to give vent to a great many more fears, when Tengelyi's arrival put a stop to the conversation.

While his daughter took charge of his hat and cane, the notary turned to Etelka.

"I was hardly prepared to find Miss Rety here," said he, "there are so many guests at the Castle."

"Are you not aware that their presence at the Castle adds to my reasons for coming here?"

"Indeed! I fancied that these gentlemen could not be sufficiently honoured just before the election."

Etelka's feelings were hurt, and she was at a loss what to say; but Vilma, who wished to turn the conversation into another channel, asked her father whether he had not met a Jew, who had just left the house.

"I did meet him," said the notary. "I found him near my door, talking to Mr. Catspaw. By the by, now I think of it, Mr. Catspaw asked me to give his compliments to Miss Rety, and to inform her that he is going to send a servant with a lanthorn. They are going to supper; the sheriff has several times asked for Miss Rety."

"But what did the Jew want with you? He was very pressing; he wanted to see you on business of great importance."

"Business? ay, yes, it's a sorry business to him, though good sport to others. The poor fellow did a job at the Castle, and the very praiseworthy Cortes of the county took his glass chest and broke it for him; and because he was not at all amused, or because he is a Jew, or one-eyed, or Heaven knows why they thrashed him. It's a trifling matter, you see," said the notary, addressing Miss Rety, "for some people must be beaten at an election, especially Jews, merely to give the new officers something to do, and to convince the

sufferers that, as far as they are concerned, things have remained much the same as they were before."

"But, father dear, this is indeed horrible," said Vilma.

"Nothing more simple, dearest child. What were an Hungarian's liberties worth, if he were not allowed to thrash a Jew? But the affair has been settled. Mr. Catspaw has promised to pay for the glass, and I am very much mistaken if the Jew does not make the attorney pay for the beating too."

Mrs. Ershebet and the clergyman entered the room. Etelka kissed her friend and returned to the Castle.

CHAP. VII.

It was but natural that while the Conservative party at Tissaret made so many preparations for the election, Mr. Bantornyi's cooks and butlers should be equally busy. Tserepesh was the seat of Bantornyi's party, whose numbers surpassed those of Rety's adherents. Almost all the great landowners of the county, with the exception of Kishlaki, Shoskuty, and Slatzanek, resorted to Tserepesh. Their enthusiasm (to judge from the noise they made) was unbounded, and their chief strength consisted in the support of the younger and consequently more liberal members of the community. But Mr. Kriver, who sided with either party, had his reasons for doubting the ultimate success of the Bantornyis. He was aware that excepting himself, the prothonotary, and a few vice-justices, all the placemen of the county belonged to the Conservative party, which did the more credit to their disinterestedness and foresight, as it was well known that Bantornyi was leagued with men, who, like himself, aspired for the first time to the honours and cares of office, a policy whose edge will sometimes turn against him who uses it. Besides, (and this is indeed Mr. Kriver's chief ground of doubt,) Bantornyi's party had resolved to act upon the mind of the Cortes by persuasion, and to eschew bribery. This sublime, but rather impractical idea emanated from Tengelyi, whose motion to that effect was so zealously supported by Bantornyi's friends (excepting always the

candidates for office), that the recorder's eloquence and Bantornyi's entreaties were of no avail against this virtuous resolution of theirs. In justice to Bantornyi we ought to say, that he and his family strove to make up for this fault, and his noble friends were never in want of either wine or brandy; but this rash resolution which the Retys published with their own commentaries was nevertheless a serious drawback to the success of the party. Well might the Bantornyis agitate for the emancipation of the Jews (so the Rety party said) since they were stingier than a thousand Jews; they despised the nobility because they refused to treat its members. Bantornyi's secret donations were fairly smothered by these public calumnies. Krivier was perfectly justified in protesting that what the party wanted was the *power of publicity*. Rety's men, on the other hand, perambulated the villages; they bore gaudy flags; they had their houses of resort; they distributed feathers among the men and ribbons among the women; the very children in the streets were gained over to them. Every noble fellow knew that it would be three zwanzigers in his pocket if Rety was returned. And the Bantornyis walked about empty-handed, appealing to moral force! They had not even the ghost of a chance; the candidates for office became dissatisfied and talked of effecting a compromise with the enemy, and there is no saying what they might have done but for a most unexpected event, which caused them to rally round their leader.

The lord-lieutenant wrote to inform Mr. Bantornyi of his intention to visit the county, and of staying a night at Tserepesh. The letter which contained this welcome intelligence was in his Excellency's own handwriting, and the sensation produced in the county was of course immense. The lord-lieutenant had always taken up his quarters in Rety's house. Now Rety was a renegade. An old liberal, he had joined the Conservative party. And the lord-lieutenant, scorning Rety's proffered hospitality, turns to the house of his antagonist. His Excellency was a liberal at heart, and that was the secret—at least in the opinion of the Tserepesh people. The Rety party were a little shocked. They said, of course, that his Excellency consulted but his own convenience; that Bantornyi's house was the most convenient place on *that* road, and that the inns in that part of the county were villanous; but in their inmost souls they denounced this step as the greatest political fault which his Excellency could have committed, and which, they were sure, *must* lead to his downfall. The anti-bribery party were positive that the high

functionary was aware of the despicable means which the Retys employed to get their chief returned, and that he claimed Bantorny's hospitality only to express his disgust at the unlawful practices of bribery and corruption. It need scarcely be said that Tengelyi was a zealous supporter of the latter opinion. But whatever reasons the Count Maroshvölgyi had for going to Tserepesh, certain it is that the news of his coming gave the Bantornyis hopes, and more than hopes of success. It steadied the wavering ranks of their partizans and recruited their number by a crowd of would-be candidates. The day appointed for the Count's arrival saw the house of the Bantornyis thronged with anti-bribery men; and though his Excellency was not expected before nightfall, it was all but impossible to cross the hall at nine o'clock in the morning.

Bantorny's house was one of those buildings with which every traveller in Hungary must be acquainted. It was a castellated mansion with nine windows; a large gate in the middle, and a tower at each of its four corners. The interior of these buildings is always the same. An ascent of three stone steps leads you to the gate, and walking through a large stone-paved hall you enter the dining-room, to the right of which are the apartments of the lady of the house, and to the left the rooms destined for the use of the landlord and his guests. Bantorny's castle was built on this plan; but, ever since the return from England of Mr. Jacob—or *James* Bantorny—(for he delighted most in the English reading of his name) Mr. Lajosh Bantorny had come to be a stranger in his own house.

There is in England a very peculiar thing which is commonly known by the name of *comfort*. Mr. James had made deep investigations into the nature and qualities of this peculiar British "thing" (as he called it). Indeed he had come to understand and master it. The "thing," viz. comfort, is chiefly composed of three things: first, that a man's home be built as irregularly as possible; secondly, that there be an abundance of small galleries and narrow passages, and no lack of steps near the doors of the rooms; and, thirdly, that the street-door be fastened with a Bramah lock and key. Curtains and low arm-chairs are capital things in their way; but most indispensable are some truly English fire-places fit for burning coal, for it is the smoke of coal which gives a zest to English comfort. When Mr. James Bantorny returned from England, he rebuilt the family mansion on a plan which was suggested by "Loudon's Encyclopedia of Cottage Architecture." The new building

which did so much honour to his taste, was not above one story high; but one of the old towers, which communicated with the new house, was built higher, and (in spite of Mr. Lajosh's protests) provided with a wooden staircase. A verandah was constructed on that side of the house which fronted the garden, and an antechamber and a billiard-room were built in the yard. The giant oaks of an English park were indeed but indifferently imitated by a few Mashanza apple trees; but the garden walls, which Mr. James caused to be painted red and yellow, gave a tolerable idea of the unpainted walls of an English landscape. The stables were, of course, condemned to similar improvements; and the grooms were threatened with instant dismissal if they presumed to do their work without that peculiar hissing noise which English grooms are wont to make in the exercise of their professional avocations. Stairs, steps, passages, verandahs, curtains, fireplaces, and arm-chairs—in short, every thing was there; and the Bramah lock was famous throughout the county; for once upon a time, when Mr. James had gone to Pesth, the street-door was found to be locked, and the key (by some inexplicable mischance) lost; nor could the family enter the house or leave it in any other way than by climbing through the windows of the verandah, until Mr. James, who had the other key fastened to his watch chain, returned from his journey and opened the door. The old castle, which was inhabited by Mr. Lajosh, had escaped most of these improvements; but Mr. James caused his elder brother to consent to some alterations being made in the dining-room. It was moreover pronounced to be a high crime and misdemeanour to smoke in any part of the house.

While Mr. Lajosh Bantornyí was busy in receiving and complimenting his guests, his brother James and Mr. Kríver were walking in the garden. James was evidently out of spirits. He shook his head, stood still, walked and shook his head again, beat his boots with a hunting-whip, and replied to the recorder's remarks with "*most true*," "*yes*," "*indeed*," and other expressions of English parliamentary language.

"I am sure," said Mr. Kríver, in a whisper, "I am sure we are losing our labour, unless we have a committee-room and some flags. Your spending money is of no use. Your brother's popularity will not do him any good. They take your money, but they don't come to the election, and *if* they come, they are kidnapped by Rety's party."

"*You are right, my friend*, which means, I agree with you; but what the devil shall we do?"

"Induce your brother to get up some English affair, some *moting*, or *meeting*, or some such thing."

"*Meeting*, from *to meet*, which means that people meet. I hope you understand the derivation of the word!"

"That's it! We ought to get up something like a meeting where people meet and drink."

"You are mistaken. That drinking business is altogether a different affair: they call it a '*political dinner*.' But you *meet* to discuss a question; and people sign their names to petitions by hundreds of thousands and more, and such a petition tells upon the government. I attended such a meeting at Glasgow, but——"

Nothing can equal the horror which Mr. Kriver felt when he saw Mr. James prepared to favour him with a sketch of his travels. "Ah! I know," said the recorder quickly, "you, too, signed the petition; it was when you made that agitation about the Poor Law. But to return to what I was saying, we ought to give a political dinner, and you ought to make a speech, and state the principles of the party."

"No; they drink the king's health first, and the health of the members of the royal family, for the dynasty ought to be honoured. A man is at liberty to say of the government whatever he pleases; but the king, you know, the king must be honoured. That's the liberty of an Englishman. Next——"

"The lord-lieutenant."

"Shocking! You are quite in the dark about it. After the royal family we must have some class toasts; for example, the Church, army, and navy."

"I'm afraid those toasts would do little good. There is a strong feeling against the Papists; that toast of the Church is enough to send all our Protestants to—Rety."

"You are quite right. Our Dissenters hate our High Church as much as the English Dissenters hate theirs. But I don't see why we should not toast 'the

Church.' Every man drinks to his own Church; but if they were to accuse us of sympathy for the Roman Catholics, where's the harm? Only think how closely the Whigs were leagued with O'Connell!"

"My friend," said Mr. Kriver, "you know England; but I know this county. Our countrymen cannot understand and appreciate your ideas."

"Yes!" said Mr. James, highly flattered, "I am sure they cannot. But the army we must have."

"Of course, if you wish it. But the great thing is to make it a regular, downright, out-and-out, drinking bout."

"But what in the world are we to do? My brother and I have gone all lengths. We have spent a year's income on this confounded election."

"Nor is money the thing we want, if we can but make some grand demonstration. But unless our people get their feathers and colours, we are winged. Do but induce your brother to act like a man; we are sure to gain the day."

"We have promised to employ none but honourable means——"

"To get the majority. But the means which I propose are, in *my* opinion, most honourable. Is there any thing dishonourable in hospitality?"

"Certainly not; and I grant you the resolution admits of various interpretations. But some people there are who do not think so."

"Nonsense! When we passed that silly resolution, there were indeed lots of fools that voted with Tengelyi; but why did they do it? Because they were not booked for a place, and because they were afraid for their money. But with your own money you are quite at liberty to buy as many Cortes as you please."

"But Tengelyi!"

"Tengelyi! What of him? And suppose he were to leave us, what then? He is an honest man, I grant you; but after all, he is only a village notary."

"His influence is great, especially with the clergy; and if *he* were to oppose us——"

"Oppose us? Impossible! Tengelyi is more impracticable than any man ever was. No matter whether you insult him or flatter him, you lose your pains. The good man fancies that a village notary's conviction goes beyond every thing. Besides, he will never vote for Rety's party; and if he votes for them, I know of something that will play the devil with his influence."

"Well?"

"Tengelyi," whispered Kriver, "is not a nobleman."

"Not a——! can it be possible?"

"I am sure of it. You know that fellow Catspaw is a crony of mine. Old Rety was Tengelyi's friend, though they hate one another now; and old Rety knows all Tengelyi's secrets. Catspaw told me that the notary has not a rag of paper to prove his noble descent by. The prothonotary, too, is aware of it, though he keeps his counsel; and so do we, if he votes for us. But if he turns against us, we have him close enough in a corner."

The prothonotary, who at this moment came up, confirmed Mr. Kriver's statement; and Mr. James pledged his word as a gentleman to hoist the colours of the party, and to invite the whole county to a political dinner.

The day passed amidst Mr. James's varied, and indeed interesting, accounts of the Doncaster races, and the debates of the English parliament—accounts which were given seriatim to small knots of guests in every corner of every room in the house; while Mrs. James Bantorny was busy superintending the arrangement of the apartments destined for the lord-lieutenant's use. In the evening Mr. Lajosh Bantorny was in a state of great excitement. He walked restlessly to and fro, pulled out his watch, and looked at it. He walked out into the park and came back again, addressing every one he met with: "Really his Excellency ought to be here by this time!" Whereupon some of the guests said: "Yes, so he ought!" and others protested that his Excellency must have been detained on the road. The words of "*contra*" and "*pagat ultimo*" rung from the card table; and the noise of a political discussion, in which no less than thirty persons joined, intent on reconciling twelve opinions on four different subjects, drowned the complaints of Mr.

Lajosh Bantorny. But Mr. James, who saw and pitied his brother's distress, mounted his horse, and, accompanied by two torch-bearers, set out to meet the lord-lieutenant on the road. He was scarcely gone when the din of an angry discussion broke through the dense cloud of smoke which enveloped the card-tables.

"Mr. Sheriff, this is unsupportable; this is!" cried a man with a sallow and somewhat dirty face. It was Mr. Janoshy, an assessor, and a man of influence. "Mr. Sheriff, I won't stand it. Penzeshy has saved his pagat!"

"Has he indeed? Well then, there is no help for it, if he has saved it."

"But I covered it."

"But why did you cover it?"

"Because I have eight taroks."

"Eight taroks! Why then, in the name of h—ll, did you not take it?"

"Why, what did *you* lead spades for?"

"What the deuce do you mean, sir?"

"Clubs, sir! It was your bounden duty, sir, to lead clubs, sir," said Janoshy, very fiercely.

"Clubs be ——! Do you mean to tell me, sir, that I ought to have played my king? I'd see you——"

"I appeal to you!" cried Janoshy, addressing Penzeshy, who was shuffling the cards, while the company thronged round the table.

"Go on!" said Mr. Kriver.

"This is not fair play!" cried Janoshy.

"I play to please myself and not you," retorted the sheriff.

"Then you ought to play by yourself, but not for *my* money!"

"Here's your stake! take it and welcome!"

"I won't stand it. By G—d I won't!" cried Mr. Janoshy, jumping up. "You, sir! you take the money back, or give it to your servant, (poor fellow! it's little enough he gets); but don't talk to me in that way, sir! I won't stand it, sir!"

Here the altercation was interrupted by the general interference of every man in the room, and in the confusion of tongues which ensued, nothing was heard but the words, "pagat,—sheriff—good manners—*tous les trois*"—until Shoskuty, in a blue dress embroidered with gold (for every body was in full dress), entered the room. He silenced the most noisy by being noisier still. "*Domini spectabiles!*" cried Shoskuty, "for God's sake be quiet, Mr. Janoshy is quite hoarse, and I am sure his Excellency is coming. That confounded pagat!—only think of his Excellency!—though it was saved—for after all we are but mortal men!—I am sure he is hoarse;" and thus he went on, when of a sudden the doors of the apartment were flung open and a servant rushed in shouting, "His Excellency is at the door!"

"Is he? Goodness be—where's my sabre?" cried Shoskuty, running to the antechamber which served as a temporary arsenal, while the rest of the company ran into the next room, where they fought for their pelisses.

"I do pray, *domine spectabilis!* but this is mine. It's green with ermine!" cried the recorder, stopping one of the assessors who had just donned his pelisse, and who turned to look for his sword. The assessor protested with great indignation, and the recorder was at length compelled to admit his mistake. Disgusted as he was, he dropped his kalpac, which was immediately trodden down by the crowd.

"Sblood! where is my sword? Terrem tette!" shouted Janoshy, making vain endeavours to push forward into the sword room, while Shoskuty, who had secured his weapon, was equally unsuccessful in his struggles to obtain his pelisse.

"But I pray! I *do* pray! I am the speaker of the deputation—blue and gold—I must have it—do but consider!" groaned the worthy baron. His endeavours were at length crowned with success, and he possessed himself of a pelisse which certainly bore some similarity to his own. Throwing it over his shoulders Baron Shoskuty did his best to add to the general

confusion by entreating the gentlemen to be quick, "for," added he, "his Excellency has just arrived!"

The lord-lieutenant's carriage had by this time advanced to the park palings, where the schoolboys and the peasantry greeted its arrival with maddening "Eljens!" The coachman was in the act of turning the corner of the gate, when the quick flash and the awful roar of artillery burst forth from the ditch at the road-side. His Excellency was surprised; so were the horses. They shied and overturned the carriage. The torch-bearing horsemen galloped about, frightening the village out of its propriety, as the foxes did, when Samson made them torch-bearers to the Philistines. Mr. James, following the impulse of the moment, came down over his horse's head; the deputation, who were waiting in Bantornyi's hall, wrung their hands with horror. At length the horses ceased rearing and plunging; and as the danger of being kicked by them was now fairly over, the company to a man rushed to welcome their beloved lord-lieutenant.

The deputation was splendid, at least in the Hungarian acceptation of the word, for all the dresses of all its members were richly embroidered. Shoskuty in a short blue jacket frogged and corded and fringed with gold, and with his red face glowing under the weight of a white and metal-covered kalpac, felt that the dignity of a whole county was represented by his resplendent person. Thrice did he bow to his Excellency, and thrice did the deputation rattle their spurs and imitate the movement of their leader, who, taking his speech from the pocket of his cloak, addressed the high functionary with a voice tremulous with emotion.

"At length, glorious man, hast thou entered the circle of thy admirers, and the hearts which hitherto sighed for thee, beat joyfully in thy presence!"

His Excellency unfolded a handkerchief ready for use; the members of the deputation cried "Helyesh!" and the curate of a neighbouring village, who had joined the deputation, became excited and nervous. The speaker went on.

"Respect and gratitude follow thy shadow; and within the borders of thy county there is no man but glories in the consciousness that *thou* art his superior."

"He talks in print! he does indeed," whispered an assessor.

"I beg your pardon," said the curate, very nervously, "it was *I* who made that speech."

"*Tantæne animis cælestibus iræ!* These parsons are dreadfully jealous," said the assessor. Shoskuty, turning a leaf of his manuscript, proceeded:

"The flock which now stands before thee"—(here the members of the deputation looked surprised, and shook their heads)—"is but a small part of that numerous herd which feeds on thy pastures; and he who introduces them to thy notice"—(Shoskuty himself was vastly astonished)—"is not better than the rest: though he wears thy coat, he were lost but for thy guidance and correction."

The audience whispered among themselves, and the lord-lieutenant could not help smiling.

"For God's sake, what *are* you about?" whispered Mr. Kriver. "Turn a leaf!" Baron Shoskuty, turning a leaf, and looking the picture of blank despair, continued:

"Here thou seekest vainly for science—vainly for patriotic merits—vainly dost thou seek for all that mankind have a right to be proud of——"

The members of the deputation became unruly.

"They are peasants, thou beholdest,——"

Here a storm of indignation burst forth.

"In their Sunday dresses——"

"Are you mad, Baron Shoskuty?"

"But good Christians, all of them," sighed the wretched baron, with angelic meekness: "there is not a single heretic among my flock."

"He is mad! let us cheer!—Eljen! Eljen!"

"Somebody has given me the wrong pelisse!" said Shoskuty, making his retreat; while the lord-lieutenant replied to the address to the best of his

abilities, that is to say, very badly, for he was half choked with suppressed laughter.

But the curate, who had displayed so unusual a degree of nervousness at the commencement of the address, followed Shoskuty to the next room, whither that worthy man fled to bemoan his defeat.

"Sir, how dare you steal my speech?" cried the curate.

"Leave me alone! I am a ruined man, and all through you!"

"Well, sir; this is well. You steal my speech, and read it. Now what am I to do? I made that speech, and a deal of trouble it gave me. Now what am I to tell the bishop at his visitation on Monday next?"

"But, in the name of Heaven, why did you take my cloak?"

"*Your* cloak?"

"Yes; *my* cloak. I am sure my speech is in your pocket."

The curate searched the pockets of the pelisse, and produced a manuscript. "Dear me!" said he, wringing his hands; "*it is your cloak.*" And the discomfited orators were very sad, and would not be comforted.

CHAP. VIII.

Dustbury is the chief market town of the county of Takshony. While the Greeks of old built their cities in the clefts and hollows of rocks, as the learned tell us, we are informed that the vagrant nation from which we are descended were wont to settle on fertile soil; wherever our ancestors found luxurious crops of grass and a fountain of sweet water, there did they stop and feed their flocks. In this spirit they made their earliest camp at Dustbury. But when the tents gave way to houses, the luxuriant green of the pasturage disappeared, and the fountains of sweet waters, which invited our fathers to stay and rest on their banks, stagnated, and became a vast substantial bog. Still, if you look at the streets of Dustbury in autumn, and if

you take notice (for who can help it?) of the deep cart-ruts in the street, you must confess that Dustbury does indeed lie in Canaan; and throughout many weeks in every year even the least patriotic of the natives of Dustbury find it difficult, and even impossible, to leave the city. The houses of Dustbury are intersected and divided by a variety of narrow lanes and alleys, which, by their intricacy, are apt to perplex the stranger within her gates. They have a striking family likeness. Except only the council-house and a few mansions, they are all, to a house, covered with wood or straw; and so great is their uniformity, that the very natives of Dustbury have been known to make awkward mistakes. A great deal might be said of the modern improvements of the town,—such as the public promenade, the expense of which was defrayed by a subscription; and the plantations, containing trees (the only ones in the neighbourhood), which are protected by the police, and which left off growing ever since they were planted. There was a plantation of mulberry-trees, too; but it dated from the days of the Emperor Joseph; and no more than three mulberry-trees were left in it to tell the tale of departed glory. Next, there is the pavement, which a French tourist most unwarrantably mistook for a barricade; though, for the comfort of all timid minds, be it said, that the pavement has since been covered with a thick layer of mud, so as to be perceptible to those only who enter the town in a carriage. I could adduce a variety of other matters to the praise and glory of Dustbury, but I abstain; and, leaving them to the next compiler of one of Mr. Murray's Handbooks, I introduce my readers into the council-house of Dustbury, and the lord-lieutenant's apartments.

The great man's antechamber was thronged with men of all parties, who, "armed as befits a man," waited for the moment—that bright spot in their existence!—which allowed them to pay their humble respects to his Excellency. Rety, Bantorny, Baron Shoskuty, Slatzanek, and all the county magistrates and assessors, were there, either to report themselves for to-morrow's election, or to offer their humble advice to the royal commissioner. And truly their advice was valuable. One man said that X., the juror, was a man of subversive principles, and that the crown was in danger unless X. was to lose his place and Z. to have it. Another man protested that Mr. D. must be sworn as a notary: in short, every one had the most cogent reasons for wishing a certain place out of the hands of the very man who held it. The crowd dispersed at the approach of the evening. Some

went to their club-rooms to harangue the Cortes, while others were busy preparing a serenade for the lord-lieutenant. That great man, meanwhile, tired out with his own kindness and condescension, promenaded the room, and talked to his secretary.

"So you think," said his Excellency, "that things will go on smoothly to-morrow?"

"Smoothly enough, except for those who may happen to get a drubbing. Rety is sure to be returned. Bantornyí does not care. He put himself in nomination merely to please his brother. His party will be satisfied with a few of the smaller places. Rety, who is a good, honest man, resigns the office, and Kríver, who is agreeable to either party, takes his place."

"I trust there will be no outrages."

"Nothing of the kind. We have two companies of foot on the spot, and the cuirassiers are coming to-morrow."

"But you know very well that I detest the interference of the military. People *will* misconstrue that kind of thing. They talk of the freedom of election."

"No!" said the secretary, smiling; "your Excellency can have no idea how fond the people here are of bayonets. Bantornyí and Rety asked me at least ten times whether due preparation had been made for the maintenance of order and tranquillity, and when I told them of the horse, they were ready to hug me from sheer delight. Your Excellency's predecessor was fond of soldiers, and there are people who cannot fancy a free election without bayonets. If they were called upon to paint the picture of Liberty, they'd put her between a grenadier and a cuirassier."

"Pray be serious!"

"So I am. Still it makes me laugh to think that the very men who now divide the county trace their origin as political parties to an idle controversy on the uniforms of the county-hussars. Hence the yellows and the blacks. I am sure your Excellency would laugh if you had seen their committee-rooms. Rety's head-quarters ring with high praises of his patriotism, for his having at the last election fixed the price of meat at threepence a pound; while in the next

house you find all the butchers of the county for Bantornyi, the intrepid champion of protection and threepence-halfpenny. Just now, at the café, I overheard an argument on Vetshöshy's abilities, which were rated very low, because he is known to be a bad hand at cards. In short, your Excellency can have no idea of the farce which is acting around us. Slatzanek called half an hour ago, lamenting the lose of two of his best Cortes. They were stolen."

"They were—what?"

"Stolen, your Excellency. One of the men is forest-keeper to the bishop. He is a powerful fellow, with a stentorian voice, strongly attached to his party, and very influential in his way. He is a black. The yellow party surrounded him with false friends; they made him dead drunk, and in that state, in which they keep him, they take him from village to village, with the yellow flag waving over his head, thus showing him off, and making believe that he had joined their party. The thing happened a week ago, and the fellow, fancying that he is with the blacks, shouts 'Eljen!' with all the fury of drunken enthusiasm. The blacks have made several unsuccessful attempts to rescue their leader, and three noble communities, who were wont to vote with the bishop's keeper, have joined Bantornyi's party. The other man is a notary at Palinkash. They have put him down to a card-table, and whenever the wretched man thinks of the election, they cause him to win or to lose, just as it serves their turn to keep him there."

The lord-lieutenant laughed.

"Have you spoken to Tengelyi, the notary of Tissaret?"

"He is coming. To see that poor man lose his time and labour is really distressing. I never saw more sincerity of enthusiasm and more manliness of feeling. The good man is almost sixty, and still he has not learnt that a village notary cannot possibly be a reformer."

"I am afraid he's tedious," said his Excellency; "but we must bear with him, since you tell me he is a man of influence."

"So he is, and more so than any notary in any county I know of. Vandory, by whom the clergy of this district are wont to swear, votes with the notary."

"He is a demagogue, I am told."

"No; I do not think that name applies to him. The principles, which demagogues make tools of, are the grand aim and end of his life. In short, he is half a century in advance of his age."

"The worse for him, he'll scarcely live to see the day of general enlightenment. Men of his stamp are most dangerous."

"Hardly so. Men of strong convictions are for the most part isolated. They want the power to do harm, for they have no party. Who will side with them?"

"*Nous verrons!*" said the Count Maroshvölgyi. "The notary is a family man; besides, he is poor. Kriver told me all about him, and I dare say there are means of settling him."

"If your Excellency is right, I am mistaken."

"Nor will this mistake be the last of your life," said his Excellency, rising. "The glaring red on a woman's cheek ought to tell you that that woman is painted, and the *belle des belles* of the ball is palest in the morning. But I hear somebody in the next room. Pray see who it is; and if it be Tengelyi, leave me alone to talk to him."

The secretary left the room, which Tengelyi entered soon afterwards. His Excellency received him with great cordiality.

"Have I your pardon," said the great man, "for asking you to come to me? I wanted to see you, and I was disappointed in my hopes of finding you among my other visitors."

Tengelyi replied, that he was always ready to obey his Excellency's orders, but that he knew his position too well to trouble the Count with his presence on such a busy day as this.

"My dear sir, you are wrong to believe that I know not to distinguish between a man and his position, and that I mistake you for one of the common notaries."

"And your Excellency is wrong to believe that this would hurt my feelings. The extent of our usefulness determines the value which we have for others. People do not value our will, but our power; and though a village notary such as I, may possibly in his own thoughts rate himself higher than he does his colleagues, it would be wrong in him to ask others to do the same. But may I inquire what are your Excellency's commands?"

"Some years ago, when you were intimate with the Retys, I used to see more of you."

Tengelyi looked displeased.

"Pardon me," added the count, "if I have pained you by reminding you of that time."

"On the contrary, I feel truly honoured that your Excellency should have remembered my humble self, painfully though I feel that my influence does not stretch to the length of my gratitude."

There was a hidden sting of bitterness in Tengelyi's words, and especially in the tone in which they were delivered. The count continued:—

"What I ask—or rather what I crave of you—has nothing to do with influence. It rests solely with you to grant my suit, and to oblige me for all time to come."

Tengelyi cast a glance of suspicion at the great man. "Your Excellency," said he, drily, "may rely on me, if your command can be reconciled to my principles."

"I know you too well, and respect you too much to express any other wish. What I ask of you will convince you how deeply sensible I am of your merits."

Tengelyi bowed.

"I know," continued the count, "that you are *au fait* of the condition of the county. Your office brings you in contact with the lower classes. You see and hear many things which a lord-lieutenant can never know. Speak freely to me, I pray, and be assured that to advise me is an act of charity."

The notary was silent.

"Do not impute my demand to an idle and vain curiosity. The election comes off to-morrow. It decides the fate of the county for the next three years. You *must* be sensible of the importance of this moment, and you know that my influence can be of use to the public, if I exert it with my eyes open."

Tengelyi was in the act of opening his lips and heart to the lord-lieutenant; but he remembered that a man may take any line that suits his plans, and that his Excellency was known to be not over nice in such matters. He replied, therefore, that he was not mixed up with any party, and that he could not, to his great sorrow, enlighten his Excellency on that head.

Maroshvölgyi, who was a master in the noble art of flattery, had never yet encountered such an antagonist in the county of Takshony. He waived the attack.

"You mistake me. Do you indeed fancy me to be ignorant of the position of parties? I know more of them, I assure you, than is either good or wholesome for me. But is there nothing in the county beyond these wretched parties? Ought I not to know the condition of the people? Ought I not to know how the functionaries behave in their offices, and what the poorer classes have to expect from the candidates?"

"Is it then the condition of the people which your Excellency wishes to know?" said Tengelyi, with a deep sigh. "But who *can* give you an idea of their condition? Did you not, when you rode through the county, look out from your carriage at the villages on the roadside? And what was it you saw? Roofless huts, the fields neglected, and their population walking dejectedly, without industry, without prosperity, without that joyful merry air so characteristic of the lower classes of other countries. Believe me, sir, the people in this country are not happy!"

"But, my dear Tengelyi, I think there is some exaggeration in your words. The Hungarian people do not stand so low as you would place them: I know none more proud and manly. The Hungarian peasant is happier than any I ever saw."

"Do not be imposed upon by appearances. The peasant of Hungary is a stiff-necked fellow; and I must say, I take a pride in this race, when I see that the oppression of so many years has not bent its neck. A nation which after so much oppression can still hold up its head, seems to be made for liberty,—but for all that, the people are not happy. We do not see them in rags,—but why? because they never had any clothes, except linen shirts and trowsers! but do they therefore feel the cold of winter less? They do not complain. No; for they know, from the experience of centuries, that their complaints are unheeded. But do they not feel the oppression which weighs down upon them? Do they not feel the separation from their sons, when the latter are enrolled in the regiments, while the children of their noble neighbours show their courage in hunting at the expense of the subject's crops?"

"You live among the people," said the lord-lieutenant, quietly; "but believe me, in this respect, you are mistaken. I know Hungarian peasants who in wealth can vie with the agriculturists of any country."

"Of course; but are they the only peasants in Hungary? Are not there others in our counties,—men who are equally our brethren,—and who equally claim our attention? Consider the Russniak population of the county. We see them in rags, starved and wretched. Has any thing been done to bind these people to our nation? has any attempt been made to raise them to the rank of Magyars? of citizens of the country?"

"You are right, and it is to be hoped that the nation will soon understand its own interests. But what can the county magistrates do in this respect? What can I do?"

"Very much indeed!" replied the notary, enthusiastically; "if your Excellency would only extend your protection to the poor people!—if you would use your influence for the election of officers who are alive to the sacred duties of their office!"

"Alas!" said Maroshvölgyi, "I wish to God it were so, and that I *could* be to the people what I wish to be."

"Your Excellency *can*!" cried Tengelyi. "There are honest men, even among the present county magistrates: I need not tell you their names. You know them as well as the Retys, Krivers, Skinners. Take the part of the former,

and oppose the latter. Believe me, your Excellency, the county has no lack of noble and generous men, and it lies in your hands to make the people of Takshony a happy people."

"But you forget my political position. Rety, Kriver, and the other men, are men of my party whom I cannot possibly throw overboard: but, I assure you, I respect the feelings which you have expressed to me. If you were in my place, you would see that there are some great and fine ideas which a man cannot call into life, whatever his seeming power and influence may be. Whatever influence I may have in the county, I owe to the popularity which I have obtained through my conduct; and if I were to follow your advice, I should lose my popularity."

"Popularity! of course, all coteries have their popularity; whenever a body of men are united for a certain purpose, they show their gratitude for him who promotes that purpose, and applause, garlands, and triumphs fall to the share of him who speaks loudest, and agitates most zealously for the realisation of the common object. But do not others live in our country besides the nobility which fills our council-halls? Are there not nobler things to strive for than these paltry Eljens? And the people, those millions who silently surround us, those vast multitudes, who have at present no reward for their benefactors but sighs and tears, but who, on the day of their glory, will raise the names of their champions in a louder shout than all the Cortes in all Hungary;—are they nothing to you?"

Here the speaker was interrupted by a distant cry of "Eljen."

"I go, your Excellency," continued the notary, "to make room for others. You will be surrounded with adorers. You will have music and speeches; but, believe me, the gratitude of the people is not the less strong for being silent, and if our country has a future, it will certainly not pick out its great men from among the cheered of this wretched time!"

Tengelyi bowed. The Count Maroshvölgyi shook his hand, and followed him with a deep sigh as he left the room.

"What do you say now, your Excellency?" said the secretary. "Was I not right in saying that this man's proper place is not in this county?"

"Let me tell you that his proper place is nowhere in this country," said Maroshvölgyi, as he stepped to the window to receive the serenaders.

CHAP. IX.

As the evening wore on, the streets of Dustbury were restored to their usual darkness. The lord-lieutenant had retired after supper, and everything was quiet. From the committee-rooms, where the Cortes were locked up to keep them safe from foreign influence, there proceeded a low, dreamy, murmuring sound, mixed up at intervals with a hoarse voice, shouting the name of Bantornyi, or Rety, as the case might be; but no other signs of turbulence were there to warn the stranger of that gigantic uproar which, in less than thirty hours, was to welcome the birth of the new magistracy. One of the principal causes of this strange tranquillity might have been found in the fact that the town was occupied by Bantornyi's men only, and that consequently, any general engagement of the hostile parties was quite out of the question. For the Rety party had resorted to the well-known stratagem of marching their troops, in small detachments, close up to the scene of the contest, without entering the city. They were thus secured from having their men kidnapped, and could expect that their appearance in one compact body would produce a general and striking effect in their favour.

One of their extra-mural camps was at the distance of five miles from Dustbury, at one of Rety's farms; and it is there we meet again with our old friends the three hundred noblemen of St. Vilmosh. The village inn is small. It is one of those agreeable hostelries in which the stranger, though he may not find accommodation for himself, is at times lucky enough to find a stable for his horse; nor is there any impediment to his eating a good supper if he happens to be provided with victuals, salt, plates, knives and forks. The stable and the large shed, which, save on rainy days, offered a good shelter at all times, were on this occasion filled with clean straw, and devoted to the exclusive use of the nobility. Mr. Pennahazy, the notary and leader of the St. Vilmosh volunteers, had carefully locked the gate of the yard, to prevent his men from deserting; and, having taken this necessary

precaution, he retired to the bed of the Jewish landlord, while the Jew and his family lay on the floor of the same room. The inn was as noiseless and tranquil as if no stranger were tarrying within its gates. In the bar-room alone there was a light shining from a deal table, at which two men were engaged in discussing a small flask of brandy. One of these men is the Jewish glazier to whom my readers were introduced in Tengelyi's house. His comrade, who is just in the act of lighting his pipe, has not yet figured in the pages of this story; but anybody that has visited the gaols of the county of Takshony will at once be convinced that the gentleman before him is Mr. Janosh of St. Vilmosh, alias Tzifra Jantschy; for it is not probable that he should have seen the gaol at a time when Tzifra was not in it; nor is it likely that any one who had once seen the man should ever forget him. Tzifra's character was very legibly marked on his face. His low and wrinkled forehead, his bushy eyebrows, his grey restless eyes, protruding jaws and livid face, with the frouzy grey hair and bluish, scorbutic lips, were calculated to make a strong, and by no means agreeable, impression upon any one who saw him. His sinewy limbs and powerful figure were, in the present instance, the more conspicuous from their contrast to the spare and starved form of the Jew.

"Well, well!" said the latter, shaking his head; "who could ever have supposed that you would come to the council-house without being dragged to it?"

"If a man's a nobleman, and is called to come—you see that is a fine thing! I know the lower stories of the county-house extremely well, but I must say I like the upper stories better."

"If I were in your place, I would not go, that's all. There are so many people who know you,—the turnkeys, the haiduks——"

"What the devil do I care for them? Who dares to touch a nobleman of St. Vilmosh?" cried Tzifra, striking the table with his fist. "They *shall* know me! I want them to know me; and when they see me walking in the hall, and when that confounded turnkey sees that I am a nobleman, while he's but a scurvy cur of a peasant, he'll burst with envy. No, I want to go there to make them savage; and if any of the fellows dares to look at me, by G—d I'll kick his pipe out of his mouth."

"Well!" sighed the Jew; "it's a fine thing to be a nobleman."

"So it is; d—n me, so it is! If a man's once suspected, they nab him and put him into quod, where he may wait until the gentlemen upstairs have time to think of him. Now a nobleman isailable; he goes about for two or three years; and when sentence *is* passed and they nab him, at least they dare not beat him. Oh! I tell you the franchise is a fine thing, especially as you get it dirt cheap."

"You're a devil, Tzifra!" said the Jew; "but don't let Viola know of your call at the parson's. If he were to know of it, I wouldn't change my skin with you for all your nobility, nor for your devilship either."

The robber seized his knife. "Don't laugh at me, thou dog!" cried he, "for I will be——"

The Jew jumped from his seat. A few moments afterwards he sat down again.

"Don't joke in this manner," said he; "I know you won't kill me, because I tell you of your danger. I myself heard Viola say that he will do for the man who did that job at the parson's."

"He'll never know it; or do you think that Viola suspects me?"

"No indeed, but——"

"Or do you mean to betray me?" cried the robber, again seizing his knife. "You are the only man who knows that I was at the parsonage."

"Tzifra, you are a fool!" cried the Jew. "What have I to do with Viola or with the parson; didn't I sell the roan horse for you, which you *made* beyond the Theiss? And didn't you get ten florins and a half for that same hack?"

"Yes, but you did me then; but never mind, you're born to do it—it's your nature. But don't you talk of that business—you know what I mean. Don't even tell it to your God; for otherwise Viola cannot possibly know it, and he'll be hanged before he is a month older."

"Will he, indeed!" said the Jew. "How will they do it?"

"Why, didn't they catch him the other day?" replied the robber. "He'd be done for by this time, had it not been for one of his comrades who fired the sheriff's haystacks."

"Does he owe that good turn to *you*?"

"To *me*! Can there be any one who hates him as I do? Viola was a child playing in the streets; when I came to the village with my men he used to hide behind the stove; and now, curse me! you ought to see him, how he lords it over me. If right and justice were done in this villanous world of ours, who do you think ought to lead the outlaws but I, Tzifra Jantschy, who have been their leader for many years?—I, who know every hole and corner on either side of the Theiss, and who am a greater man with the Tshikosh and Gulyash^[12] than even their masters! But the rascals wanted another man, d—n them! I found Viola amongst them!—that fellow who trembles like a woman when he sees a drop of blood! that coward who pities a weeping child! they liked him better than me, and if I had said a word they would have hanged me. He commands and I obey—but, blast me! he'll have the worst of it!"

[12] See [Note VIII](#).

"Bravo!" said the Jew, pushing the bottle over to his comrade; "it is quite ridiculous to think that Viola should presume to give his orders to a man like *you*."

"Of course, so it is!" cried the robber; "and what stupid orders his are! The other day he finds me driving a peasant's oxen from the field, and kicks up a row, and swears that I must take them back, for he wouldn't allow any of the poor people to be hurt. Last year I shot a Jew, whereupon the fool told me he'd shoot *me* if that kind of thing were to happen again. But never mind! D—n him, we'll see which of us is to be food for the ravens first! He'll feel my revenge by and by!"

"Ah, I see!" cried the Jew. "It is you, then, who told his worship the justice that Viola was coming to Tissaret."

"Confound you! hold your tongue! And suppose I *did* tell him; what next?"

"Nothing that I know of; but I know an opportunity of giving Viola a kick, and making good sum of money too."

"Halljuk!" shouted the robber.

"Silence!" cried the Jew, "you'll wake every man in the house. What did you get for that little job at the parsonage?"

"Are you at it again, you hound of a Jew?"

"Never mind. What do you say to five-and-twenty florins? I'll put you in a way to get them."

"Five-and-twenty florins? But how?"

"If you've but pluck——"

"Pluck!" repeated Tzifra, staring at his comrade.

"Well, never mind! Mark me now. The papers which you could not get the other day are at Mr. Tengelyi's."

"I am glad to hear it."

"Be quiet, will you? They are in the large iron safe, where you won't put your fingers on them, if I do not open it for you. Now, look here!"

And the Jew produced an old rag from which he took two keys. "Here they are," said he; "here are the keys, my man. I've got the key of the room too, and——"

"D—n the fellow!" cried Tzifra, grinning; "how in the devil's name did you get those keys?"

"I reconnoitred the place, saw the box, and knew it at once. Tengelyi bought it from one of our people in the market at Dustbury. He gave me the keys. The notary is at present at the election. We can do the job, and there is little danger."

"Aye!" said the robber; "let me see?"

"I won't!"

But Tzifra took the keys and put them into his pocket.

"So, now I don't want you. I can do it alone."

"Don't be a fool!" said the Jew; "what can you do with the keys?"

"Do?" cried Tzifra. "Go in and win! I'll have a hundred florins instead of five-and-twenty. I know that's the price which they offered."

"You're vastly clever, my friend. But do you happen to know the secret of the lock?"

"What is the secret?"

"Not so fast! You may wait a long while before *I* tell you."

"If you don't I——"

"Don't kick up a row. Give me the keys, and come along with me, and the five-and-twenty florins are yours. All you have to do is, to watch the house, and, in case of danger, to come to my assistance."

"But twenty-five florins! Rascal, you know you'll have a hundred, and you offer me but twenty-five!"

"But who is it that enters the house? Who got the keys? Twenty-five florins is a deal of money—it is the price of two young oxen."

"Will you give me fifty florins?"

"Impossible!" said the Jew. "The keys alone cost me no less than ten."

"Impossible? Very well. Oh! I am quite satisfied. I'll go to the election, and you may go to——"

"Give me the keys!" cried the Jew. "I'll find another man."

"Nonsense! I'll keep them. If you want another comrade, I'll leave you to find other keys."

"I'll give you forty."

"I'll be d—d if I take less than fifty."

After quarrelling for a time they struck the bargain; and the Jew, putting his hand in his pocket, paid the robber ten florins in advance.

"Now let us be off," said the Jew, "for when the leaders get up they won't let you go."

"You are right," rejoined Tzifra. "They take us to the election as they do cattle to the market."

They had scarcely left the room when the dusky face of Peti was seen to emerge from a heap of coats and cloaks. The gipsy had listened to their conversation. He left his hiding-place, stole from the room, and hastened away to St. Vilmosh.

It is now our pleasant duty to turn to a far different scene from that which we were compelled to place before our readers, any of whom, if they have ever loved, can easily guess the sensation with which Akosh mounted his horse on the eve of the election, and, leaving the streets of Dustbury, hastened to Tissaret. Night had set in, and his absence escaped observation. A dense fog covered the plain between Dustbury and Tissaret, and the

horseman found it difficult to keep on the path which led through the meadow-lands. But he did not feel the searching coldness of the night air, nor was he inclined to stop by the watch-fires of the shepherds, and to dry his clothes. He hurried on, for Etelka had promised her brother that he should meet Vilma, to whose house he now directed his course.

Strange though it may appear to the less initiated into the mysteries of the human heart, Tengelyi's influence with his family, though paramount in every other respect, was eclipsed by the superior power of their feelings; Vilma and her mother knew of young Rety's visit, and expected him with great eagerness and anxiety. Mrs. Ershebet's time and attention were indeed taken up with the cares and anxieties which fill the heart of a Hungarian housewife who is expecting and preparing for the reception of a favoured guest; but when the evening wore on, when the turkey^[13] was on the point of over-roasting, and the pastry drying up,—and when the good woman looked at the clock and saw its hands approaching to eight, she shook her head, and, looking out at the kitchen-door into the drear and misty night, she was fairly overpowered with fear.

[13] See [Note IX](#).

She went to Vilma's room, and, in order to lighten the load of anxiety which pressed upon her own heart, she commenced consoling her daughter. "I am sure he will soon be here," said she; "but the worst is, my supper will be spoilt. But do not be afraid, child. There is indeed a dense fog—you cannot see over the way—but then Akosh knows his road in the dark as well as by daylight. There are no wolves about the country now; no, indeed! and he does not care whether he rides by day or by night." And Mrs. Ershebet laughed, and appeared rather amused than otherwise by Akosh's staying away. But her words had a far different effect from what she intended. Vilma had never once thought that any misfortune *could* befall him she loved; and when her mother's words directed her attention to the possibility of an accident which might happen to Akosh, she became painfully alive to all sorts of dangers by which she fancied him surrounded.

"Good God!" cried she, "if any thing happens to him, it is I who am the cause!"

"Oh!" said Mrs. Ershebet, anxiously, "he is on good terms with the robbers, his horses are safe, he knows his way, and it is quite ridiculous to think that he should have strayed into the morasses of St. Vilmosh."

Vilma opened the window; and when she saw the thick fog, she shuddered to think that Akosh was alone on the heath. Half an hour passed amidst the greatest uneasiness; at length the sound of a horse's hoofs was heard in the distance. Mother and daughter listened anxiously, and their surprise was any thing but agreeable, when the door opened, and, instead of Akosh, the Liptaka entered the kitchen. Vilma, scarcely able to repress her tears, cried out:—

"Oh, mother! now I am sure he is lost!"

"Perhaps he has not been able to get away," said Mrs. Ershebet; "at least, not early enough. He'll come to-morrow."

"To-morrow!" cried the Liptaka: "do not tell the girl such a thing. Mr. Akosh would not stay away—nay, that he would not!—even if there were as many thunderbolts as there are drops of rain. Akosh too late! Is there a finer fellow in the county? I do not speak of the gentlemen, for it's easy to be a better man than any of them; but he beats us vulgar people, and in our own line, too. He is as strong as any that ever wore a *gatya*^[14], and he is as bold as any *szegeny legeny*^[15] in the world; and should he be afraid of darkness and rain? No, no, missie dear! any man will brave death for such a sweetheart as you are!"

[14] See [Note X](#).

[15] See [Note XI](#).

"Don't be foolish!" said Mrs. Ershebet, highly flattered; "Vilma is no man's sweetheart."

"No matter," said the Liptaka, shaking her head; "it's what we poor people call a sweetheart. But never mind; come he must and he will, though the darkness of Egypt were on the heath."

"I am sure he will come," said Vilma, trembling. "Akosh is so bold! he knows not what danger is; but it is that which frightens me. The night is dark; and how easily can he have met with an accident!"

"The night is indeed dark," replied the Liptaka, with great earnestness; "but are not God's eyes open in the darkness? Not a sparrow falls from the roof without His will, and He protects the righteous on their paths. Fear nothing, missie sweet!" added the old woman: "young Mr. Rety is in no danger. Perhaps he will suffer from the cold; but the fire of your eyes will warm him soon enough. A sorry thing it would be, indeed, if such a fellow could not manage to ride from Dustbury to Tissaret. Ay, indeed, if he were a fine gentleman, as the others are: but no! Akosh is a jewel of a lad. *I eat his soul.* [16] I suckled him when a child, and I ought to know what stuff he is made of."

[16] See [Note XII](#).

"Oh, Liptaka, I wish he were here!" whispered Vilma, while her mother walked to the other room. "I am so afraid." And the Liptaka replied in the same tone: "I, too, should be sorry to see your mother go to the kitchen. There are others who have come from a longer journey, and who dare not enter until Mr. Rety is here."

"For God's sake!" said Vilma, "is Viola here?"

The Liptaka's reply was prevented by the appearance of Akosh. To attempt a description of Vilma's joy would be a vain endeavour. No word in any language can convey to those who never felt the like, any idea of the deep, heartfelt happiness which was expressed in her gestures and face, and in the tone with which, calling out her mother's name and that of her lover, she hurried the new comer into the next room.

The old nurse left the room by the opposite door. "Now for Viola," muttered she; "for he, too, loves his wife. Why, old fool that I am! my eyes have got full of tears in looking at the children! I can't help it; but I must think of my own Jantshy, and how I loved him, and how happy we were; and now the poor fellow is buried in France. It is written, Man shall not sever what God has brought together; but, for all that, the magistrates took Jantshy from me, and made him a soldier."

She was roused from these cogitations by a low voice, calling her name.

"Who's there?" said the old woman.

"It is I! Don't you know me?"

"Peti!" cried the Liptaka. "I thought you were at Dustbury. Where do you come from?"

"For God's sake, be quiet! Is *he* here?"

"Who?—Viola?"

"Yes! Whom else could I mean?"

The Liptaka was silent, for she knew that there were false brethren in Viola's gang.

"Do you suspect *me*?" said the gipsy, impatiently. "I have been on my legs ever since yesterday; but, if *you* do not know where he is, I must run until I find him, tired though I am."

"Are you coming to see him on business?"

"I *must* talk to Viola! I *must*, I tell you!"

"Very well; come with me," said the Liptaka, moved by the plaintive voice of the gipsy: and, more than half ashamed of having suspected him, she added: "One *does* get cautious in this sad time, since there are so many rascals even among the poor people."

The notary's house was indeed the home of happiness. They say, love spoils a man's appetite; but a ride of twenty miles goes a great way to counteract at least this symptom of the complaint. Mrs. Ershebet had cause to be pleased with her guest, who, fatigued with his ride and starved with the cold, was in that lucky temper in which a man enjoys a warm room and a hot supper.

"Take another piece of this tart," said Mrs. Ershebet, when young Rety's attention to the dishes began to flag; "it is not so good as the pastry your worship is accustomed to, but it is of the best our poor house can afford. It is, perhaps, a little too brown,—for your worship came later than we expected; but it is very soft. Take some, I pray."

Akosh—who would have done any thing to escape the *peine forte et dure* of the tart, protested against Mrs. Ershebet's ceremonious address. "Am I a

stranger to you, that you should call me 'your worship?' Have you not a kinder name for me?"

Ershebet was confused; but the look which she cast at Akosh expressed so much affection and joy, that the latter, kissing her hand, continued: "Call me your Akosh! call me your son! for that is the title I covet most."

"My dear Akosh!—my son!—if you will have it so," said Mrs. Ershebet, with tears in her eyes. "You are good, you are generous, Akosh. No man in this world is so deserving of Vilma's love: and yet you can have no idea what a treasure the girl really is!"

Vilma embraced her mother, while Akosh kissed her hand; and his soul was moved as he thought of his own mother.

"Is it not too childish?" said Mrs. Ershebet, at length. "I weep with joy when I see you both, and feel the happiness which you might find in your love; but I forget how many obstacles there are between the present moment and that in which I may call you really and truly my son. Dearest child," continued Mrs. Ershebet, "you had better tell them to take the things away:" and, when Vilma had left the room, she pressed Rety's hand, and said, with a trembling voice: "Akosh! I implore you, make my child happy!"

Akosh was silent; but he pressed her hand, and his eyes filled with tears.

"You cannot know—you cannot think—how devotedly the girl loves you! and if she were deceived; if she——"

"Do you think me so mean, so utterly abandoned, as to make myself unworthy of Vilma's love?"

"No, my dear Akosh! not by any means!" said Mrs. Ershebet, with great composure. "If I did not respect you so much, surely there would be no need of this conversation; nor would I, for the first time in my life, disobey my husband's commands. I would not receive you in my house if I were not convinced of your noble and generous nature. But, Akosh, you are rich—you have a grand future before you; and it is this which makes me anxious. Look at all the great families whom you know, and tell me how many there are with whom real love and real happiness dwell? Your life offers a thousand enjoyments—a thousand temptations: it is full of purpose and

splendour; glory and popularity surround you. Have you the strength to keep your heart undivided amidst so many objects? For to be happy, Vilma wants your whole heart. The fragments of a husband's love cannot satisfy her. And besides," continued Mrs. Ershebet, when Akosh had done his best to convince her of the immutability of his love, "have you thought of all the objections which others may raise?"

"I shall be twenty-four in a few weeks, and consequently independent. My mother's property, of which I am already possessed, is enough to keep my wife and me; and if my father *were* to quarrel with me, I do not care. I prefer Vilma's love to all!"

"I believe you, dear Akosh," said Mrs. Ershebet; "but what will Tengelyi say? He is good and loving; but when he takes it into his head that something is opposed to his principles, no power on earth can make him yield."

"Except the power of love," said Akosh.

"No, not even that: Jonas never loved any thing or anybody as he does me; may God bless him for it! and still I cannot obtain any thing from him that is opposed to his convictions."

"Yes; but can it be against his principles to see his daughter happy? may we not hope for his blessing? As for *my* father, why should we despair of *his* consent? Nobody knows him better than Vandory does, and he told me over and over again that my father is sure to yield."

Mrs. Ershebet's fears were dispelled. Akosh told her that he intended to take Vilma to his new residence, in a neighbouring county, where she need not come into contact with his mother-in-law. Mrs. Ershebet, to whom he explained the whole arrangement of the house, rose up as her daughter entered, and pressed her to her heart.

"So, my children," said Mrs. Ershebet, taking Akosh and Vilma by the hand, "be true and constant in your love, and God will not allow you to be separated. You see Jonas and me; we had many difficulties to contend with; but we overcame them. Come, my dears," continued the good woman, kissing Vilma's forehead, "speak to each other now, and say all you have to say, for God knows when you will meet again."

"Vilma," said Akosh, taking the blushing girl by the hand, "your eyes were filled with tears when I came. Why did you weep?"

"Oh! you will laugh at me! I am a weak, frightened girl; we were all anxious about you; and when I saw you safe——"

"My angel, how happy you make me with your love! When I look into your eyes, and see their loving gaze fixed upon me; and when I hear your sweet voice; when I press your hand to my lips, and think that this hand is to be mine—that within a short time perhaps you are to be truly, wholly mine, I feel as in a dream, or as if some misfortune *must* happen to us, for I cannot conceive it possible for human beings to be so thoroughly happy!"

"For God's sake take care!" cried Vilma. "You are bold and careless of danger. You shun nobody; but you ought to think of *us*. My mother, too, was greatly frightened to-night."

"On account of my staying away?"

"Certainly! and on account of the fog. We thought you had met with some accident in the swamps of St. Vilmosh."

"If there are no greater dangers than those of the Dustbury road, you may be easy," replied Akosh, smiling. "There is not at present water enough in the swamps of St. Vilmosh to drown a child; and my only danger to-night was one which certainly does no credit to me—I lost my way. The fog was so dense that I was hopelessly lost; and perhaps I should still be erring in the wilderness but for the sound of hoofs, which I heard at a distance. I turned my horse in the direction of the sound; but when I approached the horseman, he went off in a gallop. I followed, and we made a race of it, in which he beat me. At last I saw a light, and found myself at the entrance of the village. I presume the man, who belonged to the village, mistook me for a robber. Thank goodness I met him, for without him I had no chance of finding my way."

"But how will you return?" said Vilma, anxiously. "My mother tells me that you intend going back this very night."

"Of course I must, unless I wish my expedition to be known at Dustbury. I have tied my horse to the garden gate. At midnight I must take to the saddle,

and the dawn of morning finds me in the council-house. But I promise you I will not lose my way this time; and—but really things cannot remain as they are! This state of uncertainty is unbearable. I will speak to your father."

"Beware!" cried Vilma. "We cannot hope for my father's consent until your father gives his."

"But I know my father will approve of my choice. I will open my heart to him. I will tell him how dearly I love you, and that I cannot be happy without you. I will tell him that to live with you is bliss; but that to live away from you is worse than hell. And if I tell him all this, asking for his blessing and nothing else, trust me he will not refuse it. Oh, Vilma! we are sure to be happy!"

Vilma did not withdraw her hand, which Akosh seized; nor did she speak to confirm her lover in his hopes; but there was a heaven of joy in the look which she cast upon him.

"Yes, Vilma, we are sure to be happy. I have spoken to your mother, and explained everything. I have a home not far from here—it was my mother's property; and my father gave it into my hands. I have had the garden put to rights. The rooms of the little house are comfortably furnished—it is there we will live. Of course your father and mother go with us."

"And Mother Liptaka," said the girl, smiling with gladness, "she is so fond of us."

"Yes, she shall go; and Vandory is sure to come often to see us."

"Oh, he is sure to come. We will get him a large arm-chair to sit in when he comes, and we will send for a glass of fresh water from the well. Oh, it will be so beautiful. And did you not say there was a garden?"

"There is a large garden, full of roses!"

"Oh, roses!" cried Vilma, clapping her hands, "and when you come back from the hunt, or from Dustbury or Tissaret, and when I hear your horse's hoofs I will come to meet you, with roses in my hair and in my hands. I will fill your room with them. Oh, happiness!"

"Vilma!" cried Akosh, seizing her hands, and covering them with kisses, "can you think—can you believe—can you dream how happy we shall be?"

Vilma withdrew her hands, and sighed. "Who knows whether all this is to be?" muttered she.

"To be?" cried Akosh, again pressing her hands to his lips, "God vouchsafes us the sight of such bliss; He gives us a deep conviction that without this bliss our life is a curse; how, then, can you doubt?"

Vilma trembled. "Akosh!" said she, "your hands are feverish. I am sure you are ill. Pray be calm."

"Oh, Vilma, do not withdraw your hand! do not treat me as you would a stranger! Call me your love—say you are mine!"

Vilma blushed.

"Oh, tell me that you love me! tell me that you will never leave me, whatsoever may happen! tell me that you are mine own!"

"Your own!" whispered Vilma; and Akosh caught the trembling girl in his arms, and his first kiss burned on her lips.

At that moment the sound of a heavy fall, followed by a stifled groan, came from the next room. There was a tramp of feet, and all was quiet again. Vilma screamed, and sprang from her lover's embrace. Mrs. Ershebet, who had been asleep in her arm-chair, rose; and Akosh, seizing a candle, hastened to the door of the apartment.

Tzifra and the Jew, who had planned to rob the notary's house in the course of the night, and whose conversation had been overheard by Peti, had no idea of young Rety's presence. When all was quiet in the village they made their way to the house. They found the door of the kitchen locked, and the windows dark, for the shutters of that one room in which there was a light were closed. The Jew placed Tzifra as a sentinel at the gate, and commenced his operations by opening the outer door of Tengelyi's room. Having effected an entry, he produced a small lamp, lighted it, and prepared to unlock the iron safe. He did indeed hear the conversation in the next room, but he continued his work with great equanimity, because he fancied

that the speakers were Mrs. Ershebet and Vandory, and because he was resolved to use his knife if they should happen to surprise him. The safe was opened. The papers and a bag of money were in his hands, and he was on his way to the door, when he felt himself seized by the throat.

"Hands off from the papers, you thief!" whispered the man who held him. The Jew thought of Tzifra; but the dying glare of the lamp, which had fallen to the floor, displayed to him the features of Viola.

When Peti informed him of the intended robbery, the outlaw hastened to the notary's house to watch it. He had no means of preventing the execution of the theft. His own life was forfeited to the law, and if he had attacked the thief before the crime was committed, the latter might have called for help, his own life would have been endangered, and the Jew might at any other time have carried out his project. Viola waited therefore until the Jew had entered the house, and sending Peti to the gate to watch Tzifra, he crept into the room, where he seized him in the act.

"Hands off the papers!" said Viola, "you're a dead man if you keep them."

Vainly did the Jew strive to shake off the iron grasp of his assailant. He tried to stab, but a blow from Viola's fist knocked him down. His fall alarmed the family. Viola took the papers and fled. Peti followed him. The Jew, still stunned from the effects of the blow which he had received, crawled through the door; and when Akosh entered he saw nothing but the open safe, a bag of money, and Viola's bunda lying on the floor.

Akosh hastened to the door. In the yard he found the Jew lying on his back and calling for help. He stooped to raise him. At that moment a shot was fired, and Akosh fell bleeding to the ground.

Ershebet and Vilma, who had followed him, screamed out. The villagers hastened to the spot, and the smith next door saw, as he left his house, a man hastening by. He raised the shout of "Murder!" and pursued the fugitive.

CHAP. X.

The late events at Tissaret had not yet transpired at Dustbury; and though Mr. Rety was any thing but pleased with his son's absence (which he ascribed to political reasons), still he looked with deep-felt satisfaction on the large crowd of his champions, who bore him to the scene of the grand national fête. Those who believe that great men are unmindful of those to whom they owe their elevation, would change their opinion if they could have seen the kind and even humble bearing of the sheriff. Nay, the wish of that enthusiastic Cortes of St. Miklosh, who held the sheriff's foot, and who repeatedly exclaimed, "What a pity that we cannot carry that dear sheriff from one year's end to another!" was not only very flattering for Mr. Rety, but, considering the position of the Cortes, it might be called a wise wish. Owing to the great number of noblemen, the scene of the election was laid in the court of the council-house. When the members of the holy crown remove their court from the hall to the yard, the arrangements of what one might call the hustings are very much the same any where, no matter whether the piece is acted on the banks of the Danube or of the Theiss. A long table of rude workmanship is usually placed before the lord-lieutenant's chair; this table is as usually covered with any odd pieces of green baize that happen to be found in the council-house. The other parts of the yard are filled with the hostile factions, and from the windows of the council-house and other high places we find the fair and tender sex looking down on the scene of the great contest, where (without the assistance of either steel or flint) the finest sparks of enthusiasm are struck from the eyes of noblemen; where the magistrates of the county are created, as the world was, out of Chaos; where the faces of so many assessors not only burn, but actually sweat for their principles; and where the patriot, in beholding the enthusiasm which causes such numbers to offer their services to the country, obtains the proud conviction that Hungary will never perish, at least not for want of functionaries.

The Dustbury election was as complete in its arrangements as the zealous care of the rival parties could make it, and there was, moreover, a company of soldiers for the express purpose of assisting the magistrates. This circumstance caused a few of the older assessors to shake their heads with an air of great wisdom. But the young men, who were children of their time,

were by no means astonished to see the bayonets, because they knew that soldiers were present at all the elections in the adjacent counties; and why should not Takshony have its soldiers as well as its betters? To cry out against the army was perfectly absurd!

The ceremonies of the election came off in due course. The lord-lieutenant addressed the assembly less (he said) for the purpose of enlightening them, than because he wished to give vent to his feelings and to those of his audience, who drowned his voice in deafening cheers. Rety too made a considerable display of oratorical talent in his farewell speech for himself and his brother magistrates; and, lastly, a provisional court was appointed for the suppression and punishment of any excesses that might be committed. This done, two deputations were sent off under the guidance of Baron Shoskuty and another magistrate in red and blue, for the purpose of collecting the votes, while the parties raised Bantornyí and Rety, and carried them—not without some mutual violence—out of the gate; the yard was left to his Excellency's private enjoyment, a benefit which he shared with three curates and an old assessor. Even the ladies, eager to attend the birth of the new magistrates, and panting for the glory of the fight, turned to the opposite side of the council-house, whence they looked down upon the battle of the vote-collecting deputations.

The council-house, which was built in the form of a square, had, besides the front gate, two more gates at the sides of the building. They were each occupied by a deputation. The front entrance was closed, and the Cortes were invited to pass through either Bantornyí's or Rety's gate, as the case might be.

The county of Takshony had lately become a convert to the ballot, principally at Tengelyi's suggestion. The sight of the preparations for carrying out one of his favorite principles would have gladdened that good man's heart. A small table was placed close to the gate and round it sat Shoskuty, Slatzanek, Kishlaki, and—for the other party too was represented—the brother of the rival candidate. At some distance two screens were placed, and between them the table with the urn. Augustin Karvay and Mr. Skinner watched the gates, to prevent the approach of any unqualified persons. Mr. Catspaw joined the last-named party as a volunteer.

The assessors lighted their pipes; the gates were flung open, and the electors entered for the purpose of secret voting. They, to a man, on seeing the deputation, shouted "Eljen Rety! Eljen Bantorny!" a shout to which the Cortes outside replied with equal fervor; and the person entering having then done his duty as a nobleman, retired behind the screens to give his vote.

"Nothing in the world so beautiful as this plan of secret voting," said Mr. James, taking his cigar and pushing off the ashes, while he shook the hand of an elector who had come up to the table with a thundering shout of "Eljen Bantorny!" "If that contrivance could be introduced in England, they would have the most perfect constitution. The ballot, the ballot for ever! that's our cry; it makes a man feel so independent!"

"All this is very well," sighed Kishlaki; "but I wish to goodness they would not go on bawling in that heathenish way. My friend," said he, interrupting one of the Cortes in his shout of "Eljen Rety!" "don't roar so loud. It's secret voting, you know!"

"Of course, so it is! Vivat the Sheriff Rety!" And he disappeared behind the screens.

"I really *do* beg your pardon," said Kishlaki, rising; "but this must be stopped. It's a mere farce, you know."

"But who *can* dictate to the feelings of our dear noble friends?" cried Shaskay; "it's natural that they should vent them at such a moment, and they do vent them, and——"

"Very well, let them give vent to their feelings; but what the deuce are the screens for? Besides, they are continually being kicked over."

Shaskay remarked that the screens were placed there by the express order of the magistrates.

"Then let the worshipful magistrates know that they have decreed the thing which cannot be done!" cried Kishlaki. "These fellows roar all the louder for being allowed to roar singly; they vie in showing the strength of their lungs. We shan't come to the end of this kind of thing; and here's a precious cold draught, let me tell you."

"But, begging your pardon," interposed Mr. James, "is there any harm in these people shouting a name? They may still give their secret vote behind the screen. *Quite independent, you know.*"

"Ay, indeed; but——"

"I say," continued Mr. James, "how the deuce can they see for whom we vote, no matter what name they may cry?"

"But the names of the two candidates are written on the urns: now if a man can't read, how is *he* to vote? I have seen ten of them at least who I know never knew a letter. Hollo, Pishta!" cried Kishlaki, stopping the man who was just walking to the screens; "do you know your letters?" And Pishta replied, with great pride, "I do not read before the Lord our God."

"But then you *can* read!" suggested Shoskuty. "You do not read because you don't choose; but you could if you would?"

"No, I never learnt it. I am none of your Slovak students; neither did my grandfather learn it in his time."

"I told you so!" cried Kishlaki, triumphantly; and addressing the Cortes, "What urn did you throw your ball in?"

"The right-hand one!" replied the Cortes, adjusting his bunda. "Any thing to please my judge. Eljen Bantorny!"

"This man came to vote for Bantorny, and you see, gentlemen, he has voted for Rety," said Kishlaki, with great satisfaction. "Now I ask whether this sort of thing is to continue?"

"It is very extraordinary!" sighed Mr. James; while Slatzanek, stroking his moustache, protested that accidents would happen.

"Accidents, indeed! let us have another look at these accidents. Can you read?"

"No."

"And you?"

"God forbid!"

"And you?"

"I learnt it when a child, but——"

"And you?"

"A little!"

Mr. Shaskay, who seemed greatly amused by these questions, and the answers which they elicited, said he hoped Mr. Kishlaki was now satisfied that the illiterate were in the majority; and James hastened to the gate, where he implored every new comer to vote for his brother. But Shoskutiy, desirous to carry out the resolution of the county magistrates, placed two assessors behind the screens for the purpose of explaining the names on the urns to the voters.

The ballot was being proceeded with on this improved and practical principle, when Tengelyi, accompanied by Kalman Kishlaki and others, approached the gate. A single look showed him the absurdity of the proceedings. "How, in the name of Heaven," said he, addressing Shoskutiy, "can you, dare you, allow this gross violation of the county law?"

"Violation!" cried Shoskutiy. "What violation? What do you mean, sir?"

"Did not the county magistrates give an order that the voting should be secret?"

"And because they gave that order, sir, we obey that order, sir! Or do you think, sir, that we sit here for the mere joke of the thing? What are the screens for, I should like to know? Secret voting, indeed! What do you call this, sir? Hasn't the draught given me a cold already? and how dare you say, sir, that I violate my instructions?"

"You cannot go on in this manner!" said Tengelyi, with great warmth; "I'll speak to the lord-lieutenant. This election is null and void."

"Hold you tongue, sir notary!" cried Slatzanek, angrily; "don't you mistake this place for one of your alehouse clubs. You may give your vote if you please, and for whom you please, but we won't be lectured, and, least of all, by the like of *you*."

"Stop, sir!" cried Kalman. "Tengelyi is right. There can be no secret voting in the presence of two people."

"I thought so too," said old Kishlaki, "but the majority——"

"Sir, I *do* pray——"

"*Rogo humillime*——"

"I say——"

"I am going to explain it!" cried Slatzanek, Shoskuty, and another assessor; but Shoskuty's shrill voice overcrowded them, and the baron said:—

"My dear young sir, I *do* pray you will consider what your honoured father was pleased to observe just now, namely, that the majority of this deputation are agreed on all the arrangements of this ballot, and that it is quite ridiculous to talk of errors or faults. And besides, are you not aware that no act is valid in Hungary without the *testimonium legale* of two magistrates? Very well, then, the gentlemen behind the screen will—if need be—prove that the Cortes gave secret votes—*absque irâ et studio*—quite independent."

Kalman laughed. Tengelyi spoke, though no one listened, of the sanctity of the laws, and the proceedings came to a stand-still. Mr. Skinner, to whom Catspaw had whispered, advanced, and, seizing Tengelyi by the collar, said, "Be off, sir; you have no business here, not being a nobleman!"

The astonishment which these few words created was prodigious. Shoskuty wrung his hands; Shaskay sighed and looked up to heaven; Slatzanek looked fierce and scornful; and old Kishlaki, who felt most for Tengelyi, exclaimed, "Did I ever!—no, I never!" Saying which he fell back into his chair.

Tengelyi's face was purple with rage; but the justice, addressing the deputation, said, "Strange though it may seem to you, gentlemen, this man is not noble; I move that he shall not be allowed to vote."

Tengelyi had meanwhile regained his self-possession. "And who," said he, "is there to prove that I am not noble?"

"*Onus probandi semper privato incumbit!*" said the recorder.

"Of course it does!" cried Shoskuty. "*Incumbit privato*, which means you must give us proof of your noble descent, or you may go and be —— for all I care. Noble descent is proved——"

The worthy baron's memory failed him, and the recorder resumed the argument.

"Have you a royal donation, sir, the 'Armales,' or have you an authentic Transsumtum, or the Statuaries with the clause 'Cum nos,' or, at least, according to Verbötzi I. 6., the receipts for the quartalitium?"

"Why," said Tengelyi, pettishly, "there is not a man in all Hungary who can give such satisfactory proofs of his noble descent as I can, but——"

"Very good sir; give them!" cried the recorder. "Perhaps you claim a prescriptive right; but that too must be proved with documents. You prove it with extracts from baptismal registers, royal grants of land—come sir, give us something of the kind!"

"My papers are in my house."

"Then bring them here. As soon as you bring those documents we will admit you to the vote," said the recorder, with a sneer.

"Of course," cried Shoskuty. "Show us your papers!"

"But I always enjoyed the privileges of a nobleman; I always paid my contributions to their rates."

"*Fraus et dolus nemini opitulatur!*" cried Shaskay. "Why did you not register your patent in the county?"

"Because no one ever doubted of my nobility," said the notary, trembling with passion. "Because I stood for a justice seat, and was actually appointed to a notariat."

"It's a good thing for a man to have his patent properly registered," said the recorder: "if you had been more cautious, you would have avoided this awkward inquiry. But your having pretended or been appointed to a post of

honor cannot decide any thing. It's not legal evidence. Are there not plenty of instances of the recorders having neglected their duties, by allowing the number of noblemen to increase in the said illegal manner, to the no slight detriment and prejudice of the tax-paying population?"

The notary found it impossible to repress the feelings of scorn which the recorder's last words called forth. "Ay, ay, sir," said he, "you are indeed a generous man. What a blessing to the tax-payers if they could always have you for an advocate!"

"Don't stand losing your time!" cried Shoskuty; "tell them to go on with the ballot, and let Mr. Tengelyi send for his documents."

"I insist on giving my vote," said Tengelyi. "A nobleman cannot lose his rights on the ground of an information; and pending the proceedings I have a right to my present position."

"Mr. Tengelyi is right," said a young solicitor; "the act of——"

"De 21 Julii 1785?" added the recorder, shaking his head. "The said bill enacts that while the inquiry on the nobility *cujuscunque* is pending, the defendant is to remain in his former position."

"Which means in the fourth estate, which is the notary's case until he procures his documents," suggested Slatzanek.

"I have always passed for a nobleman—have I not?" said Tengelyi, turning round upon Mr. Catspaw. "You ought to know, for you have known me these thirty years."

"All I can say," said the little attorney, rubbing his hands, "is that my worshipful master, the sheriff, has always treated Mr. Tengelyi as he would a nobleman; but then all the world knows that my master is a most *charitable* gentleman, though indeed he gets no thanks for his goodness. I never saw Mr. Tengelyi's documents. His patent is not registered. To tell you the truth, he came from some distant place; and there are cases in which _____"

"Knock him down! kick him out!" roared the crowd; and Karvay, whose voice was most conspicuous in the general confusion, advanced and seized

Tengelyi.

"Come on, any man who is tired of his life!" cried Kalman, taking his stand in front of the old man. "Tengelyi is my friend; and whoever touches him is a dead man, even if he had as many lives as a cat!"

The gallant Captain Karvay retreated almost as quickly as he had advanced. Kishlaky hastened to his son's side, and reminded him of his alliance with the Rety party. Baron Shoskuty spoke with great energy about the sanctity of the place; and the recorder was heard to pronounce the ominous word "Actio."

But Kalman was not the man to be either cajoled or intimidated; and old Kishlaky himself would have been at a loss to say whether he wept tears of joy or of sorrow when his generous son exclaimed:

"What alliances? what do I care for engagements? they are nothing to the duty which I owe to every honest man and to myself! I cannot, and I will not, allow anybody to be treated with injustice, if I can help it!"

"But, *domine spectabilis*, I must humbly implore you to consider that this is the council-house!" groaned Shaskay.

"Thank you for reminding me of it I!" roared Kalman. "This house—yes! it was built for the maintenance of public order and safety, and it is here that honest men are in danger of being knocked down. Men come here to seek justice, but, confound you all! they don't find it. We look for judges and find cudgels. God knows, to look at you all, one would fancy that this place is a robbers' den!"

"D—n him, he abuses us!" cried a leader of the Cortes. "He attacks the nobility. Actio! Actio!" And the crowd roared, "Actio! Actio!"

"Actio? Very well, you worshipful gentlemen!" sneered Kalman; "make it an action if you please, and put it on record that it is enough in the county of Takshony for such a fellow"—here he pointed at Mr. Skinner—"to calumniate an honest man, to rob the latter of all his rights." And flinging his ring on the table, he took Tengelyi's arm.

"Come along, dear sir. I myself will drive you to Tissaret. I promise you I will bring you back before the day is over."

The noble mob groaned, and Slatzanek said to Kishlaki, "If Mr. Kalman is not elected, you will not accuse us, I am sure." Old Kishlaki sighed.

CHAP. XI.

The notary's house was now indeed the abode of care and sorrow. Young Rety's wound was not dangerous, for only his arm was hurt; and at his own entreaty, and with Vandory's consent, he had that very night been removed to the Castle: but the theft, Vilma's state of excitement and despondency, and the consciousness of having disobeyed her husband's orders in receiving Akosh in her house,—all this plunged Mrs. Ershebet into the lowest depth of misery and remorse. The whole place was in confusion. Vilma had gone to bed; and the servants ran to and fro, scared and gossiping. Mother Liptaka was scarcely able to reply to and send away the crowd of curious inquirers who entered the house, thus adding to its confused and cheerless aspect. Vandory was the only friend the family had; and it was owing to his gentle persuasion that Vilma became gradually calmer, and that even Mrs. Ershebet mustered up some courage against her husband's return. Vandory had been sent for immediately after the accident, and he had not left the house since. He examined the safe, and ascertained the loss of his own papers and of most of Tengelyi's. He knew, therefore, the extent of his loss; but his pious confidence, and his firm conviction that God will not abandon the righteous, imparted itself to those who surrounded him, and shielded poor Ershebet from despair.

"She is asleep," said she, entering the room in which Vandory sat; "the poor girl is asleep. Oh, God! what will Jonas say when he sees her looking so pale! When he left us she was fresh and blooming; and now——"

"Vilma will be all right before Tengelyi comes home. Akosh has given orders that none of the people of the house are to go to Dustbury; you need not expect your husband until the election is over."

"Oh, I am miserable! I am ruined!"

"Now pray be calm, my dear Mrs. Ershebet," said Vandory, taking her hands. "Rety's wound is not dangerous; and the loss of the papers is not so serious a matter as you seem to think. They will be restored."

"Perhaps; but my husband's confidence—will that, too, be restored? I have lost his love, his respect—in short, I am ruined! How often did he not intreat me, 'Pray do not allow Akosh to come to our house! Do not allow him to speak to Vilma,—the girl's peace of mind and her honour are at stake!' And I promised to—but I did not obey!"

"It is a sad case; but I know Tengelyi is kind; he will pardon you: I know he will. And do not be concerned about your daughter's reputation. Vilma and Akosh are betrothed. Who knows but that his wound will be of use to him? for neither the Retys nor Jonas can oppose the marriage after this."

"Oh, these Retys!" sobbed Mrs. Ershebet.

"These Retys! dearest Mrs. Ershebet. I am afraid you take them to be worse than they really are. Rety is weak, but good and kind; and his wife——can there be any *woman* who would not, after such an event, urge her son to act the part of an honest man?"

"And to consider," said Mrs. Ershebet, "that it is Viola who did all this to us, and that we took pity on his wife and children when no one else would pity them!"

"I have my doubts whether it was Viola."

"There can be no doubt. When the Jew recovered, he told us that, passing our house on his way to his home, he saw our gate open; and, knowing that my husband was at Dustbury, he thought that something must be wrong; he entered for the purpose of inquiring whether my husband had come back. At that very moment Viola left the room with his booty; and, meeting the Jew, he knocked him down. The smith, who went in pursuit of the robber, tells me the man whom he saw was Tzifra, one of Viola's men: and the Liptaka, too, has confessed that Viola was in the village, and even in her house.—There can be no doubt.—Besides, you may ask the Jew, who is still suffering from Viola's violence."

"The Jew is a liar!" said a female voice in the room. Mrs. Ershebet and Vandory turned round, and saw Viola's wife, Susi, who had entered during the latter part of their conversation. "Ay," continued Susi, "it is I who say it. Viola did not steal in this house; he'd never do it, though he were to live for a hundred years!"

"Thank God that it is so!" said Vandory, who was loth to lose his faith in his fellow-creatures. He was happy to see the effect which Susi's words produced on Mrs. Ershebet.

"Trust me, so it is!" cried Susi. "Viola is a poor, ruined man, driven from house and home, hunted from place to place like a wild beast; but I know that he has not done this. Cut him to pieces!—tear his heart out!—you will never find him ungrateful!"

"You are right, Susi," said Mrs. Ershebet; "you are right in taking your husband's part, for you have vowed to be his own for better and for worse; and I, too, wish I could believe you; but it is in vain. Everything is against him; and—I do not mean to hurt you, my good woman; but you know your husband is a robber."

The words were repented almost as soon as spoken. Vandory said something to calm the poor woman's mind; but Susi advanced, and, leaning her arms on the table, stood with a flushed and frowning face. "Yes," said she, "Viola *is* a robber; you are right: I *am* a robber's wife. They know it in the village; they know it in the county. A reward has been offered for his capture. The very children in the streets know it. But when the Day of Judgment comes, and when God appears visibly to our eyes, with His Son at His right hand, and all the angels round him, and when He judges our crimes, do you think He will call Viola to account for being a robber? No, He will not. He will enter into judgment with those who *forced* him to be a robber—with those who punished him before he was guilty. God is just. He cares not who is rich and who is poor. He looks into our heart; and I know that Viola is pure before his God!"

The Liptaka, who entered in that moment, overheard Susi's last words. "You are right, my child," said she: "trust in God, who will not abandon you."

"Oh, you bid me trust in God!" said Susi, gloomily. "You've told me that at least a hundred times, and, indeed, what would poor people come to, if they did *not* trust in God? But when I think of our misfortunes, and when I see that we are suspected by everybody, and that the honestest people—such as the curate and Mrs. Tengelyi—believe that my husband would injure his greatest benefactors, why then, you see, my good angel leaves me, and there is a voice that whispers in my ear that there is no God for the poor!"

"Fye, Susi!" said the Liptaka. "It is written that 'it is easier for a camel to go through the eye of a needle, than for a rich man to enter into the kingdom of heaven.' The poor, of all men, ought not to doubt God's goodness, for His Son chose His disciples from among our number. And suppose Mrs. Tengelyi said bitter things, you ought to consider that she did all she could for you. The best of us are unjust when we suffer; even my own husband—may God give him eternal rest!—suspected Peti, the gipsy, when they stole our cow. Bear your cross humbly with your Saviour."

"Aye, but He was the Son of God! and I am but a sinful child; and besides, can you, can anybody know what I have suffered? I was a poor orphan. My father and mother died when I was a child, and if you had not taken me to your house, I'd have perished, as many children do who have no mother to take care of them. But you, God bless you! brought me up, and there wasn't a merrier girl in the village than I was. O, though my sweet mother died when I was born, yet you loved me as much as she would have done, I'm sure!"

Vandory and Ershebet were silent; the eyes of the Liptaka filled with tears.

"Yes, I was a merry girl!" said Susi. "I didn't think I could be happier, and I thanked God for my happiness. But this was not all. It is since I knew Viola that I know what it is to have a heaven on earth. At first I did not think that a man such as he could love me. Viola was wealthy. He had inherited a fine farm from his father. Next to the notary's, his house was the finest in the village; he had splendid cattle,—how then could I, poor orphan, expect him to love me? When I was reaping the harvest in the field, and he stopped by my side, with his four beasts, and helped me to tie up the corn,—or at the Theiss, when he filled my pails,—or at weddings, when he brought me bunches of rosemary, I said to myself, 'Viola is good, ay, very good and

kind;' but I never thought that he would marry me, and I prayed that such proud thoughts might be kept out of my mind. But when he called at Christmas, and asked me whether I loved him, and when I did not reply to that, but looked down, and he took me in his arms and said that he would marry me in the spring, oh! it was then I felt giddy with happiness, and I fancied the angels of heaven must envy my joy!"

"Poor, poor woman!" said Mrs. Ershebet, drying her tears.

"A proud woman I was then!" cried Susi, "ay! a proud woman indeed, and a happy one! The whole world seemed to me one large marriage feast; my happiness took away my breath, and I could have wept at any moment. But that was nothing to my happiness in my husband's house, and when our first child was born, and we had to take care of our little Pishta. Oh! and God blessed our house and our fields; and our cattle were healthy, and our wheat was the finest in the county. There's many a bride enters her husband's house with a happy heart; but I, proud woman, thought each day more blessed than the last, nor did I ever think of my wedding-day, I was so happy!"

Her heart was oppressed with the reminiscences of the past. For some moments she did not speak; and when she continued, it was with a hoarse and low voice, as though that breast of hers had not breath enough to tell the tale of her woe.

"And then, you see," said she, "it breaks my heart to think that all is lost now. We were not overbearing in our happiness. We never offended anybody. My husband paid his taxes and rates, and served his fifty-two robot-days; he was kind to the poor—ay, very good and kind, for God had blessed us. He was wealthy; but then he was but a peasant, and among the gentry there were those that hated him. The attorney—may the Lord find him!" said Susi, shaking her fist, "*he* hated my husband, for he was the speaker of the other peasants when they had a complaint to make. And the justice too swore he'd have his revenge, for he wanted to go after me; but I, as an honest woman, told him to leave my house, as it was my duty to do. I was always anxious lest something might come of it, though my husband told me we had no reason to fear either the attorney or the justice, so long as he did his duty. But the gentry plot together, and a poor man's innocence

cannot protect him from their revenge. It's now two years since I was brought to bed with a little daughter. Early that morning I was in a bad way:—my husband was with me, and so were you, Liptaka, when the attorney sent to us—I think the midwife had told him about the way I was in—to order Viola to take four horses to the Castle, and drive my lady to Dustbury. My husband spoke to the haiduk; he said he could not go that day, and that his horses had done more service that year than those of any of the other peasants; but that he would be glad to go any other day. And we thought all was well; but the haiduk came back, saying that my husband must do his duty, and that he *must* come, for that he had the best horses in the village. Viola was angry, but I entreated him to send the servant with the horses, which he did, though reluctantly, because he did not like to trust them with a stranger. But my travail had just begun, when the haiduk came back with the servant, saying that Viola must come, for my lady was afraid of anybody else driving. And Viola saw my sufferings, and knew that I wanted him to be near me; he said they might do as they pleased, it was enough that he had sent the horses, and he wouldn't stir from the spot—no! not for the king's own son. But the haiduk said, he'd do the same if it was his own case; yet, for all that, he would advise my husband to go, considering that the justice was at the Castle, who had sworn an oath that he'd have him brought up per force; so he'd better look to the end of it. Now my husband *is* violent, and at times obstinate; he sent word to the justice that he had done his robot for that year, and he wouldn't go to save his soul from perdition. The haiduk went away, and after that I know not what happened, for I got so faint I could neither hear nor see; but the neighbours and the Liptaka tell me that the justice came with his men, cursing and abusing Viola, whom they bound, while I lay bereft of my senses, and dragged him to the Castle!"

"It's quite true!" cried the Liptaka; "yes! it's quite true. I followed them as they led Viola away. It was a fearful sight, I tell you; he refused to walk, and cast himself on the ground; he was so angry! and Mr. Skinner dragged him away as you would a pig. Every body was horrified, and all the people from the village wept and followed them, though none dared to help him. But we wept in our minds, and murmured when they beat him, poor innocent fellow! because he would not walk—for beat him they did with sticks and fokosh, while the judge walked along with many fearful oaths and threats. And when we came to the house, the justice examined the

haiduk before us, asking him whether he had been at Viola's, and told him that he was summoned to service, and what Viola had said, and Lord knows what besides! and at last he said, 'I'll tie you up for it, my fine fellow!' and sent for the deresh^[17]; for he said, 'I'll serve you out for contempt of the county.' And he said, 'Lash him to the deresh.' Now Viola stood among the Pandurs; and though I were to live a hundred years, I'd never forget what a sight it was when he stood in the yard, with his head and face covered with blood, and his lips blue with biting them! They had untied his hands to lash him down; and when he was in the yard, he tore away from the haiduks and made a leap like a lion, shouting, 'Stand back, every man of you!' And they stood back; but that incarnate devil, Skinner, cursed them, and swore he'd kill them if they did not tie him down. They made a rush to seize him. But Viola caught up an axe which had been used for woodcutting, and which the devil put in his way. He seized the axe and spun it round, and two of the fellows fell weltering in their blood. Oh! and he raised the bloody axe, and rushing through them, he ran home, got a horse, and rode off to the St. Vilmosh forest. One of the men he had struck died of his wounds, and Viola has been an outlaw ever since."

[17] See [Note XIII](#).

"And a robber ever since that day!" cried Susi, wringing her hands. "May God bless you, Mrs. Tengelyi, for what you did for me and my poor children! I'll go now and try to find my husband. If he knows aught of the stolen things, or if he can trace them, you need not fear: Mr. Tengelyi shall not lose his property."

"What are you about?" said Mrs. Ershebet; "do you think I will let you go in this way?"

"Don't be afraid!" cried Susi, with a bitter smile. "I'm sure to come back! I leave you my children; and though I *am* a robber's wife, trust me, I'll never leave my children."

"I did not mean *that*, Susi," replied Mrs. Ershebet, holding out her hand; "but you are still in bad health, and to walk about in this cold weather cannot be good for you."

"Thank you, but I'm pretty well now. The air of the heath will do me good. But stay here I cannot. You suspect Viola; I know you do. The Jew accuses him, and so do others. He was in the village—there's no denying that! His bunda has been found in this room. Everything is against him, and people cannot know that it was quite impossible for him to do that of which they accuse him. It's a dark matter, but I will have it cleared up. I'd die if I were to remain here and listen to all the horrid things they are sure to speak of my husband." And Susi turned to leave the room.

"Poor woman!" sighed Mrs. Ershebet. "She, at least, deserves a better fate!"

Susi had reached the door, but when she heard these words she turned round and cried. "A better fate? Trust me, if I were to be born again, and if I were to know all that has happened to Viola, still I would not have another husband. If they hang him, I'll sit down under the gallows, thanking God that I was his wife. There is not such another heart on the earth as his. But, adieu! and may God bless you!"

"I am sure," said Vandory, looking after her, "that Viola had no hand in this matter. A man who goes on for eight years loving his wife in this manner cannot act meanly and disgracefully!"

He had scarcely said these words when Tengelyi entered the room, exclaiming, "Is it true that there has been a robbery committed here?"

"Only the safe was forced open," replied Mrs. Ershebet, trembling; "the other parts of——"

"The safe? Give me the keys! Where are the keys?"

"I dare say they are in your desk. But the safe is open."

Tengelyi hastened up to the place, and throwing open the lid, he bent down and turned the papers about, while his wife and Vandory stood by silent and anxious. The fearful contraction of his features showed them the extent of his loss. At length he rose, and throwing himself back in his chair, he covered his face with his hands. "I am lost!" muttered he. "My papers are gone—I am a ruined man!"

Mrs. Ershebet and Vandory did all in their power to take off the first sharp edge of his sorrow; but what they said was unheeded by him.

"Right? It's all right," said Tengelyi; "the papers only are lost, are they? Oh! I know it. You found the money all safe—it lay here close to the door—did it not? But do you know, woman, that we are no longer noble! We and our children are not noble! We are peasants!—things to be despised, to be kicked, to be trodden under foot, things that have no property, and that can have no merits, things like those which inhabit the hovels around us. They are not aliens, because they were born here; but still they have no rights, no property, and no country!" And, turning to Vandory, the notary told him all that had happened at Dustbury; adding, "Now you know it all. They ask for proofs of my noble descent. I came from another county; my father, in his position as a curate, had little cause to care for his nobility; nobody ever doubted my rights, and I thought it was quite superfluous to have my title proclaimed in this county; and now my papers and patents are lost! Alas! my poor son!"

"Jonas," said Vandory, "you know that I too have had a loss. You know the extent of that loss, and how likely it is to affect those things which I care most about in this world. You understand me! But let us place our trust in God."

"You have no children! Is there any son of yours the worse off for what you have lost?"

"I understand you, and believe me I feel for you. My sympathy would certainly be greater, if you were indeed deprived of your rights as a nobleman. But is there no hope? Those papers are of no use to him who stole them. He will send and ask a certain price for them. But suppose he did not, cannot you prove that your papers were stolen, and that you and your father enjoyed all the privileges of nobility? Besides, you can make an appeal to the king's grace."

"The king's grace for *me*, a poor village notary?"

"Why not? If we do not find your papers, I myself will go to Vienna. I will kneel before the king's majesty, and state the case to him. The county is sure to send a petition, and I'll tell the king that you have a family, and that you

are wretched for their sake. God has made the king so rich and so powerful—he has surely given him a feeling heart, and a sense of pity and compassion for those that suffer."

"Friend," said Tengelyi, impatiently, "you are as mad as any optimist I ever met with. The county, you say, is sure to petition in my favour? Don't you see that there is a purpose in this robbery?—that it is part of a plot to ruin me? and of a plot, too, which those very gentlemen have made who, you fondly believe, are sure to petition in my favour? Or do you think it's chance that my noble descent, which no one ever doubted, is publicly denied at the very time that my papers are stolen? Or was the composition of the commission accidental? Or was it an accident that no one told me I should be called upon to prove my nobility? Is all this mere chance and accident? Oh! you would not say so, if you had seen that fellow Catspaw as he stood by the table sneering at me! I am a victim to their diabolical plots! Viola is but their tool. I'm down, never to rise again!"

"For God's sake, Jonas!" cried Mrs. Ershebet, seizing her husband's hand; "my heart is ready to break when I see you thus desponding. Think of the past!—think of all our sorrows and troubles!—did we not often all but despair, when——"

Tengelyi's face bore the impress of the deepest agony. He pressed his wife's hand, and asked with a low and tremulous voice,—"What is it that has happened to Vilma?"

Her cheek grew pale, and her voice failed her.

"Ershebet!" gasped the notary; "what has become of my daughter?"

But Ershebet, scared by the expression of his face, was silent. Vandory searched vainly for words to inform his friend of what had happened.

"I see!" said Tengelyi, pushing back her hand, which trembled in his. "They told me the truth—nothing but the truth! My daughter's honour is lost!"

Ershebet wept. Vandory said all he could say. He talked of young Rety's honourable intentions,—of the love of young people,—and that it was quite ridiculous to think of any violation of honour. Tengelyi stood pale and stern. His lips moved, but they had not a word of comfort for Mrs. Ershebet.

"Of course," murmured he, with a bitter smile,—"of course it's all arranged—it's all for the best;—no doubt of it;—I am to have back my nobility, and my daughter her honour. You, Vandory, you go to Vienna, and his majesty gives us all we demand. The king indeed is a fountain of honour, but do you think he can patch up a woman's reputation?"

Again Vandory attempted to demonstrate that there was no reason why Akosh should not have met Vilma in her mother's presence, and that he had sought the house with truly honourable intentions.

"But did he come to the house as an honourable man would?" asked Tengelyi; "did he not leave Dustbury in secret and in the dead of the night? Did he not tie his horse to the garden gate and creep to my house just for all the world as if he were a thief? After this, who will be fool enough to believe in his honourable intentions?"

"The future will prove them," said Vandory, quietly. "Who will dare to speak against Vilma when she changes her name to Rety?"

"When she changes her name to Rety—that's it! isn't it, wife?" said Tengelyi, turning fiercely upon Ershebet; "and it is you who wish it, and it is you who I dare say are happy that things have happened as they did, and that Akosh is bound. But are you aware that you have worked your daughter's ruin? Are you aware that she will curse you for having sacrificed her happiness to your vanity? Is my daughter to be Lady Rety because she is dishonoured? because you have got Akosh in a corner. They'll scorn her in her husband's house! She will have no position, having lost the one which became her! She will be a slave! a wife by her husband's charity! To see her will remind him of his having been *bound* to marry her, but not of the love which made her his. I tell you, you have ruined your own child!"

Ershebet wept.

"Weep, wretched woman, weep!" continued Tengelyi, "though your tears cannot atone for your offence. Was there ever a better child, or one more loving? and see what you have made of her! She was my pride; my heart became young when I saw her. I forgot the past. I might almost have loved mankind, because *she* was of their kind, and because they praised her. But

now I must blush when her name is mentioned. I dare not raise my eyes, and am a criminal for no crime of my own!"

"For God's sake, pity me!" cried Mrs. Ershebet; "if you love me,—if you ever *did* love me, pity me!"

"If I ever *did* love you? God knows that I did! Did I ever speak an unkind word to you? did I not listen to your wishes? did I not tell you all my thoughts? and how did you requite me for all this love? I entreated you not to receive young Rety in my house, and you promised it, and, at that very moment, you thought of deceiving me. Akosh knew the day on which my command was to be infringed! You taught your daughter to deceive me. You waited for your guest in my absence. You trembled at the thought of my approach! This is what you did for all my love!"

"God sees my heart, Jonas. He knows that I do not deserve this!"

"Silence! don't speak to me unless you wish me to curse the day on which I led you to the altar and brought you to this house!"

His violent speech was interrupted by Vilma, who, rushing into the room, threw herself at his feet.

"Father!" cried she.

He stood still. He looked at his daughter, and felt that his heart was indeed broken. All his passion was softened into grief. The hand which he had raised for a curse dropped, and rested on the head of his child.

"Can you pardon your own Vilma?" said the girl.

"Come to my heart!" cried Tengelyi, clasping her in his arms. He wept.

CHAP. XII.

Young Rety's wound, as we have already stated, was by no means dangerous, the bullet having passed through his left arm without touching

the bone. Indeed the young man was more than half ashamed of having fainted, though but for a moment, in consequence of so slight a wound. But the surgeon, who had been sent for from St. Vilmosh, and Vandory, insisted on his going to bed, on account of the fever which they expected to follow. We find Akosh Rety laid up and out of temper. Kalman was smoking his cigar by the bed; and Janosh, the old servant, was busy with sundry wet towels, which were being placed on the injured limb. Young Rety's rooms were large and comfortable. Papers and books lay on the tables, and the walls were hung with portraits of famous Englishmen, and of still more famous English horses; guns, swords, foils, and whips were heaped up in a corner, and a few foxes' brushes and ears showed that the former objects were not only ornamental, but also useful. Of course there was no lack of pipes, tobacco, and cigars; in short, the room was a perfect bachelor's snuggerly, even without the sofas and lounging chairs, which form so necessary, and, let us say, comfortable a feature in the *entourage* of a young Hungarian. But in spite of all these comforts, which were materially heightened by the bright fire in the grate, the two young men were sadly out of spirits. So much had happened since Akosh left Dustbury! Misfortune had sought him in the midst of his happiness; and Kalman, though far from regretting his defence of Tengelyi, felt that he had given fresh cause of offence to the Retys, and thus created another barrier between himself and Etelka. Janosh alone seemed to be in good spirits. He made his spurs jingle as he walked about the room in the discharge of his domestic duties; nor did his young master's moodiness affect him.

"I say, sir," said he at length, as he removed the bandages from Rety's arm.

"Take care! mind my arm!" cried Akosh.

"I am an old donkey!" said Janosh. "I always hurt you!"

"Never mind. I am sure it does not hurt me now. Don't fret, Janosh; and tell me what you were going to say."

"Oh, I was going to tell you, sir, that the weather is very bad."

"Indeed!" said Akosh.

"Yes, sir; and the potatoes which they are lifting to-day are done for. They won't be good enough for the pigs to eat."

"Indeed!"

"Ay! and I hope none of the gentlemen will hunt on our fields. It will spoil the crops. But," said Janosh, brightening up as if a sudden thought had struck him, "I do beg and entreat you, sir, don't grieve at it."

"At what?" said Akosh, astonished.

"Don't be sulky at the wound. It's a mere trifle. I can't say it does one good; no, indeed, I myself had a taste of it in the battle of Leipzig, and afterwards in France. But it doesn't do harm noways. You see there are no bones broken."

"Why, you old fool! you don't think, surely, I fret about my wound?"

"What else have you to grieve for?" said the hussar. "I know that you gentlemen feel every thing worse than we do. When we were on the march, our young gentlemen were as delicate as ladies. They lamented and cried out at the least hurt, and some of them were always a-going to the hospital. But they got used to it; ay, indeed they did, sir. We are all equal in war; and bullets and sabres have no respect for gentle flesh and blood. Officers and men must do with little food or none, as the case may be; and when they get something to eat, they share it like brethren. You'd never believe it, sir, what doings there are in war."

Akosh smiled; but his face regained the whole of its former gloom as he said, "Believe me, Janosh, were it but for this trifling wound, I should not be sad. There are other sorrows to——"

"Other sorrows—ay, so there are! How could I possibly forget it?" replied the old hussar, with a broad grin, for the purpose of making his master understand that his sorrows were known and appreciated—"isn't it about the notary's little Vilma? Oh! I know all about it. It's the same with love as with new tobacco, which makes your eyes run with tears from the mere looking at it. But do you know, sir, what I'd do if I were in your place?"

"What is that?"

"Why, to tell you the truth, I'd marry her."

"You big fool! So I would if *I* had the last word to say in the matter."

"But who else has?" said the old man, shaking his head. "You won't be a cripple, sir, from this here little wound; and I am sure Vilma wouldn't take a man with three hands to your one. I'll be a cat, if Vilma will ever be any other man's wife than yours!" Saying which, he left the room, shaking his head and muttering.

"The old fellow has hit the mark," said Kalman. "You are in no danger of losing Vilma's love. You have no cause for sorrow."

"Nor do I grieve on that account," replied Akosh, energetically; "Vilma's love is not so lightly lost as all that. But I am anxious in my mind because I'm uncertain about her future and mine."

"You're not accustomed to lie in bed. It makes you fanciful," said Kalman.

"No, I tell you, no! Never was man more inclined to look at the bright side of things than I am. I beat Vandory hollow; and in his own line too. But ever since that accident happened to me, I am altogether altered. My mind is filled with dark thoughts and bodings. I feel as if the hand of fate were upon me, and I would fain flee if I knew but whither."

"You've lost a precious deal of blood."

"No, it's not that!" said Akosh, shaking his head. "When I pressed Vilma to me, when I felt the beating of her heart, and when I was more happy than I ever thought it possible in my nature to be, it was then, Kalman, the thought struck me, whether this was not my last joy, as it was my greatest. Hitherto my thoughts of Vilma were all of hope; but since I was thus rudely waked from my dream of bliss, I have examined my position more narrowly. I cannot say that it gives me much comfort. A man cannot make his wife happy unless he places her in a proper position, in which she can respect herself and claim the respect of others. If he fails in that, the utmost he can do is to share her grief, and become a partner of her sorrows; but he will never come to make her happy. Now that's *my* case. Vilma's father is at daggers-drawn with my parents."

Kalman sighed.

"Can I hope for my parents' consent? I don't mean a mere formal consent, which people give because they cannot help it, but a real, ready, hearty

blessing, for it is that which I want for Vilma's happiness. Love scorns sufferance; it asks for sympathy; and if that is denied it, and from one's nearest relations too, my heart is lonely in spite of all love; though it may cling to the beloved object, it is in sorrow, not in joy. Mutual love is enough for bliss; but for that quiet happiness which we look for in marriage, a great deal more is wanted than two mere loving hearts."

"I don't deny it," said Kalman; "but time works wonders, let me tell you. At present the old people have indeed a cordial, ay, a *fraternal* hate against each other. Only think; when the Jew told Tengelyi that his papers were gone, the notary was at once struck with the curious coincidence (for *curious* it was) of his noble descent being put in question at the very moment of the theft. He spoke of a deep laid plan, of a plot, the prime mover of which was——"

"Not my Father!" cried Akosh, anxiously.

"No, not exactly; besides, he is aware of my position in your family. But he talked of our friend Mr. Catspaw, whom, as I take it, he thinks but a tool in the hands of a third person."

"My father is incapable of such a thing!"

"Perhaps the notary does not suspect him so much as he does your step-mother. He had much to say about the other robbery which they attempted at the curate's, when the thieves, it appears, were likewise after papers, for they touched none of the things in the room, but opened the drawer in which Vandory kept his papers. Those papers have since been removed to Tengelyi's house; and the notary told me over and over again he was sure the two robberies were done by one and the same hand, and planned by the same head. By the bye," said Kalman after a pause, "do you happen to know any thing of Vandory's papers?"

"Who, I? Of course not. I've often wondered what important papers Vandory must have, since it seems there *are* people who wish to steal them."

"I understand," whispered young Kishlaki, "that his papers have something to do with your family."

"With *my* family?"

"Ay, you know your father had an elder brother by your grandfather's first wife. His second wife, your own grandmother, made the poor boy's life miserable."

"Yes, and he ran away!" said Akosh. "They told me all about it. It strikes me second wives don't do in the Rety family. But what connection is there between all this and Vandory's papers?"

"I understand that that poor fellow, your uncle, went to Germany, probably to some university; for he was seventeen when he ran away, and a good scholar, they say. Now I am told that Vandory knew your uncle, and that he still knows of his whereabouts; and, in short, that the papers refer to your lost uncle Rety."

"This is indeed strange!" said Akosh.

"You know how people *will* talk. Your father's friendship for Vandory, and the curate's power over him, which is even greater than his wife's influence, and a thousand other things, have made people believe that he must have some means of acting upon your father; yes, that he knows of something which it would not be convenient to tell to everybody; and since the attempted robbery, there is not a blockhead in the county but swears that there is something wrong somewhere."

"All I can say is, that this is a strange thing. Here we have two robberies in less than two months, evidently for the purpose of obtaining the papers; but then——"

Here the conversation was interrupted by Janosh, who entered with the surgeon of St. Vilmosh.

"There, sir! there's some ice to put on your arm, and here's the *sawbones*. Hell put things to right in no time."

The little man who was thus unceremoniously introduced as a "sawbones," cast an angry look at the hussar, walked up to his patient, examined the wound, and expressed his satisfaction with its appearance and condition; while Janosh, who always lost his temper when he saw anybody but himself

administering to his master's comforts, gnashed his teeth, grumbling and discontented. He was wrong; for Mr. Sherer, a Magyar of German extraction, who had successively exercised and failed in the various callings of shoemaker and barber, and who had become a surgeon by dint of great boldness, and by the grace of a rich widow, who had lent him money to pay for his diploma, was deserving of any thing but indignation. On the contrary, he was a very amiable man, who, during the sixteen years he had lived at St. Vilmosh, had never given occasion for the slightest complaint to those who, like Janosh, had never been ill.

"A nice wound! very nice! Yes, on my honour, pretty indeed!" said Sherer. "On my word of honour, I never saw a prettier wound in my life."

"I wish you'd been in the wars," murmured Janosh, "you'd have seen something like wounds, I tell you!"

"What do you know about it?" replied Sherer, "you'd value a wound by its size. Now, on my word and honour, a large wound is not at all nice."

"No, indeed not. But a small wound is; one that heals without troubling the sawbones."

Doctor Sherer (for by that title he loved to be called) turned away and asked:

"How has it pleased you to sleep, sir?"

"Very well."

"And how do you feel?"

"Quite well."

"You don't feel excited?"

"Oh no! not by any means."

"Ay, perfect apirexy, which means want of fever?"

"I should say so."

"Perhaps you have some appetite?"

"Yes, I have."

"Did I not tell you so? Almond milk works wonders in such cases!"

Akosh smiled.

"Nobody can think what healing powers there are in almond milk. You are quite well, eh? quite comfortable?"

"Yes, I am."

"On my word and honour, I am sorry they did not call me sooner! I would have bled you."

"Why should you, since my master is well?"

"Hold your tongue! On my word and—— I tell you that phlebotomy works wonders in such cases."

"The homœopathists never bleed people," said Akosh, with a degree of gravity which Kalman vainly attempted to imitate, when he saw the effect these words had upon the doctor.

"Homœopathists!" cried that learned person, with a grin of rage. "Well, and what do *they* do? do they give you emetics, tonics, and hot medicines? Did any of them ever give you jalappa, bark, antispasmodic, antiphlogistic, antirheumatic, and aromatic medicines? Cardus benedictus, Rhabarbara, Tartarus, Sal mirabile Glauberi?"

"Stop!" cried Kalman. "I am as sick as a dog!"

"Who ever heard of a homœopathist blistering or putting any other plaster on you? I'll not talk of poultices, issues, cupping, and hot baths. On my word and honour, what's a doctor good for if he can't even give you a paltry black draught, Elixirum Viennense?"

"True, doctor," said Akosh; "a patient, if treated homœopathically, must do without a multitude of enjoyments. The healing art ought, above all,——"

"To heal!" interrupted Sherer; "and it's the doctor's duty to try every drug at the chemist's, and to call other medical men to a consultation, until his patient's recovery——"

"Or death!" said Kalman.

"Bravo!" cried Janosh.

"Or death?" shrieked Doctor Sherer, highly disgusted. "On my word and honour, I tell you, gentlemen, a really good doctor saves nine patients out of ten; and if the tenth dies, why so much the worse, for I am sure *he* suffered from an old complaint, or he applied for advice when no doctor could do him good. But suppose the patient were to die, sir; can that circumstance, trifling I may call it, relieve the doctor from his duty to give him everything which the professors teach at the university? On my word and honour, sir! answer me that, sir, if you can!"

"Oh, I can't. But the homœopathists too have their medicines, and cure their patients."

"Of course they do," sneered the doctor; "but then Nature does it for them. Nature works wonders in many cases."

"But what does that signify if the patient recovers?"

"Yes, sir, it does matter. If you don't help Nature, it will over-exert itself, and do more harm than good."

"But when your patients get well, who knows whether Nature or you did it?"

"We, sir; we do; we who have been at the university for not less than five years, where our professors have told us that a patient will not recover unless we give him certain medicines. Those ignoramuses who know nothing of science, those homœopathists who know neither chemistry nor mineralogy, nor anthropophagy—anthropology I meant to say, they are always at their old tricks. Whenever we make a brilliant cure, they say that Nature has done it. But we know better! Why, on my word and honour, of what use would our studies at Pesth have been, if we did not know so much as that?"

"Certainly!" said Akosh. "What's the use of learning so many things if you know no more than anybody else?"

"True, sir; and catch a homœopathist with a bad case!" cried Sherer. "What does he do? He calls in an allopathist, as happened in the case of the old advocate at Dustbury."

"He died three days after he had fallen into the hands of the county physician," said Kalman. "I talked to the doctor who treated him first, and he told me that, seeing that the case was hopeless, and that the poor man's sufferings were great, he called in the county physician to finish him. The doctors of your class despatch people so quickly, you know."

This attack proved too strong for the surgeon's temper. He was convinced of the usefulness of his science, for that science gave him, as district surgeon, an annual income of three hundred florins, with the use of a house, not to mention fees, which were considerable. What Kalman said was to him worse than blasphemy; and unbounded were the disgust and scorn expressed in all his features, when he saw Janosh, radiant with joy, notifying his unqualified assent to, and approbation of, the jokes of young Kishlaki.

"Now is there a single grain of sense in all the doings of the homœopathists?" said he at length. "Suppose a man is ill. Suppose he has eaten a large quantity of Tarhonya, and he can't digest it. Now what does a homœopathist give him? On my honour and conscience, what else but the millionth part of a drop of camomile oil? Now all I want to know is, how you make it out? A large dish of Tarhonya and——"

"Of course," cried Kalman; "but I can't understand why bark should cure me when I have the fever from stuffing myself with cake or cabbage?"

"I don't see how you should understand it," said the surgeon, with a smile of conscious superiority. "You are ignorant of the science of medicine. But, on my word and honour, it's the simplest thing in nature! Bark has got a certain secret power against the fever; nothing more natural than this. God has made bark for us to cure the fever with."

"But why did not God, when he created sausages and cabbages in this country, which you know give us the fever, create bark likewise, since it's rather a long way from here to China?"

"All you can do is to talk!" said Mr. Sherer, shaking his head; "we cannot possibly converse with you on scientific subjects. But, now I'm sure, nobody will deny, that if a small dose can have any effect, the effect of a large dose must be still greater. If, therefore, the millionth part of a drop of camomile can do any good, *I* must do my patients more good still, because I give them three large cups of camomile tea; and this, after all, is the truth, for camomile tea, if you administer it in large quantities, works wonders."

"Why," said Kalman, "much depends on the quantity, I grant; but much depends likewise on the manner in which you administer the dose. Now Doctor, for instance, you may sit on a bundle of sticks, say for two hours and longer, without feeling greatly incommoded by the operation. But suppose a *single* stick be taken from the bundle, placed in the hand of—say of Janosh—and applied in a certain manner of his own, to a certain part of your own; I think, though the whole bundle did not cause any disagreeable sensations, yet the single stick—How do *you* think it would act, Janosh?" continued Kalman, turning to the hussar, who laughed immoderately.

"My opinion is, that it is all the same with the homœopathy and the—I forget how you call it; but faith, it matters very little! Our lives are in God's hands, and when a man's last day is not come, he won't die though you were to call in a hundred doctors."

There is no saying what Doctor Sherer would have said or done, (for he looked *bistouris* at the impertinent hussar,) had not Lady Rety entered the room and interrupted the conversation. No sooner did the man of science see her, than he hastened to kiss her hands, pouring forth a long speech about cold water and ice, almond milk, camomile tea, and the wonderful effects of each and all of these invaluable medicines.

Lady Rety was rather ill-tempered, and she showed it to the surgeon as well as to Kalman, who received her with a low bow. But Akosh had always great influence with his step-mother, and even now she treated him, if not kindly, at least with politeness. Sitting down by his bed-side, she asked him, with a great show of interest, how he felt.

Doctor Sherer and Janosh left the room. Kalman saw that his society was not wanted; he went to the other end of the room, opened the window, and looked down upon the garden. Lady Rety looked at Akosh. "Now you see,"

said she, with a low voice, "what comes of your running after women, instead of doing your duty at the election."

Akosh blushed, and said nothing.

"You need not blush. Vilma is pretty and——"

"My lady!"

But Lady Rety continued in the same tone.

"Vilma, I say, is a pretty woman; and as for you, young man, it would be too hard upon you if we would quarrel with you for taking what is freely offered. If the young woman does not care for her honour, why should you?"

"My lady!" said Akosh; "I entreat you, do not speak in this tone! Vilma _____"

"Is a pretty woman," said the lady, with a sneer; "she is less correct than I thought she was, but that's her mother's affair, not mine. They over-educate these girls, and put strange fancies into their heads. Tengelyi ought to have known that such an education is not fit for a notary's daughter."

"Vilma is my betrothed," replied Akosh, who struggled manfully to keep his temper.

"Indeed?" said his step-mother, with a forced smile. "Pray how many *fiancées* has your sultanship got?"

"She is the first," said Akosh, calmly, "and, I swear it, she shall be my last."

Lady Rety cast her eyes down, and was silent.

"You talk wildly," said she at length, with her former gracious smile. "Only think, Vilma to be a Lady Rety, and after such a scene!"

"Vilma being, as I told you, my betrothed, there is nothing extraordinary in the whole occurrence."

"My father used to say to my brother, 'Whenever you marry, pray don't take a woman who prefers you to her honour; for such a woman is likely to

prefer another man to her husband."

Akosh frowned. "I entreat you, don't rail at your own sex, by speaking in this manner of a virtuous girl."

"Of course she is a virtuous girl. Master Akosh says it, and he ought to know!"

"Do as you please! Why should you not be allowed to talk of your daughter-in-law in any terms you like best?"

"My daughter-in-law! Are you aware that Tengelyi's noble descent is a matter of doubt?"

"I know it; but when Vilma is my wife she does not want any proofs of nobility. To tell you the truth, that is another reason for me to marry her."

"Tengelyi protests that he has papers by which he can prove his descent _____"

"He *had* the papers, but they are gone. The Tengelyis have no one to rely on but me!"

"But I understand," said Lady Rety, anxiously, "that the robbery did not take place,—that the robber did not get the papers."

"On the contrary," replied Akosh, watching her emotion; "they left the money, and took the papers."

Strive as she would, Lady Rety's face was radiant with joy.

"Who do you think is the thief?" said she.

Akosh, who had never once taken his eyes from her, said that everybody suspected Viola of the robbery. Lady Rety rose at once, saying she was called away by business of very great importance.

Kalman, who had listened to the last part of the conversation, looked greatly amazed. Akosh sat up and pondered for a few moments. At length he said:—

"Did you not tell me that Tengelyi suspects my mother of having hired the thief?"

"He said as much."

"And do you think that it was Viola who committed the robbery?"

"It was either Viola or the Jew. But no papers have been found upon the latter."

"Heaven knows I cannot bring myself to believe it," said Akosh, shaking his head. "But if Viola has the papers, I am sure he will return them."

"So he will, unless he has used them for wadding."

"Was it not you that told me of Viola's being seen with a certain Gulyash? Go to him at once, and promise any thing you like, to get the papers. This cursed wound of mine prevents my going to him, and yet it must be done. Make haste!"

Kalman had already seized his hat. "What a big fool I was, not to think of it!" cried he. "The Gulyash is sure to get us the papers."

Akosh remained in a gloomy and nervous state, which was at length interrupted by the appearance of Janosh, who told him that Lady Rety was closeted with Mr. Catspaw. Shortly afterwards the tramp of Kalman's horse was heard, as he left the Castle in a gallop, doing which he passed a carriage which the attorney was just about to enter.

NOTES TO VOL. I.

NOTE I.

COURTS-MARTIAL.

The *Statarium* of the old Hungarian law is not exactly what is known in other European countries under the name of court-martial, though it has some affinity with that institution. Whenever housebreaking, highway

robberies, and arson were rife in any of the Hungarian counties, the Palatine was empowered to give them the right of statarium for any term of months not exceeding one year, for the more efficient prevention of crime, and for the apprehension and punishment of the malefactors.

The Statarium, as an exceptional court, was composed of seven judges, who were appointed for the year, and empowered to take cognizance of and give judgment in any cases of robbery and arson that were committed in the county, provided always that the culprit was taken "*in flagranti delicto*," or "*in continuâ persecutione*," either in the act or immediately after, he being incessantly pursued all the while. In these cases the court gave summary judgment without appeal, and the only verdict they were empowered to pronounce was a capital sentence. The culprit, if convicted, was hanged on the spot.

To make out a conviction, it was necessary that all the judges should agree. A single dissentient voice was enough to overthrow the verdict and to bring the culprit within the jurisdiction of the ordinary courts.

The minutes of the proceedings of the courts-martial, and the depositions of the witnesses, were sent to the Palatine, and examined by a commissioner; and the judges of the Statarium were responsible for each case.

It was moreover an old popular prejudice, that a prisoner ought not to be "roofed," that is to say, that he ought not to be confined in a gaol or house, if he was to be judged by a Statarium. In compliance with this prejudice, which, however, had no foundation in the laws of Hungary, the culprits were usually chained to a post in the open air.

NOTE II.

JAROMIR AND ANGYALBANDI.

The name of Jaromir, the Bohemian brigand, is probably known to the readers of German romances of the last thirty years. The story of his noble descent, guilty love, and wretched end, no matter whether a mere fiction or founded on facts, has been handed down through successive generations. The adventures of Jaromir obtained their *acmé* of popularity by Grillparzer's drama, "Die Ahnfrau," and by the lines,—

"Ja, ich bin's den du genannt!
Bin's den jene Häscher suchen,
Bin's dem alle Lippen fluchen!
Der in des Bauers Nachtgebet,
Hart, nahe an dem Teufel steht.
* * * * *
Ich bin der Räuber, Jaromir!"

Angyalbandi is a much more real personage than Jaromir. The facts of his case are of less dramatic interest, though certainly of greater truth, than the adventures of the Bohemian robber and his bride.

The name of Angyalbandi, for many years the terror of all the landed proprietors in Upper Hungary, was a *nomme de guerre*, which covered the aristocratic and truly respectable name of the Onodys. A member of that family, the Baron Onody, was so strongly gifted with those roving and robbing propensities which distinguished his Scythian ancestors, that he would leave his country seat near Mishkolz for days and weeks together, for the purpose of cattle-stealing. His talents in that line, his strength, activity, and boldness, filled the whole country with fear; and no nobleman or peasant thought his flocks safe from Angyalbandi's depredations, for the robber foiled all watchfulness and outran all pursuit. It so happened, in one of his expeditions, that he fell in with some fine horses near Debrezin; but his attempt to carry them off was discovered, the tocsin was sounded, and the chase commenced. Angyalbandi fled, and with the same horse he swam through the Theiss and the Danube—a feat which his pursuers did not care to imitate. After a long and successful career, Baron Onody was at length suspected, and his identity with Angyalbandi was established on the occasion of some business which he transacted at Kashau. His privilege of nobility saved him from incarceration, for as he had not been discovered "*in flagranti*," he was admitted to bail. While his process was under the consideration of the High Court, Mr. Atzel, the judge advocate, had an accident on the road near Mishkolz. His carriage was overturned, and the axletree broken.

Mr. Atzel and his servants called for help, and, seeing a gentleman approaching in the distance, they walked up to him, and asked him to assist them in finding a wheelwright. He informed them that no wheelwright was

to be found in that part of the country; "but," added he, "never mind; I will give my orders, and see your carriage taken to Mishkolz, where they will put it to rights. Come to my house, and stay with me."

"Indeed," said Mr. Atzel, "I'm very much obliged to you. I would not pass a night in one of your wretched village inns on any consideration; but to stay at a gentleman's seat is a different thing altogether. Are your servants well armed?"

"We have got some rifles, though there is little chance of using them. I am afraid you are a nervous subject, sir. Perhaps you are not accustomed to this part of the country?"

"Indeed I am not! I know it only from its bad reputation. And, of all men, *I* am in the greatest danger in this county, for I understand it is somewhere hereabout that Baron Onody lives. His case is in my hands, and I hope to get a verdict against him, and see him hanged."

"Indeed? Do you know Baron Onody?"

"By no means," replied Mr. Atzel; "nor do I wish for his acquaintance."

"'Tis a pity, for you might make it with the greatest ease. He lives close by. Do you see that house on the hill? It's one of his farms."

"For God's sake, sir!" cried the lawyer, "let us make haste to your house and to your rifles. If Onody knew I was so near him, he would spare me as little as I intend to spare him!"

Thus urged, the stranger led Mr. Atzel to his house; supper was served, and the two men talked of Onody, his robberies, and the politics of the county, till a late hour, when the stranger rose, and, addressing his guest, "Mr. Atzel," said he, "from all you have told me, I see that you have a worse opinion of that poor fellow Onody than I have. He——"

"He's a vagabond, sir! a disgrace to his station——"

"Pray don't be personal, sir! *I* am the Baron Onody!"

Nothing can equal the dismay of the poor judge advocate. His host continued:

"I am not half so bad as you believe me to be. You've told me I can expect no mercy at your hands. You've sworn to my face that you will not rest until you see me hanged. Now I would not hurt you, though I could. You've had your supper. You will have a good bed to sleep in, and a breakfast in the morning. I will send you to Mishkolz with my own horses. That's what *I*, Onody or Angyalbandi the robber, do to you. Now consider what are your intentions towards me, and tell me which is the worse man?"

Mr. Atzel was silent. We need not say that he passed a sleepless night, and that he congratulated himself on his good fortune when he was safe in Kashau. But so great was the impression which Onody's generosity had made upon him, that he exerted himself to the utmost to influence the Court in the culprit's favour; and the result was, that Baron Onody, instead of receiving a capital sentence, was condemned to twelve months' confinement in the county gaol of Kashau. His term of imprisonment over, he returned to his seat near Mishkolz, where he lived quietly and honestly, without ever stirring from his own estates; "lest," as he used to say, "the sight of some fine oxen or horses might again tempt him to a robber's life."

NOTE III. ACTIO.

The Hungarian law has certain provisions for the purpose of limiting and regulating the liberty of speech of political and judicial assemblies. A speaker who oversteps the limits of decency, or who indulges in personal abuse, is punished by the infliction of a fine of twenty-five florins. If he is not able to pay the amount of the fine on the spot, he is at liberty to leave his ring or his sword as a pledge, and to redeem them by the payment of eighty florins. The person who decides on a breach of order is the Recorder of the county; but when a speaker is very offensive, the person or persons aggrieved signify their wish for the Recorder's interference by loud cries of "Actio! Actio!"

NOTE IV. NAGYIDAI NOTA.

The song of Nagyida. Nagyida is a small fortress in Hungary which, during the insurrection of Rakotzi, was garrisoned by a troop of gipsies, who defended it against an Austrian corps, and whose patriotic devotion was proof against the bribes and the attacks of the Austrian besieging army. Reduced at length to great distress, and without victuals and ammunition, the gipsies made so violent and bold a *sortie* from their fortress, that they broke through and routed the ranks of the Imperialists.

The Austrians fled in great confusion; and it was in the heat of the pursuit that a gipsy called after an Austrian officer, whose quickness of foot he was unable to compete with, "Run, you rascal! You are safe enough; but trust me, we would not let you off so easily, if we had half-a-pound of gunpowder left!"

Upon this, the Austrians rallied. They returned, stormed the fortress of Nagyida, and put the garrison to the sword. The song of the Nagyida, like the romance of the fall of Alhama, relates the history of that defeat, and bewails the sufferings of the gipsies. They keep the melody to themselves, and nothing can induce them to play or sing it to any one who is not of their tribe.

NOTE V.

KANAZ.

A Kanaz is a swineherd. In the summer and autumn, the swine are turned out into the forest to fatten on acorns. Their keepers, who live almost always in the woods, and apart from the rest of the rural population, have repeatedly, and perhaps not unjustly, been accused of aiding and abetting the various bands of robbers, which, in consequence of Austrian misgovernment, have from time to time infested the counties of Upper Hungary.

NOTE VI.

GULYASHUS; PÖRKÖLT; TARHONYA.

A great deal might be said on the subject of Hungarian cookery; but we confine ourselves to three dishes, which stand in that country in lieu of the

beef, puddings, and dumplings of Old England.

Gulyashus is made of beef, mutton, and bacon, cut in squares, and stewed with Hungarian pepper (Paprica), spices, and onions. It is very much like an Irish stew, without the potatoes.

Pörkölt is beef cut in slices, and roasted with paprica, and without any gravy.

Tarhonya has some resemblance with the Kuskusu of the Arabs. It is a kind of cake or pudding of stale and dried dough, which they fry with bacon or boil in milk.

NOTE VII. PROTEST.

A forcible entry into a house, or the seizure of goods and chattels on the premises of a nobleman, could be prevented by the owner of the house, or his representative, protesting against the proceedings. His protest was justified only in the case of a violation of forms. If the defendant was of opinion that such a violation had taken place, he seized a stick or a sword, and holding it up, he exclaimed: "I protest." Upon this the officers of justice were bound to stay the proceedings, and to leave the premises; while the defendant was equally obliged, within a reasonable time, to make his appearance in court, and to plead in justification of his protest. If his plea was disallowed, he was usually fined for vexatious opposition. If, on the contrary, the court admitted the validity of the plea, the cause was argued *ab initio*; and in this second suit, no opposition to stay proceedings was admissible.

We will take this opportunity to say a few words about the terms "nobleman" and "peasant," which frequently occur in "THE VILLAGE NOTARY," and indeed in most Hungarian works. The term nobleman, in the general Hungarian acceptation, means neither more nor less than a freeman; and the peasant, as the unprivileged class of the population, may be said to be in a state of villanage. The privileges of the Hungarian constitution,

namely, liberty of speech, freedom from unwarranted arrest, the privilege of not being subjected to corporal punishment, the right to elect their own magistrates, and a variety of similar immunities, are, in all the charters, described in terms which for a long time caused them to be confined to the descendants of the ancient conquerors of the country, or to those persons who obtained the freedom of Hungary by a grant of royal letters patent.

The rest of the community, the Jews, Razen, gipsies, Russniaks, and other tribes, are mentioned as "hospites," guests or strangers, who have no political rights. Whether bound to the soil, like the peasants, or migratory, like the Jews and gipsies, the "hospites" were alike unprotected by law and at the mercy of all the whims, neglects, and cruelties of a legislature, which bears traces at once of the fierceness of their Turkish neighbours and the pedantic vindictiveness of the Hapsburgs. It was to break the yoke which for many centuries weighed down upon the unfortunate "*villains*" and "*aliens*" of Hungary, that the Reform party exerted itself against the Hungarian Conservatives and the Court of Vienna.

NOTE VIII.

TSHIKOSH AND GULYASH.

The former are persons who have the care of horses in the pasturage; while the latter are the herdsmen of horned cattle. The Tshikosh and Gulyash, like the Kanaz or swineherds, are a fierce and indomitable race, inured to fatigue and the severity of the weather, active and enduring. In the late attempted war of liberation, the Tshikosh were formidable enemies to the Austrian cavalry, whom they pulled down with a peculiar whip, consisting of a short handle with a long leather thong and a leaden bullet at the end of it, and which they used very much as the Texans and Mexicans do the lasso.

NOTE IX.

TURKEY.

The Hungarians still indulge in symbolic cookery. A welcome and honoured guest is sure to be regaled with a turkey; while the serving up of a sucking-pig, no matter how well roasted, is a hint to the stranger that his presence is not agreeable to the family which he visits.

NOTE X.
GATYA.

The linen trowsers which the Hungarian peasants wear have the name of Gatya. They are a distinguishing feature in the dress of the peasant population.

NOTE XI.
SZEGENY LEGENY.

The verbal translation of szegeny legený is "poor fellows"—that is to say, *robbers*. The tender regard of the Hungarian peasantry for robbers, and the almost endearing name which the people gave them, is in itself a proof of misgovernment and the perversion of justice.

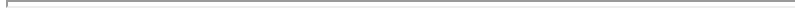
NOTE XII.
"I EAT HIS SOUL!" AND "I EAT HIS HEART!"

These are phrases of great tenderness, which the lower classes in Hungary are in the habit of using, especially when speaking of their children, or of those whom they treat as such. Of course the diet would not agree with an English stomach.

NOTE XIII.
DERESH.

The "Deresh" is a bench on which culprits are whipped. A Hungarian freeman is exempt from corporal punishment; but the persons who are in a state of villanage are but too frequently exposed to the most brutal treatment. Every traveller in the Austrian countries is struck with the frequent use of the words "whipping" and "hanging," which seem to be standard expressions of an Austrian discourse. These two great nostrums for the cure of all the vices that society is heir to, have been liberally introduced into all the Crownlands; and it was against the spirit and the practice of such abuses that the Magyar party in Hungary directed their opposition.

END OF THE FIRST VOLUME.



THE VILLAGE NOTARY.

VOL. II.

CHAPTER I.

"The Hungarian's joy is in tears," says the old proverb. And why not? Since the features of the parent tribe are handed down from one generation to another, there is nothing more natural than that we should retain the *historical* features of our ancestors, viz., the stamp of gravity which the events of their time impressed upon their faces. The Hungarians of old had good cause for weeping. Other nations have recovered from the wounds of the past; and, however sad their popular melodies may be (for they sprang from a time of sorrow and sadness), the lamentations of the old text have given way to merry words. But the lower classes in our country have very little to laugh at, even in these days of universal prosperity. Their songs are sad, as they were in the days when the crescent shone from the battlements of Buda. For there are people who are ignorant of all history but that of their own village, and who, consequently, have no idea that there has been any change in our country ever since the expulsion of the Turks. The peculiar gravity which characterises the Magyars is partly a historical reminiscence and partly the result of that gloomy tract of our country which is chiefly inhabited by the Magyar population. What traveller can traverse our vast plains, and keep his temper? The virgin forest, which at one time covered that plain, is gone; the powerful life of Nature is fled; the impenetrable foliage which overshadowed this fertile soil has fallen under the axe. The many-voiced carol of birds, and the merry sports of the greenwood, where are they? The forest land has become a heath, but we have little cause for rejoicing at our victory over Nature. The inhabitants of other countries see many things to gladden their hearts. Houses, trees, hedges, and corn-fields, reminding them of the thrift of their ancestors, spur them on to increased activity, and inspire them with a desire to fashion the land into a monument of their existence. Our Pusztas have nothing of the kind. All is silent and desolate, filling the mind with sad thoughts. Many generations passed over them without leaving a trace of their existence; and

the traveller, as he pursues his solitary way across the heath, feels the mournful conviction that he too steps onward to the grave, that the plain will cover him as a boundless ocean.

It was past noon when Susi, accompanied by the Liptaka, quitted the village. They halted near the outer Tsharda, from whence the Liptaka returned to Tissaret, while Susi, with a small bundle of provisions under her arm, proceeded on the road to Kishlak, where she expected to find the Gulyash who was to give her news of Viola. The Tanya of the Gulyash was full seven miles distant from Tissaret, and, as the poor woman trudged on, she became painfully sensible of the effects of her late illness. More than once was she compelled to rest by the road-side, where the cold wind stiffened her limbs; and when she looked around on the vast heath, she felt overpowered by her own loneliness and the stillness around her. She remembered having heard some talk of wolves; she thought of her children and of her husband, who at that moment was perhaps struggling with fresh dangers; and she hurried on, not because she had rested, but because she was restless. Her anxiety increased as she felt that her weakness would not allow her to reach her journey's end before nightfall. The train of her thoughts was at one time interrupted by the quick trotting of a horse: her heart beat quick as she looked back, expecting to see Viola riding after her. The horseman was Kalman Kishlaki on his journey homewards. Thus disappointed, she crept on to the stone cross, which stands on the borders of the Kishlaki property. She sat down on the steps, and thought of the weary hearts that had shaken off their load of sorrow in looking up to the image of Him who came to this world to share our sorrows; and her heavy heart became lighter as she remembered that Christ died, not for the rich and the powerful, but for the poor, abandoned, and persecuted.

She was about to rise and pursue her journey, when somebody called her by her name. She turned round and shuddered, for the person who called her was Tzifra. She had never been able to look at Tzifra without a shudder. She knew the man. She knew that he was the cause of any cruelty which Viola's comrades had ever committed; and, however much she loved her husband, she felt uncomfortable, and disgusted, whenever she saw him in Tzifra's company. Viola had of late suspected Tzifra, and Susi remembered that her husband had often called him his Judas. These circumstances will serve to explain the fear with which the poor woman beheld the robber, who,

leaning on his staff, looked down at her with a strange smile, which gave a still more repulsive expression to his features. "Where are you bound to?" said he.

"I'm going to see the Gulyash at Kishlak."

"Running after your husband, I dare say? Possibly the Gulyash knows where he is. What news is there in your village?"

"You ought to know it," replied Susi. "They tell me you were there with my husband?"

"Do you mean to say with Viola? Why, was *he* in the village?"

"Are you indeed ignorant of that robbery—you know, at the notary's?"

"Ah! I understand they've sacked his house. Well, didn't I say as much? When they told me that Viola came to the house, I knew the affair would end in a robbery. There isn't the like of Viola in three counties; there's no joking with him!"

"Don't talk in this way! I'll never believe that Viola had a hand in it."

"All I know is, that I don't know any thing about it—but who can have done it?"

"They say you did it."

"They say? Who says so? Is it Peti, the gipsy?"

"I have not seen Peti since he went to Dustbury; but the smith who pursued you told me so."

"Whoever says so is mad, and the smith more than any. He'd not live to boast of his boldness if he'd dared to run after me. I'd like to know what he pretends to have known me by? not my bunda, I hope. Curse me if it's dirtier than any body else's! Good bye; it's time for me to be off!" And the robber turned into the road which led to Garatsh. As Susi looked after him, a carriage passed her with Mr. Catspaw, who was on his way to the same place. He overtook Tzifra; the carriage stopped, and after a short

conversation, the robber jumped on the back seat, and the carriage drove off.

Susi was greatly astonished. She walked as fast as she could; but still darkness began to set in when she reached the Tanya, where she found the Gulyash and Peti.

"Have you seen any thing of Tzifra?" asked the gipsy.

"Yes, I have."

"Where was he?"

Susi told them of her meeting with the robber. Peti listened with deep anxiety, and his features expressed the greatest despair when she told him that Mr. Catspaw had taken the robber with him to Garatsh.

"He's dished!" cried he at length. "He's done for! If I don't come in time, they'll nab him!"

"For God's sake, what is the matter?" said Susi, trembling.

"I can't, I must be off! Ishtvan will tell you all about it. I'll take the shortest road to the St. Vilmosh forest; get your horses, and come after me as fast as you can. You know the place. Perhaps we can manage to reach it before the justice's men. The Theiss has not run over this season; so, for God's sake, Ishtvan, don't spare your horses!" And the gipsy started off at the top of his speed.

Susi was at a loss to understand the behaviour of the two men: but seeing clearly that some danger threatened her husband, she asked with a trembling voice what had happened.

"Nothing for the present. Be of good cheer, Susi," said the Gulyash; "if any thing should befall Viola, confound it, I'll hang myself; but I'll kill that rascal Tzifra first!"

"But what is it? Oh do, for God's sake! for mercy's sake! tell me!" sighed Susi, as they entered the cottage. She sat down by the fire, and the Gulyash informed her, with many imprecations at his want of foresight, that Viola was in an awkward scrape, if not worse. Immediately after the robbery, the

details of which came now first to the ears of Susi, her husband had come to the Tanya and instructed Ishtvan, who was in daily communication with the gang, to direct Peti, or any other of his comrades who might seek him, to their usual haunt in the forest of St. Vilmosh, where he intended to conceal himself until the affair was blown over, and until he could manage to restore the papers to Tengelyi. He had also asked the Gulyash to send him provisions for the next few days. The Gulyash knew nothing of Tzifra's treachery, for Viola had forgotten to inform him of it. Peti, too, had not seen the man ever since he had listened to Tzifra's conversation with the Jew; and it was therefore but natural that when Tzifra called that afternoon and asked for Viola, the Gulyash should have given him a culatsh of wine and some meat, and that he should have told him where Viola was to be found.

Peti arrived an hour later, and from him he learnt that the secret had been entrusted to a traitor. After what Susi had seen, there could be no doubt as to Tzifra's intentions, and the poor woman was in despair when she thought of her husband's danger. It was now about two hours since she met Tzifra. Garatsh was full three miles nearer to the St. Vilmosh forest, and there were hussars, horses, and policemen in the justice's house. She had no means of reaching Viola's haunt. There was no hope for him.

"I wish to God my cart would come! It ought to be here by this time, for 'tis two hours since I sent it to the village. I'll spoil that fellow's tricks if I get my horses in time. Don't grieve, Susi, my soul! these judges are not half so quick as you fancy, especially after the election. Besides, who knows whether he's at home? Peti told me that the lord-lieutenant had sent him to inquire into this business. D—n the lord-lieutenant! and d—n me too! Why didn't the devil crush me with his thirty-three thousand thunderbolts when I opened my lips to the traitor! Now don't be frightened, Susi, my soul! we are sure to be in time. My horses are the best in the county; but who the devil would have thought that Tzifra is such a scurvy beggar? He's been a robber these thirty years and more, and for all that he'll blow upon a pal, d—n me! The fellow had scarcely gone, when young Mr. Kalman came and told me of the notary having lost his papers, asking me to get them, and to tell him where Viola was to be found. He entreated me for mercy's sake, and then he cursed me; but I would not tell him; and the other fellow, the dog, got it all out of me!"

At this moment they heard the rattling of the cart. Taking his axe and bunda, he shouted with joy.

"Holloa! here are my horses!"

The cart, drawn by two stout yellow horses, stopped at the door.

"Come, Susi, take the back seat, and wrap yourself up," said he, helping her to mount. "And you may go to the devil!" he added, addressing the driver, as he took the reins; "I'll teach you to stop at the pot-house, you young cur!"

The horses started off across the plain. The sound of the wheels was lost in the distance, and the dogs that had followed it, barking and yelping, had come back from what they considered a fruitless chase. But Bandi, the driver, stood blocklike in the same place, still staring in the direction in which the cart had disappeared. He scratched his head, which Ishtvan had touched with rather a rough hand. At length he exclaimed, "I hope Ishtvan won't steal Viola's wife!"

CHAP. II.

Traveller in search of justice! doff your shoes when you come to the village of Garatsh, not only because Mr. Paul Skinner, the justice, hallows the spot by his presence, nor solely in obedience to the old saw which bids you do at Rome as the Romans do; but more especially for the purpose of donning stout water-boots in their stead, for without them you will find considerable difficulty in your progress through the place.

The villages of the county of Takshony were miserable, but Garatsh was the most wretched of them all. Its ragged roofs and crumbling walls were in keeping with the pale and emaciated faces of its inhabitants, each of whom seemed to be devoted to suffering from the day of his birth to that dark day on which they bore him to the churchyard at the end of the village, there to take his first and last rest in this world, under the high cross which marks the burial places of the Russniak population. The very church was out of repair; for its half-rotten roof gave no protection to the walls, which were

stayed by poles to prevent their falling. The vicarage looked equally poor and neglected, surrounded as it was by a pond overgrown with reeds and water plants: in short, the place was altogether desolate and wretched.

I am free to confess that this is the gloomiest side of the picture, for there were other houses in Garatsh besides the miserable hovels of the peasantry. The distinguished families of the Garatsh, Bamèr, Andorfy, Skinner, and Heaven knows how many more! had successively possessed the village and built noble curias, which vied in splendour with one another. The most magnificent of them was doubtless the house which belonged to our friend Mr. Skinner. It was a noble edifice, with its bright green walls and sky-blue columns. Only one third part of the roof was covered with shingles; but as Mr. Skinner had carried the election and secured his place for the next three years, it was but reasonable to expect that the straw on the other part of the house would soon give way to a splendid shingle roof. But, straw or shingles—no matter! the dense column of smoke which issues from the chimney of the house gives it an air of substantial comfort.

It was an hour since Mr. Skinner returned from Dustbury. He left the place almost at the same time when Tengelyi left it. The election was all but over. When the Cortes understood that there were unqualified persons among Bantorny's voters, they opposed him to a man, and at noon Mr. Rety was elected to the shrievalty. Mr. Krivér was the second sheriff, for Mr. Edeshy, who held that post, retired from the contest; and as the conquered party declined to take the field, the remainder of the elections was despatched in less than two hours. The Rety party had it all their own way. But the lord-lieutenant, hearing the news of the Tissaret robbery, ordered the justice and his clerk to proceed to the spot, and to take measures for the capture of the criminal.

His Excellency the lord-lieutenant of the county of Takshony, flattered himself with a vain belief that the justice and his clerk, accompanied by Pandurs and policemen, had by this time reached Tissaret. The great man would have found out his mistake if he had entered Mr. Skinner's room; for there he might have seen that pillar of justice seated in front of a large oak table, at the other end of which Mr. Kenihazy was busily engaged in investigating, not the Tissaret robbery, but the interior of an enormous pork pie. The two gentlemen had thought proper to yield implicit obedience to

his Excellency's orders. They left Dustbury without stopping for dinner, but finding it utterly impossible to proceed to Tissaret with an empty stomach, they turned off the road and made for Garatsh. Besides, they had no men. The Pandurs were at Garatsh; the inspector was most probably at St. Vilmosh; and Mr. Kenihazy remarked, with equal justice and truth, that it could not in fairness be expected of them that they should capture the thief with their own hands. Night was approaching, and any reasonable man, especially if he be the "*bête noire*" of a whole gang, as was Mr. Skinner's case, will, at such a time, rather avoid a robber than seek him; and, besides all this, considering that what's done cannot be undone, there was no harm in allowing the thief to be at large for a few hours longer—nay, more, there was a chance of the said disreputable person making away with the stolen property, which was exactly what Mr. Skinner wanted, for he had no mind to soil his pure hands by touching ill-gotten gains. In short, honest Mr. Skinner had a thousand reasons for not going to Tissaret on that day; and if the lord-lieutenant could have seen him as he sat in his easy-chair, pipe in mouth, with half a dozen empty bottles on the table before him, it would have done the great man's heart good to see Justice thus thriving in the person of her most distinguished servant.

The house was "replete" with every Hungarian comfort. It was enough to make a Magyar's heart leap with joy, for the first condition of comfort is unquestionably the not being hampered in your movements. Mr. Skinner's room realised this condition to an all but unreasonable extent. No bed on earth could be narrower than the one which occupied one corner of the apartment, and the chest of drawers, which was equally small, was an asylum for any odd things that wanted a place. It was heaped with clothes, baskets, hats, and sticks; while a very small table, and a still smaller chair and sofa, presented no obstacles to the movements of the inmates. The oak table in the middle of the room was indeed an exception. It was very large; but then it served for a variety of purposes. A man might do as he liked in such a room. There was nothing to impede the free use of one's limbs. And the walls were most comfortably browned by the smoke, and covered with the pictures of Magyar heroes, in bright-coloured attilas. Fine men they were, with fabulous moustaches, with their legs, which were bent in with an excess of strength, stuck into yellow Tshismen, with calpacs on their heads, and the Buzogany^[18], or a standard, in their hands: fine men, indeed, and

most cheerful companions in a winter night. And the flooring of the room, which was covered with clay, and the very cobwebs which hung from the ceiling, seemed to say, "Don't stand upon ceremony! Make yourself at home! Do as you please! We are none the worse for any thing you may do!"

[18] See [Note I](#).

Mr. Skinner was fully alive to the comforts of his home. He leant back in his chair, and his soul was lost in happy dreams, such dreams as belong only to people who have been re-elected. "We're in!" said he at times, with a gentle sneer. "We're in!" he repeated, striking the table with his fist. "They'd better mind what they are about!" And he ground his teeth. He was brimful of happiness; his joy was so great he would fain have thrashed every man, woman, and child in the county to vent it. At other moments he was sad; for such is the nature of man, "that pendulum between a smile and tear:" his house spoke to him of bygone days. This was the table on which, forty-five years ago, immediately after his birth, he had been washed for the first—and, as many people in the county said, for the last—time in his life. His saddest and his brightest moments had been passed at that table, for it was here he had learned to read, and it was here he had been initiated into the mysteries of card-playing. His dearly beloved wife, too, sat by that table when he brought her to his house, and when he got so drunk with joy that he could never recollect how and when he got into bed that night. That table was the scene of many drinking bouts and heavy sentences, of which it still bore the marks in wine and ink. And he thought of the seventy florins and forty-five kreutzers which he had spent on the election, and of his sweet father, who was a justice before him; nor did he forget to think of his dolman, which had been torn by the Cortes, and of his wife having, two years ago, lost two of her front teeth, but, amidst all these conflicting thoughts, his lips smiled. "We are in," said he; "so begone dull care! There are lots of Jews in this district," thought he; "and if my sweet father were not dead, he'd be justice in my place; and, after all, I got that dolman without paying for it, and I'll have another on the same terms; and though my wife has lost two teeth, they are after all but front teeth, and there's not a woman in Hungary can cook such a mess of Tokany^[19] as she does; and, taking one thing with another, I am the luckiest dog in three counties." Kenihazy, too, was most happy, especially if it be true that he is most blessed who is least conscious of his own existence. Mr. Kenihazy sat with his elbows on the table, singing his favourite song of—

[19] See [Note II](#).

"The man that does not love Skinner, sirs,

Haj! Haj! Haj!
Devil take him for a sinner, sirs,
Haj! Haj! Haj!"

It is to be presumed that Kenihazy was equally in love with the melody and text of this sublime rhapsody; for he had sung it unceasingly for the last half-hour.

"I say, Bandi!" cried the justice, at length.

But Bandi went on with his song, screaming rather louder than before.

"Bandi, I say! don't roar in that way!"

Mr. Kenihazy stared; but his voice grew still more loud.

"He's drunk!" said Mr. Skinner, rising with some difficulty, and walking up to and shaking his clerk, who at length raised his head with a "Holloa! what's the matter?"

"We're in!" said the judge; for no other thought found a place in his head. Upon this, Mr. Kenihazy burst into a laugh so long, so loud, and so uproarious, that it outdid the very chiefs whose portraits ornamented the walls. They never laughed so loud, even after their famous bargain with Swatopluk, who sold them the country of Hungary for a white steed. ^[20]

^[20] See [Note III](#).

"What are you laughing at?" said Mr. Skinner, with an awful display of judicial gravity.

"At them!" responded Mr. Kenihazy, still chuckling. "They wanted to do us, and we've done them. Done them brown, eh? We are in!"

"Bravo! we *are* in!" cried the justice. "The world is to the wise!"

"And to the cunning!" said Kenihazy, tossing off his glass.

"Ay—but—yes, we are in! Look to yourselves, you rascals! You wanted to have another judge, eh? Very well; oh, *very* well: we'll see who has the best of it."

"And who was it they wanted to put in my place?" shouted his friend, in a generous burst of indignation; "was it not Vincenz Görögy? a mere boy, who has just left the university?" This was the more criminal in Mr. Kenihazy's eyes, as *he* had never been at any university.

"As for that fellow, Tengelyi, let him take care!" snarled Mr. Skinner. "I've long had a mind——"

"Capital thing, isn't it, that he isn't a nobleman now? He's now easier *come-at-able*."

"So he is," murmured the justice; "but they've sent us to get his papers for him."

"Yes; and when did they send us?—Late at night, in bad weather, when honest men are wont to stay at home. Think of those devils of robbers that let fly at you from their hiding-places! Did ever a Christian hear of such a thing?"

Mr. Skinner replied, with an expression of profound wisdom: "You see, Bandi, these gentlemen are ignoramuses on county business: and, to tell you a secret, his Excellency, our lord-lieutenant, is not better than any of the rest. But no matter; he gives his orders, and I do as I please; for every office has its peculiar sphere of action, you know, Bandi."

"So it has; but no Christian ought to go out in such a night," said Kenihazy, who would have uttered some severe strictures on the unbecoming behaviour of the lord-lieutenant, but for the rattling of a carriage over the stone pavement of the yard, which attracted their attention.

"Who the deuce is this?" said the justice. "I thought nobody knew of my being here!"

"Petitioners!" cried Kenihazy. "Petitioners!" said he, filling his glass: "they'll come by dozens; for, you see, we are in!"

Mr. Catspaw, who entered the room wrapped up in his bunda, put a stop to their conjectures.

"It is you, my friend!" cried Mr. Skinner, making up to and hugging the little attorney: "I'm happy you've come. We'll have a game at cards."

"*Servus humillimus!*" cried Kenihazy, who felt that to get up was, for him, a thing of greater difficulty than necessity.

"No gambling to-night!" said Mr. Catspaw, as he struggled in Skinner's embrace. "We must be off."

"Off! and where are *you* bound to?"

"Yes, yes! where are *you* bound to?" hiccoughed Kenihazy. "I won't stir a single step. We'll have a game, won't we, Paul?"

"D—n us, so we will!" cried the justice, striving to seize the attorney. "If you don't stay, as you ought to do, we'll have the wheels of your carriage taken off,—won't we, Bandi?"

"Yes; let us have the wheels, and let him walk home if he likes."

Mr. Catspaw shrugged his shoulders. "I wish you'd waited before getting drunk, in honour of the day!" said he.

"You rascal of an attorney! Do you mean to say I'm drunk? Do you mean to insinuate that I am not master of myself? Who is first sheriff? Rety. Who is second? Kriver and——"

"I am aware of it; but for God's sake be reasonable!"

"And who is clerk?" roared Bandi.

"Kenihazy Andrash^[21], Eljen!"

^[21] See [Note IV](#).

"Confound your noise!" shouted the attorney.

"Very well, sir. I don't mean to offend you, but—let us be reasonable. Where do you wish us to go?"

"To St. Vilmosh!"

"I'm not drunk; and the proof is, that I won't stir from the spot!" interposed Mr. Kenihazy.

"What do you wish us to do at St. Vilmosh?"

"Viola is there. We must arrest him to-night, or never; by to-morrow morning he will have passed the stolen documents to some one else."

"Very well," said Mr Skinner, with great dignity; "we'll arrest him to-morrow."

"But I tell you by that time the papers will be gone!"

"So much the better. Am I to leave my house by night? am I to risk my neck to help Mr. Tengelyi to get his papers? Let him go himself, if he likes!"

"Yes; let him go, if he likes!" repeated Mr. Kenihazy. The attorney cast a despairing look at the meritorious functionaries, and seizing the justice by the sleeve, he led him to the window, where they conversed long and eagerly together; while Kenihazy recommenced his old song:—

"The man that does not love Skinner, sirs,
Haj! Haj! Haj!
Devil take him for a sinner, sirs,
Haj! Haj! Haj!"

"That alters the case entirely," said the justice at length. "I say, Bandi, tell the Pandurs to saddle their horses immediately."

"Yes; that alters the case entirely," groaned Kenihazy. "The Pandurs may go! D—n them, why shouldn't they?"

"But why did not you say all this at once?" said the justice, who appeared much more sober than Mr. Catspaw had hoped he would be.

"Why, you would not have me tell it in the presence of your clerk? Now send your Pandurs to St. Vilmosh, and send the inspector word to raise a *posse*, to arm them with pitchforks, and to wait for us at the Tsharda, close to the forest. As for Kenihazy, he'd better stay where he is. He'd be too much in our way."

"You are right. But suppose Tzifra were to cheat us? Suppose he had come to get us into a trap? Viola says he will be revenged on me, and Tzifra is one of his gang."

"Never fear. There is no necessity for us to go further than we think safe; you know I am not fond of bullets. But we can rely upon Tzifra. He is in our hands."

Kenihazy returned after a while, and told them that the Pandurs had gone off to St. Vilmosh. Mr. Catspaw took his bunda, and said,— "Let us go, then!"

"And you too? Are *you* going?" said the clerk, astonished, when he beheld the justice furred and cloaked, and prepared for the journey.

"Yes; but you are to stay."

"But what *can* you do without me?"

"We are going to make an experiment," said Mr. Skinner, laughing.
"Farewell! and take care of the house!"

They took their seats in the carriage. Tzifra, who had waited in the hall, jumped up behind, and they drove off.

"This is indeed strange!" said Kenihazy.

"What *can* a judge do without his clerk?" He returned to the room, where he continued his potations and his song:—

"The man that doesn't love Skinner, sirs,
Haj! Haj! Haj!
Devil take him for a sinner, sirs,
Haj! Haj! Haj!"

At length his voice was lost in sleep, and nothing but the barking of the dogs broke through the deep stillness in and around Mr. Skinner's curia.

That worthy was meanwhile in the act of cursing the coachman's zeal, who, obedient to Mr. Catspaw's instructions, had urged his horses to a mad career; and though Mr. Skinner was very desirous to see Viola hanged, still it struck him that to break his own neck first was not exactly the way to accomplish that purpose. The jolting of the carriage, which brought his head

in violent contact with the iron bands of the roof, went a great way to confirm him in his opinion.

"D—n the fellow!" cried he. "Why don't you mind the ruts in the road? Do you think you've got a cartload of sacks? Gently! confound you! gently, I say! I'll knock you on the head next time!"

"Don't be frightened!" said Mr. Catspaw, who suffered as much as his companion. "There is not a better coachman in the county. He's my lady's coachman."

"Better coachman? I protest he's drunk—dead drunk, I say!"

"Nonsense! He has not had a drop ever since we left Dustbury."

"Confound it!" screamed Mr. Skinner, taking his pipe from his mouth, which the last jolt had chucked so far down his throat that he was in some danger of swallowing it; "Od's wounds! but this is worse than the last judgment. Stop! Stop, I say! I'll get out—"

"Don't!" cried the attorney. "You cannot get out here, we are in the very deepest of the mud. Let us go on to the heath, it's dry ground there!"

"It's because the pigs have broken the ground," sighed the justice; "it's more dangerous still. Here there's at least a chance of falling on a soft place. No! I *will* get out."

"If you do, there is no knowing when we shall come to St. Vilmosh."

"Dear me! no! Stop! we're spilt! Terrem tette, stop! Jantshi, you beast!" screamed the justice still louder, while he clung to the cushions of the seat, and looked out for a chance of leaping to the ground.

"Go on!" cried the attorney, with suppressed laughter. "We've gained the heath now! On with you, or the cold of the night will kill us."

"Never mind the cold, if we can but get off with our bones unbroken."

"Yes, but think of my rheumatism! You know how much I suffer from it. It makes me shudder to breathe this damp air."

"You're bilious, that's the long and the short of it!" said Mr. Skinner, as the horses proceeded at a slow trot. "But mind what I tell you, that fellow will break all the bones in my body before we come to St. Vilmosh."

"Don't be a coward! You see I am not at all afraid, and yet I am as fond of my life as you can be."

"Oh, it's all very well for you to say so. You're not married; but I have a wife and four small children——"

"That's the very reason why I ought to love my life five times better than you do yours. But, mercy on us! how damp the air is, and how cold the wind! And I have forgotten to provide myself with elder flowers! Now if I don't have tea and a warm bed at St. Vilmosh, I'm a dead man; and you're my murderer, because you won't allow the driver to go on as fast as he can."

"Don't be a fool!" said the justice, very composedly, for his curses and threats had at length caused Jantshi to proceed at a slow pace. Thus they sat for a considerable time, each grunting at the cowardice of his companion. In due time they left the heath and turned again into the road. The driver cursed the horses, and Mr. Skinner cursed the driver, while the attorney bewailed his anticipated illness: in short, we may leave the party with the firm conviction that unless they make greater haste than they have hitherto done, the Gulyash is sure to reach St. Vilmosh long before they can hope to arrive there.

CHAP. III.

The concluding sentence of the last chapter expresses the very hope which animated the Gulyash Ishtvan and his companion. It was indeed three hours ago since Susi met Tzifra near Garatsh, and Garatsh was at least three miles nearer to the forest of St. Vilmosh than Ishtvan's Tanya. But it was probable that the judge had not set out immediately; and besides, those gentry travel in a carriage, and on a heavy road too, while Ishtvan's cart seems to fly over

the smooth heath; and, after all, the horses of the Gulyash are the best runners in the world.

It was dark when they started. The weak rays of the new moon were absorbed by a dense fog, and it required all the instinct of locality which characterises the Hungarian herdsmen to guide them over the vast plain, which offered scarcely any marks by which a traveller might shape his course. A heap of earth, the gigantic beam of a well looming through the darkness, the remains of a stack of straw, a ditch, or a few distant willows,—such were the only objects which might be discerned, and even these were few and far between. But the Gulyash drove his horses on, without once stopping to examine the country round him, for all the world as if he had been galloping along on a broad smooth road; and the very horses seemed resolved to do their best. They tore away as though they were running a race with the dragon of the wizard student^[22], while Ishtvan, flourishing his whip, more in sport than because it was wanted, called out to them, "Vertshe ne! Sharga ne! Don't they run, the tatoshes!"^[23] They are the best horses in Hungary!"

^[22] See [Note V](#).

^[23] See [Note VI](#).

Willows and hills, well-beams and straw stacks, passed by them; the manes of the horses streamed in the breeze; the Gulyash, with his bunda thrown back, and his shirt inflated with the air, sat on the box as if he were driving a race with the Spirit of the Storm. The horses galloped away as if the soil were burning under their hoofs.

"Fear nothing, Susi!" cried the Gulyash; "we are there before that cursed thief of a judge has left his house. Vertshe ne!" And Susi sighed, "God grant it!"

"Confound him, if we are too late. But now tell me, Susi, on your soul, did you ever ride in this way?"

"Never!" said she.

"I believe you. Sharga ne! Don't be sad, Susi; we've saved the better part of the road. At St. Vilmosh we'll call upon the Tshikosh. He'll give us a dish of

Gulyashush; and if he has not got it, he'll find a filly, and kill it for our supper."

Suddenly the horses jumped aside, and stood snorting and pawing.

"What's the matter?" cried the Gulyash, seizing his whip. "What is it? Sharga! Vertshe! I see!" added he, as, straining his eyes in the darkness, he saw a wolf, which had crossed the road, and which stood a few yards off. "Poor things! the *vermin* have frightened them. Never mind. Go your way to Kishlak, you confounded beast! where the dogs will tear the skin off your cursed bones. I trust Peti has kept out of its way; though, after all, there's not much danger. The very wolves won't eat an old gipsy. They are a tough race."

Susi's anxiety for Peti's safety was far from yielding to the learned remarks of the Gulyash, but she was soon relieved by hearing the gipsy's voice. He called out as they overtook him on the road. They stopped, and he took his seat on the cart. "We are sure to be in time," said he; "the Garatsh road, on which the justice travels, is as heavy as can be."

"I have no hope since I saw the vermin," said Susi, sadly; "they tell me it bodes one no good."

"Don't be a fool, Susi!" said the Gulyash. "Have I not seen lots of vermin in my life, and I am still here and in luck. What are you afraid of? My horses are not even warm."

"Yes; but the cart may break. I am full of fears."

"It won't break, Susi, you see it's not a gentleman's carriage. There is a vast difference between a gentleman's carriage and a peasant's cart, just as there is between gentlemen and peasants. Your carriage is vast, and roomy, and high-wheeled, and cushioned, and painted; in short, it's a splendid thing to look at; but take it out on a heavy road, and down it breaks with a vengeance! it's full of screws and such tomfoolery, and only fit for a smooth road. Now a peasant's cart goes through any thing; and mine is a perfect jewel. The wheels are of my own make, and Peti has hooped them."

Peti was not quite so confident. "I hope there's no water," said he, scratching his head; "we've had some heavy rains, and if the low country is

full of water——"

"Never mind, Peti, I'm sure it's all in good order; and you Susi, dear, don't be afraid! My brother Pishta, who lived on the other side of the river, died last week, when he was just about to leave the place. He got a passport and a landlord's discharge for the purpose. Those papers are of no use to his widow, but they are just the thing for you and Viola, for they will help you to get away. I know of a good place about a hundred miles from here, where you may earn an honest livelihood. You're not fit for the kind of life you are leading. I'll take you to the place with my own horses; you have not got much luggage. The great thing is to get out of the county; for it's a rum affair such a county, and the best of it is, that it is not too large. Don't you think so, Peti?"

But Peti made no reply, not even when Susi, catching at the faint ray of hope which fell into the gloom of her life, inquired whether the Gulyash's promise was not too good to be realised? The gipsy sat motionless, with his eyes staring into the darkness which surrounded them. They hurried on in silence, whilst the fog grew dense, and the sky blacker than before. No trace was left of either willows, mounds, stacks, or well-beams; still they pressed forward until the splashing in water of the horses' hoofs stopped their progress.

Peti's fears were but too well founded. The place where they halted was under water. The gipsy descended to reconnoitre the extent. As he advanced he beheld the plain like a wide lake, of which he could not see the end. He retraced his steps and walked to the right, but he found that the water stretched in every direction. At length he made his way to a dry place, to which he directed the Gulyash.

"Let us go on in this direction," said he, as he took his place in the cart; "there is some chance of reaching the forest. Be careful, Ishtvan, and keep close to the water, or else you'll lose your way. This here's the Yellow Spring."

"Christ save us!" cried Susi. "We are surely too late, and my poor husband ——"

"No!" said the gipsy, with ill-dissembled concern; "unless the water has flooded the Frog's Dyke, we shall find the Black Lake dry, and if so we're safe. On with you, Ishtvan!"

"Confound the Theiss!" said the Gulyash, as he whipped his horses on.

"Nonsense; it's not the Theiss. 'Twas but yesterday I saw the river at Ret, it's as quiet as a lamb; but this water comes from the new ditch which the gentry have made. They make the water mad with their ditches and dykes."

"A thousand thunders! there's water *here*!" and he pulled the horses back, one of which had slipped and fallen. Susi wrung her hands. Peti jumped down and walked through the water. He came back and led the horses onwards. "It's not worth stopping for, my beauties," said he, addressing the horses; "you'll see some rougher work by and bye if you stay with the Gulyash Pishta." They reached the opposite bank, and hastened on until they were again stopped by the water. The gipsy wrung his hands.

"The Black Lake is brimful. There's not a horse in the world can ford it!"

"Stop here!" said Susi. "I'll walk through it!"

"Nonsense, Susi! The lake is full of holes. You are weak. If your foot slips you'll never have the strength to get up, and then you are done for."

"Hands off! let go my bunda; God will help me! but I cannot leave my husband in this last extremity!" and she struggled to get down.

"Now, Susi, be reasonable! What's to become of your children if they hang your husband, and you are drowned?"

Susi sat down by the side of the cart. She covered her face with both her hands, and wept bitterly.

"Don't be afraid, child!" said the Gulyash; "either I go over or Peti does. You see the forest is just before us, and if there's not a road, confound it! we'll make one."

"So we will!" cried Peti. "I'll cross the water, though the very devil were in it. Let me feel my way a little. Is not that the large tree we saw the other day?"

"May be it is, but I can't make it out on account of that confounded fog. There are lots of high trees in the forest."

"To the left of the tree, about two hundred yards from it, there is a clearing in the wood. On the day I spoke of, we drove through it with the cart. Don't you remember?"

"How the deuce shouldn't I remember! There ought to be some reeds to the right of the tree."

"So there ought to be! Now you go to the right and I to the left. If I can find the clearing, and if that's the tree I spoke of, I'll walk through the water; for it's a rising ground from that tree to the other bank of the Theiss."

"I'll go with you," said Susi; "my heart beats so fast—there's a murmur in my ears—let me go! I'd die with fears if you tell me to remain here."

"Susi, my soul, if I can cross the waters, I'll come back and carry you on my back. But stay where you are—stay for Viola's sake, if not for your own!"

They walked away and were lost in the darkness. Susi stood by the water, looking at the forest. "Alas!" sighed she, "I am so near him, and yet I cannot go to him!"

The poor woman was right. On the other side of the water, scarcely more than a thousand yards from the place where Susi trembled and prayed, we find Viola with his comrades, encamped in one of the few oak forests of which Hungary can boast. The soil on which this forest stood was continually exposed to the overflowing of the Theiss, to the banks of which it extended, and by which it was rather divided than confined; for another forest of oaks covered an area of several miles on the other side of the river. The forest was a noisy place in summer, when there was a plentiful harvest of acorns; the grunting of a thousand pigs, and the whistling and singing of a hundred Kondashes^[24], was loud, beneath the thickly woven branches and the deep green foliage; and large fires, surrounded by fierce-looking bunda-clad figures, burned amidst the huge trunks of the trees. But in winter the forest is deserted; the huts which the Kondashes had built were overthrown by the first storms which ushered in the severe season. Only one of these huts was still inhabited. It was the one which lay farthest from St. Vilmosh,

and close to the end of the forest. This hut was the favorite retreat of Viola and his gang. There was not a road or path for miles around them; and the shrubs and trees which surrounded the hut hid it so effectually, that even at twenty yards distance it was impossible to discover any trace of it. On the other side, towards St. Vilmosh, the forest extended many miles, and even the boldest among the county hussars avoided the spot, ever since an inspector and two Pandurs had been shot there. Viola was justified in fancying himself as safe as a king in his palace; for who would betray him? He was sure of Peti, and the Gulyash Ishtvan; and as for the other sharers of the secret, he was still more certain of their discretion, for they were all equally guilty, and the same punishment awaited them.

[24] See [Note VII](#).

The hut, in a corner of which was the robber seated on a log of wood, was large, roomy, and well conditioned. A heap of straw, covered with bundas, which stood the robbers in place of a bed; a clumsy table, and an iron kettle, and various weapons—such were the objects on which the fire threw a broad and glaring light. Viola sat lost in deep thought, while two of his comrades, the only ones who were present that night, stretched their weary limbs on their bundas, as they stared at the burning wood and the red flames.

"I say, butcher!" said one of them, "don't you think a bit of meat would be just the thing for us?"

The speaker, whom the country had for the last twenty-five years known as a freebooter of the worst kind, was a sturdy gray-haired man, while the fellow he addressed was young and—as Ratz Andor, for such was the elder robber's name, would have it—inexperienced.

"Go to the devil!" replied the young man. "Why do you talk to me of meat?"

"Wouldn't you like it? Now, I say, you would not mind having some tobacco, would you?"

"Curse you, and begone! Why should you talk of it, since there's neither meat nor tobacco!"

"I thought you'd like a bite or a whiff; don't you?"

"You're always joking," said the butcher. "We have not had any grub ever so long. I can't stand it. I'd rather be hanged than starved to death."

"Why don't you go for something?" sneered Andor.

"How can I? you know the bees are swarming. Hand me the culatsh, old fellow!"

"Take it."

"No, not this! It's full of water. Give me the other creature, hang you!"

"I'll see *you* hanged, my boy, before I give it you. You've already more brandy in your head than good sense; and besides, it won't do to drink while you're fasting."

"Give me the bottle. I won't be fooled by you. I am my own master."

"You'd better be quiet," said the old robber, seizing the butcher's arm with an iron grip.

"I'll pay you out for it, you dog!" cried the butcher, as he sprang to his feet and seized his fokosh. "I'll teach you to bid me be quiet!"

Andor, who had watched his movements, rose with equal quickness, and seizing the young man's throat, thrust him into a corner.

"You must learn manners, my fine fellow! and if you don't, why you'll be stuck like a pig!"

Viola was all this while brooding over his own miseries, and the wretched lot of his wife. He knew nothing of the quarrel of his comrades, but their fight roused him.

"What is the row?" said he, rising.

"The boy wants brandy, and I want to give him a drubbing."

"Give him brandy, if there is any."

"No!" said Ratz Andor. "He shan't have it. He is more than half drunk as it is. He'll bring us into trouble!"

"But I am hungry!" cried the boy, appealing to Viola.

"Why did you come to be a robber? No one told you to come."

"And who told you?"

"My case is different!" said Andor, gloomily. "I am a deserter. I served the Emperor for ten years. I tell you, boy, I did my duty in the greatest war that ever was; and when we came home from our campaigns and they refused to let me go my ways, the devil put it into my head that I'd been a soldier overlong. So I flung my musket away, and here I am. But, confound me! if I were a butcher's son, as you are, you would not find me in the forest; nor would you Viola, take my word for it!"

"I don't care!" said the butcher, unmoved by the old man's words; "a robber's life's a merry life. I want lush!"

"Give it him," repeated Viola. "Let him take his fill."

"Why, the fellow *is* drunk," said Ratz Andor, doggedly. "There never was a gang of robbers but it was ruined by drink."

"We are safe for this night; though I trust Peti will come, and bring us meat from the Gulyash. The justice is at Dustbury; and as for the haiduks, they'd rather go out of our way than cross it."

"That's what you ought never to think," said Andor, shaking his head, "Ruin comes upon us when we least expect it. But if you must, you must," continued he, addressing the butcher; "so drink, and go to h—ll!"

The fellow seized the proffered bottle, and the three men were silent.

The two-fold darkness of the night and the fog was still more increased by the deep shades of the forest. The wind of autumn whistled among the dry leaves, and moaned in the upper air like a deep sigh of unspeakable woe. The hoarse croak of the raven broke the stillness at intervals, and the birds that lived in the forest awoke and flapped their heavy wings. Viola stood in the doorway of the hut. His soul was sorrowful, even unto death. The night,

the silence, the loneliness of the place, the companions of his exile, all contributed to add to his grief. He thought of the days of his happiness. When the work in the field was over, when the long winter nights came on, he used to sit by his own fireside, fondling his boy on his knee, and gazing on Susi, who moved her spindle with untiring zeal. What though mists covered the land, hiding the manor-house, the huts, the church, and the banks of the Theiss,—he cared not. The powers of Nature cannot affect the happiness in man's heart: it is man alone who can destroy it. And his happiness was destroyed. "I was humble and inoffensive," said he; "and yet they did not spare me. I did my duty; indeed, I did more than my duty. I obeyed when they commanded; I took my hat off when I met them; I fawned upon them like a dog; I would have kissed their feet, to induce them to leave Susi and my child alone, to leave my house alone, and yet——" Viola remembered again all the insults he had suffered. He recollected how they would have forced him to leave his wife in her hour of sorrow; how they dragged him through the village; how Skinner gave orders to tie him to the whipping-post; how he seized the axe, and turned its edge against the head of a fellow-creature; and how the blood filled him with horror. He raised his hands to heaven.

"No!" cried he; "may God have mercy on me! but, whatever I may have done, I cannot repent it. If I were to live it over again, if I were to see them standing round me, and laughing and sneering, and if I were to see the axe,—I'd seize it again, and woe to the man that should come near me! But you, whom I never did any harm to!—you, who were the cause of my ruin!—you, who have caused my wife and children to beg their bread!—you, who made me a robber, who hunted me, who compelled me to herd with the beasts of the forest!—you, whose doings damn me in this world and in the next,—you, attorney! and you, judge! take care of yourselves: as surely as there is a God in heaven I'll have my revenge, and a bloody revenge too!—"

At that moment there was a rustling in the wood. Viola leaned forward, and listened. The noise was as of the approach of men. There was a rustling of the dry leaves, a cracking of the branches; the ravens flew up from the trees. "Who can it be?" thought Viola. "Peti, perhaps, and the Gulyash; but how should they come from the St. Vilmosh side?"

A similar noise of approaching steps was now heard from the other side of the forest. "These are the steps of many men," said Viola; "they are in search of me." The very next moment he was fully convinced of it, for the low murmur of many voices was heard in the stillness of the night. Viola, rushing back into the hut, locked the door, and waked the butcher by giving him a kick.

"Did I not tell you so?" said the old robber, getting up, and seizing a double-barrelled gun; "and there the fellow lies! he's as drunk as David's sow."

Ratz Andor was wrong. The poor fellow, who bore his kick with the forbearance of an angel, grew quite sober when they told him of the approach of the enemy. "Is there no means of escape?" whispered he.

"We are surrounded!" said Viola. "If there are not too many of them, we are safe. Are the guns and pistols loaded?"

"They are; four double-barrelled guns, and six pistols. Let them come on! we'll give them their supper." We need scarcely remark that it was Ratz Andor who said these words.

"Light the lamp. Put it into a corner, that it may not be seen from without. Throw ashes on the fire!"

The butcher obeyed tremblingly.

"Now, Ratz, you and I, we'll stand by the two cuttings in the door. You, butcher, look to the sides; and if anybody comes up to the house, you'd better shoot him. You can have a shot at either side. But don't allow any of the rascals to put their guns through the cuttings. Cheer up, boy, you are safe enough!"

Viola and Andor, gun in hand, stood by the door, keeping a look out through the small cuttings, or loop-holes, by which the walls of the building were pierced. The butcher walked to and fro in the background. He trembled violently, and vowed reformation if he could only manage to escape with his life.

"The birds are roosting!" cried a loud shrill voice, which evidently proceeded from Mr. Skinner. "They are there! I see a light in the hut. Is it

surrounded on all sides?"

Forty or fifty voices, which answered to this call, informed the robbers that there was no chance of escape. The butcher knelt down, and made the sign of the cross.

"You dog! I'll shoot you!" said Ratz Andor. "Stand up, and be a man. Stand by your cutting, and let fly at them!" The butcher obeyed.

"Robbers, I call on you to surrender!" cried Mr. Skinner. "If you refuse to surrender on this summons of the county, you are liable to be tried by court-martial."

All was silent in the hut, and the justice gave the word of command.

"At them, you rascals! Break the door. At them!"

A rush was made against the door; but before the axes of the assailants could touch it, the report of two muskets was heard. Two Pandurs fell; the rest retreated; and Ratz Andor shouted from the hut: "Come on!"

At that moment the butcher likewise fired his piece. He too brought down one of the judge's men. This frightened the besiegers, who turned and fled. They paused for a time. The robbers reloaded their muskets, while the besiegers assembled round Mr. Skinner and the inspector. Mr. Catspaw, with a modesty which did him infinite credit, kept at a distance.

"I don't see how we *can* catch them," said the inspector, leaning on his broad sabre, which had done good service in the insurrection of 1809, and of which the blade, which bore the mark of "Fringia," could not have been in better hands.

"Make another onset, and another and another!" cried the justice, stamping his foot. "Don't leave off until you've got them, the rascals, and bound them and hanged them!"

"I'll do it, if it can be done!"

"*Can* be done? There is nothing but *can* be done when I command!"

"Very well!" said the inspector, angrily. "It won't be *my* fault if it is not done. I'll stick to the mark any day if your men don't turn tail."

"If the fellows don't go, they are dogs and cowards! Knock them down, and be——"

"Well, sir, all I can say is, you'd better lead them to the charge, and knock them down at your liking, I'm not made for that sort of thing."

"No, sir!" said Mr. Skinner, doggedly. "That's not my post. It is my duty to superintend and conduct the affair."

"You're a——never mind! Go at them, my men!" shouted the inspector. The justice repeated the words of command with a still louder tone; and Mr. Catspaw's shrill voice was heard echoing the words from behind a distant oak. The inspector, flourishing his sword, and followed by the Pandurs and peasants, advanced towards the hut, but they were again fired at from within. The report of the muskets was followed by deep groans, which showed that the robbers had taken a good aim.

The Pandurs retreated. "On with you! Go on! before they've had time to charge! There's no danger now!" and the inspector, followed by a few of his boldest men, made another rush at the door. Another discharge! The inspector had his left arm broken, and one of the Pandurs was shot through the body.

"On! at them!" shouted the leader, nothing daunted; "they've got no powder now! On! on!" and, seizing an axe, he advanced again, while his men, partly because they believed that the robbers were short of ammunition, and partly yielding to the excitement of the combat, loaded their pieces and followed him. But musket after musket was fired by the robbers inside, and almost each shot took effect. The wailings of the wounded, the oaths of the besieged and the besiegers, the reports of the muskets, and the glaring flash which accompanied each discharge, were made still more fearful and startling by the darkness of the night; while the inspector's voice, as he urged his men on, was distinctly heard in the midst of the general confusion.

"Give me that piece!" shouted he, flinging his axe, and snatching a musket from the hand of a Pandur. "Now that's for you, Viola!" and he fired it into

the hut.

A scream and a heavy fall was heard. But before the inspector could vent his joy in words, the fire was returned from within, and the peasant who stood at his side had his skull shivered. "Give me another musket!" roared the inspector, but in vain; the Pandurs hastened back to the judge, who stood at a safe distance, cursing and urging the combatants on. Their leader, finding that he was left to fight the battle alone, returned likewise, with his shoulder pierced by a bullet.

"Why, you cursed rascals! how dare you come back? Where's the robber?" cried the intrepid judge, flinging down his pipe in a paroxysm of rage.

"Where is Viola? how dare you come back without him?"

Nobody answered. One of the Pandurs stooped for the pipe, which, strange to say, was not broken.

"Knock the ashes out and give it a good cleaning, you rogue! It won't draw!" said the justice; and, turning to the others, he proceeded: "Did I not order you to bring the robber? to seize him and bind him?"

"Your worship," said one of the men, "we did all that men can do. There are four of us killed, and half the rest wounded. They've broken the inspector's arm."

"There are at least ten robbers in the hut. The cuttings are black with the muzzles of their guns. It's quite impossible to go up."

"Impossible? who dares to say any thing is impossible? I'd like to see the man who dares to say it! Impossible? when *I* say it *is* possible! why you scurvy——"

"He's right!" said the inspector. "If you would take Viola, you must have better men than the like of these."

"But I say they shall take him! I'd like to know who is the master, you or I?"

"Your worship had better try. I've done my duty, and I'm done for, at least for this night. Both my hands are disabled; I am not a match for a child in arms."

Mr. Skinner shook his head.

"I was not aware, sir,—it's a pity you are wounded. The wounded must of course fall back. As for the rest, let them stand in a line. Well done! March! March! Ma——"

The word of command was broken off by another discharge from the hut, and the line, which had begun to move, fell back in disorder. As for Mr. Skinner, he took refuge behind a tree. He knew that his safety was essential to the success of the expedition.

"Forward, you cowards! March! March!" shouted he; but none obeyed.

"March! I say. Will you, or not?" screamed the justice, collaring the man who stood next to him.

"No, I will not!" said the man, as he slipped aside.

"You won't. Very well, sir, I'll pay you out for this! What's your name?"

"Kovatsh Miksha, a nobleman of St. Vilmosh. I will not go, even to please your God!"

"Oh, I beg your pardon! I did not know you! But who's this fellow?"

"That's my cousin, Andrash. He's a nobleman, and he won't go!"

"Why, where the deuce are the peasants?"

"Shot, or run away!"

"The rascals!" cried the judge; "the cowards! Never mind, I'll make them pay for it!"

"I beg your worship's pardon," interposed the inspector; "but my opinion is that we had better go home. We have done our duty, and there are only fifteen men here. The rest are either dead or run away. We have no chance of success. When Viola finds out how few there are of us, and that we cannot watch the hut on all sides, he will make his way out into the forest."

The justice was on the point of yielding, when Mr. Catspaw approached the group. He suggested another scheme. "Put fire to the hut," said he. "They

will find it too hot to hold them; they will come out; and when they do, you shoot them down." His advice was eagerly adopted. The inspector was frantic with joy, and a Pandur was at once sent off to carry the scheme into effect. The men of St. Vilmosh and the Pandurs took their places in the thicket, ready to fire at the robbers; and Mr. Skinner was so violent in expressing the pleasure he felt, that he swore twice as much as before.

The situation of the robbers was far worse than their assailants suspected. The shot, which the inspector had fired through the cutting, had pierced the broad chest of Ratz Andor. He lay on his back, groaning, and moving his limbs in a pool of blood. The butcher walked to and fro with alternate oaths and prayers, and cursing the day of his birth.

Viola was quiet and silent. He felt convinced that his hour had come, and he awaited death fearlessly. The thought of his family alone was a weight upon his heart. For a moment he thought of flight. There was a possibility of escape by breaking through the roof, and escaping from the back of the hut. But he looked at his old companion, who lay bleeding at his feet, and who had once saved his life. His resolution was taken. He could not leave that man in the hour of his agony. Immediately afterwards he heard them prepare for another attack, and he awaited his fate with firmness and resignation.

"Fire at them!" said Ratz Andor, when he heard the noise outside, "fire at them, to the last man!"

"We are short of bullets. There's plenty of powder, but no lead." Ratz Andor drew a deep breath.

"A thousand devils! is there no shot?"

"No. There's a gun and two pistols loaded—that's all."

"Give me a pistol!" whispered the robber, holding out his hand to Viola; and when his comrade, who understood the purport of the request, handed him the weapon, he clutched it with an eager hand, muttering—

"Let them come now! They won't take me alive, I warrant you!"

"I say!" whispered the butcher, pointing to Ratz Andor, "is he dead?"

"No; don't you see him breathing?"

"But he'll die!—don't you think he'll die! I say, Viola, don't you think we'd better surrender? Perhaps they'll grant us a pardon."

"A pardon? If they don't shoot us, I'll give you my word of honour they will hang us before to-morrow night."

"I don't mean a full pardon," whispered the wretch, as if choking with fear; "not to pardon us so that we may go about; but perhaps they'll lock us up—say five years, ten years, I would not mind twenty years, and whip us every month, and make us starve and work—I would not mind it in the least, if they don't hang us. Don't you think, Viola, they would pardon me, if I were to beseech them—if I were to go down upon my knees, intreating them to spare my life. You see, Viola, I am so young. I never killed anybody! I never hit any one to-night!"

"Poor fellow!" said Viola, as he gently disengaged his hand from the trembling grasp of his comrade, "don't tell these things to me—tell your judges.—But what is this!" cried he, pointing to a corner of the hut—"what is that smoke?"

"The hut is on fire!"

"Hurrah!"

"Let fly at them! Exterminate them! Kick them back into the fire!" shouted Mr. Skinner, outside.

"They have put fire to the hut!" cried Viola, shuddering.

Ratz Andor opened his eyes, and, half leaning on his hands, he looked around. "Don't be caught alive;" gasped he, "and, if you can, shoot the judge, and die as a man!"

These were the robber's last words; for, raising his pistol, he pressed the muzzle to his head. His hot blood fell on Viola's hands.

"Our father!" groaned the butcher, kneeling down—"they'll burn us to cinders—which art in heaven—give me the bottle, I'll put it out—Heaven help us, it is brandy—it burns like hell—hallowed be thy name—Viola,

you're the death of us—and forgive us—why did you steal the notary's papers?"

At this juncture the miserable man raised the bottle to his lips and drank, until, overcome with the combined effects of the liquor and the smoke, he fell down by the side of Ratz Andor.

His last words reminded Viola of the papers, which he had forgotten in the excitement of the conflict. He was resolved to bury himself amidst the burning ruins of the hut. Susi need not then take her children to the gallows to show them their father's grave. But, as it was, he felt he was compelled to live. His family had received protection at Tengelyi's hands. The papers were of the greatest importance for the notary. He could not allow them to be burned, nor could he leave the world under a suspicion of having ruined his benefactor. It was utterly impossible.

The fire and the heat increased in violence and intensity. Viola's hair was singed, he could not breathe the hot air, he could not see. In another moment his escape from the hut was impossible. He seized the papers, opened the door, and rushed out.

Mr. Skinner's party had not for the last few minutes heard any sounds proceeding from the interior of the hut. They saw it in flames, and they saw that no attempt to leave it was made by the people inside. They felt convinced that the robbers had somehow or other effected their escape. The report of the pistol, by which Ratz Andor put a term to his sufferings, confirmed them in their opinion, for it caused them to believe that the explosion was owing to the fire having reached some weapon which had been left behind. Even Messrs. Skinner and Catspaw, though sorely disappointed, ventured to approach the hut; and so it happened that when Viola, gasping, half blind, and all but choked, left the hut, holding the papers, wrapped up in a cloak, in his hand, he ran into the clutches of these two men.

Mr. Catspaw snatched the papers from him and ran back, while the Pandurs hastened to the spot and surrounded Viola. The robber was unarmed; but his appearance, his notorious strength, and the terror of his name, which every one of his pursuers shouted, as if for the express purpose of frightening his fellows, made even the boldest cautious of coming too near him; if his hand

had held a weapon, if there had been strength in his arm, he might have broken through their ranks. But Viola did not think of resistance. His agonies, both of body and mind, had overcome the iron strength of his frame. He opened his eyes, but he could not see. His chest heaved violently; his arms trembled as he raised them to find a means of support. In another moment he lay senseless on the ground, and his enemies struggled for the honour of binding him. Mr. Skinner was obliged to exert the whole of his authority to put a stop to the frantic cheers of his followers, and arrangements were made to take the prisoner to St. Vilmosh, when low groans and cries for help were heard from the burning hut. They shuddered and were silent. Nothing was heard but the crackling of the fire and the loud wailing of the wretched man inside. At length one of the Pandurs stepped forward.

"I'll try to get him out!" said he.

He advanced.

A fearful explosion put a stop to his progress. The gunpowder, which the robbers kept in the hut, caught fire and finished the work of destruction. The wailing ceased with the flash of powder, which hurled the roof of the hut into the air and strewed the turf with its burning fragments. Mr. Skinner's party were horror-struck.

"Bad job that!" said the inspector, who was the first to recover from his surprise. "D—n the fellows!"

"Is it all over?" cried the justice, from his place of refuge behind a tree.

"Yes, your worship."

"But is there no more powder in the place?"

"It's in the nature of powder," said the inspector, "that it blows up in a lump. But your worship need not come here, for our business is done. I'll have the robber carried by some of the men."

Viola, who was still in a fainting state, was lifted on the shoulders of two strong fellows, and the whole troop proceeded towards St. Vilmosh.

"Did you get the papers?" whispered Mr. Skinner to Mr. Catspaw.

"Yes," whispered the attorney; "I've thrown them into the fire."

They turned into the thicket, and the scene of their violence was left lonely and desolate.

CHAP IV.

We will not attempt to describe Susi's feelings while this scene was enacting in her immediate neighbourhood. A short time after we left her on the banks of the Black Lake, the Gulyash and Peti returned from their reconnoitering expedition. They had identified the cutting by the reeds and the tree. When they returned, they secured the horses, and prepared to cross the water again. Peti led the way. He was followed by the Gulyash, who carried Susi on his back. But they had scarcely advanced to the middle of the ford, when they were startled by the reports of fire-arms and the shouts of the combatants.

"We are too late!" cried Susi; "take me to him, and let me die at his feet!"

A second discharge of musketry was heard. Some of the fugitive peasants fled in the direction of the lake. The Gulyash and his companions were sufficiently near the shore to hear their steps as they ran. The Gulyash was strong in hopes.

"Never fear, Susi!" said he; "don't you hear the rascals running away. There's not a man of them likes to come to close quarters with Viola."

Peti advanced. They reached the shore. But the affray recommenced in the forest. There was firing, shouting, curses, and the howling of the wounded.

Susi made a frantic rush from the side of the Gulyash; but the two men held her back. She knelt down. Her soul was full of Viola's danger. Did she not hear his enemies? Did they not seek his destruction? She would have prayed, but she could not pray. She tore her hair in the fulness of her despair,—she cursed; a light shone from the wood—a broad glaring light!

The triumphant shouts of the besiegers left no doubt as to its nature and origin. Susi rose, and wrung her hands.

"They have put fire to the hut! they will burn my husband!" screamed she. She fell back, and fainted in the gipsy's arms. When she recovered, and proceeded to the scene of the contest, all was quiet and still. No sound was heard, either of the victors or their prey. The spot was covered with splinters and fragments of wood, many of which were still burning. Their faint and uncertain light added to the desolate character and the gloom of the scene.

Susi was calm. Her boding heart had known the worst long before she came to the spot, and when she had reached it she stood in silence, covering her eyes with her hands. Peti and the Gulyash stood by her side; but neither spoke a word of comfort. They felt that such would have been a mockery in that hour and at that place.

"Peti!" said Susi at last, "get a light. There's plenty of wood on the ground. I want to look for my husband." Peti sighed, and prepared to obey. The Gulyash was far more shocked by the poor woman's calmness than by her former violence. Dashing the tears from his eyes, he said,—

"Susi, my soul, go to that knot of trees yonder. Sit down and take your rest, while we look for him; that is to say, not for your husband, for depend upon it he wasn't here at all, but it's the others we'll look for, in case an accident has happened to one of them. Be quiet, Susi," continued he, taking her hand; "I know your husband was not there; I'll take my oath on it he was not!"

The poor fellow knew that what he said was an untruth. He knew that the fire which Peti was lighting would probably show them Viola's mangled corpse amidst the ruins of the building, or else that Viola must be a captive in the hands of his bitterest enemies; but gladly would he have bartered his hopes of future salvation for one ray of hope to cheer the heart of that wretched woman.

"No, Ishtvan," said Susi; "I know all,—I am prepared for the worst. You won't find me troublesome when I see him half burned. Alas! I know it is better for him to lie dead in my arms, than to be alive and in the power of his enemies. Here, at least, his sufferings are ended."

"But why won't you believe me, if I tell you that Viola was not here? I'll be cursed if he was! Why the devil will you walk about in the smoke, looking for what you are sure not to find? This isn't a place for a woman; and if you were suddenly to set your eyes on something nasty you'd be the worse for it. Go back, Susi, I'll promise you we'll turn every stone in the place."

"I thank you, Ishtvan,—I thank you a thousand times for all you do for me," said Susi; "fear nothing: you see I am strong; and whatever may meet my eyes, it will but give me certainty, which is the best that can happen to me. If my husband be dead, we will bury him here in the forest. I shall know the place of his rest, and I can show it to my children, and weep with them."

"But I tell you Viola is not here," said the Gulyash. "Just suppose you were to see a fellow all scorched and burnt? I'll tell you it's not a sight for women. Why, if you were in good health I wouldn't mind it. Two years ago, when there was a fire in my Tanya, no less than two of my children were burnt to death; and my Lady Kishlaki, when she saw the poor things all black and——"

"I am not a My-lady. The like of her have a right to be shocked and to faint. I am a robber's wife, you know. I say, old man, if you could know what thoughts there have been in this poor head of mine ever since Viola became a robber, what dreams mine were when waiting for my husband the livelong day, or the long weary night, at home or on the heath; and when he did not come what horrible things I have thought of, and felt and wailed over,—oh, if you could but know it, as I am sure you can never know it, you'd not fear to see me shocked at any thing. The very worst that can happen to me is but *one* kind of misfortune; but I have suffered all torments of hell, and for long, long years too!"

The gipsy had meanwhile lighted a fire; and Susi walked over the ground. By the door lay the corpse of the St. Vilmosh peasant, who was shot at the inspector's side. Several other bodies were found at some distance, near the forest. Susi looked at them with intense anxiety; and then seizing a torch, she hastened forward, and held it over the ruins of the hut.

The sight was such, that even the old Gulyash himself shuddered. The fragments of the table still smouldering, muskets and pistols strewed about, and the two blackened corpses, presented so repulsive a spectacle, that none

could have resisted its influence, but those who are accustomed to the horrors of war. Susi examined the corpses, and said at length:

"He is not here. Neither of them has a silver ring on any of their fingers. Viola would never have lost his silver ring. My husband is a prisoner!"

"Nonsense! I dare say he——"

"What is this?" said Susi, stooping down and taking a double-barrelled gun from the ground; "that's my husband's gun! take it, and keep it for his sake."

"I will. Whenever I find him, he'll have his gun."

"May God bless you for your good will!" continued Susi, "to accompany me further would put you in danger. Peti will come with me to St. Vilmosh, for it is there, I am sure, my husband is."

They separated. The Gulyash returned to his horses, while Susi and Peti hastened to St. Vilmosh, where the first burst of excitement at the capture of the robbers had by this time subsided. The justice and the attorney had gone to bed. The villagers who had taken part in the expedition had, some of them, retired to rest; while the others drowned their cares and the recollection of their dangers in the bad wine of the public-houses. Viola, whom they had put under the shed of the council-house, where he was guarded by a chosen body of haiduks and peasants, had fallen asleep.

The wretched man awoke to consciousness as they dragged him through the forest to St. Vilmosh; and looking round, by the fitful glare of the torches which the Pandurs carried, he became sensible of his desperate condition. His thoughts returned at once to Tengelyi's papers. When he left the burning hut, he was so confused, so blinded, so maddened, that he had no idea of what had become of them, or who had taken them from him. He questioned his escort; but those whom he asked refused to reply to his questions. One man only told him, when he left the hut, the persons next to him had been the justice and the attorney; and that one of them had indeed snatched a parcel from his hand.

From the moment Viola found himself in the power of his enemies, he made no resistance to any thing they did to him. The violence and ill-treatment to which they subjected him elicited no complaint from his lips. When they

came to St. Vilmosh, where they placed him under the shed, the justice stepped up and told them to bind him so as to wound his hands, to prevent his escape. Viola asked him what had become of the papers? But the justice replied, with many oaths, that he had no business to ask any questions; and what the devil he meant? Viola saw clearly that Mr. Skinner was prepared to deny any knowledge of the papers; or else that they must have fallen into the hands of Mr. Catspaw, who, from his previous exertions to obtain them, was not likely to restore them to the rightful owner.

"For this then did I surrender! for this I am going to be hanged!" sighed he, when they left him alone with his sentinels,— "why did I not stay in the hut? Why did I not shoot myself, as Ratz Andor did? All is over for them; but I must die an infamous death—and for no purpose too! I could not save the notary's papers. God cursed me in the hour of my birth! Did I not often attempt to return to the paths of honesty? and when every means of doing so was taken away from me, did I not do all I could to prove my gratitude for the only kindness that was ever shown me? Did I not do my best to help the notary? And what has come of it? No, God will not allow me to be good and honest; and I must die on the gallows! Very well, what must be, must be! a man cannot oppose his fate!"

Thoughts like these, joined to that feeling of lassitude which follows extreme fatigue, restored Viola to his usual calmness; and a deep sleep buried the misfortunes of the day, for a time, in forgetfulness. Peti, who, leaving Susi at a distance from the village, proceeded alone to the council-house, found him in this condition. He was not allowed to enter the yard; for, by the express order of the justice, even the sentinels were forbidden to speak to Viola, or to reply to any of his questions. But Peti conversed with a sentinel at the gate, whom he told that he was just come back from Dustbury. The man, in his turn, told him of the capture of Viola, and that the robber was to be brought to Kishlak, where the court-martial was to assemble; and likewise, that a horseman had been sent to Dustbury to summon old Kishlaki, who was the president of the court-martial in this district. The gipsy cast a rueful look at the shed where Viola lay on the floor, and turning away, he hastened to the place where he had left Susi.

"Have you seen him?" said she, hastening to meet him when he approached.

"I have. He is in the council-house."

"Is he *in* the house?"

"No!—that is to say, not wholly. No—not in the house. Under the shed, you know."

"In the open air!" cried Susi, wringing her hands. "Oh, God! and the night is so cold; and he in the open air!"

"No! not in the open air—at least not quite. There's a roof to the shed."

"Has he a bunda?" continued Susi. And as she spoke she stripped herself of her own wrapper. "Tell me if he has not, for I wish to send him this."

"Oh, but he has! He has a large bunda. He is asleep." Susi grasped the gipsy's hand.

"Asleep? Did you say asleep? And do they see him sleeping? And you're sure they think it is sound, genuine sleep? They do not suspect him of pretending to sleep—do they?"

"But why should they suspect him of that?"

"What do they think of it? Can they not see that my husband is innocent? Who ever heard of a criminal's sleeping? Speak, Peti—tell me—what do they say to it?"

Peti answered that he had not spoken to anybody, but that there were some hopes of Viola's escape. He added:

"Early in the morning they mean to take him to Kishlak. If you want to speak to him, you must do it there. You can't do it at St. Vilmosh. They won't allow anybody to speak to him."

"I know it all," sighed Susi. "At Kishlak they will hold a court-martial, and hang him. They do not care for his innocence, nor for his quiet conscience, nor for his sleeping more soundly on the hard cold ground than they do in their beds! They want his life, and they will have it; but come, come! come along to Kishlak. I must see him!"

"You poor woman! You are not able to walk to Kishlak."

"Whom do you mean? Not me? Why should I spare my feet? I shall not want them much longer!"

But Peti was obstinate: he would not hear of Susi's walking. He knew the smith of the place, who, as a gipsy, was compelled to live at some distance from the village. This man willingly offered the loan of his horse and cart, and, on Peti's suggestion, he volunteered to drive Susi to Kishlak; while Peti himself set off to Tissaret, to inform the notary of what had happened, and to bring Viola's children to their father.

CHAP. V.

Mr. Skinner had meanwhile sent an official despatch to Kishlak, in which he informed his friend, Kishlaki's steward, of what had happened; desiring him, at the same time, to make due preparations for the sitting of the court-martial, and the incarceration and execution of the prisoner. This letter, which reached Kishlak before break of day, put the whole place in commotion. The stout steward, whose fear of all exercise, no matter whether mental or bodily, was so great that it was said of him, that the only reason why they kept him at Kishlak was because he was a living example of the results of high feeding,—even he rose with the sun, and put on his best coat with silver buttons. He walked about the yard with the carpenter and the butler, who had jointly undertaken to build the gallows.

"We must make it comfortable, you know," said he, alluding to the reception of the guests; and turning to the carpenter, he added, "Do your best to make it high and strong. I trust they'll take care of the servants. It's hardly my province, but I'll warrant you the gentlemen will not complain of the accommodation. You'd better make a good strong wedge in this place, it's there we'll tie him up; and don't let the men go out to-day, I'll have them all to witness the execution. It'll do them good to see something of the kind. The engine, too, ought to be looked after, in case there should be a fire." In this way he went on, every now and then wiping his forehead and exclaiming, "Dear me, how hot it is! I'm done up with all this trouble, done up, I tell you!" To which his companions sighed their assent.

The news of the assembling of the first court-martial under Mr. Kishlaki's superintendence, caused a still greater excitement in the house. There is no denying that the steward came out strong; indeed such was his activity, that whoever saw him was induced to regret that there was not a permanent court-martial sitting at Kishlak, in which case that corpulent and meritorious person would have figured as an active member of society; but after all he was repaid for all his troubles by the sense of his personal dignity. That day formed an epoch in his life. It was a day to think of, and to talk of, and to count the years by.

Not so Lady Kishlaki. She was anxious, and all but desponding; and when the steward told her that the court were to assemble in her house, and that the criminal was to be hanged on her own land, she wrung her hands as if the greatest misfortune had happened to her.

"Why do they come to us, of all the people in the world? My goodness! is not the county large enough? Must they needs hang that robber here, under my very nose?"

The steward was far more alive to and sensible of the distinction which the event gave to the village.

"Your ladyship forgets," said he, "that my lord, in his quality as the late and illustrious sheriff, has been appointed to the post of a president of the courts-martial in the district of Tissaret, which, if your ladyship will condescend to remember, will satisfy your ladyship that the high respect and signal honour——"

"Signal fiddlesticks!" cried Lady Kishlaki. "I'll never dare to walk in and out of my own house, if they hang the fellow in my yard."

"Your ladyship is graciously pleased to be mistaken," said the corpulent steward. "An impressive example of this kind has an excellent effect upon the safety of person and property. I know of a similar case, which happened in another county. For a period of not less than two years, I assure your ladyship, the county was a scene of incessant depredations, robberies, and worse. At length two men were arrested and hanged; and from that day there was an end of all murders and robberies. One of the parties was quite a stranger to the gang, and as innocent as the unborn babe. But they hanged

him, and I assure your ladyship the effect was marvellous. I am happy we are going to hang a man: it's a blessing to the county, a genuine blessing, your ladyship!"

"Nonsense! The robbers never did us any harm."

"No, not exactly; but if your ladyship will condescend to look at the bill of the Gulyash, your ladyship will be pleased to find that what they have eaten on your ladyship's land amounts to the value of a good substantial theft."

"I'd rather lose twenty times the value, than see a man hanged, and on my own land too," said Lady Kishlaki, turning away to make due arrangements for the reception of her guests; while the steward marvelled at his lady's peculiar frame of mind, and her greater fear of a dead robber than of a living one. Having pondered on the matter until he arrived at that comfortable state of hopeless confusion which is so familiar to stout people's minds, he repeated his orders to the lower officials, and marched to and fro in the hall, smoking his pipe, and awaiting the arrival of the prisoner and the judges. The villagers, too, were crowded in front of the gate, where they stood eager, curious, and alarmed.

Kishlak is at the distance of a German mile from St. Vilmosh; when the waters are high, it takes a man at least three hours to walk from one place to the other; but in spite of the distance, Mr. Skinner, his clerk, and his prisoners, reached Kishlak first. They were followed by Mr. Catspaw, who had gone round by Tissaret. After him came the master of the house, and the judges whom he brought from Dustbury. The latter party made their appearance in two carriages, of which one was honoured by the weight of Kishlaki and Baron Shoskutty, while the second held the assessor Zatonyi, and the recorder's substitute, Mr. Völgyeshy. The recorder sent him principally because he knew that the court was in want of the services of a notary, the functions of which office were far too much beneath the recorder's dignity to allow of his executing them. He therefore sent Völgyeshy, a young man who had just been appointed to his office, who was eager to be employed, and whose knowledge of law enabled him to assist the court with his advice. Völgyeshy's appearance was by no means agreeable. He was small, sickly, and ill-made, and his face was strongly marked with small-pox; but he was a man of great learning, and as modest

as he was clever. He was a general favourite at Dustbury; old Kishlaki, who felt even more shocked than his wife when he heard of Viola's capture, and of his being called to preside over the court-martial, shared the joy of Baron Shoskuty and the assessor, when they were informed of the recorder's intention to send his substitute to act as notary. Baron Shoskuty was happy, because he knew that Völgyeshy was a good hand at law; Kishlaki because he was a good hand at cards; and the assessor, because the young man would listen to any stories, no matter of what length and dullness. When the party arrived, they found Messrs. Skinner and Catspaw—"arcades ambo; id est, blackguards both,"—awaiting them. Mr. Catspaw rubbed his hands for joy when he saw that none of the members of the court were likely to cross his plans by an excess of philanthropy.

The lady of the house, too, hastened to the door to receive her guests, and to offer them breakfast, which Mr. Catspaw volunteered to decline for himself and partners, saying that it was eleven o'clock, and that they must make haste to commence business.

"We cannot possibly get through the case to-day," observed Mr. Kishlaki.

"And why not, *domine spectabilis*? Why not?" asked the assessor. "Please to consider that the court-martial must sit till the execution is over; and to-morrow I must be at home, for there's the ploughing and the potato harvest."

"Of course!" cried Shoskuty. "We are commissioners of courts-martial, and a court-martial we are bound to make of it. The culprit is in attendance, we are five commissioners; my young friend Völgyeshy has come to assist us. It will take him just ten minutes to write the verdict. God forbid," continued he, with a low bow to the lady of the house, "God forbid that we should trouble your ladyship longer than we can help!"

"No trouble, indeed; no trouble whatever!" cried Lady Kishlaki, with a burst of genuine good-natured hospitality; "but I trust you do not mean to hang the poor fellow?"

"Of course we do!" laughed the assessor. "I've sat in fifteen courts-martial in the course of my life, and we never rose without hanging the culprit. Courts-martial are for that sort of thing, you know."

Lady Kishlaki had been solicited by Viola's wife to interfere in her husband's behalf. The good old lady did all she could for the poor woman. She assigned a room to her and the children, and, moved by Susi's entreaties, she promised to save Viola's life, if a woman's tongue could save it. But the determined tone in which the assessor delivered his last sentence, showed her how little hope there was. She replied, nevertheless, that Viola was perhaps less guilty than people fancied.

"I most humbly beg your ladyship's pardon," replied Baron Shoskutty, with his proverbial politeness; "whether his guilt be greater or lesser, it's all the same to us. The only question to ask is, 'Is the prisoner a robber or not?' We do not care whether he killed a hundred people, or whether he never took human life, whether he stole a million or a fourpenny piece; all we ask is; is he a robber? and how was he taken? If taken in arms, and in the fact of actual resistance, we hang him, so please your ladyship."

"But it does not please my ladyship. You cannot possibly hang the poor fellow for a few pence!"

"Nothing more simple," said the assessor, with great unction, "if the case come within the jurisdiction of a court-martial. I have seen cases in which the man whom we hanged would have been let off with a fortnight's confinement by the ordinary courts; but as he fell into our hands, we tied him up."

"I am a weak and ignorant woman," retorted Lady Kishlaki, with increasing vehemence; "but if I'd been there, I'll warrant you, you would not have done it!"

"Of course not! Nothing more natural!" replied Baron Shoskutty, who never let an opportunity go by of paying a compliment to a lady; "your ladyship is the milk, nay, the cream of human kindness! We are rude and uncharitable men. The county has sent us to make an example, and we are bound to make one."

"I beg your pardon," said Mr. Catspaw, who had given unmistakeable signs of impatience; "time presses,—hadn't we better begin?"

"If you like," said Kishlaki, greatly confused, "we have to examine the witnesses and——"

"We'll soon get the better of the witnesses," said Mr. Skinner. "There is no difficulty in the case. We'd get twice through it before dinner time."

"Viola is as guilty as anybody ever was!" cried Mr. Catspaw, as he walked to the door.

"If he is, it will be shown by the evidence," said a loud sonorous voice; "one ought never to pre-judge a case."

Everybody looked at Völgyeshy, who had spoken the last sentence. The attorney walked up to Mr. Skinner and whispered: "I don't like the fellow!" But Lady Kishlaki, who had hitherto paid no attention to the ill-favoured young man, looked kindly at him.

"You are right," said she; "it's hard that a man should be judged before his case has been inquired into. I know you will pity him."

"I am not an assessor, and have no vote," replied Mr. Völgyeshy, as he left the room with the rest of the party. Mr. Kishlaki remained alone with his wife.

"Consider, Valentine," said she, taking him by the hand—"consider that a sentence of death cannot be pronounced unless the judges are unanimous. Every one of you is highly responsible for the death of this man."

"I know, my love; and if it depends on me—that is to say, if it is possible—I am not bloodthirsty, you know, but——"

"I know you must do your duty; but pray consider that the life of a man, if once taken, cannot be restored!"

"I will do all I can!" sighed the old man, cursing the day on which he accepted his office; and leaving the room, he followed his colleagues to the steward's office, where everything was prepared for the accommodation of the court. Servants, and peasants armed with pitchforks, were posted at the gate to keep the crowd at a distance. Under the shed stood Viola, tied to a post and surrounded by haiduks and Pandurs. In the hall were Tzifra, and Jantshy, the glazier, who had been summoned as witnesses for the prosecution; and at a distance stood the Liptaka and the smith of Tissaret, who volunteered to give evidence for the defence.

"God have mercy upon his soul!" said the Liptaka. "I have little hope."

"So have I," said the smith; "and the thing which grieves me most is that the two rascals there are going to escape," he added, pointing at Tzifra and the Jew.

"I'd like to know who'll hang him!" said an old woman to her neighbour. "I trust they'll have a clever hangman! They say people suffer dreadfully if the hangman does not know his trade."

"Indeed, I heard them say that there's a gipsy that'll hang him. Mayhap it's the sheriff's gipsy. Look there!—there he is. Look how he casts his eyes around! Dear me! I'm afraid of him!"

"Don't talk such nonsense, Verush," said an old man; "Peti is Viola's friend. It's he that brought the children from Tissaret. Did you not see him talking to Viola's wife? Susi would not talk to him in that way, if he were the man that is to hang her husband. Not even yourself would have done that when your husband was alive. But I say, Verush, you'd not occasion for a hangman, eh? You are the woman can worry a man to death and be never the worse for it, eh?"

"How dare you say so!" screamed the widow. "Didn't I have a doctor in his last illness?"

"Never mind!" said another woman. "Tell me who is going to hang him."

"I don't know," said the man.

"Perhaps they won't hang him. They'll give him a pardon."

"A pardon, indeed!" said the man. "Don't you see it's a court-martial. You may whistle for a pardon, if you please."

"What *is* a court-martial?"

"Why! don't you know? A court-martial is—why it's that the gentlemen sit down together and consult, and hang some one. That's as it ought to be."

"But suppose no one hangs him?"

"How can you ask such stupid questions? To hang a man you must have him first; but who ever heard of a man being sentenced to hanging and let off for the want of a hangman?"

"Just so; but suppose it *were* to happen after all? What then?"

"Hang me if I know! perhaps the gentlemen themselves will hang him, or they'll hang themselves with disappointment and vexation."^[25]

^[25] See [Note VIII](#).

The proceedings of the court commenced meanwhile by the swearing in of the judges, the reading of the articles of court-martial, and by Mr. Skinner's laying on the table a written form of indictment, or, in Hungarian judicial language, the "*species facti*." Mr. Völgyeshy's conduct, while these preliminary forms were being got through, was such as to fill the judges with astonishment and disgust. Not only did he read the articles with a loud, clear voice, slowly enunciating and pronouncing every word, instead of giving merely the heads of the various paragraphs; but he also interrupted Mr. Skinner, who wished to relieve the dullness of the lecture by a friendly chat with his neighbour on the bench, by reminding him that the articles were read for the purpose of being listened to. But the disgust of the court was infinitely increased when, after the reading of the "*species facti*," and when they were just in the act of sending for the prisoner, Völgyeshy stopped the proceedings by protesting that the "*species facti*" was by no means such as to warrant the jurisdiction of a court-martial in the present case.

"Not warrant the jurisdiction of a court-martial!" said Mr. Skinner; "and how dare you, Mr. Völgyeshy, dare to say so to *me*—the oldest judge of the county? On my word and honour, sir, you come it strong, sir!"

"You are mistaken if you misconstrue my words into an intention of offering you an insult."

"Intention? Insult? Why, sir, it is an insult! it's a downright, root-and-branch, roaring insult, that's what it is!" shouted Mr. Skinner; and, turning to the court, he continued:—

"I intreat this praiseworthy court to consider chapter vi. paragraph 8., where it is provided that '*A recital of the facts is to be submitted to the court, stating the crime of which the prisoner stands accused, his Christian and surname, and his age, the latter to be written with words and letters instead of with the signs of numbers, &c. &c.*'

"Now look at my report! Does it not state the facts, the crimes, the names of the prisoner? does it not state his age, and, you will observe, his age according to the instructions? Does this gentleman mean to insinuate that I am not able to write a '*species facti*?' that I am too stupid to take a man's age down according to instructions? This is the worst thing I ever heard of! It's downright pettifogging, that it is; and I won't be treated in this way, that I won't, no, not by any man, and least of all by you, sir!"

The president and the assessors did their best to calm the fury of the worthy magistrate; but if that fury was intended to prevent Völgyeshy from urging his protest, it proved a signal failure, for the young man persisted in declaring that he was fully convinced of Mr. Skinner's ability to make out a correct statement of the facts, but that this very correct and authentic statement of the facts did not show that the robber had been overtaken and captured in the course of an *uninterrupted pursuit*; "for this," added Mr. Völgyeshy, "is one of the first conditions of a case for a court-martial."

"Not an uninterrupted pursuit!" roared Mr. Skinner; "why, a price has been offered for his head; for months he has been hunted through the county, and here's this lad wants to deny the uninterrupted pursuit!"

"Just so, *domine spectabilis*!" said the assessor, smiling; "it's the worst plea I ever heard of,—*denique*, our friend is young. But let us see the culprit."

"And I tell you again," said Völgyeshy, "that this report does not prove an uninterrupted pursuit. Viola's last crime was his theft in the house of the notary of Tissaret, and the pursuit was neither instantaneous nor uninterrupted."

"If it's not a case for a court-martial," said Kishlaki, eager to escape from the discharge of his painful duties, "we had better send it to the sessions. For inasmuch——"

"For God's sake, do not say so! What a shame if Viola were to go to the sessions! I am sure they'd rob us of the right of court-martial; and it would serve us right, if we were to allow such a case to escape us."

"It seems Mr. Völgyeshy is not aware that courts-martial are held to try and execute thieves and robbers," said Mr. Catspaw; "and that in the case of any such person being pursued, and making an armed resistance, there can be no question as to the jurisdiction of the court."

"I am fully aware of it, sir; but in what manner does this report show that Viola is a robber?"

Here the assessor Zatonyi held up his hands.

"How is it shown?" said he; "does not the report set forth that Viola is a robber? Don't you see *r-o-b-b-e-r*? If that does not mean robber, I'll try myself by court-martial, and hang myself too."

"I beg your pardon," cried Baron Shoskuty, "I will explain the matter to Mr. Völgyeshy. He is young, and wants experience; for such things are not to be learnt from books. You see, sir, the articles of courts-martial give us long explanations about the cases and individuals to which the term of robber applies. These explanations are very good in their way; excellent, sir! but, sir, they are not practical. *He* is a robber in Hungary whom public opinion designates as such. *Vox populi, vox dei!* and if such a person resists an arrest, he is *de jure* tried by court-martial, and hanged."

"Merely for resisting the arrest?"

"Yes," said Baron Shoskuty, majestically, "merely for that reason. Resistance to the law is criminal, except in the case of noblemen."

"But surely we are not here to discuss law matters," said the assessor.

"Besides, Mr. Völgyeshy has no vote. If any of the other gentlemen stick to the question, we'll divide, and there's an end of it."

"All this is very well," said Kishlaki, "but I'd like——"

"I say *luce meridiana clarius!* brighter than the light of day. The case is within our jurisdiction. But no matter—let us divide."

The result of the division was that the witnesses were called in. The examination showed the most astonishing correctness of Tzifra's former evidence; every point of which was confirmed by the statements of Jantshi, the Jewish glazier. When the witnesses were sent out of court, Zatonyi offered his snuff-box to the court, saying:—

"*Duo testes omni exceptione majores*. Two honest witnesses——; why, gentlemen, there can be no doubt——"

"Indeed!" sighed Kishlaki, "and they swore to their depositions. When that Jew cursed himself as he did, I could not help shuddering. They cannot possibly tell us an untruth!"

The justice spat on the floor with joy, protesting that he had never met with better witnesses.

"I beg your pardon, sir," said Völgyeshy; "I, for my part, cannot believe a word of the evidence. These witnesses tell us much the same story, but then it is too much the same story; in short, my opinion is, that it is a got-up story."

"This is too bad! indeed it is!" said Zatonyi, "to doubt the truth of the evidence because the witnesses agree in their statement of the facts. I never heard of such a thing!"

"Nor I!" cried Shoskutiy. "To think that the depositions of the two witnesses should be exactly alike, even in the smallest particular, and to hear this gentleman speak of got-up stories and the like,—really it *is* too bad. *Denique*, he is an advocate."

"And proud of his profession!" interposed Völgyeshy. "But still, it is my duty to inform the court that the extraordinary harmony in the depositions of the two witnesses has convinced me of——"

"If you think so," said Kishlaki, "I think we had better——"

"He does not think so," said Mr. Catspaw, with a forced smile. "It's our nature, sir; we cannot help it. We are fond of desperate cases, we dote on them. The more desperate a case is, the greater the pleasure it gives an advocate to stop or delay the proceedings."

"Mr. Catspaw is mistaken," said Völgyeshy; "the question is far too serious to admit of any joking. But I appeal to you; tell me, is not Tzifra notorious for being a thief and a robber?"

"Certainly not!" cried Mr. Skinner. "Janosh St. Vilmoshy—for the court ought not to deal in slang and in nicknames—Janosh St. Vilmoshy, I say, is an honest man. Ever since he was dismissed from gaol, he has led a better life. He has cut Viola and his gang; and, in short, done his best to blow upon the prisoner."

"Very well!" said Völgyeshy; "for the sake of argument we will grant that this fellow, Tzifra, or Janosh St. Vilmoshy, or whatever his name may be, is an honest man, after having been a robber all his life, and after having passed the greater part of it in the county gaol. Now what does he depose? Firstly, that Viola informed him of his intention to commit the robbery. Now this is incredible, if we are to believe that the witness spurned his former associates, and turned to an honest life. But let us go on. Why, if this Janosh St. Vilmoshy knew of the intended robbery, why did he not step in and prevent it?"

"Yes! yes! this time you are wrong, Skinner," said Kishlaki; "he cannot possibly be an honest man."

Mr. Skinner looked confounded. Völgyeshy went on:—

"In the second instance, the witness declares that on the night of the robbery he walked up to the village of Tissaret, when he was startled by the report of a gun and by Viola's appearance, who ran past him carrying the said gun in his hand. Now why did the witness go to Tissaret? Why was he not at Dustbury, to vote at the election? How does it happen that no one saw him at Tissaret? and why did he come all the way from Dustbury, and at night too, unless he had some business of some kind with somebody in the village?"

"Indeed this looks very suspicious, very suspicious,—on my soul it does!" said Kishlaki; and the assessor, taking a pinch of snuff, declared that their best plan would be to arrest Tzifra too, and to put him in irons.

"Very well. Now all I ask is, where are your credible witnesses? You ought to have two, you know," said Völgyeshy, with a great feeling of superiority.

"Ah!" said the assessor. "A most judicious remark, on my soul! We cannot at present proceed against Tzifra, because we want his evidence."

"But we can never ground a capital sentence on the evidence of such a person!"

"You have no vote, sir!" replied Zatonyi; "and we, who have a vote, do not ask your advice. Had we not better send for the prisoner?" added he, turning to Kishlaki.

Völgyeshy sighed, and the court had just resolved to send for the prisoner, when it was said that two witnesses wished to be examined, and, the president having given his permission, the old Liptaka entered the apartment. The old woman made no mention of the fact of her having seen Viola in Tissaret on the night of the robbery. She protested that the prisoner was under such great obligations to the notary, that he could not possibly have been guilty of so atrocious a crime; and further, that Viola, whose wife was her friend and relative, had many weeks ago informed her of a plot to steal the notary's papers, bidding her at the same time put the notary on his guard.

"And who did Viola say were they that intended to steal the papers?" said Mr. Skinner, with a sneer.

"He did not mention any names, but he spoke of some great people."

"Stuff and nonsense!" cried Mr. Catspaw.

"I swear it; it's the truth!" said the old woman. "I've told it on my oath, and I would not tell a lie,—no, not for all the treasures on earth!"

"Did you give Viola's message to the notary?"

The woman was silent.

"Speak out, my good woman!" said Kishlaki; "you have no cause to fear."

"I know it, sir, and I cannot tell a lie, though I would. I will confess that I did not say any thing to the notary, because I was afraid old Tengelyi would send Susi away, if he were to know that Viola had entered his house."

Messrs. Skinner and Catspaw looked at each other and smiled.

"Is this all you have to say?" asked Mr. Catspaw.

"Yes, sir."

"Very well; you may go."

She was followed by the smith, who deposed that after the report of the gun he hastened to the notary's house, and pursued the murderer, whom he identified as Tzifra. He swore that the person he had pursued was Tzifra, not Viola.

The second witness having been dismissed, and his depositions taken down in writing, the two witnesses were called back for the purpose of signing the depositions. This done, the court sent for Viola. Mr. Skinner meanwhile did his best to discredit the statements of the last two witnesses, whose evidence, he protested, was not worth the paper it was written on.

"That old hag," said he, "is Viola's kinswoman. Her evidence is quite inadmissible; and as for the smith, he is always drunk, especially at night, and nothing is more likely than his mistaking Viola for Tzifra."

"Very true," said Kishlaki.

"Nevertheless the evidence is deserving of some consideration," interposed Völgyeshy, "especially respecting the credit to be placed in Tzifra's, or, if Mr. Skinner likes it better, in Mr. St. Vilmoshy's statements. The very man who commits the crime has often been found to depose against another."

"There is a deal of truth in that," said Kishlaki.

"I say!" cried Zatonyi, "that's a bright idea! We'll hang them both."

"Nonsense, *amice*!" said Shoskuty; "the other man is not before the court-martial."

"If you arraign him, you may do so," said the assessor. "I know of a precedent. I know of a thief who was just on the point of being turned off, when he saw an accomplice among the crowd. He points him out; the judge sends his men to arrest him. The fellow runs away, they overtake him, and,

by G—d! the rascal shows fight. Was it not glorious! They take him back and hang him, on the spur of the moment, by the side of the other fellow; and the judge put into his report that he had hanged two thieves instead of one."

"Devil of a mess he got himself into," said Shoskuty. "Queer notion that!"

"Mess? oh yes, he got into a mess; for now-a-days there's not a knave so bad but he finds somebody who takes his cause up: and, in short, they tell me the judge would have lost his place if he had not resigned, but that was all."

"It was a murder!" cried Völgyeshy—"neither more nor less than a murder!"

"My friend," said the assessor, with a pitying glance at Völgyeshy, "*denique*, you don't know the world. However, I do not mean to urge my view of the case: all I can say is, it's a pity if we do not hang the two. But here's the prisoner!"

The door opened, and Viola entered, chained, and surrounded by armed men.

CHAP. VI.

The appearance of the prisoner produced a profound sensation in the court. Kishlaki felt deep pity for his misfortunes, though he could not but admit that his fate was in part merited. Völgyeshy, who had heard enough to convince him that there was no hope of the court pronouncing in favor of Viola, shuddered to think that the man whom he saw was doomed to die before sunset. Mr. Catspaw showed great uneasiness when he heard the rattling of the chains; and Shoskuty, who had never seen the robber, was quite as much excited by his curiosity as Mr. Skinner by the feelings of ill-dissembled triumph with which he watched the prisoner's features and carriage. Zatonyi alone preserved his habitual composure.

"At last you've put your head in the snare, you precious villain!" cried Mr. Skinner. "Well, what do you say? Whose turn is it to be hanged? Yours or mine, eh?"

The president of the court looked amazed; but Mr. Skinner laughed and said:

"Perhaps you are not aware of my former acquaintance with Viola? There's a bet between us two, who is to hang first; for that fellow has sworn to hang me, if ever I fall into his hands. Is it not so, Viola?"

"No!" said the prisoner, "it's not so. If I swore I would be revenged, it is well known that I had good cause for it; I have to thank this gentleman for my wretched life and shameful death. But I never vowed to hang you!"

"Never mind!" shouted the justice. "You are humble enough now that you are in the trap; but I am sure you would have kept your word, if you had been able to put your hands upon me. I, too, have sworn an oath, to hang you where I find you—now tell me who has the worst of it?"

"I know that all is over with me," replied Viola, fixing his dark eyes upon the justice; "there is no one to take my part—I know I must die; but it is cruel to insult a dying man."

Völgyeshy, who was scarcely able to repress his feelings, interfered, and protested in Latin that there was a vendetta between the accused and one of the judges, and that another judge must be found. But his protest had no other effect than an admonition, which the president gave Mr. Skinner in very bad Latin, to eschew such light and irrelevant conversation; and the court commenced forthwith to examine the prisoner.

Viola replied calmly and simply to the questions which were put to him; and at last, as though wearied by the length of the examination, he said:

"What is the use of all this questioning? It is a pity the gentlemen should lose their time with me. Mr. Skinner has told me that I am to be hanged; why, then, should I waste my words in an attempt to save my life? I'll confess any thing you like, I don't care what it is; for, believe me, if it had not been for my family, I would never have waited till this day. I would have hanged myself in the forest, to make an end of it, I assure you."

"But how can you possibly confess, when you are ignorant of what you are accused of?" said Völgyeshy. "You stand before righteous judges. Speak out, man, honestly and freely, as you would speak to God; for, believe me, the judges are by no means agreed upon your sentence."

"Thanks to you for your good will," said the culprit; "but I know there is no help. I am a robber; I have been taken in arms; they will hang me. They may do it; but let them make haste; and spare me your questions!"

Mr. Catspaw, who showed some uneasiness, interposed, and said:

"If he refuses to confess, we cannot force him: it is expressly set forth in the articles, that no violence is to be used to obtain a confession. Our best plan is to read the questions to him, and if he refuses to answer to them, why it's his own business, not ours."

"No!" said Völgyeshy; "this man ought to know that his fate does not depend on the decision of the worshipful Mr. Paul Skinner; that the court are prepared to listen to his defence, and that the verdict will be dictated neither by hate nor revenge, but by pure and impartial justice. If the prisoner knows all this, which it appears he does not, he may possibly be induced to reply to the charges."

He turned to Viola, and continued:

"Speak out, my man. Your life is in the hands of these gentlemen, who have to answer for it to God, your judge and theirs. Pray consider that unless you speak, there is no hope for you. Think of your family; and, tell us plainly, is there any thing you have to say for yourself?"

Kishlaki was deeply moved; Mr. Catspaw cast an angry look at the speaker; and Zatonyi yawned.

"I will not speak in my own defence!" said the prisoner.

"Pray consider," urged the young lawyer; "the court will listen to any thing you may say. These gentlemen have a painful duty to fulfil; but they are far from wishing to take your life. If you can give us any excuses, do so, by all means."

"It is provided, in Chapter 6. of the Articles, that the prisoner shall not be wheedled into a confession," said Zatonyi, with an expression of profound wisdom.

"Gentlemen," said Viola, at length, "may God bless you for your kindness, and for your wishing to help me! but, you see, it's all in vain. There are, indeed, many things I might say in defence; and when I go to my God, who knows all and every thing, I am sure He'll judge me leniently; but there is no salvation for me in this world. You see, your worships, there is no use of my telling you that, once upon a time, I was an honest man, as every man in the village of Tissaret can prove. What is the use of my saying that I became a robber not from my own free will, but because I was forced to it; that I never harmed any poor man; that I never took more from the gentry, in the way of robbing, than what was necessary to keep life in my body; and that I never killed any one, unless it was in self-defence? Am I the less punishable for saying all this? No. Whatever my comrades may have done is scored down to *my* account. I am a robber, and a dead man."

"All this may serve to modify the sentence. But what do you mean by saying that you were *forced* to be a robber?"

"Ask his worship, the justice of the district," said the prisoner, looking at Mr. Skinner: "he knows what made me a robber." And he proceeded to tell the tale of his first crime.

"It's true; it's as true as Gospel," sighed Kishlaki. "I came to Tissaret on the day after the thing had happened, when the sheriff told me all about it."

"*Nihil ad rem!*" said Zatonyi.

"But what does it avail me?" continued the prisoner, whose pale face became flushed as he spoke: "what can it avail me to tell you all the revolting cruelties which were practised against me, and which to think of gives me pain? Am I the less a robber? Will these things cause you to spare me? No; I ought to have suffered the stripes, and kissed the hands of my tyrant; or I ought to have left my wife in her darkest hour, because nothing would serve my lady but that *I* should drive her to Dustbury. How, then, could I, a good-for-nothing peasant^[26], dare to love my wife! How could I dare to resist when the justice told them to tie me to the whipping-post! But

I dared to do it. I was fool enough to fancy that I, though a peasant, had a right to remain with my wife; I could not understand that a poor man is a dog, which any body may beat and kick. Here I am, and you may hang me."

[26] See [Note IX](#).

"I'll tell you what, you'll swing fast enough, my fine fellow!" said Zatonyi, whose cynicism was not proof against the prisoner's last words. "What, man! hanging's too good for you; that's all I have to say!"

"You see, sir," said Viola, appealing to Völgyeshy, "you see, I told you there is nothing that can excuse me in the eyes of mankind. But there's a request I have to address to the court."

Mr. Catspaw trembled, as the prisoner went on.

"When I left the burning hut in which Ratz Andor shot himself, I held some papers in my hands, which were stolen from the house of the notary of Tissaret."

"So you confess to the robbery?" cried Zatonyi.

"No, sir; I do not. God knows, I am guiltless of that robbery," cried Viola, raising his hands to heaven: "but that's no matter. All I say is, that I had the papers, and that I took them away with me; and if you mean to prove by that that I committed the robbery, you may. I do not care: all I say is, that I took the papers with me."

"It's a lie!" murmured Mr. Skinner.

"No; it's not a lie: it's the truth, and nothing but the truth! When I left the hut I was blind and unarmed: I held the papers in my hands, and I felt some one snatch them away from me—I can take my oath on it!—and my senses left me; when I recovered I was bound, and in the hands of the Pandurs and peasants. They dragged me to St. Vilmosh. I asked for the papers, for they belong to Mr. Tengelyi; and it was for their sake I surrendered, because I did not wish them to be burnt; for they are the notary's important papers. But I understand that, when I left the hut, there was no one by except the justice and Mr. Catspaw; and the justice says that I had no papers. I most

humbly beseech the court to order the justice to give those papers to the rightful owner."

"May the devil take me by ounces if I've seen the least rag of paper!" cried Mr. Skinner.

"Sir," said Viola, "I am in your power: you may do with me as you please; you may hang me if you like; but, for God's sake! do not deny me the papers. I am under great obligations to Mr. Tengelyi. He relieved my family in the time of their distress; and I wish to show my gratitude by restoring those papers to him. I have come to suffer a disgraceful death——"

"You impertinent dog!" cried Mr. Skinner; "how dare you insinuate? how dare you say? how dare you—— I am insulted; I insist on the court giving me satisfaction."

"I am in the hands of the court," said the prisoner. "Beat me, kick me, torture me; but give me the papers!"

"I am sure it's a plot," whispered Mr. Catspaw to the assessor. "Tengelyi declares that his diplomas are gone. Who knows but he may be a patron of this fellow?"

"Nothing is more likely," replied the assessor.

"What, fellow! what, dog! do you mean to say that I *stole* the papers?"

"All I say is, that I *had* the papers in my hands, and that some person took them away. I wish the court would please to examine the Pandurs, who will tell you that nobody was near me but the justice and Mr. Catspaw."

"This is indeed strange," murmured Mr. Kishlaki. Mr. Skinner pushed his chair back, and cried,—

"The court cannot possibly suffer one of its members to be accused of theft!"

"Yes, too much is too much," said Zatonyi, with a burst of generous indignation: "if you do not revoke your words, and if you do not ask their worships' pardon, we will send you to the yard and have you whipped!"

Viola answered quietly, that he was in their worships' power, but that he would repeat what he had said to the last moment of his life; and Zatonyi was just about to send the prisoner away to be whipped, when Völgyeshy reminded him in Latin that the Sixth Chapter of the Articles made not only prohibition of what the assessor had been pleased to term "wheedling," but also of threats and ill-treatment.

Baron Shoskutty remarked, that the young lawyer's explanation of the articles was sheer nonsense, for the prisoner would not be under restraint, if Mr. Völgyeshy's commentaries were accepted as law. He might call the worshipful magistrates asses; nay, he might even go to the length of beating them, without suffering any other punishment than being hanged. This able rejoinder induced the judges to re-consider Mr. Zatonyi's proposition to inflict corporal punishment on the prisoner, and nobody can say what would have come of it, but for the firmness of Völgyeshy, who protested that he would inform the lord-lieutenant and the government of any act of violence to which they might subject the culprit. This threat had its effect. Baron Shoskutty, indeed, was heard to murmur against the impertinence of young men; while Mr. Zatonyi made some edifying reflections about sneaking informers: but this was all. No further mention was made of the whipping.

While the above conversation was being carried on in a tongue of which he could but catch the sounds, and not the meaning, Viola stood quietly by, although a lively interest in the words and motions of the speakers was expressed in his face. Messrs. Catspaw and Skinner conversed in a whisper. At length the attorney turned round and addressed the court:—

"As the prisoner has thought proper to accuse *me*," said he, "it is but right that I should be allowed to ask him a few questions. You said I was near you when you left the hut, did you not? Now tell me, did you see me at the time?"

"No, I did not; I was blind with the smoke and fire in the hut: but the peasants told me that the two gentlemen were near me, and I felt somebody snatch the papers from my hand."

"Do you mean to say that the smoke in the hut was very dense?"

"I could not see through it; at times the flames were so fierce that they nearly blinded me."

"But how did you manage to save the papers?"

"They lay by my side on my bunda. I seized them, and took them out. They were wrapped in a blue handkerchief."

"He speaks the truth," said Mr. Catspaw, smiling; "or, rather, he tells us what he believes to be the truth. He held something in his hand, when he rushed from the hut more like a beast than like a human creature, I assure you, my honourable friends. I was not at all sure whether it was not a weapon of defence; I snatched it away, and on examination I identified it as a most harmless handkerchief, which certainly was wrapped round some soft substance. But," continued he, addressing the prisoner, "if you fancy you saved the papers, my poor fellow, you are much mistaken, indeed you are! My dear Mr. Skinner, pray fetch the parcel which we took from Viola at the time of his capture."

Mr. Skinner rose and left the room.

"The papers were in the handkerchief, I'll swear!" said Viola; but his astonishment and rage were unbounded when the judge returned with the parcel, which, on examination, was found to contain a pair of cotton drawers. He knew it was the handkerchief, the same in which he had wrapped the papers, and yet they were not there! How could he prove that they had been stolen?

"I trust my honourable friends are convinced," said Mr. Catspaw, "that the wretched man has no intention of imposing upon the court. I believe, indeed nothing can be more probable than that he was possessed of Tengelyi's documents; and it is likewise very probable that he intended to save those papers; but, according to his own statement, he was half blind with the fire and smoke, and instead of the papers he took another parcel—some other booty perhaps. Nothing can be more natural——"

"Yes, indeed!" interposed Baron Shoskuty. "*Nemo omnibus!*—you know! Awkward mistakes will happen. Perhaps you will be pleased to remember the fire in the house of the receiver of revenues in the —— county. The poor man was so bewildered with fear, that all he managed to get out of the

house was a pair of old boots. The whole of the government money was burnt. The visiting justices found the money-box empty—empty, I say! All the bank notes were burnt, and nothing was left but a small heap of ashes."

"Gentlemen!----" said Viola at length; but Mr. Catspaw interrupted him.

"I implore my honourable friends not to resent any thing this wretched creature may say! I am sure he speaks from his conscience; nor is he deserving of chastisement. He is a prey to what we lawyers term '*Ignorantia invincibilis*!'"

"Of course! of course!" said Baron Shoskuty. "It's a legal remedy, you know."

"Gentlemen!" said the prisoner, "I am a poor condemned criminal; but the judge and Mr. Catspaw are mighty men. And I am doomed to appear this day before God's judgment-seat! What motive should I have for not telling you the truth? May I be damned now and for ever,—yes, and may God punish my children to the tenth generation,—if the papers were not in this very cloth!"

"I told you so!" said Mr. Catspaw, still smiling. "I knew it. This man is doting,—'*borné*,' to use a French term. He'd say the same if we were to put him on the rack!"

"It is all very natural," said he to the prisoner. "You've made a mistake, that's all. Pray be reasonable, and consider, if you had brought Mr. Tengelyi's papers from the hut, what reason could I, or Mr. Skinner, have for refusing to produce them?"

"Of course!" said Baron Shoskuty. "What reason could these gentlemen have? How is it possible to suppose such a thing?"

Viola was silent. He stood lost in deep and gloomy thoughts. At last he raised his head, and asked that the attendants might be sent away, adding, "I am in chains, and there are no less than six of you. You are safe, I assure you."

The room was cleared. Viola looked at Mr. Catspaw, and said:—

"What I have to tell you, will astonish you all, except Mr. Catspaw. I never wished to mention it, and I would not now allow the servants to hear it, for my wife and children live at Tissaret, and the Retys may perhaps be induced to pity the poor orphans. But if it is asked what reason the attorney can have for not producing the notary's papers, I will simply say that Mr. Catspaw is most likely to know his own mind and his own reasons, and good reasons they must be, to induce him to bribe somebody to steal the papers,—for, to tell you the truth, it was he who planned the robbery."

The attorney trembled.

"Really, this man *is* malicious!" cried he. "I am curious to know what can induce him to accuse an honest man of such a thing?"

"Don't listen to his nonsense!" said Baron Shoskuty.

But Mr. Völgyeshy insisted on the prisoner's being heard, and Viola told them the history of the robbery, from the evening on which he listened to the attorney's conversation with Lady Rety, to the night in which he seized the Jew in Tengelyi's house, knocked him down, and fled with the papers. The only circumstances which he did not mention were, the fact of his having been hid in the notary's house when Messrs. Catspaw and Skinner pursued him in Tissaret, and his conversations with the Liptaka and Peti. Mr. Catspaw listened with a smile of mingled fear and contempt; and when Viola ceased speaking, he asked for permission to put a few questions to the prisoner.

"Not, indeed," said he, "for the purpose of defending myself or Lady Rety against so ridiculous an accusation, but merely to convince this fellow of the holes, nay, of the large gaps, in his abominable tissue of falsehoods." And turning to Viola, he asked:—

"Did you inform anybody of the conversation which you pretend to have overheard between me and Lady Rety?"

"No, I did not."

"Pray consider my question. Is there any one to whom you said that some one wished to steal the notary's papers? We ought to know your associates. Now, did you not speak to Peti the gipsy, or to that old hag, the Liptaka?"

Viola persisted in denying the fact. He was too well aware of the disastrous consequences this avowal would have for his friends.

Mr. Catspaw went on.

"Where did you hide at the time we pursued you in Tissaret?"

Viola replied that he was not in Tissaret.

"Do you mean to say you were not in the village?"

"No!"

The attorney sent for the old Liptaka, to whom he read her depositions, from which it appeared that the prisoner attempted to inform Tengelyi of the intended robbery.

"What do you say to this evidence?" added he.

"That it is true, every word of it. I'll swear to the truth of my words!" said she.

"Viola has confessed," said Mr. Catspaw, "that he told you of the matter, when hiding in the notary's house, while we pursued him through Tissaret. Is there any truth in this statement?"

The Liptaka, feeling convinced that Viola must have confessed as much, said it was quite true, but that Tengelyi was ignorant of the prisoner's presence. The old woman was sent away, and Mr. Catspaw, turning to the court, asked triumphantly:—

"Did you ever hear of such impertinence? The prisoner protests that he did not inform anybody of the alleged intended robbery; and the old woman swears that Viola did inform her, for the purpose of cautioning the notary. Then, again, the old woman did not say any thing to the notary, without having any ostensible reason for not doing what she alleges she promised to do. The prisoner will have it that he was not in Tissaret at the time we pursued him; and the witness—why, gentlemen, the witness deposes that the subject in question was mentioned to her at that very time. I say, you great fool! if you had time for another batch of lies, I would advise you to

make out a better story. But let us go on. Who told you that the Jew and Tzifra intended to rob the notary?"

"I cannot answer that question," replied Viola.

"Indeed? What a pity! I'd like to know the gentleman who gives you such correct information; unless, indeed, you keep a '*familiaris*,'—a devil, I mean."

"The only thing I told you was, that I knew of the robbery."

"But how did you know of it?"

"The Jew and Tzifra talked about it in the pot-house near Dustbury."

"Were you present? Did you hear them?"

"No! I had it from a friend."

"I'm sure it was your '*familiaris*,'—your devil, you artful dodger!" said Mr. Catspaw, smiling; "but since you knew that the robbery was to take place, why did you not inform the justice of it?"

"I was outlawed; a prize was offered for my head."

"Indeed, so it was; but your friend, why did not he inform the proper authorities? Was he also *wanted*? and if so, why did he not inform Tengelyi, or Mr. Vandory, who I understand has likewise lost his papers?"

"I cannot tell you. Perhaps he did not find the notary. At all events, he knew that I would prevent the robbery, so he told me of it."

"A very extraordinary thing, this!" said Mr. Catspaw; "for a man to apply to a robber with a view to prevent a robbery! And you wanted to prevent the robbery, did you not? Now tell me, did you set about it by yourself? And what became of your comrade,—I mean the man who told you about it? Did he, too, go to Tissaret?"

"There was no occasion for it."

"Still it is very extraordinary that you should not have hunted in couples, knowing as you did that there were two men to commit the robbery. What a

capital thing for you if you could summon your comrades to explain it all! For if some went to Tissaret to prevent the robbery, there can be no harm in our knowing who your comrade is. He ought to be rewarded for his zeal."

"I had no comrade. I was alone!" said Viola.

"Very well, you were alone; let it be so. Whom did you see in the notary's house?"

"No one but the Jew; he who is now waiting in the hall."

"Did you see Tzifra?"

"No. The Jew alone was in the house."

"But the Jew swears that it was you who committed the robbery!"

"I don't care. I've said what I've said."

"Is there any thing else you have to say?"

"No."

"Very well. I've done with you," said the attorney, as he rang for the servants.

"Take him away," said he, as the haiduks made their appearance. Viola turned round and left the room.

CHAP. VII.

The contradictory statements of Viola and the Liptaka, and the character of improbability which seemed to swim on the very surface of the charge against Mr. Catspaw and Lady Rety, convinced the court that the whole of Viola's confession was a stupid and malicious attempt to save his life by means of another crime,—we quote Mr. Skinner's elegant address to his friends. Völgyeshy himself could not pretend to give a moment's belief to so utterly ridiculous a story.

"The business is as clear as daylight," said the assessor, at the close of Mr. Skinner's speech. "The culprit makes no denial. All we have to do is to make him sign his depositions, to confront him with the witnesses, and to pronounce the sentence. It's just two o'clock. The prisoner ought to have three hours to say his prayers in, and the sun sets before five. My opinion is that we ought to look sharp!"

"I do not see why," said Kishlaki, whose anxiety increased as the proceedings drew to a close.

"Why, indeed? Did I not tell you that I must go home to-night? There are the potatoes, and the ploughmen, and what not!"

"We ought, indeed, to make haste," cried Baron Shoskuty, who, it appeared, cared more for his dinner than for the sentence. "We cannot allow our beautiful hostess to wait dinner for us."

"You cannot finish the proceedings to-day!" interposed Völgyeshy. "The prisoner's depositions are of great length. I want at least two hours to transcribe them from my notes."

"Nothing of the kind!" cried Mr. Skinner. "After Viola's capture I examined him in the presence of Mr. Kenihazy. He has not since thought proper to alter or revoke any thing in his former depositions; and though I am sure you would do the thing more elegantly and neatly, yet I flatter myself that our work will do for the present."

To this Völgyeshy replied, that though the prisoner had not indeed altered or protested against his first depositions, still that he had said many things which were not mentioned in the minutes of the first examination, and that these additional details ought also to be carefully added to the body of the evidence.

"What the deuce do you mean?" said Shoskuty, with a degree of astonishment which did honour to his sense of justice—"can you think of mentioning that Mr. Catspaw and the sheriff's lady intended to rob the notary of his papers?"

"Of course. Any thing the prisoner may have said in court."

"This is truly monstrous!" cried Mr. Skinner.

"You know your duty, but allow me to inform you that I know mine. It is yours to judge: it is mine to record the proceedings."

"*Sed rogo, domine spectabilis!*" cried Zatonyi, "is your head turned? What on earth are you thinking of?"

"Of my duty," replied Völgyeshy; "it is my duty, I take it, to make a clear and perfect statement of the case."

"But in every case there is a deal of irrelevant matter. Suppose the prisoner were to preach us a sermon, or he were to give us the prescription of a plaster for corns and bunions, would you state that kind of thing?"

"My opinion of the prisoner's statements is, that they are not irrelevant."

"But, my dear friend," said the Baron, with the greatest possible politeness, "only please to consider that our friend Zatonyi must go home to-night on account of his potatoes, which he will be prevented from doing if you persist in your intention of taking down all the nonsense which the culprit told us. And pray consider, dear sir, that Lady Kishlaki's dinner will be spoiled! It's but common politeness to make an end of it, and have done."

"The life of a fellow creature is at least quite as much worth as Mr. Zatonyi's potatoes; and, as for common politeness, I, for one, care more for common fairness."

"I should think so!" muttered Zatonyi.

"But, sir, you are uncommonly stiff-necked!" sighed the Baron.

"Why," said Mr. Kishlaki, nervously, "it strikes me that we had better adjourn till to-morrow morning. By that time, I trust, Mr. Völgyeshy will have completed his labours, and Mr. Zatonyi——"

"No! it's utterly impossible! Nobody can be more zealous than I am. I am always at sessions, always! but to neglect my household duties for a mere whim—an idle fancy——"

"God forbid that you should!" said Kishlaki, kindly. "But since Mr. Völgyeshy tells us that he feels in conscience bound to take down the whole of the prisoner's depositions, and since he cannot possibly do it in half an hour——"

"Ej Bliktri!" said Zatonyi, angrily; "I've attended a score of courts-martial, and in cases too which it would take a common court many months to come to the bottom of, and for all that we never wanted more than a day for the trial and hanging; and am I to be stopped by this case? I never heard of such pretensions as Mr. Völgyeshy's! It is said in the articles that the prisoner is to sign his depositions; that his name, age, crime, and the manner of his capture are to be mentioned in the said depositions; but it is nowhere said that they must contain any nonsense which the prisoner may be pleased to talk; and I ask you, Mr. Völgyeshy, sir! why on earth do you persist in your extraordinary, and, let me say, ridiculous conduct?"

"Because I think it requisite for the credibility of the proceedings; and besides, you are aware that a suit on the question of noble descent is being preferred against the notary of Tissaret. This suit is materially affected by Viola's confession, which proves that certain papers were feloniously taken from the notary's house."

"It strikes me," exclaimed Mr. Catspaw, "that there are persons who insist on my own name, and especially that of my Lady Rety, being mentioned in the minutes, and in a highly insulting and offensive manner too. Well, be it so! Lady Rety will at least have one advantage, that of knowing her friends; for everybody must see that to mention this affair is perfectly gratuitous."

"God forbid!" said Baron Shoskuty, "that any thing should be recorded in the minutes which might give her ladyship only a moment's uneasiness; indeed——"

"*Tot capita, tot sensus*," proceeded the attorney; "but my honourable friends must admit that my Lady Rety and your humble servant cannot feel pleased with Viola's calumnious statements being sent to his Excellency and the government, particularly since the robber's death deprives us of all means of proving the falsehood of his statements. And I put it to you whether it is becoming and decent in a man of Mr. Völgyeshy's character and position to

make the duties of his office serve him as a means for his revenge? for we all know that he is among the most zealous of Mr. Rety's opponents."

"It's really infamous, that it is!" cried Mr. Skinner.

"I won't suffer it!" growled the assessor.

Shoskutý shook his head, and bewailed the factious spirit of the county, which caused certain individuals to take advantage of judicial proceedings, for the purpose of annoying their political adversaries.

Mr. Kishlaki, who had his reasons for avoiding any thing in the shape of a quarrel with the Rety family, endeavoured to mediate between the hostile parties. "I am sure," said he, "Mr. Völgyeshy has no idea of insulting our respected sheriff, though he forgot that his intention must necessarily grieve the illustrious family of the Retys. If the papers remained in the archives of the county, there could be no harm in your recording the whole of the evidence; but as this is not the case, I am sure, sir, you cannot wish to annoy one of the greatest families of the county; for I take it you must be aware of the truth of Mr. Catspaw's argument, that the death of the prisoner deprives the very respectable persons whom he has slandered of the means of putting him to shame."

"What prevents Mr. Catspaw from preserving the means of defence?" said Völgyeshy, with a flush of generous excitement in his pale cheeks.

The worshipful gentlemen looked amazed, but the lawyer proceeded:

"A single dissentient vote is enough to save the prisoner's life. If Mr. Catspaw thinks that Viola's confession is likely to injure him or Lady Rety, let him give that vote, and thus preserve the possibility of disproving Viola's statements."

"Oh, yes!" cried Mr. Kishlaki, eager to obtain the two objects next to his heart, namely, the liberation of the prisoner and the conciliation of the Rety family. "Yes, sir; to show my high respect for the sheriff, I am ready to give that vote!"

"*Per amorem! Domine spectabilis!*" shrieked Zatonyi; "do you mean to say that the fellow is not to be hanged?"

"Shocking! shocking!" sighed Baron Shoskuty, with an appealing look to heaven; "the robber is in our hands; our honourable friend Mr. Skinner has covered himself with glory, and risked his life, in capturing him; he indicts him before a court-martial, and we—we discharge the fellow! Nobody ever heard of such a thing!"

"I, for one," cried Mr. Skinner, "won't allow you to make a fool of me! What the devil! is a man to risk his life for nothing? You won't catch me again at this kind of thing, I assure you!"

"Not hang the rascal?" roared Zatonyi. "I've attended scores of courts-martial, but I never heard of any thing like it. It's prostituting justice! it's protecting crime! it's——"

"Of course; so it is," said Baron Shoskuty; "it's putting a premium on robbery! it's a deleterious example!"

"Public safety will go to the dogs!" howled Mr. Skinner; and they all spoke at once: "Scandalous!—infamous!—new doctrines!—*fautores criminum!*—disgrace!" such were the words which predominated in this Babel of angry voices, until Mr. Völgyeshy at length silenced them. He protested what he wanted was not the liberation of the prisoner, but the transmission of the prosecution to the ordinary court.

"Of course!" sneered Mr. Zatonyi; "are we not aware of the practice of the court? I know of three cases,—I was not present, for if I had been I would not have allowed it; but I know of three cases in which the prisoners were sent to the courts; and what was the consequence? Why, one of them was sentenced to three months', and the second to a year's imprisonment; as for the third, they let him off altogether, though I'd bet you any thing the fellow was a robber. Don't you think, sir, we are so green as all that! The county has the right of court-martial for the purpose of using it; and use it we will!"

"I do not think that the courts-martial were granted under the express condition that a few people should be hanged every year," said Völgyeshy.

"It appears," said Mr. Catspaw, "that the liberation of the prisoner, or, at least, his prosecution in a common court, has been proposed for the purpose of favouring the Lady Rety and me. But I feel myself authorised to protest, in Lady Rety's name, that neither she nor I can consent to the court allowing

themselves to be influenced by any private feelings in our favour, however flattering those feelings may be to her ladyship."

"Mr. Catspaw, sir, you are a gentleman!" said Baron Shoskuty; and the question was at once put, whether the prisoner's first depositions should be authenticated, or whether it was advisable to make out a new relation of the facts, and to adjourn the sentence to the following day. Kishlaki advocated the second alternative; but he was overruled by the court, and nothing was left to Völgyeshy but to declare that he would not and could not obey the instructions of the court. Kishlaki was greatly shocked by this declaration; Zatonyi swore; the Baron rose, and shaking his most honourable friend's hand, he entreated him to pardon them if their resolution was offensive to him.

"Consider the *homo sum, amice!* consider the *nihil humanum!*—we all pay unbounded respect to your principles and talents, but to the majority you ought to submit. Consider that every body does so, and I am sure you will see——"

But Völgyeshy protested that he could not, in the present case, *join* the decision of the majority, though he acknowledged he had no legal remedy against them. That was the reason why he wished to withdraw. His firmness, or (as Shoskuty called it) obstinacy, threw the court into hopeless confusion, and there is no saying what they would not have done, if Mr. Catspaw had not volunteered to discharge the functions of a notary.

"Sir, your offer is accepted, gratefully accepted, I say," cried Zatonyi. "Mr. Völgyeshy, who has just entered the service, will in time find out that a man is none the worse for doing his duty according to the decision of a majority. Leave him alone with his principles! he'll soon get tired of them, I'll warrant you!"

"Mr. Völgyeshy," said the attorney, with a sneer, "has brought the matter to this point for the purpose of saving the prisoner's life,—a noble and generous feeling, gentlemen, especially in this time of general philanthropy,—quite a romantic feeling, I assure you, gentlemen. But we, who are older, and, let me say so, tougher, cannot imitate his example, though I trust the noble young man gives me credit for appreciating his motives. As I told you, I am ready to officiate in his place; but I think Mr. Völgyeshy, seeing

that his refusal to act has no effect upon us, will not persist in his refusal. Am I right, my generous young friend?"

But the generous young friend rose, and pushing his batch of papers to Mr. Catspaw, he declared that nothing could induce him to take a part in the proceedings, which he went to the length of designating as an act of judicial tyranny.

This bold declaration called forth a fresh torrent of abuse.

"Disgraceful!" cried Mr. Skinner.

"It's infamous!" said Zatonyi.

"You ought to be ashamed of yourself, sir!" snarled Mr. Catspaw.

"Gentlemen," said Völgyeshy, when their frantic rage had in a manner subsided, "I meant no offence to any of you. Allow me to explain what I said."

"Explain? What the devil do you mean to explain, sir?" cried Zatonyi. "Do you mean to say, sir, that we are murderers? Are you aware that you have no vote? To insult the judges is an infamous act; d—n you, sir, you're infamous, sir!"

"Yes!" said the Baron; "let us pass a resolution to that effect."

"Do you mean to do it by court-martial?" asked Völgyeshy, with a scornful smile.

"Yes, sir! In any way, sir! I'm sure *I* don't care. Whoever insults the judges or the court is infamous! That's written law, sir! it's in the *corpus juris*. And you'll find it law, sir, and to your cost, sir!"

"It is *ad horribilationem*!" groaned Zatonyi.

"You may, if you please, pass a resolution of infamy against me," said Völgyeshy; "but permit me, not indeed for the sake of those who care for nothing except the execution of the prisoner, but out of love and respect for your president——"

"*Captatio benevolentiae!*" cried Zatonyi. "Our respected president wants no flatteries from the like of you!"

"——direct the attention of the court——"

"The attention of the court wants no direction whatever," said the Baron.

"——to the heavy responsibility which rests with every one of you, if the present proceedings are brought to a fatal end."

"What, the devil! are the judges to be made responsible? I never in all my life——"

"Halljuk! halljuk!" said Kishlaki, who listened with great eagerness.

Völgyeshy took the articles, and pointed out to the court that their safety consisted in the strict legality of their proceedings, and that the present case did not come within their jurisdiction.

"*Crassa ignorantia!*" said Zatonyi, contemptuously, "as is but too common among the young gentlemen of the present day. Viola's case is a court-martial case with a vengeance!"

"But the details——"

"*Crassa ignorantia!*" cried the assessor, raising his voice. "Did he not resist the capture? Did he steal Tengelyi's papers because they were eatables? which, I admit, would constitute an extenuating circumstance; or is he under age, or a lunatic? Or is the gang to which he belongs indicted before any court at law?"

Völgyeshy remarked, that the case was so intricate that it would take the court at least three days to sift it.

"Three days, indeed! I'd do away with twenty of these rascals in much less time than that!"

"It seems you have forgotten what the prisoner said concerning certain accusations——"

"Which have nothing whatever to do with the question at issue," cried Baron Shoskutty; "there's no mention of them in the minutes. I mean to

forget them."

"Sir!"

"Baron Shoskuty is right," said the assessor; "the prisoner's nonsensical talk has nothing in common with the *species facti*—it's no use mentioning it."

"But what is to become of the completeness of the record?" cried Völgyeshy, angrily.

"It's a stupid formality. See chapter 6. paragraph 5. of the articles, where it is provided that the court is at liberty to dispense with the forms of the courts at law."

"Yes, we can do as we please, and in the very teeth of all manners of forms, too," said the Baron.

"Of course you can hang the prisoner!" shouted Völgyeshy; "but I protest that what you do is an act of violence, not of justice!"

"Hold your tongue, sir!—--"

"The members of this court have no right to sit in it!—I appeal to the articles!"

"Outrageous!" cried Zatonyi, rising from his chair; "what! are we not assessors?—have we not taken our oaths?—are we not——?"

"Are we not lawyers of unblemished character?—men of firmness and impartiality?" continued the Baron.

"Turn him out!" roared Mr. Skinner.

"Actio! Actio!" gasped Baron Shoskuty in his turn.

"I protest you are not impartial!" said Völgyeshy.

"Bliktri!" snarled Zatonyi; "what have the articles to do with impartiality?"

"Very true! but suppose impartiality *were* required," said Shoskuty, violently, "suppose it *were* required, what then? Are we not strictly

impartial? Which of us has said a single word in favour of the prisoner, unless it be you? but, goodness be thanked! you've no vote, sir!"

"I am curious to know how you would manage to prove our want of impartiality?" said Mr. Catspaw.

"I'll satisfy your curiosity, sir," said the young lawyer. "As for you, you are accused, and it is evidently your interest to do away with the accusation and the accuser. Of Mr. Skinner's want of impartiality there can be no question. What shall we say of a judge who degrades his office to the level of the hangman?"

"Meanness! Impertinence! Turn him out! Actio!" screamed the judges.

"No! You are not impartial! You are thirsting for the prisoner's blood! You want his life to shield your own misdeeds! There is vendetta between you and the prisoner! But I will not suffer it! I will publish the proceedings! I will complain to the lord-lieutenant! I will——"

"Base informer! are you aware of the laws of 1805? Turn him out!" roared the court; and Völgyeshy, finding that nothing could persuade them, turned to leave the room, when Mr. Skinner rose and seized him by the arm.

"Be off, you miscreant!" roared the valorous judge.

Völgyeshy pushed him back, and taking his hat, he bowed to the president, and withdrew.

The uproar in the justice-room attracted the attention of the people outside in no slight degree. The conversation of the haiduks, Pandurs, witnesses, and servants gradually ceased, and every one listened to the noise of angry voices in the justice-room. The Liptaka sat close by the door listening to the dispute, and from time to time she would turn to the smith and inform him that Viola's case was very bad; "for," said she, "if the gentlemen get out of temper with each other, they always manage to make a poor body suffer for it:" a remark to which the smith did not fail to respond with deep sighs.

Viola alone paid no attention to the quarrels of his judges. Surrounded by a troop of armed men, he leaned against one of the wooden pillars of the hall, looking towards the gate where his wife and children stood. All the robber's

thoughts were of them. When the door opened, and Völgyeshy entered the hall, Viola turned round, for he thought they had sent for him to read his sentence. He longed for it; for the Pandurs had told him that, after hearing it, he would be allowed to speak to his wife. Calling to Völgyeshy, as the latter approached, he said: "Is it over?"

"Not quite," answered the lawyer.

"But why do you leave them?"

"I have no vote. I cannot be of any use to you."

"I thought so," said Viola, with a bitter smile. "God bless you for having given yourself all this trouble for the sake of a poor man; but, if you will show me pity, tell them to allow my wife to come to me. There she stands, by the gate; there she stands, with her children! They've pushed her back: they will not let her speak to me! All I want is to have her with me. You see I am chained and closely watched, and in a few hours I shall be a dead man. What harm can there be in lessening the anguish of my poor, wretched wife!"

Völgyeshy said nothing; but he walked precipitately up to the place where Susi stood, took her by the hand, and led her to Viola's arms. The wretched people did not speak: they wept, and trembled; the little boy took and kissed his father's hand, sore as it was with the weight of the chain: and the large tear-drops rolled over the robber's pale face.

The burst of generous indignation in which the members of the court had for a time indulged was, meanwhile, subsiding. Mr. Catspaw, seated in Völgyeshy's place, arranged that gentleman's papers and notes to his own liking; and though Mr. Skinner still continued to vent his spleen in frequent and indecent exclamations against the young lawyer's impertinence, it was found that none of the other members of the court sympathised with his protracted irascibility. Baron Shoskuty and the assessor Zatonyi talked of their dinner and other important matters. Mr. Kishlaki alone seemed distressed and nervous.

Viola was at length summoned before the court to sign his depositions. When they were read to him, he observed that they contained none of his statements about Tengelyi's papers; but upon Mr. Catspaw informing him

that he was merely required to testify to the correctness of those things which *were* stated, and that the other parts of his confession would be taken down separately, he made no further objections, but signed his name, to the immoderate satisfaction of the cunning attorney.

Nothing was now wanting but the sentence. The assessor yawned fearfully, offered his snuff-box to everybody, and protested that he had never had so troublesome a sitting. Baron Shoskuty consulted his watch (for the twentieth time, at least), and informed the court that it was past three o'clock, and that the want of his dinner had given him a headache: *denique*, (to use his own words,) "there was no time to be lost." Acting up to this hint, Mr. Catspaw made a short *résumé* of the facts; and concluded by protesting that there could be no doubt about the sentence of capital punishment. Mr. Skinner said the same. Mr. Zatonyi laughed, and swore that Miss Lydia Languish herself could not find another verdict!—an opinion upon which the Baron commented at great length, for the purpose of finally adopting it. Mr. Kishlaki alone sat silent and anxious, turning to each of the judges with a sigh as each recorded his sentence; until, at length, he pretended to fall into a fit of profound meditation.

"Really," said Baron Shoskuty, at length, producing his watch to add to the strength of his arguments, "I must ask my honourable friend's pardon for disturbing him in his reflections on the enormity of the crime; but really we ought not to abuse Lady Kishlaki's patience."

"You are right," said the president, greatly relieved; "quite right, my dear sir: let us adjourn till to-morrow morning. This confounded execution cannot possibly take place to-day."

"Oh! why should it not?" asked Zatonyi, indignantly. "Did I not tell you that I must go home? My potatoes——"

"We are bound to grant the prisoner at least three hours," said the president; "and it's quite dark at five o'clock. You would not hang him by candlelight, would you?"

"My honourable friend is quite right," cried Shoskuty. "We ought to have a game at tarok after all this trouble. Besides, I owe the gentlemen their

revenge for the pagat. But why should we not pass the sentence to-night, and have it executed at an early hour to-morrow morning?"

"Because," said Mr. Kishlaki, nervously,—"because the decision rests with me; and—because—I must own—that I have not yet made up my mind."

"*Domine spectabilis!*" cried Zatonyi, clasping his hands. "You, at your time of life! You, who have served the county so many years, you have not made up your mind? I've attended a score of courts-martial, and *I* always made up my mind in less than a second. What would your enemies say, if they knew it?"

Mr. Skinner, too, expressed his scorn of such weakness of mind in the strongest terms; still Kishlaki would not be persuaded either to absolve or to condemn the prisoner. He entreated his friends to wait till the morrow. But his request was obstinately opposed by Mr. Catspaw, who knew the man he had to deal with, and who was aware that Kishlaki would not be able to resist the entreaties of his wife and son, and the reasonings of Völgyeshy, if he was allowed to appear in their presence before he had recorded his decision.

"I am sure," pleaded the attorney, "it cannot matter to us whether you deliver your judgment to-day or to-morrow; but my wish is, that there should be an end to the business. I wish it for the prisoner's sake. After the sentence he will be at liberty to talk to his wife, to prepare for death, and to make any arrangements he has to make. But if it is really inconvenient, of course we cannot pretend that the prisoner's wishes should be consulted in preference to yours."

Zatonyi, seeing the effect which these words had upon Kishlaki, remarked that Viola was indeed a great criminal, whose agony ought in strict justice to be prolonged *ad infinitum*; but that some consideration was due to humanity, for he could not, he said, believe that any man in his senses could for a moment doubt of the nature of the sentence, which his honourable friend wished to delay. To this Mr. Catspaw replied, that their worthy president could not have any such intention, and that he (Mr. Catspaw) would never have dared to insinuate any such thing; but that no one could be more fully aware than he (Mr. Catspaw) was, of the solemn duty by which every judge was bound to disregard his own feelings and passions;

and that he (Mr. Catspaw) was convinced that his worthy friend, Mr. Kishlaki, would eventually prove himself deserving of the confidence of the county. And Baron Shoskutiy gave them a homily on the beauty of humane feelings, which, he said, imperatively demanded that Viola should be sentenced off hand. And it was said, that it was necessary to make an example, and that kindness to the wicked is cruelty to the good. And Mr. Skinner told fearful tales of the enormities of which Viola and his comrades had been guilty, and would be guilty, unless a wholesome fear of courts-martial were propagated among the people; till the poor old man, attacked on all sides, and unable to make head against a torrent of arguments, which he had always been taught to consider as irrefutable, was at length reduced to submission to the will of his more crafty colleagues. With a deep sigh, he confirmed their verdict.

"God sees my heart," said he, raising his eyes to heaven. "I know not what I would give to spare the life of this man! but I cannot violate my duty."

Mr. Catspaw commenced at once to draw up the sentence, while his friends strove hard to dispel the gloom which settled on Kishlaki's face; when the door was suddenly thrown open, and Susi, with a child in her arms, rushed into the room, followed by two haiduks, who vainly strove to detain her.

"Pity!" cried the wretched woman, throwing herself at Kishlaki's feet. "Pity, sir! oh sir, don't kill my husband!"

Kishlaki would have raised her, but she resisted.

"No! no!" sobbed she; "let us kneel! let my child kneel! Come Pishta, come, kiss this gentleman's hands! it is he who has to judge of your father's life! Entreat him! pray to him, Pishta!"

"I pray, sir, do not kill my father!" sobbed the little boy.

"Did I ever—what impertinence!" cried Mr. Skinner. "This worshipful court does not kill anybody!"

"No, God forbid!" said the poor woman; "do not mind the child's asking you not to kill his father. He does not know what he says. He is the son of a poor peasant; he has no education. I know I too talk wildly, but——"

"My good woman," said Kishlaki, "my duties as a judge are painful, but imperative and——"

"Oh, I do not ask the court to absolve him from all punishment. No! I do not mean to say that. Punish him severely, cruelly, no matter how, only don't kill him!—Oh! pardon me for saying the word. Oh, pardon me! Send Viola to gaol for many years, for ever, if it must be so; but do spare his life! Perhaps he has told you that he cares not for death—he is fond of talking in this way—but don't believe what he said! When he said it, he had not seen his children; but now he has kissed little Pishta, I am sure he will not say so; and the baby too smiled at him as he stood in his chains. Oh! if you could but see the baby, and if you could hear it calling its father with its small sweet voice, you'd never believe Viola when he says he wishes to die!"

"D—n your squeaking!" growled Mr. Skinner, "and d—n the blockhead that let her come in! Be off, I say! Your husband's a dead man; if he's afraid of death, why so much the better!"

"Did I say he was afraid of death?" sighed poor Susi. "I told you a lie! Viola longs for death! Death is no punishment for him! If you want to punish him, you must lock him up! He's often told me he would rather die than live in a prison!"

Kishlaki looked at her with streaming eyes. Shoskutty produced his watch.

"Oh! sir, I know you will send him to prison! What is death to him? It's but the pain of a moment; but we are the sufferers. I have two children—this boy and the other child, which the Liptaka has in her arms—the Liptaka, I mean the old woman at the door; and what am I to do if their father is hanged?"

Zatonyi remarked, very judiciously, that it made no difference to the children whether their father was hanged or sent to prison for life.

"Oh! but it does, sir. It may make no difference to your worships, but it does to us. I know he will be of good behaviour. I will walk to Vienna, I will crawl on my hands and knees after the king until he pardons my husband; and if he will not pardon him, I shall at least be allowed to see him in prison; I can show him the children, and how they have grown! I can bring

him something to eat and to put on—oh! for pity's sake, send him to prison! It's a heaven for me; but death is fearful!"

"Fearful, indeed! It's half-past three!" sighed Shoskutiy.

"Now do be quiet," said Zatoniy, taking a pinch of snuff. "Besides, it's too late. We've passed the sentence."

"The sentence! The sentence of death!" shrieked Susi.

"It's at your service," sneered Mr. Skinner, pointing to a paper which was just being folded up by Mr. Catspaw.

"But suppose it is bad—it is faulty," muttered the woman. "Suppose I say it's wrong—for death is not a punishment to Viola—it's *I* that am punished!"

"It's done, and can't be undone," said Zatoniy; "don't bore us with your useless lamentations."

"It wants but a quarter to four," said the Baron. "I wonder whether this scene is to last any longer?"

"But I pray," said Susi, shuddering; "it's but a sheet of paper. If you take another, and write some other words upon it, you can allow Viola to live."

"Oh indeed! Why should we not? Be off, we've had trouble enough on your account! Mr. Catspaw won't write another sentence to please you."

"Not to please me; but because it's a question of life and death."

"My good woman," sighed Kishlaki, wiping his eyes, "we have no power to alter the sentence!"

"No power? No——"

"It is impossible!" said Zatoniy.

The poor woman shrieked and fell on the floor. She was taken away; and the sentence was read to Viola.

As the judges left the room, Shoskutiy said to Zatoniy:—

"God be thanked that it is over!"

"God be thanked, indeed! I've never heard of such a court-martial——"

"*Denique*, if the president is a donkey," remarked Shoskuty.

"Yes; a man who weeps at the mere squeaking of a woman!" said Mr. Skinner, as he joined the two worthies; "unless we all dun him he won't allow the execution to take place."

"It's four o'clock now, and I'll bet you any thing the dinner is spoilt; and the roast meats used to be excellent!" said the Baron, with a deep sigh.

CHAP. VIII.

On his way from the justice-room to the house, Völgyeshy met Kalman and young Rety's servant, Janosh; the former of whom held an open letter in his hand: and his stamping, his unequal paces, and the sudden manner in which he would turn upon his companion, showed that he was labouring under a strong excitement. At some distance a groom was walking two horses, whose appearance showed that their riders had paid more attention to time than to the health of their beasts.

Völgyeshy was not in a temper to seek the society of others; and observing that young Kishlaki did not see him, he turned and walked to the house. But Kalman, whose attention was directed to him by a few words from the hussar, rushed after him, and cried—

"Is it over?"

The violence with which these words were pronounced, startled Völgyeshy. He stood still and said:

"Yes, it is over! They had settled the matter before they commenced the sitting. But that farce—or sitting, if you like—continues still."

"But what are you doing here? Are you not a member of the court?"

"I have a seat, but no vote; and I left them because——" Völgyeshy paused, and added: "We had better not talk of these things here. Let us go to your room, where I'll tell you all; besides, I have a request to make of you."

"I say, Janosh!" cried Kalman. "Go to my servant and get something to drink. My groom will take care of your horse."

"No, no, young gentleman!" said the old man, shaking his head; "my horse is number one, and I'm number two. Meat after corn, sir, that's the way we did it in our time; and, besides, you see I've brought my master's own horse. He's a jewel, and I wouldn't trust him with that lad for any thing."

"Do as you please, Janosh; but when the horse is provided for, I must see you."

When the two young men had entered the house, Kalman turned to Völgyeshy, and said,— "Now tell me why, in the name of all that is reasonable, did you leave the court?"

"Because I would not be a party to a murder! because I scorned to be a tool in their hands—because I would not lend my hand to their knavish and diabolical designs!"

"My dear friend, you're out of temper! How can you talk of such things when my father is one of the parties concerned? I am sure *he* would never be guilty of any knavery."

"That was *my* opinion. Believe me no one *can* respect your father more than I do. He's a good and blessed man! I have always said so, and I say so now; but your father is weak, and his weakness neutralises the best feelings of his heart. The wickedness and folly of this world are not at the doors of the wicked and foolish alone, but also at the doors of those honest and good men, whose weakness and laziness,—let me say whose *gentility*,—cause them to suffer what they have the power to prevent. The wicked are powerful, not because of their numbers and strength, but because they are reckless, energetic, and daring; while the good and honest are weak, and though they would scorn to act, they are not ashamed at conniving at any meanness which they may set a-going."

"I agree with you," said Kalman, "and I fear the remark applies in a manner to my father; but, abuse them as you like, only tell me what has happened!"

Völgyeshy gave him a short account of the transaction, and Kalman listened with evident distress.

"Never!" cried he, when Völgyeshy concluded his tale; "impossible! They cannot condemn a fellow-creature in that manner. My father will never consent to it!"

"He will consent—indeed, I am sure he has already given his consent. The question was decided when it was resolved that Viola's confession respecting Tengelyi's papers should not be mentioned in the records."

"Confound it!" cried Kalman "And that letter which they sent me from Tissaret. I must save him in spite of a hundred courts-martial!"

"Did they send you a letter? Did the sheriff perhaps?"

"No; but you know Akosh is wounded—Etelka writes in his name. Read the letter."

Völgyeshy took the paper and read as follows:—

"Tengelyi's papers are of the greatest importance. There is reason to believe that my brother's happiness, that the happiness of all of us, is concerned in your recovering them. Viola did not commit the robbery. Whatever he may have confessed on this subject, it is all true. He has acted far more nobly than any one else can do—it is horrible to think that he is to suffer death for his generous conduct. Certain persons will move heaven and earth to obtain a verdict against him, for his death removes the only witness in the case of the papers. I entreat you to save him! it is the first favour I ever asked of you; and the very generous manner in which you took Tengelyi's part at the election, gives me hope that it will not be the last.

"ETELKA."

"You see, I am bound to save him! I'd forfeit my life to save him! I'm bound to do it," cried Kalman.

"There is some signal villany going on," said the lawyer; "this letter shows that my suspicions are but too well founded."

"What in ——'s name are we to do! By Jove I'll go down and tell Catspaw that he is a rascal, and a dirty thief, and——"

"Not so fast!" said Völgyeshy, stopping the impetuous young man in his way to the door. "If you make a scene, you will spoil all. It strikes me that that fellow Catspaw is but the tool of others, a dirty tool, I grant you, but still a tool; and, unless I am very much mistaken, there are some people mixed up in this affair, whom it would not be wise in you, and much less in Akosh and Etelka, to involve in a criminal prosecution."

"Yes; but I say, let me go down! A single vote can save him, and my father ——"

At that moment Janosh entered the room, and informed them that the sitting was over, and that Viola was sentenced to death.

"Confound me!" cried Kalman; "confound my being away from home this morning! I was aware that our Gulyash is a friend of Viola's! I believed that he would be able to get the papers; so I talked to him last night, but he told me he had not seen any thing of the robber. I returned last night, and early

this morning I left for our Puszta to see our Tshikosh. Nothing was known of Viola's capture when I started. The Puszta is more than eleven miles from here; and when I had rested my horse, and indeed when I was on my way home, confound it! I got this letter."

"Yes, sir!" said Janosh; "I had no idea that your worship had gone to the Puszta. I've been up and down the county in every direction, and all to no purpose, until some one told me you had taken that way."

"I know it's not your fault, Janosh. It's that cursed fate of mine! If I had been at home, no harm would have come to Viola; but what am I to do now that the sentence——"

"After all, what does it signify?" said the hussar, stroking his moustache.

"You know what's in the letter. They ask me to save him; and what can I do now that he's condemned?"

"If your worship will do a kind thing for the love of Miss Etelka—I beg your pardon—for the love of my young master; and if your worship will save Viola——"

"'If!' and 'will!' I'd give my life if I *could* do it."

"Oh, then we need not care for such a bit of a sentence. Only think, sir, what should we do for ropes if every man were hanged whom they condemn in Hungary?"

"Perhaps you are not aware," said Völgyeshy, "that there's a court-martial in the case. In a common court——"

"Of course, of course!" said Janosh; and, turning to young Kishlaki, he whispered, "Do not let us mention these things before strangers."

"Don't mind Mr. Völgyeshy," said Kalman. "He knows all about it; and he'd help us if he could."

"So I would," said the lawyer.

"That alters the matter entirely. The worshipful gentlemen do not like us to put our fingers into their pie; and when they wish to hang a fellow, they are

apt to be unreasonable if he escapes. They are fond of being hard upon the like of me."

"But what is it you mean to do?"

"I myself hardly know. I want to reconnoitre the place; but shoot me if I don't find a means to set him free! They won't hang him to-night; there's plenty of time to think about it. Mr. Kalman is at home here; that's half the battle. Your cellars are full of wine; we've lots of money, keys, ropes, and a horse. Hej!" added he, laughing; "did you ever hear of the adventures of the famous Baron Trenck?"

"Thanks, old Janosh!" cried Kalman, shaking his hand; "do as you please in the house! manage it all your own way, and throw the blame upon me!"

"Very well! very well indeed!" said the hussar, twisting his moustache; "old Janosh isn't half so dull as people fancy, and, *terrem tette!* an old soldier has had capital schooling in these things. But you must go to dinner, for unless you do, they'll fancy we are mustering our forces, as indeed we are. I'll reconnoitre the place."

"I'm your sworn friend to the end of my life!" said Kalman, as he left the room with Völgyeshy.

"Don't mention it," muttered the old soldier; "a man who has served the emperor so many years, and who has fought in the battle of Aspern, and in France, such a man wants none of your gratitude, especially since I have my own master. But I dare say Master Kalman would like to oblige our young lady. Very well, I'm agreeable; that's all I can say. He's a fine young fellow, and almost as good a horseman as my own master, which is saying a great deal, for he had the benefit of *my* schooling." Muttering these and other things, Janosh marched to the steward's house, where he met Peti the gipsy.

We need hardly say that Lady Kishlaki's dinner was as dull and gloomy as any dinner can be. Völgyeshy and Kalman were thoughtful and silent. The lady of the house did not press her guests to eat; nor did she ask them to excuse the bad cooking, although almost every dish stood in need of a thousand apologies. Mr. Kishlaki, who remarked his wife's altered manner, and who justly interpreted the looks of reproach which she cast upon him, sat staring at his plate with so anxious and careworn a face, that Völgyeshy

would gladly have spoken to him but for the presence of Messrs. Skinner and Kenihazy, who, to do them justice, strove hard but unsuccessfully to amuse their host. Baron Shoskuty's compliments, and Mr. Zatonyi's anecdotes, were equally lost on their gloomy and dispirited audience; and everybody felt relieved when the dinner was over. Kalman, in particular, could hardly bridle his impatience; the moment Lady Kishlaki rose from the table, he left the room with Völgyeshy.

"How are we getting on, Janosh?" asked Kalman, when he saw the old hussar, who was smoking his pipe in the hall.

"Pretty well, sir; let us go to your room, and I'll tell you all about it."

"Do you think we can possibly save him?" asked Kalman, as they entered his apartments.

"Why not?" said Janosh. "The commander of the fortress has it all his own way. Any man whom he will allow to get out, why that man gets out—that's all."

"But how will you do it?"

"The curate of Tissaret is here," whispered the hussar. "When he saw that Viola was bound to a post, and in the open air, and in November, too, with but an armful of straw for him to lie on; and his poor wife and children shivering and shaking by his side;—and I tell you, sir, fine children they are, as fine as any you can see; but, as I told you, when the curate saw them, he said it was a shame, and he would not stand it, and the law was that the prisoner ought not to be kept in the open air at this time of the year. Says I to myself, when the curate sermonised them, says I, 'That's as lucky a thing as can be!' for, to tell you the truth, I had my doubts about our getting him off, if they'd keep him in that cursed shed. The great donkeys have put four lamps round him, seeing they wish to watch every one of his movements. But, of course, I didn't say a word about it. I only told the steward that there was no harm in what the curate said; for, after all, it is a safe thing to have your prisoner locked up and provided for."

"But what for?" asked Kalman, impatiently; "of what use can it be to us, if they lock Viola up?"

"Locking your prisoner up is a capital thing in its way," said the hussar. "When your prisoner is by himself, where no one sees him, he can do as he likes, and there are few things he will not do. But if he is watched by half-a-dozen men and more, let him be ever so stout a man, it cows him down. At the least of his motions, he's got a dozen hands upon him, and he's laughed at to boot. But if they put Viola into the chaff-loft, which I understand they think of doing, they may whistle for him, that's all."

"But how the deuce will you do it?" asked Völgyeshy, whose temper was not proof to the old soldier's circumstantial explanations.

"In this way, your worship," whispered the old hussar, in a still lower voice: "the chaff-loft is next to the steward's house, and there's a door between the granary and the steward's loft, isn't there?"

"Yes, so there is. What next?" said Kalman.

"As I said before, there's a door from the granary to the steward's loft—I'd not like that door, at all, if the corn were mine—but that's neither here nor there; it serves the steward's purpose, I dare say, and at present it serves ours."

"Go on, man!" cried Kalman.

"The key of the granary," continued the hussar, "is in your lady mother's hands, and it's you who'll get it for us?"

"Of course."

"That's all we want. To-night, when they are all asleep, we go to the granary, walk through the door to the steward's loft, and from thence to the chaff-loft. That loft is, as it were, glued to the house; the wood-work consists of thin planks. Peti, the gipsy, knows it to a nicety. We remove a couple of planks, put a ladder through the hole, and Viola gets up by it, and out by the door of the granary. Once in the open air, he's saved. Peti is gone after your worship's Gulyash, who is to send his horse. I tell you, sir, they may whistle for him when Viola has once got a horse between his legs!"

Kalman clapped his hands with joy, and Völgyeshy himself commended the arrangement and its details; but he remarked that there were a thousand

chances for or against its execution.

"Never mind," said Janosh; "if you put Viola into that loft, and the key of the granary into my hands, I'll be hanged if we don't do them! There's no window to the loft, consequently no one can look in from without; and when they're once asleep, we have it all to ourselves."

"But what will you do with the sentinels? And besides, there's the steward close by you. He's likely to hear the noise, and to alarm the house."

"I'll pocket the sentinels," said the hussar, contemptuously. "The inspector is a-bed with his wounds; if you make the justice and that fellow Kenihazy drunk, to prevent them from going their rounds,—and nothing is more easy than to make *them* drunk,—and if you do your duty as a landlord to the sentinels, and make them drunk, too, I do not care for the steward's noise. But I don't think he'll make any. When he's once in bed, it's no small matter will get him out of it. The key is the great thing, and Viola must be put into the chaff-loft."

"If that's all," cried Kalman, "you need not care!" and, accompanied by Völgyeshy, he returned to the dining-room, where they found Vandory, the curate of Tissaret, who had informed the court of his request, and who was just in the act of replying with great warmth to the objections of Zatonyi and Baron Shoskuty. The assessor appealed to the ancient custom of keeping culprits under the sentence of a court-martial in the open air; Baron Shoskuty protested that it was wrong to abuse Lady Kishlaki's hospitality for the benefit of so arrant a knave as Viola undoubtedly was; but the curate's request was so energetically supported by Kalman's father and mother, that the interference of the two young men seemed likely to do more harm than good.

"I do not, indeed, see the necessity of placing the prisoner in a room," remarked Mr. Catspaw, very politely. "The provision in the articles is confined to the winter months, and I dare say that Viola ought, by this time, to be accustomed to the night air."

"Never mind his catching a cold in his throat," cried Mr. Skinner; "to-morrow morning we'll give him a choke."

"None of your jokes, sir," said Mr. Catspaw, who remarked the unfavourable impression which the justice's words made on the company. "This is no laughing matter," continued he, with a deep sigh. "As I said, I do not indeed think it necessary, and I protest it is not even legal to give the prisoner houseroom: but if it can relieve our dear hostess's tender mind, I will not oppose Mr. Vandory's request, provided always that the place be safe, that the windows have bars, and the door bolts and locks, and that sentinels are duly placed before it."

"If your worships please," said the steward, who had followed Vandory into the room; "I know of a place with no window at all."

"Ay, the cellar!" said Zatonyi. "Yes, that's right. It struck me from the first that was the place."

"No! not by any means!" protested the steward; "there's lots of wine in the cellar, my master's property, and entrusted to my care. Nobody is imprisoned in the cellar, if I have my will! But there's the chaff-loft at your service; it has a lock and a key, and no window; and if you put a sentinel before the door, the prisoner is as safe as any state prisoner at Munkatsh."

Vandory, and especially Lady Kishlaki, resisted this proposal because no fire could be lighted in the place; but on Kalman's protesting that nothing could be more futile than this objection, the resolution was carried by acclamation, and Messrs. Skinner, Kenihazy, and Catspaw accompanied Vandory to the steward's house, for the purpose of inspecting the place, and witnessing the removal of the prisoner. Völgyeshy and Kalman followed at a distance.

"Be careful!" said the lawyer. "Did you remark Catspaw's stare, when you told them Viola could do without a fire?"

"Yes, I did. I see it's no good to be too clever. But I'll make up for it. I'll object to the room—I'll——"

"Worse and worse!" said Völgyeshy. "Leave them alone, and believe me, if that loft is the worst place in the house, they'll put him there, and nowhere else."

The truth of Völgyeshy's words was borne out by the event. Mr. Catspaw indeed made some curious inquiries about the solidity of the building, but he was quickly put down by the steward, who replied with great dignity, that Mr. Kishlaki, his master, was not in the habit of constructing his houses of mud. The attorney, thus rebuked, turned away, and the place was forthwith furnished with a table, a stool, and a heap of straw.

Mr. Kishlaki, pretending to suffer from a headache, retired to his room, whither his wife followed him. Zatonyi and the Baron walked in the drawing-room, and laughed at the ridiculous sentimentality of their host, at Vandory's still more ridiculous philanthropy, and at Völgyeshy's impertinence. They interrupted this charitable conversation at times with deep sighs, and longing looks at the card-tables; for they waited for Messrs. Catspaw and Skinner.

While his guests were thus employed, Mr. Kishlaki sat in his room, leaning his head in his hand, and so entirely given up to thought, that his pipe went out without his being aware of it.

"Treshi, my soul!" said he at length, turning to his wife, "Treshi, I am a wretch!"

Lady Kishlaki sighed, and her husband went on.

"I know, Treshi, you will not love me as you used to do, and it's the same with Kalman. When you see me you'll think: he might have saved the poor fellow's life, and he wouldn't do it!"

Lady Kishlaki said a few words of comfort; but the old man shook his head, and continued:

"No, Treshi! that man's life was in my hands, and I killed him. His blood is on my soul."

The good woman's heart yielded to the sincerity of his sorrow, and instead of reproaching him, as she intended, she sought to comfort him, by protesting that the responsibility, if there was any, lay equally with the other judges. "Besides," added she, "how frequently have you not sat in a common court, without feeling remorse and sorrow!"

"Oh, that's a very different thing," replied Kishlaki. "In a common court a man is allowed to vote after his conscience, and the sentence is found by a majority. There is no idea of the life of the prisoner depending upon a single vote; the sentence is sent to the upper court, and to the king's government, and if it is executed, I need not reproach myself with being the *sole* cause of the prisoner's death. But to think that nothing was wanted to-day but my single simple word of 'non content;' that I did not say the word, and that it was I who killed that fellow,—goodness gracious! it breaks my heart. I hate myself, and I feel that others cannot love me."

"But if that is your view of the case," said his wife, with tears in her eyes; "why, for God's sake, did you vote as you did?"

"Why, indeed?" cried Kishlaki, pacing the room in a state of great excitement; "because I am a poor weak fool; because I was afraid of them when they told me my conduct was ridiculous; because Mr. Catspaw, and the whole lot of them, called out, that the Retys would never forgive me if Viola's depositions were taken down; and because I thought of Kalman's love to Etelka. And Völgyeshy walked away and left me by myself——"

"I cannot think that the Retys should be guilty of such infamous conduct ——"

"Nor I! I am sure it's a trick of Catspaw's; and it tricks me out of my reputation, name, and peace of mind."

"Do not say so!" cried Lady Kishlaki. "Who will dare to attack your reputation?"

"Who? Everybody! Perhaps Völgyeshy is right. On consideration, it strikes me that the protocol was irregular; and if so, who's to be blamed for it? I, the president of the court. But I wouldn't mind that! I would not mind it in the least, if they called me a dunce, and a cullion, and a zany, and what not—but to step from my door, and to see the wretched man hanging on my own ground, whom I might have saved, and to think of his wife and his children, how they clasped my knees, and begged for his life—oh, I'm undone!"

"Nonsense!" said Kalman, who entered the room at that moment. "It's in your power to release Viola."

"Impossible!" cried Kishlaki; "and still the subject is too serious for jokes. But it's impossible."

"There's a legal impossibility, if you like," replied the young man; "for in law, I take it, it is thought impossible for two witnesses to tell lies, though one witness may, and for a judge to be a party against the culprit. But, thank heaven! there are other expedients."

"No appeal is possible from a court-martial," sighed Kishlaki.

"But still there is an appeal, and we'll make it. It's an appeal to the future!"

"What does he say? I cannot understand it," said the old man.

"But *I* do!" cried Lady Kishlaki. "You have planned his escape, have you not?"

"I have, my dear mother. When he is once at large, we will make an appeal; and if the worst come to the worst, he'll come before God's judgment-seat at the end of his life. God will re-consider this day's proceedings, and the sentence. But I know that the law cannot now do any thing for him: indeed, the law may possibly condemn the step I am about to take; but I don't care for it. My conscience tells me that what I do is right; and if the Skinners and Catspaws are *in* the law, why it's an honour to be out of it."

Lady Kishlaki doted on her son; and her joy at his bold and manly speech passed all bounds.

"You are right," said she, with that peculiar tone which marks a proud and a happy woman: "you are right to scorn the law which would force us to hang that wretched man on our own ground. Save his life; and may God bless you for making your mother happy!"

Mr. Kishlaki, too, seemed relieved when he understood that there was a means of saving Viola's life; but he soon fell back into his characteristic irresolution.

"Take care," said he. "I cannot see how——"

"Leave him alone to manage it," cried Lady Kishlaki. "The moment I heard him speak, I knew that his young mind, fertile in expedients,——"

"There you are mistaken, my sweet mother!" said Kalman, smiling. "That young mind which, fertile in expedients, found the means for Viola's flight, belongs not to me, but to old Janosh." And he proceeded to detail the manner in which they hoped to effect their purpose.

"This, then, was the reason why you would not allow Viola to be put into a better place!" said his mother. "I thought you cruel and inconsiderate."

"And you wronged me," cried Kalman, gaily: "but, to make up for it, you must assist us. I want the keys of the cellar and granary; for, in Hungary, there's no getting on without the two. Will you trust me with them?"

"With all my heart!" said Lady Kishlaki, handing him the keys. "Spare me not; let them do as they please. Give the haiduks Tokay, if it must be; but do save that poor man!"

Mr. Kishlaki walked, meanwhile, to and fro in a terrible state of excitement. His wife followed him; and, placing her hand on his shoulder, she asked: "What is the matter with you?"

"I think of the confounded scrape into which my weakness has brought me. It was in my power to save that man: I might have done it orderly and legally; and what's the consequence? My only son is compelled to step in, and get himself into trouble, perhaps he will destroy the brightest hopes of his life, and I am not even allowed to ask him to desist."

"My dear father!" cried Kalman; "how can I possibly destroy my hopes by saving the life of a fellow-creature?"

"Who knows what the Retys will do when they learn that it was you who saved Viola? You are aware of Lady Rety's vindictive character. I am sure she hates you for what you did for Tengelyi."

"It does not signify," replied Kalman, quietly. "I ask no favour at the hands of Rety or his haughty lady; and as for Etelka, I trust this letter will convince you that she, at least, will not owe me any grudge for what I mean to do." Saying which, he produced the letter which Janosh had brought him.

"She is an angelic creature; she is, indeed!" said Lady Kishlaki, looking over her husband's shoulder, as he read the letter. "You are right, my son."

You're in duty bound to save Viola."

"It's the first letter I ever had from Etelka," cried Kalman. "If she asked me to commit a crime, I'd do it with the greatest pleasure; and this——"

"God forbid that I should oppose it!" said the old man. "Your motives are good and generous; but still, what you intend doing is a crime according to law. If you should be detected, I tremble to think of the consequences!"

"Our success is certain," said Kalman. "Nothing can be more easy than to make the haiduks drunk. To keep them sober would be a far more difficult task. There's a door, of which I have the key. Nothing can be more simple."

"But suppose they were to know of it? Suppose they were to indict you?"

"Indict *me*?" cried Kalman, laughing. "My dear father, are you not aware that, to proceed against me, they must have the consent of the quorum? How will they ever get it?" And, pocketing the keys, he left the room.

"A generous lad!" said his mother. "How can Etelka help being fond of him?"

"Capital plan!" sighed Kishlaki; "capital plan, if it remains a secret. It's indeed a generous action; but it's criminal, my love; it's against the laws."

"Do not worry yourself with these thoughts."

"And to think that I had it in my power to prevent it!"

"Never mind. Viola is saved; that's enough for all intents and purposes."

"A cruel law, this," sighed Kishlaki. "I wonder what stuff the man was made of who first proposed it!"

CHAP. IX

To make people reasonable is a difficult thing at all times; but there are cases in which it is not less difficult to make them unreasonable. Kalman

Kishlaki was doomed to learn the truth of this maxim, for all his endeavours to induce Mr. Skinner to drink away the niggardly allowance of sense with which Nature had provided that individual, proved abortive. As for Mr. Catspaw, we need not mention *him*, for he was one of those wretches who are always sober. To intoxicate *him* was a thing that Kalman never dreamed of. The other guests, not even excepting Baron Shoskuty, answered without any invitations, and as it were spontaneously, to the wishes of their young host; the judge alone stood unshaken, like a sturdy rock in a troubled sea. Mr. Skinner was one of the deepest drinkers in the county; he was not indeed a stranger to the condition in which Kalman wished to see him; but the presence of Völgyeshy, whom he hated, the admonitions of Mr. Catspaw, and above all his honest ambition to add fresh honours to his former trophies, made him proof against any quantity of wine which Kalman induced him to take.

"You'd like to make me drunk, now, wouldn't you?" said he, tossing off a large tumbler of red wine. "Don't be ridiculous, my fine fellow! who ever saw *me* drunk?"

"I have," smiled Mr. Kenihazy from his place at the card-table; "I've seen you as drunk as David's sow!"

"Who did?" cried Mr. Skinner.

Zatonyi, who, leaning on his elbows, watched Mr. Catspaw shuffling the cards, raised his head at the sound of the judge's shrill voice, and observed that, after all, the day's business was neatly done.

"This is my sixteenth case," added he; "and, somehow or other, we always managed to do for somebody."

"*Nihil ad rem!*" cried Mr. Skinner; "it's this man I want to ask."

"*Nihil ad rem*, indeed!" hiccoughed Zatonyi, "are not we in court-martial assembled? It is provided that the court shall sit until the sentence has been executed."

"Fiddlesticks! it's nothing *ad rem*, I tell you! I want to ask Kenihazy!"

"Oh, fiddlesticks! eh?" cried the assessor, striking the table with his fist, "when I say—eh, what did I want to say? yes, that's it, that's no fiddlesticks! Consider, *domine spectabilis*, to whom you're speaking, and where you are; I say, sir, lie prostrate in the face of the sanctity of the place; for, sir, this is a court-martial!"

Mr. Skinner became more and more impatient.

Kalman, who hoped that a quarrel between them would serve his purposes better than the heaviest Tokay, nodded approvingly to Zatonyi, who went on, to the great annoyance of Mr. Skinner, though doubtless very much to his own satisfaction.

"This is not a place for your frivolous jokes, sir—frivolous, I say, sir; and make the most of it, if you please! Up to the criminal's execution, we sit as a court-martial—all the time, sir, without intermission, without—fiddlesticks! It is provided in the articles, chapter four thousand five hundred and twenty-four, that we are to eat in court-martial, sir, and we play at Tarok in court-martial, sir, and we——"

"Cease your row!" snarled the justice.

"I will make a row! And I must make a row, and I'm entitled to make a row, and I'd like to see the man who'd prevent me from making a row! I'm as much of an assessor as any man in the county!"

The Baron had meanwhile studied his cards. He was prepared to come out strong, and he urged them to continue the game; but neither Mr. Skinner nor Kenihazy would listen to him, for Kalman did his utmost to excite them still more. Mr. Skinner fancied he saw a sneer on Völgyeshy's lips, which he could not ascribe to any thing but the doubts which it was evident that hated person entertained of his assertion, that he, Paul Skinner, would drink three glasses to Mr. Kenihazy's one, and remain sober into the bargain.

"Don't boast!" said Kalman. "I'll never believe you."

"You won't?"

"No, indeed! I'll back Kenihazy against anybody."

"You will, will you? I say two cows to my greyhound."

"Done! Your greyhound is mangy; but I don't care. I am sure to win."

"Done, I say! Hand us the glasses."

Kalman could scarcely repress a smile of triumph, while Mr. Catspaw moved heaven and earth to prevent the bet; but Kenihazy laughed, and emptied his glass, the valorous judge followed his lead with three glasses, and the game was continued, though rather more noisily than before.

While Kalman was thus occupied in settling the masters, Janosh imitated his example with signal success in the servants' hall; indeed so strenuous were his attacks upon the general sobriety, that scarcely one of the haiduks and peasants was left to whom an impartial observer would have awarded the laurels of abstinence.

A deep silence prevailed in the prisoner's room, at the door of which two of the least intoxicated among the haiduks were placed. Vandory had passed above an hour in the cell, attempting to administer the comforts of religion to the condemned criminal; and when he left, Susi came to take her last leave of her husband, for, according to Mr. Skinner's express orders, she was forbidden to remain later than nine o'clock.

Both Viola and Susi were fearfully anxious and disturbed in their minds. Viola had often thought of the death which awaited him. From the moment of his capture in the St. Vilmosh forest, he knew that his doom was fixed. He made no excuses to the judges, he gave them no fair words; not from pride, but because he knew that neither prayers nor promises could avail him. And what, after all, is death but the loss of life? And was his life of those which a man would grieve to lose? There were his wife and children—but was it not likely that they would be happier, or at least quieter, *after* the misfortune in whose anticipation they passed their days? Of what good could *he* be to his wife? Was he not the cause of her misery? of her homeless beggary? Of what use could *he* be to his children? Was not his name a stigma on their lives? Could he hope, could he pray for any thing for them, except that they might be as unlike their father as possible?

"When I am gone," thought he, "who knows but people may forget that I ever lived? My wife, too, will, perhaps, forget that accursed creature, whose life filled hers with shame and sorrow. My children will have other names;

they will go to another place, and all will be well and good. I have but one duty, and that is to die."

His tranquillity of mind was disturbed by the plan of escape which Janosh communicated to him. The old soldier was, indeed, resolved to delay that communication till the last moment, lest Susi's excitement and joy should attract the attention and awaken the suspicions of the justice and his myrmidons. But when he entered the room which had been assigned to Susi and her children; when he saw the pale woman nursing the youngest child in her arms, and utterly lost in the gloom of her despair; when Pishta, with his eyes red with weeping, came up to him, asking him to comfort his mother, and when the infant awoke, and smiled at him, the old hussar was not proof against so much love and so much sorrow; and when Susi, kissing the child, exclaimed, "The poor little thing knows not how soon it will be an orphan!" he wept, and cried out, "No, no, Susi! this here child is as little likely to become an orphan as you are likely to be a widow!" And it was only by her look of utter amazement that he became conscious of what he had said.

There were now no means of keeping the secret. Little Pishta was sent away, and Janosh told her in a whisper of all that they intended to do.

"You see," added he, "we've thought of everything. Don't fret, now; in a few hours, when the gentlemen and the keepers are asleep, (and they are settled, I tell you,) you'll see your husband at large, and on horseback, too. It's no use being sad, and it's no use despairing—that is to say—yes! I mean you ought to despair; you ought to be sad; come, wail and pray, and ask for mercy! else they'll smell a rat. I am an old fool, and ought to know better than to tell you, for if you cannot impose upon them, it's all over with us."

Susi whispered some questions to Janosh, to which he answered in the same subdued tone of voice; adding,

"Give me your child, that I may look at it, and dance it on my knee. What a sweet child it is!" said he, his whole face radiant with smiles; "I never saw a prettier child: and it laughs, too, and at me! No, my fine fellow, we won't let your father come to harm. Ej, Susi, I wish to goodness I had a child like this!"

"My children will love you as their second father," said she, with a happy and grateful look.

"Yes, as their *second* father," said the old man, sighing; "but it must be a fine thing to be loved as a real father. I say, Susi, I've often thought why God hasn't given *me* children. You'll say it's because I have no wife. That's true. But why haven't I got a wife? If they had not sent me to the wars, I'd be a grandfather by this time; and, believe me, I'd give my silver medal and my cross for such children as yours. I'd give them both for a single child! Well, God's will be done. Perhaps I have no children because if I had I'd not be so fond of other people's. Young children are all equally beautiful; there's no difference between them. They are fresh and lively, like river trout; but in course of time one half of them turn out to be frogs, and worse."

Janosh saw that Pishta came back with Vandory to call his mother to Viola. Imploring her not to betray the secret, he walked away, fearful lest Susi should want the strength to dissemble her thoughts. His anxiety on this head was perfectly gratuitous. The good news, which Susi communicated to her husband, filled them both with unspeakable dismay. Whoever could have seen Viola would have thought that his stout heart was at last overcome with the fear of death. Need we marvel at this? Was not life powerful within him, trembling in every nerve, throbbing in every vein? Was not his wife by his side? Could he forget his children, whom his death might drive to ruin and, possibly, to crime? Viola had long wished to change his mode of life. He was now at liberty to do so. The brother of the Gulyash was dead. The poor man died at the moment when he was preparing to take his wife and three children to another county, where a place as Gulyash was promised to him. The papers and passports which were necessary for this purpose were in the hands of old Ishtvan, who had promised to take Viola to the place. There, above a hundred miles from the scene of his misfortunes, in a lonely tanya, where nobody knew him or cared to know him, could he not hope to live happily, peacefully, and contentedly? But did not that happiness hang on a slender thread, indeed? Were there not a hundred chances between him and its attainment? A whim of the justice's, a different position of the sentinels, the noise of a falling plank, could snatch the cup of life and liberty from his lips, and cast him back into the valley of the shadow of death.

He was in this state of mind when Mr. Skinner made his appearance in the cell. He was accompanied by Mr. Catspaw and the steward, for his *umbra*, Kenihazy, was in a state which rendered him unfit to be company to any one, even to Mr. Skinner. The change in Viola's manner was too striking to escape the attention of either the attorney or the steward. The justice perambulated the cell with a show of great dignity, and a futile attempt to examine into the condition of the walls. He poked his stick into the straw which served Viola for a lair; when the steward walked up to him, and whispered that the robber had lost all his former boldness.

"Indeed!" cried Mr. Skinner, with a shrill laugh. "I say, Viola, where's your pluck? Where's your impertinence, man? Ain't you going to die game, eh, Viola?"

"Sir," said the robber, biting his lips, "the step which I am preparing to take is bitter, and, I will own it, I feel for my family. What is to become of them?"

"Your family? Oh! your wife! Never mind; *I'll* protect her."

Viola looked daggers at the man; but he curbed his temper and was silent.

"And as for your children," continued the justice in a bantering tone, "they're very fine children, are they not?—eh? Well, they'll grow up, and come to be hanged—eh? But what's the use of this palaver? I say, Susi, be off! You've had plenty of time for your gossip; and I say, Viola, make your will and all that sort of thing."

The prisoner, deeply sensible of his precarious position, embraced his trembling wife: but Susi would not leave him; she clung to him in all the madness of sorrow.

"I say! you've had time enough to howl and lament!" cried the justice. "Make an end of it, and be off!" And suiting the action to the word, he seized Susi by her dress, and led her to the door. Mr. Catspaw and the steward followed her; but the justice stayed behind, gloating over the sufferings of the prisoner. At length he laughed, and said,—"I say, Viola, who's the man that's in at the death? Who'll swing? I said I'd do it, and you see I'm as good as my word!" And turning on his heels, he left the room, and locked the door.

Two of the soberest men were placed in the hall to watch that door; but even they, thanks to the endeavours of Janosh, were not sober enough for Mr. Catspaw, who was just in the act of lamenting that, in consequence of their host's excessive liberality, there was not a man in the house but was drunk, when he was interrupted by Mr. Skinner.

"Who is drunk? What is drunk?" said the worthy justice, turning fiercely upon the attorney. "I say, sir, nobody's drunk here—no one was drunk here—no one will be drunk—and indeed no one can be drunk! That's what *I* say, sir! Who dares to contradict me?"

"Don't be a fool!" whispered the attorney; "who the devil said any thing of *you*? But look at these fellows! they're roaring drunk."

"D—n you, he's right!—Confound you, you *are* roaring drunk! Blast me, I'll have you hanged! If that robber escapes, one of you shall swing in his place! I say, fellows, look sharp! It's truly disgusting," continued the sapient justice, "that men *will* get drunk—drown their reason in wine, for all the world like so many beasts."

The sentinels vowed, as usual, that they had not had a drop ever so long, and that the prisoner should not escape though he were the very devil; but Mr. Catspaw, alike distrustful of their vigilance and sobriety, insisted on seeing the door double-locked, and on taking away the key. Mr. Skinner protested against this encroachment on the duties of his office. He knew that the attorney suspected him of being less sober than he might have been, and this suspicion rendered him the more obstinate. He pocketed the key and sought his bed-room, denouncing drink and drunkards in the true temperance meeting style.

The inmates of Kishlak manor-house followed his example. The judges, the sentinels at the gate and round the house, the steward, and all retired to rest; and although Susi watched, though Kalman paced his own room with all the impatience of his age, and though old Kishlaki himself, for the first time since many years, courted sleep in vain, yet the house and its environs were hushed and silent. Stillness reigned in the prisoner's cell; the sentinels at the door stood gaping, and waiting for the hour of their relief. The night was cold, and though they did their best to keep the cold out, or at least out of their stomachs, they shivered and complained of the chilly night air. Janosh,

who seemed to like the cold and darkness, had meanwhile met Peti, who held Viola's horse at the further end of the garden. The gipsy brought a crowbar and all other tools which they wanted for their purpose; he told the hussar that the Gulyash Ishtvan had promised to bring his cart and horses to the threshing-floor, in order to take away Susi and her children. The old soldier was greatly pleased with this good news. He tied the horse to the garden gate, and told the gipsy to conceal himself somewhere near the loft. This done, he went to look after the sentinels, whom, to his great disgust, he found still awake.

"Is it not ten o'clock?" asked one of them, when Janosh came up.

"Of course it is!" said his comrade. "I'd rather do any robot service than this cold kind of work. It's too much for a soldier, and it's far too much for me. My comrade here was in the wars; he tells me they never force soldiers to play the sentinel so long as we must."

"Who can help it?" said the other man. "It's by order, you know."

"Oh, indeed! It's easy enough, I dare say, to give an order; go and come! stand still! be starved with hunger and cold!—nothing's more easy than play the devil with a poor fellow, while they are stretching their limbs in their warm beds. At least they ought to give us something to eat, or some brandy; I'm sure I was never so cold in all my born days!"

"Don't get sulky!" said Janosh. "I'll tell you what I'll do for you. Master Kalman has given me a bottle of brandy to drink his health. Suppose I go for it. It's nearly full."

He went away and told Kalman how matters stood. When he returned, he brought them a bottle of Sliwowiza and a loaf of bread.

"You see," said he, "that's the way things go on when there's no proper officer. If the judge or any of the other gentlemen had been in the army, they would have made some provision for you, and got some one to relieve you, but as it is——"

"Why, I do hope and trust they will relieve us!" cried one of the men.

"Blessed are those that put their trust in the Lord," retorted Janosh, laughing; "I'd be happy to know who is to relieve you? Why, man, they're all asleep!"

"Give me the bottle! I'm as cold as ice!" said the other man, shaking his head, while his comrade stood drowsily leaning on his musket.

Janosh handed him the bottle, and assured the two men that there was no chance of their being relieved from their duty, and that nothing was more likely than their falling asleep about daybreak, the very time when the justice would go his rounds,—in which case he (Janosh) had no ambition to be in their skins. The bottle went from hand to hand, to keep them awake, as Janosh said, until the poor fellows swore that they would not stand it any longer, and that, come what may, they must sleep.

"Very well!" said Janosh; "I've been in the wars, you know! I'm used to the service. You see I'm not at all sleepy. You may go to the shed and lie on the straw, and when I'm tired I'll wake you. A little sleep will do you good; and by the time the justice turns out you'll be all right."

His offer was readily accepted. The two men walked off, and their loud snoring soon informed Janosh that there was now no obstacle to the execution of his plans. Leaving the musket behind, he walked to the shed, where he assured himself of the firm and sound sleep of the two sentinels; and, having done this, he hastened to the loft, where Peti and Kalman waited for him. Janosh pulled off his boots, (there was no occasion for the gipsy's following his example,) and, having lighted a lamp, he crept up the stairs to the top of the house. Kalman kept watch by the lower door. Wrapped up in his cloak, he listened with a beating heart, lest something might interfere with the success of their scheme.

Something of the kind was likely to happen. Kalman was scarcely at his post when he heard the sound of steps approaching from the house in which the judges slept. The young man stepped aside to escape being discovered, and he had already begun to blame himself for failing to "settle" Mr. Skinner sufficiently, when he saw that the person who approached the place, holding a lamp in one hand and a cudgel in the other, was not Skinner, but Mr. Catspaw, the attorney. Kalman raised his hand, and was preparing to rush forward, with a view of "doing for" the lawyer by

knocking him down; when, luckily for the attorney, it struck him that that delicate operation could not be performed without some noise, and, consequently, not without hazarding the success of the enterprise. Mr. Catspaw was therefore allowed to pass on, which that worthy man did with the utmost unconcern. But his peaceful and happy state of mind was changed to utter disgust, confusion, and dismay, when, on reaching the door of Viola's cell, he found that there were no sentinels to guard the prisoner.

"Confound it!" muttered he, "they're after no good in this house. That young fellow Kalman has made them all drunk—Skinner, the sentinels, the servants, and all. They would like Viola to escape. They tried it this morning, and as it was no go, they mean to do it by brute force. Confound them! I'll go back and wake some of the men,—I'll remain here and watch the door,—what the devil am I to do? That fellow must be got out of the way! If the case is tried in a common court, he'll say enough to implicate me in the matter; and goodness knows what may come of it! There are some who hate me!----" And the attorney was about to return to the lower parts of the house, when his attention was attracted by an extraordinary noise, which seemed to come from the prisoner's cell. The noise resembled that of the breaking of planks. He crept to the door and listened. There was the creaking and the sound of the raising of planks; and immediately afterwards there was a sound of some heavy object being carefully lowered into the cell.

"They are breaking through the ceiling!" cried the attorney; "d—n them! I'll stop them yet!" and, in defiance of his usual prudence, he attempted, though unsuccessfully, to open the door. He cursed Skinner for pocketing the key. Peti and Janosh, who were at work on the upper loft, had provided themselves with a ladder, which they lowered into the cell, the noise of which operation was distinctly heard by Kalman, and, indeed, by the sentinels in the shed, whom it awaked, though not sufficiently to induce them to get up, which, considering the quantity of liquor they had drunk, was by no means an easy matter. But if the noise was lost upon them, it was not lost upon the steward; on the contrary, so effectually did it tell upon him, that he fell into an agony of fear and despair.

That worthy servant of the Kishlakis had never donned his nightcap with so proud and happy a feeling as on that night. The great condescension of the

members of the court, nor even excepting the Baron, for all that he was a magnate; the important duties which he had to perform, such as the guarding of the prisoner, the construction of the gallows, and other arrangements which required ability and tact, and which brought out his "*savoir faire*," gave him still stronger feelings of his own importance than those which usually pervaded his unwieldy frame. He gloried in himself, and lay awake, magnifying and exalting his own name.

"I'm born for better things," said he. "I was never meant for farming. To look after the manure, and the planting, and the ploughing and threshing,—curse it! it's slow work, and I am too good for it! I ought to be a lawyer. Providence created me expressly for that profession! Wouldn't I get on in that line! I might come to be a sheriff, and an assessor of the high court, and indeed a lord-lieutenant, and a magnate of the empire! For what place is too high for a Hungarian lawyer?"

Such were the stout man's thoughts. His imagination borrowed a glow from his cups, (for he, too, had drunk deep), and the cares of his fancied honours and dignities kept him awake, in spite of the fatigues of the day, and, indeed, in spite of his own endeavours to go to sleep. He, to whom it was an easy matter to talk a whole party to sleep, now vainly exerted his skill upon himself. He tried every means; he occupied himself with figures and accounts. But the figures danced in a wild maze, and, somehow or other, the accounts would not tally. He opened his eyes, and looked around. The dying glare of his candle threw a dim light on the objects in the room, filling it with gaunt and shadowy forms. He shuddered, and extinguished the candle; but the darkness made matters worse. His thoughts *would* run on robberies and murders. The greatest brigand in the county, a man sentenced to death, was a prisoner in his house. Who knows what Viola's friends were about? Perhaps they were numerous. Perhaps they were formidable and fierce. Nothing was more natural than that they should attack the house, and liberate their captain. And if so, what was to become of the poor steward, who had so jealously watched lest he might escape, and who had protested, yes, and in the presence of at least a hundred people, every one of whom might have told the robbers of it, that Viola must needs be hanged? That thought made him shake in his bed. And besides, was not his door wide open? Did he not keep it open ever since he was afraid of apoplexy? What was to prevent the outlaws from entering his room, and hanging him on his

bed-post? Nothing; for the haiduk, whose duty it was to sleep on the threshold, had been taken away to join the watch on Viola.

The poor steward's alarm had come to its *acmé*, when he heard the noise of steps in the loft over his head. He sat up in his bed. He heard the steps very distinctly, and immediately afterwards he heard the creaking and breaking of the planks. Yes! the most dreaded event had come to pass. The robbers were at their work of death and destruction! They were burning the house, and cutting the throats of all the inmates! "Gracious God!" groaned he, clasping his hands. What *could* he do? He might lock the door! There was a singing in his ear, his heart beat irregularly, his breath failed him, his face was covered with sweat, and his limbs trembled,—all these were symptoms of an apoplectic fit. "If I lock the door, I am utterly lost!" thought he; "for no one can come to my assistance!" He hid his head under the blankets. But the noise grew louder, and he fancied somebody was breaking through the wall of the room next to his. Perhaps there were not less than a hundred robbers; perhaps they were bent upon torturing him! Unless the door was locked, there was no possibility of screaming for help; for he knew the first thing they intended to do was to gag him. But then, he was in a perspiration; the room was icy cold: to get up and stand on the cold floor was literally courting a fit of apoplexy. But when he heard Mr. Catspaw hallooing, his fear got the better of all other considerations. He jumped out of bed, wrapped himself up in a blanket, and ran to the door. But what can equal his horror when he heard the door of the corridor turning on its hinges, and when quick steps approached him! He dropped the blanket because it interfered with his movements, and seized the key, when the door was flung open. Before him stood a small man, wrapped in a bunda.

There is a tide in the affairs of a coward in which fear makes him a hero. Such a moment had come for the steward. Furious as a stag at bay, reckless as a man who sees certain death before him, merciless as one to whom no mercy is given, senseless, maddened, frenzied, he rushed upon the new comer, and in the very next moment Mr. Catspaw measured his length on the ground, and roared for help.

"Murder!" screamed the attorney.

"Assassin!" bawled the steward, throttling his adversary with his left hand while he punched the wretched man's head with his right.

"He is mad!" groaned Mr. Catspaw, grasping the steward's ears, and returning the blows; and thus they would have passed *un vilain quart d'heure*, had not the noise of their combat roused the watch, who rushed to the field of battle, and separated the champions. Lights were brought, and the two worthies stood bleeding from their respective noses and mouths, as they gaped and stared at one another.

"Was it you, sir, who wanted to steal my money?" said the steward.

"He's mad!" cried the attorney: "lock him up; for he's raving mad! Be quick about it; the prisoner is making his escape!"

They seized the steward, pushed him into his room, and locked the door. The poor man stood, for a moment, paralysed with an excess of fear, fury, and fatigue; but the cold reminded him of his danger, viz., of being struck with apoplexy. He crept into his bed, pondering on the deceit and cruelty of this wicked world.

Mr. Catspaw and the servants hastened to the cell. They forced the door open, and found that the robber had fled, as it is but natural to suppose, if we consider the length of time the attorney spent in the embrace or, more properly speaking, under the fists of the steward. For, when Mr. Catspaw raised his first shout, Viola had reached the upper loft, from whence he leaped down stairs, and out of the house. Kalman locked the door of the loft, and hastened to inform Susi of the success of their plan, and to conduct her to the back-door of the garden, which they had scarcely entered, when the fleet steps of a horse, at the top of its speed, informed them of Viola's safety. Susi kissed Kalman's hand, and hastened away; while he, with the happy consciousness of a good deed, hastened to the steward's house, where he found nothing but clamour and confusion. Masters, servants, Pandurs, and peasants, with torches, candles, and lamps, ran in every direction, hallooing and screaming. Every one took his turn at the cell; and everybody declared, what everybody was aware of, that the prisoner had escaped through the ceiling; and everybody gave his advice, which nobody followed, and orders, which nobody obeyed. Not one of them could be induced to go in pursuit of the robber; and all Mr. Catspaw had for his

watchfulness was a battered face and the loss of a couple of teeth. Nor was it until daybreak that they all and each became aware of the fact that they had neglected to pursue the robber; and, as it was not likely that Viola would come back of his own free will, they returned to their respective beds, with the exception of Kenihazy, whom—*nec ardor civium, nec frons instantis tyranni*—neither the shaking of the haiduks nor Skinner's imprecations could induce to leave his bed, and who was not, therefore, under the necessity of returning to it.

CHAP. X.

Nothing is more painful to a man of quick and ardent feelings than to be compelled to inactivity, as was the case with young Rety while the events which we have sought to record were passing around him. His feverish anxiety, his petulance, and his obstinacy exceeded all bounds; he would certainly have left his room, and taken an active part in Viola's liberation, had not Etelka informed him of Vilma's anxiety for his safety, and her urgent entreaties that he should not leave his room without the permission either of Vandory or the doctor. Etelka felt her brother's accident more painfully than any other member of the family, not for his sake alone, but also for Vilma's; for she was aware how much the poor girl would have to suffer in consequence. It is, therefore, no wonder that Etelka was sad and dispirited when she retired to her chamber on the evening of the election-day. There was a gloom on her mind which she could not dispel. She knew too much of her step-mother to believe she would ever consent to her brother's marriage with Vilma; and as for her father, he had scarcely a will of his own. It was but natural to suppose that he would do all in his power to change his son's mind, partly in obedience to Lady Rety's behests, and partly because he hated Tengelyi. And Akosh! how could *he* yield, when even the delay of a few days brought dishonour on the woman he loved? The least Etelka expected was a grievous domestic quarrel; the worst, a breach between father and son.

Her thoughts were bitter; but they were qualified by at least one soft and kind feeling. She admired the generous manner in which Kalman protected Tengelyi. The young man's behaviour was as intrepid as disinterested. He was aware of the grudge which the sheriff bore Tengelyi; and he must have known that his words in the notary's behalf were so many barriers between him and Etelka. He knew it all, and yet he had spoken; and Etelka, who was convinced of his love, admired him the more for his reckless daring and his generous self-denial. Wrapped up in these thoughts, she retired to rest, though restless; and, when she dropped off to sleep, she was roused by the rattling of a carriage from her dreams of the election, robbers, her brother's pale face, and Kalman's bold attitude and looks of defiance. She sat up in her bed, and listened. A quick step was heard on the stairs and in the corridor. The door of the next room opened, and shut. The new comer was Mr. Catspaw, who, after Viola's capture, returned with the notary's papers to Tissaret; and whose apartments, as has been already stated, were next to Etelka's chamber, from which nothing divided them but a thin brick wall. Etelka (as, indeed, on a former occasion, her maid) heard every one of the attorney's movements. "Where can he have come from?" thought she, as she prepared to lie down again; when her attention was attracted by the attorney's voice. To judge from the noise he made, he was arranging some papers.

"Here they are!" said he; "here are the notary's diplomas! Well, sir, who'll prove your descent? And here are the papers which Lady Rety wants. Right, quite right!—I'll put them in a drawer, and lock them up! I'll have my own price for them, won't I? that's all!"

He locked the drawer and walked about the room. Etelka had great difficulty in catching his words; but she understood that they referred to some piece of knavery, when suddenly her attention was attracted by other steps in the corridor. The door opened again, and Mr. Catspaw said, in his usual shrill voice:

"Victory! my lady! The day is ours! Viola is a prisoner. He fought to the last; but we burned his hut, and smoked him out. The papers are in my hands."

"Where are they?" said another voice, which Etelka knew as her step-mother's.

"I burned them, the moment I could lay my hands on them. They'll not give us any more trouble. They were all in a parcel, and Tengelyi's papers too, which your ladyship was so anxious to have."

"For God's sake don't speak so loud!" said Lady Rety. "Etelka returned last night with her father, and if she is awake she will hear every word." Upon which Mr. Catspaw continued the conversation in a whisper, which effectually prevented Etelka from catching the thread of their discourse. When Lady Rety left the attorney's room, Etelka made vain endeavours to sleep; at the break of day she hastened to inform her brother of the events of the night. He induced her to write to Kalman, and old Janosh received orders to take the letter to Kishlak. That day passed in a painful uncertainty, which was but partly relieved when, on the following morning, Janosh returned from his expedition. Viola was saved; but what were Akosh and Etelka to do? They felt convinced that Vandory's papers were stolen in consequence of their parents', or at least their step-mother's, commands. Could there be any truth in the statement (which Kalman communicated to Akosh) that these papers had some relation to their father's elder brother, who had left their grandfather's house when a boy, and that Vandory was the guardian of the family secrets? But why all this mystery? Why did he not—why does he not explain it? Suppose their unfortunate uncle were alive, and somebody wished to deprive him of his property, was it to be expected that Vandory would be a party to so vile a transaction? And if that supposition is false, what papers can the curate possibly possess, that should tempt Lady Rety to commit a crime to obtain them? There were mysteries and uncertainties on every side. The papers, and with them Tengelyi's diplomas, had not been destroyed. Etelka knew that the attorney had locked them up; his having told Lady Rety that they were burnt, proved that he wished to keep and to use them for his own ends. How could Akosh obtain possession of those papers? Was it judicious to speak to Mr. Catspaw? But the wily attorney was sure to deny all knowledge of them, and to destroy or remove them at the very first opportunity. And how could Akosh force him to restore the stolen property? Not by threats of exposure, unless he wished to attack his parents likewise. Akosh was a prey to the most painful indecision. "What can we do?" cried he; "are we to suffer the rascal to rob Tengelyi of

his rights? Are we to stand by and let him ruin that good man; or shall we, who are Rety's children, accuse our own parents?"

"Our best plan is to do nothing at all—at least for the present," said Etelka. "All we can do is to watch him. He'll not destroy the papers immediately, or employ them for any bad purpose; and though it is against my principles, I mean, for once, to yield to a woman's curiosity, and listen to all that happens in his room. There's always time for extreme measures."

"I am fond of seeing my way clearly," replied her brother. "We ought not to listen or play the spy. These people are too deep for us, and I'll promise you he will take good care that you hear nothing. Indeed, all you heard that night was owing to his not being aware of your presence. Our best plan is to speak to our father."

"And spoil all! It's the surest way to destroy the papers. Whether he is privy to the affair or not, it's all the same; the papers, will disappear the moment he or anybody suspects *us* of being in the secret."

"You are right," said Akosh; "we are compelled to be patient and to dissemble."

"Now be careful!" replied Etelka, preparing to leave the room. "I hear my father's footsteps in the hall. He is sure to talk of Vilma; therefore pray keep your temper and your counsel!"

And, kissing her father's hands (whom she met at the door), Miss Rety withdrew.

Father and son met as antagonists, and their instincts taught them an increase of that polite reserve which usually characterised their intercourse. After the necessary inquiries after his son's health, both were for a while silent, till at length the sheriff, with a violent effort, launched into the debate.

"My son," said he, with a smile, which in him meant only that he was at a loss what expression to give to his features; "I ought to scold you for your late adventures, not only because they induced you to withdraw your influence at the election (thank goodness! we managed to do without you),

but also for endangering your life. Consider what a father's feelings must be when his son behaves like you."

"My dear father," replied Akosh, his voice trembling with emotion, "I am happy you have broached the affair. That matter must be settled, and the sooner the better."

The sheriff was by no means pleased with the eagerness with which Akosh snatched at his words.

"I am at your service," he said; "but I would advise you to wait before we come to an *éclaircissement*. Leave it till another day. You are excited, and perhaps suffering."

"No, father," replied Akosh, "I cannot wait when my honour is concerned. You know I love Vilma."

The sheriff smiled, and Akosh continued, with a blush:—

"You need not fear my giving you a homily on my love and Vilma's virtues. I intend nothing of the kind; but you are aware of the imprudent step which Tengelyi's obstinacy induced me to take. He would not allow me to visit his house and see his daughter."

"Tengelyi is a sensible man; at least, in a great many respects."

"That may be. I, for one, will not contradict you, nor do I mean to argue the question whether it is reasonable to ask a man to do impossible things, or whether it shows good sense to oppose a strong and honourable feeling, and to drive it, by that very opposition, to secrecy and other steps of a questionable nature. I say I will not argue that point. You know all that has happened. You know that Vilma's reputation is at stake, and that I owe her satisfaction——"

"I know nothing of the kind!" said the sheriff. "My dear son, you make mountains of mole-hills. I must confess, how Vilma's reputation can have suffered is a thing which passes my comprehension. I grant that the business does not reflect much credit on the Tengelyi family, nor, indeed, on Mrs. Tengelyi; but as for the young woman, why, she is turned seventeen!"

Akosh sickened at these words, and the tone in which they were spoken; but he conquered his feelings, and went on:—

"This is no laughing matter, father. Vilma's reputation cannot but suffer; and if I could have doubted it, I'm sure what my mother said of her in this very room would have enlightened my mind on the subject. There is but one remedy for this, and as I have long intended to marry Vilma, I am now resolved to do so without delay. What I ask for is your consent, my father."

Mr. Rety was one of those men who abhor plain questions, because they require plain answers. The manner in which his son put to him one of these objectionable questions, and in so important a matter, too, overwhelmed him with confusion. He muttered something about the dangers of brusquing any business, and that it was impossible for him to make up his mind in a moment, or to give a decision on a subject of the bearings of which he knew so little.

"As for me," replied Akosh, "my resolution is firmly fixed. But if you wish to examine the bearings of the question, I trust you will not forget that Vilma cannot possibly make her appearance any where, unless it be as my betrothed; and that it is cruel in us to prolong, though only for a day, the painful position into which I have brought her family."

"My son," said Rety, with a show of great sympathy, "no one can admire your delicacy more than I do! I promise you that you may rely on my effectual co-operation in any thing we can do to indemnify the Tengelyis for your inconsiderate rashness."

"Which means that you give your consent!" cried Akosh, seizing his father's hand.

Rety proceeded: "I am prepared to go any lengths to indemnify Tengelyi. We are rich, and, if you think proper, I have no objection, I assure you, not the least objection, to grant him a certain quantity of land, and to provide for Vilma in such a manner that——"

Akosh dropped his father's hand.

"Are you aware, sir," cried he, "that I love Vilma? That I love her more than any thing in this world? That she loves me? and that I'd rather die than leave

her?"

The sheriff looked wretchedly confused. Akosh proceeded in a more subdued tone:—

"Do not fancy that I come to you for assistance. My late mother's property is in my hands; it will suffice to keep me and my wife. I leave you to do as you please with your property. All I ask is your blessing, which I *do* trust you will not refuse me."

The sheriff was not without feeling, and the words of his son touched his heart. He was, however, at that time of life in which our principles (which usually emanate from and correspond with our interests) prevail against the softer feelings of humanity, which are so strong in a young and ardent heart; and even if this had not been the case, he would not have dared to grant Akosh's request. Lady Rety's influence over him precluded the mere idea of consent. His reply, therefore, consisted of a variety of those common-place phrases which men are wont to adduce in argument against passions of which they cannot fathom the depth. But his reasonings, however specious, made no impression upon Akosh, who would not even consent to delay, in spite of his father's solemn promise that he was prepared to sanction his son's choice in a year, if Akosh would but follow his advice, and go on his travels.

"You are unreasonable, indeed you are, my dear son!" said the sheriff, at length, while Akosh paced the room in a state of great excitement. "You ought to consider what you are about. You ought to consider that your passion is likely to be your ruin. You must own that I am a good father, an indulgent father. I never opposed any of your wishes, or even whims. Your politics are opposed to mine; still you see I respect them, trusting that time will at length cure you, as it does so many others. My greatest wish was, that you should contract a suitable alliance: indeed, I know several young ladies that would have pleased me, but I have not urged you. I left you to yourself. I scorned to influence your choice. I think it but just that in the present instance you should yield to *my* will. Consider that there is no stepping back if you once step forward."

"I have left nothing unconsidered," replied Akosh. "My mind is made up. Vilma is all I care for in the world."

"The world! And do *you* know what the world is? Do you know what you will care for when you are past thirty? At your time of life people are mad for love and a cottage. But, believe me, there are other things in this world to wish and to struggle for, and to possess. A youth is amorous, but a man is ambitious. When love has ceased to yield us happiness, we turn to the world, and would fain exult in the respect and obedience of the many."

Akosh smiled and shook his head.

"You are sceptical now, but I know your time will come. You are generous. You are free from egotism and selfishness: but, after all, you are human. The expression of our features may vary; but we are all formed of the same clay, and our feelings and instincts are very much the same, however varying their expression may be. Your time will come. There will be a day in which your soul will yearn for honours and distinctions. There will be hours in which you will regret that your talents have been left to rust in the back kitchen; and you will curse your folly, which excluded you from the only career in which a man can feel real happiness."

"I cannot believe it! But suppose such were the case; suppose that I were to wake to ambition; who tells me that, in following your advice, I can satisfy that ambition? Thousands of hands are stretched forth to grasp those apples of Tantalus, but whose thirst did they ever slake? Was there ever a man, who strove for distinction, who did not come to despise that which he had gained?"

"Some there are, indeed," said the sheriff; "but they grasp at more than they can reach."

"But who tells you that this is not to be my case? I have never wished for greatness; but if I were to enter the lists, I know that I should struggle for an object which millions have striven for in vain. To be the great man of a county; to be the master of a poor few thousands; to carry my head high like the reeds of the morass, surrounded by the rottenness to which I owe my elevation; to bow and bend like a reed, so that my weakness may not appear from my resistance: no, father, that is not an object to devote one's life to, and yet, could I possibly aspire to any thing else?"

"Why should you not?" replied the sheriff, with great eagerness, for he rejoiced in the turn of the conversation, though smarting under his son's words, which pictured his own condition in very unattractive colours. "Why should you not? A young man of your class may aspire to the highest honours. I admit that the path is thorny, and indeed you would be obliged to make it straight through the county; but you are young, and you have the means to begin where others end. At the end of three years I intend to resign my place in your favour, and when you have once obtained the shrievalty you can aspire to any thing. I trust I shall live to see you as a *judex curiæ*."

"But, my dear father," said Akosh, with a smile, "even if the career you trace out for me were to my mind, even if I would condescend to barter my opinions for office, and to come to the mountain because the mountain will not come to me—why, in the name of all that is reasonable, cannot I do all this with Vilma, as well as without her?"

The sheriff looked up with the greatest amazement expressed in his countenance.

"Are you not aware *where* it is you live?" said he. "Don't you know that nothing is to be got in this country, unless by means of family influence? Personal merit is a cypher; it multiplies your value if your position be added to it as number one; or do you think I could ever have come to be a sheriff if I had married a woman of ignoble descent?"

"Is it not enough that *I* am of a noble house?"

"Of course," replied Rety, with deplorable rashness; "if the wife of your choice were any other but Vilma—any other but the daughter of a village notary! I am no tufthunter. If you like, you may marry into a merchant's family—or, really I do not care, take the daughter of a proselyte from Judaism—any thing of the kind will do. I am by no means a tufthunter, my dear Akosh; I am *not* prejudiced, whatever people may say to the contrary—no! I know too well that nobody ever saw the blood which runs in the veins of the Retys. Take any girl you like, so that she has plenty of money; it will set you upon your legs, my boy. Your sister, you know, is coheirress with you, not with *my* will, I assure you; but if your wife is not rich, you'll have only one half of what I possess, and——"

"My dear father," cried Akosh, "do not let us pursue this subject any further. It's of no use; I have made up my mind. If my heart alone were concerned, I would sacrifice all my hopes of happiness for your sake; but my honour, and Vilma's present and future happiness, are at stake, and nothing can shake my resolution. I beg, I entreat, do not refuse me your consent! do not compel me to take the most important step of my life without your permission and your blessing!"

"Consider, my son," urged Rety, "consider what your grandfather and father did to raise our family to its present position! Are the struggles of half-a-century to be sacrificed to your passion? to a whim of the moment? Consider that you deprive my house of its peace; for, believe me, my wife and Vilma can never meet as friends; and my wife tells me that she would sooner leave the house than consent to this cursed marriage. Think of your sister, for she too is likely to be ruined by your obstinacy. What gentleman would be kin to a village notary?"

The sheriff would probably have urged a variety of other reasons upon the consideration of his son, but the door opened, and Lady Rety entered the room. Rety's arguments were not likely to have any effect upon his son; nor was it probable that Akosh could ever persuade his father, that a man who had the full enjoyment of his reasoning faculties could prefer the daughter of a poor village notary to the seductive charms of a shrievalty; but still Akosh loved his father, and the sheriff's warmth and sincerity touched his heart. But when his step-mother entered, and (as usual) took the lead in the discussion, her commanding tone and supercilious manner turned the young man's blood to gall, and his every word betrayed his scorn and disgust of the woman, whom he knew to be an accessory of a crime.

"I presume you have talked to Akosh," said Lady Rety, addressing her husband. "Pray what has he to say for himself?"

"Yes, I did mention the matter—and Akosh said he would—that is to say, just at present—that he——"

"That he will never resign Vilma," cried Akosh, "neither now nor ever; that's what he says!"

"Oh, very well!" replied Lady Rety, with an angry look at her son. "You are mistaken, if you believe, sir, that we can ever be brought to consent to this marriage."

"As for your ladyship, I never reckoned on your consent; but——"

"Nor will your father give his. I am sure my husband has never given you reason to suppose——"

"Perhaps not!" said Akosh. "But since my father loves me, I have no reason to suppose that his will is unchangeable."

"It is unchangeable!" cried Lady Rety, violently. "I say it is unchangeable! Am I right, Rety?"

The sheriff nodded his head in token of assent.

"No, never!" continued Lady Rety. "Neither he nor I will ever sanction this folly!"

"If that's the case," said the young man, with a look of contempt, "I shall be forced to do my duty as an honourable man without my father's consent; I shall be forced to leave a house which, it appears, is so completely monopolised by others, that there's no room left for me!"

"And which place does the young gentleman intend to honour with his presence?" sneered Lady Rety. "Does he propose to reside on the domains of his lady-love?"

"There's no occasion for it!" replied Akosh, trembling with excitement. "My mother's property will suffice for me now that she is dead. If she were alive, I'd not be forced to leave my father's house in this manner!"

"Ungrateful wretch!" screamed Lady Rety; "do you reproach me with my condescension? I was born a Baroness of Andorhazy, and nothing compelled *me* to marry a common-place nobleman! I am sure *I* was not honoured by the alliance! No, it was *I* who honoured your family! And as for your mother's property, you shan't have it! You are not of age. You have no right to claim it!"

"I shall be of age in about six weeks."

"And I say no! and no! and no! I scorn the match! I won't stand the disgrace—the infamy! Your father will disown you! curse you! I say I will not allow you to disgrace the name which *I* bear!"

Akosh would have spoken, but she continued:—

"I will not suffer it! What? is the daughter of a village notary to become my daughter-in-law! A woman without a name! a woman with scarcely a rag to her back! a woman I despise!"

"My lady!" cried Akosh.

"Yes, a dishonourable woman! Your mistress before she was your wife; a ——"

The cup was full. Akosh, in a frenzy of passion, rushed forward to attack his step-mother, but the sheriff caught his arm as it descended.

"How dare you?" screamed the young man; "how dare *you* say so! *you*, the accomplice of robbers and thieves! *You*, who are indeed the disgrace of our house! Why woman, if I were to speak, I could send you to gaol, to your fellows!"

His words were so many thunders in Lady Rety's ear. She stood deadly pale, trembling, with downcast eyes—a picture of guilt and misery. There is no saying what the sheriff might not have done but for Vandory's entrance, which put a stop to all further explanations. When the curate entered, Lady Rety seized her husband's hand and led him out of the room. Akosh, still exhausted with his illness, and fearfully excited, flung himself on the sofa, and wept.

A short time afterwards the sheriff's servant brought a note, in which Rety asked his son to leave the house at his earliest convenience. The curate offered to effect a compromise, but Akosh insisted on going immediately. He took a hurried leave of Etelka, and accompanied Vandory, who had offered him shelter under his own roof.

CHAP. XI.

The majority of mankind are more or less eloquent on the subject of the wounds which love inflicts on the human heart, while they most unjustly forget that if love makes wounds, he also heals them, and that his sorrows and pains are as nothing in comparison to the joys he gives us, by rendering us (for the time) insensible to the other griefs that flesh is heir to. This healing and protecting power of love relieved young Rety from the sorrows that would otherwise have beset his mind, and caused him to triumph over griefs which might have borne down a stouter heart than his.

Vandory introduced his young guest to his house; and this done, he hastened to Tengelyi. The notary was just returned from a journey to some distant place, where he had been consulting a legal friend of his. He was preparing to set out again for Kishlak, to talk to Viola, when he was informed of the prisoner's escape. This news deprived him of all hopes of profiting from Viola's confession; and the disappointment was the more painful from the fact of its strengthening his suspicions of the Rety family. Vandory's conversation did much to calm his mind, and the two friends had a long debate on the situation of affairs, and the danger which threatened Vilma's reputation, in the course of which the curate put great stress on the fact that young Rety's love to Vilma was the cause of his banishment from his father's house. Tengelyi was at length induced to promise that he would not oppose his daughter's attachment to Akosh; and when Vandory hastened away, and returned accompanied by the trembling lover, the notary gave him a kind and even hearty welcome, and, by way of a practical demonstration of the old proverb, "the least said, the soonest mended," he led young Rety to his daughter. Having thus far yielded to the influence of his wise and judicious friend, he returned to Vandory, saying, as if to excuse his own weakness,

"After all, what can we do? They love one another; and fate, it appears, wills their union."

"I've often told you so, but you would not believe me."

"I was not always convinced of it; I wished for an older husband for my daughter, for a man equal to her in rank and position; but fate has willed it

otherwise. And, after all, Akosh is thoroughly good and honourable. He will protect my boy,—poor little fellow! he has lost caste, and is now no better than a '*villain*.' My daughter's reputation would have been lost, for we all know Lady Rety's malice: but this marriage will set all right again. In short, it were folly to oppose it, however hostile my principles are to alliances of this kind."

Thus the notary. And love, which but a few days ago had endangered the tranquillity and peace of his house, served now to make it brighter and gladder than ever. But the inmates of the manor-house of Tissaret were a prey to grief and vexation of spirit.

Immediately after the stormy scene in Akosh's room, Lady Rety conducted her husband to her own apartments, where she told him the secret of the recent events, to which she added Mr. Catspaw's account of what had happened during the trial of Viola. The sheriff was shocked and alarmed, though far less than his wily wife had been led to expect. He left her to think the matter over in his study. Lady Rety remained alone, a prey to the bitterest feelings. She thought of what Akosh had said, and of the sacrifices which she pretended to have made for that young man's benefit.

"What," thought she, "what did I slave for? Why did I put my head into the snares of that hateful attorney? Why, indeed? Was it not to raise this family, and to secure a large fortune to that young fool, who now turns against me?"

She sobbed and clasped her hands.

"My life," continued she, "has been *one* long struggle, a continued sacrifice of my feelings to objects which escaped from my grasp. The man I loved was poor. I felt that my heart yearned for better things than the insipid happiness of a good housewife. I married Rety because his fortune and his position gave me a promise of rank, splendour, and distinction. And what is it I have come to be?—I am a sheriff's lady, the wife of a man who has neither talents nor energy which could raise him to a higher position. Well, I was resigned. I sought another basis for my happiness. I thought of raising Rety's children to that lofty position which their father wanted the strength to reach, or even to covet. What are these children to me? They are not my own children. They have not sprung from my blood. But they bear my

name; and though they hate me, their step-mother, still they could not prevent me from profiting by the position into which I wished to force them. All my endeavours were directed to that end. And now! now! I have lost all! All my plans, all the struggles of so many years are in vain, and only because Akosh is in love with Vilma! There's nothing too high for him, and he—he turns his back on me, on the world, on splendour and wealth; and all for the notary's daughter. Confusion! and I cannot even revenge myself on him!"

And Lady Rety racked her inventive mind to find a means to cross her son's plans; but she sickened at the thought that the notary, whom she hated because she could not despise him, was likely to triumph over her. She was lost in these painful thoughts, when Mr. Catspaw entered her room. Lady Rety asked him what the sheriff was doing.

"He is rather excited," said the attorney, seating himself unceremoniously, and with a freedom of manner which was by no means in keeping with his usual respectful politeness. "Your ladyship can have no idea of his state of mind. Indeed he has gone to the length of abusing me—the poor sheriff! But who the deuce can help it? It's a dirty business, and in his position too ——"

There was something in Mr. Catspaw's voice and manner which struck Lady Rety, and which made by no means an agreeable impression upon her.

"You are merry, sir," said she; "though really I cannot understand what there is to laugh at?"

"But I can!" replied Mr. Catspaw. "The man who is in at the death, and after a hard run too, has a right to be merry."

"But we are not in at the death!" retorted Lady Rety; "Viola is at large, and we are suspected."

"Fiddlesticks!" exclaimed the attorney, with a loud burst of laughter. "Viola's escape is nothing to us. Is he not sentenced to death? Is he not aware that he cannot appear against us, without bringing his own skin to market? or do you think that the robber will come to be hanged, merely for the pleasure of giving evidence against you and me? And as for any one

suspecting us, why it's sheer nonsense! The thing is too bad for anybody to believe it!"

"You would change your opinion if you could hear what Akosh says. I am afraid he knows more than is good for him and for us."

"Fiddlesticks! Stuff and nonsense!" cried the attorney. "What can *he* know? I dare say he has smelled a rat, but that's all. But I'll dodge him, madam; I'll dodge him!"

"You are determined to see the bright side of things," said Lady Rety, amazed; for usually it was the worthy attorney's habit rather to increase than to lessen the difficulties of a question.

"Why should I not?" answered Mr. Catspaw, as he leaned over towards her. "Have I not devoted my whole life to your family? And have I not braved all dangers? And now that the time of my reward is come, what can prevent me from enjoying myself?"

"What do you mean, sir?" said Lady Rety, with a stare.

"Oh, my dear, good, clever lady, you know to a nicety what I mean! How can you help it?" cried the attorney in a bantering tone, as he seized her hand. "Why should you pretend to make sport of your humble servant? What was your promise? Whenever I could lay my hands on Vandory's papers, I was to have a grant of land as a reward for my faithful services,—*propter fidelia servitia*. You know it was mentioned on the day of the canvass. Your ladyship must remember it; we were in the garden——"

"Yes, yes! I know all about it."

"And what were your ladyship's words on that memorable occasion?"

"I said, My dear Catspaw, on the day you produce those papers, we will transfer the land."

"Oh, your ladyship, I too remember those words which bound me to you with chains of gold. Here, in my heart, they are written in golden letters, and——"

"Why do you remind me of that promise? Do you doubt me, sir?"

"Not I, indeed!" cried Mr. Catspaw, as he pressed her hand. "No! I am sure you mean to stand by what you said. It's the very reason, you know, why I am come to consult you about the draft of the document. Your ladyship will understand, that in the preamble some mention must be made of my merits and my natural modesty——"

"*C'est une vertu que vous cachez avec soin!*" said Lady Rety, sarcastically. "Well, sir, I agree to an enumeration of your transcendent merits. Leave it to me! I will take care that the document is drawn up; but I trust the affair is not pressing."

"Who knows?" replied the attorney, with a sigh. "We are all of us mortal, and——"

"I hope that *I* do not look like a dying woman!" retorted Lady Rety, with an impatient shrug of her shoulders.

"God forbid, that I, your devoted servant, should live to mourn your loss! But, after all, who can be sure of to-morrow? and am I, whose only hope lies in your promise, to risk my all, and perhaps lose it?"

Lady Rety overcame the disgust she felt at Mr. Catspaw's impertinence. She replied that the suspicion which attached to them must necessarily increase, if such a reward were given to the attorney at this particular time.

"It is much safer to wait," added she, in a confidential tone. "You see the affair must blow over: but to satisfy your mind, I repeat my promise; and depend upon it, my dear Mr. Catspaw, you'll find me as good as my word!"

The attorney kissed her hand in a transport of joy.

"A proud man indeed I am!" said he; "for where is so distinguished a lady to be found as my gracious mistress? so careful, so clever, and so businesslike a lady! And your ladyship is right: there are few solicitors who get through their work as I do; and in the other point too you are right, indeed you are! A cession of land, at this particular time, might possibly get us into a scrape. The truth of the matter is, I thought so too. I intended to point it out to you, but your ladyship's sagacity puts me to the blush. What I wished to direct your attention to is, that there is another way to vent your generous liberality, and to keep the affair quite snug and secret. My plan is a most

simple one. Your ladyship need only persuade my gracious master, the sheriff, to sign five bills of ten thousand florins each, of course with convenient terms for payment, say from six to six months. After that——"

"This is a bad joke!" said Lady Rety, staring at Mr. Catspaw in wild amazement. "Fifty thousand florins in Austrian money——"

"I was never more serious in my life. Please to consider that——"

"But it's thrice the value of the grant I promised you!"

"A fair valuation of the land would perhaps amount to a higher figure. Besides, your ladyship must see that the affair was more troublesome and dangerous than I was led to suppose; then there's the loss of my reputation, for Viola's evidence does go for something against me; and, besides, I have paid the Jew a large sum, and I know he'll be at me again, for, to tell you the truth, I believe that Jew has some idea of your ladyship's being mixed up in the affair; and considering all this, it is but fair——"

"Do you really mean to say you expect me to satisfy your impertinent demand?" said Lady Rety, boiling with rage; "do you think me and my husband so foolish as that? What! are we to get into debt for your sake?"

Her violence made no impression on the attorney, who replied with the utmost coolness:

"I'm sure, your ladyship, you are so clever, and so businesslike and generous, that——"

"No, sir, no!" screamed Lady Rety. "Don't you rely upon my generosity, or folly, if you please! Indeed, Mr. Catspaw, I'm happy to know you at last! I'm proud to understand what was at the bottom of your zeal!"

"Your ladyship does me too much honour!" said Mr. Catspaw, with his grating voice; "and it's a pity that you should endanger your precious health by the violence of your gratitude. But this generous burst of passion adds to my conviction that your ladyship will joyfully embrace my proposals."

"Your proposals, indeed!" cried the lady. "You are an impertinent scoundrel, sir! I'd like to see the man that can force *me* to any thing! The very fulfilment of my promise depends upon my own free will. Where are your

witnesses, sir? Where's your judge? No, sir! You have nothing to rely upon except my generosity, particularly since you neglected to fulfil the very first condition of our bargain. Where *are* those papers, sir? for all *I* know they may be at Vandory's, or somebody else's; and you, sir, how dare you ask me for money on the wretched plea of your having burnt them!"

"Nothing is so easy for me as to satisfy your ladyship on that point," retorted the attorney, with a sneer. "The papers are still in my hands. You are welcome to see them any time you like."

Lady Rety stood trembling, speechless, and stunned. At length she muttered,—

"You forget, sir! You told me you'd thrown them into the fire."

"I'm fully aware of it!" sneered Mr. Catspaw, "And not only did I tell you I'd burnt the papers, but for a moment I had that insane intention. Thank goodness! I did not carry it into execution."

"But why did you not give me the papers?" said Lady Rety, with so trembling a voice that it was clear she knew the attorney's motives.

"Why did I not give them to *you*? Can your ladyship dare to ask me such a question? But I'll tell you. I did not do it, because, having devoted my life to yourself and your family, I had no mind to be cast aside like a used-up tool. I kept the papers, because I would not trust to your generosity, and because I thought it was better to be safe than to be a fool."

"Do let us talk it quietly over. Suppose I *was* violent just now! are we not old friends? and have you not spoiled me?" said Lady Rety, forcing a smile. "The papers are in your hands: they are your property; and nothing can be more fair than your wish to sell them. But your demand of fifty thousand florins is utterly inadmissible."

"I would not take one penny less than that," replied Mr. Catspaw, with great composure. "Papers for the possession of which a lady of your ladyship's rank and condition condescends to such deeds as we enacted together, I say, such papers must be worth their weight in gold."

"Beast!" growled Lady Rety, as she walked to and fro in the room.—"My friend," said she, turning to her antagonist, "please to consider my position. You know I have not one fourth part of the money in my possession; and the bills, to be valid, must have my husband's signature. How can I induce him to consent to so great a sacrifice?"

"I know your ladyship's power too well! Nothing can be easier for you than to induce the sheriff to sign the bills. Everybody knows how irresistible your ladyship is!"

Lady Rety made no reply to this cutting speech; but she turned, to hide the tears which bedewed her cheeks. The attorney walked to the window, and drew figures on the panes. After a long pause, the lady mustered up her resolution; and, boldly confronting the lawyer, she asked: "Do you really mean to stand by your demand?"

"I do, indeed," replied Mr. Catspaw.

"You will not let me have the papers under fifty thousand florins?"

"Certainly not."

"Very well, sir; keep them!" said Lady Rety, with a loud laugh: "keep them, sir! make the most of them! What do I care about Akosh's fortune now, since he *will* marry the notary's daughter! and it was for his sake alone I wanted those cursed papers."

"Am I to make the most of them? Am I, indeed?" said Mr. Catspaw, somewhat startled by the sudden turn of the debate.

"Of course you are!" said Lady Rety. "I declare it's quite amusing! To think that I should have forgotten that I have no reason whatever to care for them since the young gentleman told me his mind! And as for you, my dear sir, indeed it grieves me, but your conduct of this evening will certainly induce me to re-consider my promise,—about the grant, you know."

"Nothing more natural. The papers have possibly lost their former value in your ladyship's eyes; nothing can be more natural, woman's heart is so changeable! but, in my eyes, they retain much of their original value. That value, madam," said Mr. Catspaw, seizing the lady's hand, and

affectionately pressing it, "is enhanced by the *manner* in which we became possessed of them."

"We? Mr. Catspaw! What do you mean, sir?"

"What I mean is clear enough," retorted he, still squeezing her hand. "Viola has accused your ladyship of theft, and of being a partner to a robbery. No matter! Viola is a robber: no man in his senses will believe a word he says. But suppose another witness were to come into court, say, for instance, *I* were to appear against your ladyship, say I were to give evidence fully corroborating the robber's statements; and suppose, in confirmation of my evidence, I were to produce the papers we stole, the contents of which would prove, beyond the possibility of a doubt, that you, and only you, could have an interest in their abstraction,—what then? My humble opinion is, the affair would make some stir in the county."

"Nonsense!" said Lady Rety. "I do not fear your threats; knowing, as I do, that you cannot ruin me without ruining yourself."

"Don't be too sure of that! We are not exactly in the same position. I'm not interested in the papers; but your ladyship is. I am a poor lawyer; and suppose I were to come into court, declaring that I devoted my life to the service of your house, that my zeal got the better of my duty, and that I assisted your ladyship in the theft; but that, repentant and conscience-stricken, I come to accuse myself, and to give the stolen property up to the court,—is there not a deal of pathos in such an account? Can it fail to touch the hearts of the judges?"

"Demon!" gasped Lady Rety, as she flung herself on the sofa, and covered her face with her hands.

The attorney proceeded:—

"The business will give me a good reputation, and some profit, too. Akosh would do any thing to get Tengelyi's papers. Perhaps he is open to a negotiation; and Vandory, too, (he delights in repentant sinners,) will take my part. But as for your ladyship——"

"Devil! cease to torment me!" screamed the lady, clasping her hands.

"The sheriff's lady in gaol!—it's an ugly thing. The sheriff's influence no doubt would go for something to make the punishment short and mild; they would give you, say, six months, or three months; but still,—you have been in gaol, and,—for thieving in company with a Jew. Besides, there are the cross-examinations, the evidence——"

"Catspaw!" screamed Lady Rety, with the bound of a wounded panther, "No! you cannot do that!"

"I can and I will do it, unless I have the bills on Friday next."

"You shall have them!"

"Five bills of ten thousand florins each, and signed by the sheriff."

"Yes."

"The bills to be payable from six to six months."

"I know it all. For pity's sake, leave me!" cried she, with a dying voice.

"You shall have the papers the day you give me the bills," added the attorney, seizing his hat. "Good night, my lady!" And he left the room.

The noise of his steps had scarcely ceased to sound in the hall, when the door of the hall stove opened, and Peti's curly head appeared in the gap. The gipsy was Mr. Rety's stove-heater; and, in the present instance, he had crept through the chimney to Lady Rety's apartments, where he had listened to her conversation with Mr. Catspaw. He was just about to leave the place, when he met Janosh.

"Dear me! what's the matter?" cried the hussar. "Your face is all soot and ashes, man!"

"No wonder it is!" said the gipsy, wiping his face with the sleeve of his shirt. "You know I am always at that dirty work."

"At it again, man! Make large fires in this house! Give them a taste of hell! I am going to join my master. I've packed my things, and I've done with this house, d—n it!"

"Are you, too, going?"

"With a vengeance, my boy!" replied Janosh. "I've eaten the sheriff's bread, and I never dreamt I should ever leave his house without saying 'God bless you!' But that's the way they've sent my master about his business. Good night!"

The hussar hastened away. Peti took his bunda, crept to the garden, and disappeared in the darkness of the night.

CHAP. XII.

On the following day the sheriff's house resumed its usual tranquil appearance. Mr. Rety, indeed, looked dispirited and gloomy, and Etelka was less cheerful than usual. Lady Rety, too, looked pale; but whatever her feelings were, she kept them under command; and when Mr. Catspaw made his appearance, she received him with a smile, which had lost nothing of its former graciousness. Lady Rety's temper, however violent, was never allowed to interfere with her plans: Mr. Catspaw knew this. He was too familiar with the lady's character to confide in the treacherous tranquillity of her appearance, especially since her maid had told him that her mistress had not gone to bed that night; that she walked to and fro, and showed other signs of restlessness; and that early in the morning she shut the windows of her room with such violence that she broke several panes of glass, which were symptoms—as Mr. Catspaw sagely observed—of an unsettled and disturbed mind. He watched her closely, though unsuccessfully; and none but the chamber-maid knew that Lady Rety, instead of sending the broken windows to the Jewish glazier, had ordered that man to come to her room; and that, strange to say, although the lady remained in the room while the Jew was at work, she never once raised her voice for the purposes of correction and abuse. But as Lady Rety complained of headache and fever, the chamber-maid was justified in finding a reason for this extraordinary mildness in the weak state of her health.

On the third day, however, she was so far restored, that she could accompany her husband and Etelka on a visit to Dustbury. Mr. Catspaw alone remained at home. He was anxious and restless; indeed he would

gladly have accompanied the family, for he could not believe in his own safety unless he had his eye on Lady Rety. And that she should go to Dustbury of all places!

"This woman," said Mr. Catspaw, "would do any thing to injure me. I'm sure she has settled a plan of revenge in her mind; I'm quite sure of it! her seeming kindness makes it clear beyond the possibility of a doubt. What can it be? I would not mind it if she were to abuse me or swear at me; but I don't like her present manner,—indeed I don't like it," said Mr. Catspaw, emphatically, as if to convince himself of the very dangerous nature of Lady Rety's intentions. He thought of all and any thing she might, could, or would do; but there was nothing he could think of by which she could ruin him with safety to herself.

"But is it not possible for her to sacrifice her safety to her vindictiveness?" said the attorney; "and if she does, who is the victim? I? It was I who took an active part in the theft. How am I to prove her guilt? Viola knows all about it; but Viola is not likely to show his face again. The county is too hot to hold him. As for the Jew, he'll be as false to me as he is to everybody else; and when once accused, who will believe me if I accuse the sheriff's wife? I must needs make friends," exclaimed the amiable attorney; "everybody hates me; and the cleverest man cannot stand the attacks of numbers. But what am I to do?"

After a careful examination of his position, it appeared to him that there were two ways of providing for unforeseen contingencies. The first was to ingratiate himself with Lady Rety by preventing young Rety's marriage; the second, to creep into that young man's favour. The thing was difficult, but it could be done. After receiving the bills, he could easily retain a few of Vandory's papers. Lady Rety had never seen them: she could not, therefore, suspect any thing. At a later period he (the attorney) thought of presenting those letters and Tengelyi's papers to Akosh, telling him how they were obtained, and what share Lady Rety had in the transaction. Akosh was sure to keep the secret; and, as for Lady Rety, it was not likely that she would accuse Mr. Catspaw, if she knew that her own son was prepared to give evidence against her.

His resolution once taken, he commenced with his usual energy to carry it out; and being informed that the notary was out walking with Vandory and Akosh, and that Mrs. Tengelyi and Vilma were alone, he hastened to the notary's house, studying his part as he walked along, and comforting himself with the reflection, that, however ill they might receive him, they were but women he would have to contend with, he knocked softly at the door.

Mrs. Ershebet and Vilma were at work in the notary's room. They were not a little startled by the attorney's appearance; and Mrs. Ershebet's tone was none of the kindest, when she asked him why and what he came for? but he managed to reply, with the utmost coolness, that he wished to pay his respects to Mr. Tengelyi and his family; and, suiting the action to the word, he took a chair, and waited to be spoken to.

His quiet assurance confounded Mrs. Ershebet. Mr. Catspaw knew it would, and, knowing this, he had prudently timed his visit so as not to meet Mr. Tengelyi. He suspected that the notary would not give him time to say all the kind words which were to make his peace with the family. The attorney's misgivings on that head showed his astounding sagacity; for, indeed, nothing was more likely than that the notary, regardless of his exordiums, would rush into *medias res* by kicking him out of doors.

Mrs. Ershebet spoke reluctantly, but she spoke. Their conversation was of the weather, the crops, and other things; and when Vilma left the room, the attorney turned to Mrs. Tengelyi, and drawing his chair to her table, said:—

"I am happy the dear girl is gone! I want to speak to you about a subject which concerns your family, and especially your angel Vilma. I know I can open my heart to you, for you are as clever as you are kind."

This flattering speech, and the tone of confidential adulation in which it was spoken, told less strongly upon Mrs. Tengelyi than Mr. Catspaw expected it would. But she concealed her disgust; and hoping to learn something about her husband's papers, she intreated the attorney to speak.

"My dear Mrs. Ershebet," continued that learned man, with a grotesque whine, "permit me again to address you with the words which at one time

were so dear to my heart, and whose sound still fills my soul with the reminiscences of youth!"

"Sir!" said Mrs. Tengelyi, angrily, "the less you remind me of the past the better; and, moreover, you know, that at that time too——"

"Do you think I can have forgotten," sighed Mr. Catspaw, "that when, many years ago, I offered you my heart and my hand, you rejected me with contempt, and that you preferred Tengelyi and poverty to Catspaw and tranquil happiness? But, oh! what agonies might have been spared to us if my respected Ershebet had been less blindly devoted to Tengelyi's shining talents, which after all cannot keep the pot boiling."

"If you *have* something to say, say it, sir! or if you must needs mention my husband, do it with proper respect, and consider to whom you are speaking!"

"God forbid!" said the attorney, humbly, "that I should say or think any offence to Mr. Tengelyi! No! I respect him above all men; and though he wounded my heart, for it is he who robbed me of my hopes of happiness, of my hopes of possessing you—and——"

"Enough!" replied Mrs. Ershebet, with a look of contempt. "I think we know each other. You have given us so many proofs of your love and respect, that we can dispense with your protestations."

The attorney sighed.

"Ah!" said he, "I grieve to find you a victim to the very delusion which enthrals Mr. Tengelyi's mind. You too believe that I am the cause, or at least the promoter, of the lamentable Dustbury quarrel. Very well! I submit. The future will show how greatly you wrong me!"

"Heaven grant that it be so!" sighed Mrs. Tengelyi; "and whatever cause we may have to complain of you, you can rely on my sincere gratitude, if you exert yourself in behalf of my children."

"No thanks! my dearest Mrs. Ershebet, no thanks!" said the attorney, with increasing warmth. "My heart's best wish is to show you that I am still

faithful to the love of my youth. If I can prove this, I am amply rewarded; and I believe there is now an opportunity to convince you of my constancy."

Mrs. Tengelyi was astonished, and more than half frightened; but she replied that she had no doubt that Mr. Catspaw's position and influence could be beneficially exerted in behalf of her family.

"Do not suppose that my influence is so great as people say it is. They say that my word is law in Mr. Rety's house. The sheriff and his wife's doings are put down as mine. They have the benefit of the obloquy which falls on me, but I have the vexation and the enmities which ought to be their share. God knows, things would be far different if I had my will. But—never mind! I *have* some influence in Rety's house, and perhaps I can exert it to your advantage. Mr. Tengelyi, I understand, has been summoned to show cause why he should not be considered as being in a state of *villanage*?"

The coolness with which this question was asked by the very man whom she considered as the prime mover of her husband's troubles, surprised Mrs. Tengelyi to such an extent that she was unable to make any reply.

"And I learn," continued the attorney, "that the papers, by means of which he expected to prove his noble descent have been feloniously abstracted from these premises?"

"If anybody ought to know, it is you!" cried Mrs. Tengelyi, with utter disgust.

"I understand you," said Mr. Catspaw, with a placid smile; "and I am free to confess that I feel hurt that I, of all men, should be suspected of such a thing. Even if such an action were not repugnant to my feelings, I cannot understand what hopes of profit or advantage it could possibly hold out to me. I have no claims on Mr. Tengelyi. His rights or wrongs have no influence on my fortunes or interests. To suppose that I should be guilty of the gratuitous perpetration of such a crime is simply absurd."

"I cannot dispute with you; but, from what my husband says, and from what we have heard of Viola's depositions, it appears——"

"But, dearest Mrs. Ershebet, if this were the case, can you think that I would have dared to come to your house? Why it were the greatest piece of

impertinence,—and of folly" (added he, seeing that the former supposition seemed by no means unlikely to Mrs. Tengelyi,) "and, indeed, of madness, if, after so much danger and risk for the purpose of wronging Mr. Tengelyi, I would now exert myself for his advantage."

"As yet we have no proofs of your wish to do any such thing," dryly remarked Mrs. Tengelyi.

"Heaven knows," said Mr. Catspaw, with a pious look to the ceiling,—"Heaven knows, madam, how unjustly you treat me! If you could but know what I did to prevent the person—but no matter! I intend to give you proofs of my friendship, and to gain the esteem even of Mr. Tengelyi, your respected husband."

"God grant it! As far as in us lies, you may rely on our gratitude."

"No gratitude! Do not mention it! What I want is your friendship. The papers," added the attorney, looking cautiously round, and drawing his chair to Mrs. Tengelyi's side, "I say, are the papers such that they give full and satisfactory proofs of your husband's noble descent?"

"Of course they do. What of that?"

"Indeed, indeed!" said Mr. Catspaw, abstractedly. "Important matter! Valuable papers! What baptism is in the kingdom of Heaven, that is noble descent in the kingdom of Hungary. I understand your grief now, and especially when I think what is to become of your little boy!—"

"For God's sake, cease to torment me! If you know what has become of them——"

"But tell me," said Mr. Catspaw, "have you lost *all* your papers? Are none of the documents left?"

"None!" sighed Mrs. Tengelyi. "They were tied in a parcel, and they are all gone. But if you know where they are, I pray, I entreat you to tell me. If I have ever offended you, pray consider that my children, at least, are innocent of any grudges you may think you owe me!"

Mr. Catspaw had some difficulty to conceal the joy he felt at the effect of his words.

"Alas!" said he, with a sigh, "if it were my own case—believe me, dearest Mrs. Ershebet, if I only knew where the papers are, I'd walk a thousand miles to restore them to you!"

"Do you mean to say that you do *not* know where they are?" cried Mrs. Tengelyi, with amazement.

"How should I? Do but consider the matter. What Viola says is a mere invention. Let me ask you again: what are those documents to *me*, that I should commit a felony for them?"

"But in what way do you propose to assist my children, if you cannot help us to prove our nobility?"

"But who tells you that I do not mean to assist you in recovering your nobility?" retorted the attorney, with a smile. "As for papers and documents, never mind them! We can do without them."

Mrs. Tengelyi stared at him, but he went on:—

"My dearest Mrs. Ershebet, we live in Hungary, you know, though I am afraid you are wofully ignorant of the doings and dealings of Hungarian life. Who ever heard of nobility being obtained and proved by documents only? Fancy, if every man enjoying the privileges of a nobleman were to be asked for his parchments! I assure you such a proceeding would make greater havoc amongst us than the battle of Mohatsh. ^[27] Don't you see, my dear madam, that there is a better and simpler way to prove noble descent, viz., by *usus*. Of late they have called it prescription, but that word does not embrace the idea in all its bearings; for prescription is, after all, a kind of law, and where there's law there's no occasion for *usus*; nay, it is a peculiarity of the *usus* that it presupposes something which is not, and has not been, and never can be founded on law. For instance, you have a large field, and I am your neighbour. I encroach on your field, and plough a small piece away every season. At length you bring an action against me. Very well. I prove that I was in the '*usus*:' that I have always ploughed and reaped to a certain point—say a stone, or tree, or any thing you like. Very well. You say it's a bad habit of mine, and that the field belongs to you. But it's all of no use: I've the *usus* on my side, and if you go on with your action you're a fool, that's all. Or say, you and I are joint proprietors of a farm. I keep

sheep, and you don't. At last you take it into your head to keep sheep. But I say, 'No, you shall not!' And why? Because I've the *usus* for me!"

[27] See [Note X](#).

"But of what use is all this in our case?"

"This is the use. As you can get any thing by *usus*, so you can get the privileges of nobility by it also."

"I cannot understand this," said Mrs. Tengelyi.

"And yet it is as clear as daylight. I say A. or B. has not a rag of paper to prove his nobility with; nay, more: he himself is aware that his family are not noble; but he has friends in the county, who have kept the tax-gatherer from his door. Now suppose somebody questions his noble descent; what a horrid thing would it be for the poor man if he were compelled to prove how, and why, and when his ancestors were ennobled! No, he simply shows that he never paid any taxes, and he is at once established as a nobleman; especially if he can prove that he has attended an election, where he thrashed somebody, or where somebody thrashed him; for, if there's a thrashing in the case, I'd like to see the man who would dare to doubt the *usus*. I remember the case of a party against whom they brought an action of that kind, and who proved that his grandfather was repeatedly sent to gaol for horse-stealing, without having ever been subjected to corporal punishment. Very well. The *usus* was proved, that's all. Believe me, you are sadly mistaken if you fancy that you want documents to prove your noble descent. There are many counties in which hundreds of *villains* are admitted to the franchise by the parties in office, merely for the purpose of carrying a contested election. All you want for the purpose is a friend and——"

"Alas! we have no friends!" sighed Mrs. Tengelyi.

"No, but you have, my dear madam!" cried Mr. Catspaw, nodding his head with great energy; "I say, madam, you have friends who would do any thing to be of service to you! who would hire a score of witnesses to swear that Mr. Tengelyi is descended *rectâ viâ* from a count's family. Even Mr. Rety _____"

"I am sure *he* will oppose us to the last."

"You are mistaken. When he once sees what interest I take in you, he too will be eager to stop the recorder's process against your husband. I assure you, Mr. Rety is a dear good gentlemanly man; and if we could but remove the cause of this disagreeable quarrel, dear me! I don't see why they shouldn't be as they were at the German university.—I speak of your husband and Mr. Rety, madam."

"What do you mean?"

"The cause of the quarrel, you know, is young Rety's love to that dear girl, Vilma. If means could be found to arrange that business, I am sure we'd go on smoothly and comfortably."

"I am afraid you are not aware, sir," said Mrs. Tengelyi, to whom these words gave a clue to the attorney's intentions, "that it is no use trying to remove that cause of the quarrel. Akosh has made a formal offer; Vilma loves him, and he has our consent. If the sacrifice of my daughter's happiness is the only thing you have to propose——"

"But who thinks of sacrificing the poor girl's happiness?" said Mr. Catspaw, reproachfully. "What man can desire the dear angel's happiness more than I do? But I say, are her affections irrevocably fixed on the sheriff's son?"

Mrs. Tengelyi would have spoken, but the attorney interrupted her.

"A great name and a large fortune are capital things! indeed they are; and I, of all men, ought to know it. It's a fine thing to have your daughter living in a large house, and driving about in a carriage-and-four; but is this happiness? Why, you yourself are the best proof that it is not. You might have married a wealthy man, who would have led you a comfortable life; but you preferred Tengelyi——"

"If you think," cried Mrs. Ershebet, angrily, "that we accepted the offer only because Akosh is rich, you are very much mistaken, I assure you! On the contrary, we wish he were of our own condition in life."

"Just so; exactly, my dear Mrs. Ershebet! If I had a daughter of my own, I'd never give her to my betters. It is true such gentlemen are enabled to introduce their ladies to all the enjoyments of life, enjoyments, too, which are quite out of the question in the humble paths of an easy, comfortable

competence, of honourable poverty, if you like the term. They can surround them with splendour, luxury, and Heaven knows what. But as for real love, dearest Mrs. Ershebet, real love, as you and I understand it, flies from the glittering snares of a monied alliance!"

"Akosh is an exception. He adores Vilma."

"Of course he does! nothing more natural. Whom does he not adore! His heart is so full of sentiment. But you see, dearest Mrs. Ershebet, it's a strange thing, a peculiar thing, indeed, my dear madam, this very adoration is—what is it, after all? You kneel down, raise your hands, are transported, enraptured, and all that sort of thing; and when you've done with your prayer, you get up, and go your way. That's adoration, madam."

"No, sir!" said Mrs. Tengelyi, firing up; "I know Akosh! I respect him! I would never have promised him my daughter's hand, if I had doubted his honour."

"Madam, I respect you for respecting Akosh; on my word, I do. He's the best, the most honourable of gentlemen, though I say it, who ought not to say it, because I'm his friend. If he were my own son, I couldn't like him better than I do. Who would quarrel with him for being excitable, and less constant in love than we old people would like to see young gentlemen? You see, dearest Mrs. Ershebet, it is not just, it is not fair, to ask that kind of thing of a young gentleman of Mr. Rety's station."

"But I do ask it!" protested Mrs. Tengelyi. "I give him my daughter; and I have a right to ask——"

"Not an impossibility, I trust!" said Mr. Catspaw, with a smile. "If Akosh were of our own standing in society, your wish to monopolise him would be natural; but in the higher spheres of life such a desire is perfectly ridiculous. What would the world say, if a gentleman of his rank were to confine his attentions to his lady!"

"I trust you do not insinuate any thing disreputable against Akosh——"

"Disreputable? No; indeed not! He has some mistresses; but——"

"Mistresses!" screamed Mrs. Tengelyi.

"Well! and what of that?"

"What, indeed!" cried Mrs. Tengelyi, utterly forgetful of who it was, to whom she spoke. "If he were capable of having but one mistress, now that he has told my daughter, at least a hundred times, that he loves her alone, why it were infamous, despicable,——"

"But I assure you it is wrong to attach any importance to that kind of thing!"

"But I do! Rather than permit such doings——"

"My dear, good Mrs. Ershebet," whispered the attorney, drawing still closer to her; "I know your views of life; and, as your friend and sincere well-wisher, I feel bound to express my opinion that Akosh will never be what you expect him to be. He is a young gentleman of great talents, of energy, hot temper, business habits; he is all that, and more; but he is neither faithful nor constant in love. If you desire a constant son-in-law," he added, seizing her hand, "I can tell you of one."

Mrs. Tengelyi looked at him in hopeless bewilderment.

"Yes, dearest Mrs. Ershebet!" continued Mr. Catspaw, with increasing pathos; "I know a man of tried constancy, of unbounded devotion! a man, indeed, who cannot vie with Akosh in splendour, but in whose arms Vilma is sure to find that tranquil happiness whose value she knows so well how to appreciate. I, madam,—I am ready to take young Rety's place!"

"You, Mr. Catspaw!" cried Mrs. Ershebet, holding up her hands.

"Why not?" said the good man, brimful of kindness. "I am not quite the boy I was when I proposed for you; but I'm not an old man, eh? I am a man in the prime of life, a man of substance, dear Ershebet. What I offer is more than a competence. I've a hundred and fifty thousand florins, if I have a penny. If Vilma marries me, there will be no more questioning about Tengelyi's nobility; indeed, the Retys would be happy to make me a handsome cession of land. And as for that little affair with Akosh, you know I am by far too sensible and indulgent——"

While he was engaged in enumerating the advantages of an alliance between him and Vilma, the attorney had neglected to watch Mrs.

Tengelyi's features, and to mark the unmistakeable expression of scorn and disgust which they bore. He was not, therefore, at all prepared for the scene which ensued, when the insulted mother rose and told him to leave the house instantly. He would have spoken, explained, excused himself, and what not! but Mrs. Tengelyi would not allow him to speak, and, to make bad worse, the door opened at this very critical moment, and Tengelyi entered the room.

"What do you want here?" said the notary, with an awful frown.

Mrs. Ershebet cut off the attorney's reply by a circumstantial account of Mr. Catspaw's proposal, in the course of which she commented on that worthy gentleman's behaviour in severe and, indeed, pungent terms.

"Be off! and never again dare to show your impudent face in my house!" said the notary, in reply to Mr. Catspaw's offer; but that gentleman, who, on seeing the notary, had expected no less than that the latter would assault him on the spot, was misled by this seeming moderation. He thought it a duty he owed to himself to make the best of so favourable an opportunity, and launching forth into protestations of his unlimited friendship for the Tengelyi family, he was just in the act of venting his admiration and love of the notary, when the latter addressed him very unceremoniously,—

"Get out, sir! If you don't, I'll kick you!"

"But, sir, please to give me a moment's hearing! Indeed, sir, this is not the way you ought to treat my offer! If Vilma——"

"Don't presume to mention her, you miscreant!" cried Mr. Tengelyi. "*You* my daughter's husband? You!—a robber, a thief?"

The noise of the altercation brought Vilma and the Liptaka into the room, and the passers-by in the street stopped at the window and listened. Mr. Catspaw was of opinion that the presence of so many witnesses would prevent the notary from proceeding to acts of bodily violence; and, moreover, he was aware that his dignity would not allow him to submit to Tengelyi's insulting language. To talk big was not only safe, but prudent.

"This is too bad!" screamed he. "I'll make you repent it, sir!"

"Repent it?" shouted Tengelyi.

"Yes, repent it, if you please, my dear notary! Perhaps you are not aware that you are not a nobleman?"

"Reptile! dost thou dare to remind me of thy villany?" cried the notary, raising his stick, in spite of the endeavours of his wife and daughter, who sought to restrain him.

"Though I condescend to propose for your daughter, you ought not to forget the difference between your rank and mine!"

"It's the difference between an honest man and a rascal!" cried Tengelyi, still struggling to disengage his arm from the grasp of Mrs. Ershebet.

Mr. Catspaw saw clearly that the delay of another minute would prove dangerous. He retreated, and reached the door just when Tengelyi, whose fury brooked no restraint, broke from those who held him, and rushed in pursuit of him.

"God knows but I'll be the death of that fellow!" said the notary, as he returned to his house, accompanied by Vandory and Akosh, who luckily met him as he was running after the attorney. Exhausted with his passion, he flung himself on a chair; and though his wife, Vandory, and Akosh assured him that Mr. Catspaw was beneath an honest man's notice, a considerable time elapsed before he regained his usual equanimity. The witnesses of the scene, too, were greatly excited and interested; and a report was spread, by some, that Mr. Catspaw had been beaten and kicked, and by others, that Tengelyi would have killed the attorney, but for the flight of the latter.

While these and sundry other rumours on the subject of his danger were spreading in Tissaret, the worthy Mr. Catspaw reached his apartments in safety, though by no means in an enviable mood.

"What a confounded fool I've made of myself!" said he. "Propose for the girl, indeed! curse me, I'm a victim to that silly attachment of mine for the Retys. Would they have given me a penny more for marrying her? No. They cannot help giving me fifty thousand florins, but they won't give me a farthing more. And even if I were to prevent young Rety's marriage, his ungrateful mother would never forgive me. She'll never get over those

money matters. Curse her! She'd skin a flint! But who the deuce could have thought that the woman wouldn't let me speak, and that Tengelyi would come home? And he insulted me!—publicly!—before everybody did he insult me, and I cannot even retaliate upon him! I dare not offend that puppy Akosh; for, after all, I don't see what I can do, except giving him Tengelyi's documents, and a few of Vandory's letters. It's a good plan, and it will protect me against being prosecuted. But before doing this I must have the bills in my pocket."

But even this resolution did not quite conquer Mr. Catspaw's apprehensions; for did not Akosh hate him? and might not the young man institute proceedings against him? No! he would bind Akosh by his word of honour, —these young men are so full of prejudice! "And besides, he cannot inform against me, without dishonouring his own name. His mother-in-law is too much mixed up with the affair," muttered the attorney, as he lighted a candle and sat down to examine Vandory's papers.

It was almost eleven o'clock when he finished his labours. He took a few of the letters, put them in an envelope, and placed them in a secret corner of his desk. His examination of the letters had satisfied him that the Retys could not think of braving the publicity of a court of justice. This discovery put him into the best of tempers.

"Capital!" said he, rubbing his hands; "in a few days I shall have fifty thousand florins, and by communicating the affair to Akosh, I can foil any plans of revenge which this woman may have against me. I'm worth two hundred thousand florins! At last I know what I've lived for!" And he prepared to lock the door. He turned the key and tried the door, but it remained open. He tried it again, but without success. Mr. Catspaw shook his head. Something must be the matter with the lock. He thought of bolting the door; but the bolt would not move.

"What the deuce can be the matter?" said he, after another unsuccessful attempt.

He recollected that since Akosh, Etelka, and the Retys were gone, he was quite alone in that part of the house; and so much had his mind of late been occupied with robbers and robberies, that he became uneasy at the thought of passing the night alone and with open doors; and while he thought of it,

it struck him that something moved in the stove. He approached it and listened.

"I am a fool!" said he at last; "if I can't lock the door, it's because the lock's used up; and as for the bolt, why I've never moved it. It ought to be rusty by this time!" He went to bed, still thinking of the most profitable plan of investing his money, when a slight noise interrupted his train of agreeable thoughts. Steps were heard on the stairs. They were soft and cautious, like the steps of one who wishes to escape detection. Mr. Catspaw heard them distinctly. They approached from the stairs, and crept along the corridor to his room. He was just about to leave his bed when the door was softly opened, and a man, wrapped up in a bunda, entered the room.

"*Viola!*" said Mr. Catspaw, with a trembling voice, for the shout which he wished to raise died in his throat. His hair stood on end; his jaws shook.

"It's well you know me!" said the outlaw, as he advanced to the attorney's bed. "If you call for help, you are a dead man! Besides, it's no use calling; nobody will hear you."

"I won't call! I won't make a noise!" said Mr. Catspaw, while an ashy paleness spread over his features. "I know you are the last man to hurt me, good Mr. Viola! Do you come for money? I am a poor man, but you are welcome to all I have. No thanks! I am happy to oblige you!"

"I am the last man to hurt you!" said the robber, giving the attorney a look which made his blood creep. "Am I indeed? Don't you think bygones are bygones with me! Not your agony, not all the blood in your veins, can pay me for what you've done to me and mine!"

"You are mistaken, my dear sir; indeed you are——;" the attorney cast a despairing look around him; "I am not——"

"Who?" said Viola, sternly. "Who was it made me a robber? Who was it that drove me forth, like a beast of the forest, while my wife and children were cast as beggars on the world? Say it was not you! Say it was not you who wrote my doom! Say it was not you who would have drunk my blood! Say it is not you who are my curse and my enemy!——"

"I'll give you my all,—I'll give you all I have! I've a couple of hundreds of Mr. Rety's money too, and you are welcome to them, though I shall have to refund them, and——"

"I don't want your money!" said Viola, scornfully. "I want the papers you stole from the notary."

"The papers?" said the attorney, with a look of profound astonishment; "what papers does it please you to mean, my dear Mr. Viola?"

"I mean the papers which you took away when they bound me. If you don't give them up this minute, you'll never rise from this bed."

The robber's tone showed Mr. Catspaw that it was dangerous to trifle with him. He replied,—

"Yes, I had them! You are right, I took them from you; but I lament to say I was rash enough to burn them on the spot. That's the truth of it. I would not tell you a lie, no! not for the world; for you know all and everything."

"If so, tell your lies to others. I know that you keep the papers in this room, and that you've offered them to Lady Rety for fifty thousand florins."

"Who can have told you that?" cried Mr. Catspaw, as a suspicion flashed through his mind that Viola might possibly be hired by Lady Rety; "who? who?"

"Never you mind who it was?" said Viola, dryly; "if you think your life of less value than fifty thousand florins, I'll show you in an instant how little *I* care for it."

"But do tell me!" cried the attorney, "do tell me who told you that the papers are in my room?—who has sent you?"

"Silence!" and the robber flung his bunda back; "get up! give me the papers, unless——"

Mr. Catspaw rose and walked to his desk. Viola stood quietly by, watching him.

The attorney's hands trembled as he produced the papers. They were in two bundles, and among them were some letters of Tengelyi's, which the Jew had abstracted with the rest.

"Here they are!" said Mr. Catspaw, with a hoarse voice; "you know their value. Ask whatever you please——"

"I don't want your money, keep it!" said the robber, advancing to seize the packet; when the attorney recollected that he kept a loaded pistol in the desk.

Yielding to an impulse of mad despair, he seized it and presented it at Viola.

The robber's eyes shot fire as he saw the weapon. He made a rush; the attorney fell, and the pistol was in Viola's hands.

That movement sealed Mr. Catspaw's doom. Viola was not cruel. He had an instinctive aversion to the shedding of blood. If Mr. Catspaw had given up the papers without resistance, he would have been safe; but the treachery of the action and the struggle inflamed the robber's wilder passions.

"Pity!" screamed Mr. Catspaw, as Viola seized him by the throat.

"Did you pity *me* when Susi begged for grace, when you wrote my death-warrant?"

The attorney's face grew black, his eyes started from his head; but his despair gave him strength. When he saw the robber's knife descending, he caught it in his hands.

There was a noise in the house. Steps were heard. The attorney's cries had roused the servants.

Viola made a violent movement. Again, and again, and again was the broad steel buried in the breast of his victim. Then, seizing the papers with his bloody hands, he rushed from the room and reached the yard, where he was met by the coachman and another servant. They pursued him.

He crossed the meadow, and disappeared in the thicket which covers the banks of the Theiss.

When the domestics entered the attorney's room they found him dying. There were no traces of a robbery. The wretched man's watch and purse lay on the bed.

"Robbers! Murderers!" cried the cook, who was the first to enter. "Follow him!"

"Send for the doctor!"

"No, send for the curate!"

All was noise and confusion. Two of the men raised the attorney and laid him on the bed.

"Follow him!" gasped Mr. Catspaw, "Follow! My papers!"

"What papers?" said the cook.

"Tengelyi——" groaned the dying man.

His lips moved, but his voice was lost in a hoarse rattle.

"I've caught him!" cried a haiduk from the corridor, as he dragged Jantshi, the Jewish glazier, into the room.

"That's the rascal!" said the haiduk. "That's him. He was hid in the chimney!"

"Oh, the villain!" cried the cook, pushing the reluctant Jew to Mr. Catspaw's bed. "I say, your worship, that's the man!"

The attorney shook his head. His lips moved, but no sound was heard.

"But, sir, I'm sure it's he!" said the cook. "Give us a nod, sir!"

Again Mr. Catspaw shook his head. He seized the cook by the hand; he would have spoken, but it was in vain. With a convulsive motion of his body he stared round, and, falling back, breathed his last.

"I'd like to know what he meant?" said the cook, when they had bound the prisoner and locked him up in the cellar; "when I showed him the Jew, he shook his head."

"His last word," cried Mrs. Kata Cizmeasz, the female cook of the servant's hall, wiping her eyes, less from sorrow for Mr. Catspaw's death, than because she thought it was proper that women should weep on such occasions; "his last word was *Tengelyi*."

"Hold your silly tongue!" said the cook, with dignity; "it's blasphemous to say such a thing of Mr. Tengelyi!"

"Really," reiterated Mrs. Kata Cizmeasz, "it struck me that he said 'Tengelyi;' and when he could not speak, poor dear, he moved his lips, for all the world, as if to say 'Tengelyi' over again. When my poor husband, God rest his soul! was dying of the dropsy, he didn't speak by the day; but I looked at his mouth, and understood what he meant to say. 'Go away! Come here! Give me some water!' Any thing he'd like. I knew it all!" And she wiped her eyes.

"Bless that woman!" said the cook, appealing to the crowd of servants, "She'll be after accusing the notary of the murder. Did I ever!"

"Bless yourself!" retorted Mrs. Kata; "all I say is, that the attorney said 'Tengelyi' when we asked him who had done it? He said it with a clear voice. I heard it quite distinctly, and I'll take my oath on it!"

"Never mind! Who knows what he meant?"

"I am sure *I* don't; all I say is, that the attorney——"

"Very well; leave it to the judge. Depend upon it, he'll come to know the truth of it, and you'll see that I'm in the right in saying as I do, that the Jew is the murderer," said the cook, angrily; and, turning to the two servants, he added, "Lock the door, and send for the judge! Hands off! is the word in a place where a robbery or a murder has been committed."

CHAP. XIII.

After Mr. Catspaw had left the notary's house on that fatal night, Tengelyi's family, including Akosh and Vandory, settled peacefully down in Mrs. Ershebet's room, while the notary himself was engaged in writing letters. He was determined to recover his rights; and, thinking that some of his father's old friends might possibly assist him in establishing his title, he was about to appeal to them to support him in his present extremity.

While thus employed, his attention was roused by a slight knock at the window. He got up, opened it, and looked out; but as nothing was visible in the darkness, he was just about to return to his work, when a letter was flung into the room. The notary was astonished; but his astonishment increased when, after unfolding the crumpled-up and soiled despatch, he read the following lines:—

"I am a man who owes you a large debt of gratitude. I am accused of having stolen papers from your house, but this is a base and false accusation. The Jew, whom the sheriff's attorney bribed, was the thief. I took them from the Jew; however, the story is too long to tell. Meet me at the lime-tree, just by the ferry, at eleven o'clock; but not earlier. If it cost my life, I will put the papers in your hands before midnight!

"I entreat you, in the name of God, to come, and fear no harm! You have taken my wife and children under your roof, and I would give my life to serve you or any of your family. If you do not come, I know not what to do with the papers: I dare not enter the village; I must cross the Theiss this very night. Let me implore you to keep the meeting secret, and come alone. The county has set a price on my head; and if they get the least hint of my whereabouts, I am a dead man. I am in your hands.

"VIOLA."

The perusal of these lines was no easy task to the notary. "What shall I do?" said he. "If I do not follow the robber's advice, the papers will most probably be irrecoverably lost. If Viola leaves the county, he will take good care not to come back again; and he will destroy them if it be only in order that they should not be proofs against him. On the other hand, if it should be found out that I, a member of the law, and an honest man, had clandestine meetings with a robber, without delivering him up to justice, what a dreadful light it would place me in!" Spiteful things had already been said by his enemies, because he had taken Viola's wife and children into his house. Another man would most likely have thought it his duty and interest to go to the appointed place, though not alone, to arrest Viola, and thus at once to obtain his papers: but this proceeding would not accord with Tengelyi's disposition; he was incapable of such an act, whatever might have been its advantages.

Yet there were but those two alternatives. What to do he knew not. He paced the room, agitated by mingled feelings of duty and patriotism.

First he would yield to the robber's request; then, again, he would not. Thus he continued resolving and wavering, till Mrs. Ershebet called him to supper.

The notary's absence and confusion during supper astonished and perplexed his family.

He burnt the letter after deciphering its contents, lest it should fall into other hands.

After supper was over, Vandory and Akosh took their leave. Mr. Tengelyi wished his wife and daughter good night; and, under the pretence of business, he hastened to his study. When alone, he gave himself up to a full contemplation of his situation. He resolved to see the robber. "Inform against Viola? No, no; such a mean unmanly act I would not be guilty of! And how could I be so unjust to my wife and children as not to embrace this opportunity of establishing my rights? If he has my papers, so much the better! if not, then at least I shall have the satisfaction of knowing that I have neglected nothing to regain my property. It is not likely that this meeting should ever be known. What have I to fear if my conscience is unsullied?"

The clock was on the stroke of eleven, when the notary crept from his house into the garden. When he gained the open field adjoining the house, he struck off to the left, and in a few minutes he reached the path leading to the Theiss. It was a thorough November night. Not a star or even a drifting cloud could be seen; and so dark was it, that it required all the notary's care and knowledge of the way to carry him on without accident. The village was hushed in sleep, and he reached the spot without meeting any one.

In summer this place was one of the prettiest anywhere about. The lime-tree was of gigantic growth, and its wide-spreading branches afforded a delicious shade. The grass around it was of the freshest and purest green, and when other grass-plots were scorched up by the July sun, this place seemed to be fresher and greener than ever. Three sides of the meadow were hedged in and surrounded with bushes; on the unfenced side stood a few old trunks of trees, dropping their bare branches into the yellow Theiss, that washed their withered roots.

Mr. Tengelyi had spent many an hour under that tree with his friend, who, on such occasions, would exclaim that no spot was so charming as the banks of the Theiss; and that if the Turk's Hill were not there, the lime-tree alone would make Tissaret a beautiful place to live in.

Now this spot looks mournful and forsaken. The beautiful green plot is covered with sere and yellow leaves, and the night winds howl through the unclad branches of the noble linden; while the swelling waves of the Theiss lash its sombre banks.

The notary, wrapped in his bunda, walked dejectedly up and down; at times he stood still and listened. On a sudden he heard a rustling in the bush, but seeing no one near, he thought it a delusion, and continued walking, but now and then turning to look at the ferryman's hut, which was about two hundred yards distant, and in the kitchen of which a large fire sent its glaring and flickering shadows dancing on the black landscape.

It was half-past eleven, and yet Viola came not. Could he have changed his mind, or had any thing happened to prevent him? Perhaps he was scared by the hue and cry which had been raised after him.

Suddenly a cry of murder rang through the air. It came nearer.

"Good God!" cried the notary; "can it be that Viola is taken?" And to escape being seen in this questionable place, and at such a time, too, he hastened back to the village.

A few minutes after the notary's departure, Viola broke through the hedge. A parcel of papers was in his hand. One moment he stood still—one moment he cast an anxious and half-desponding look around him. But the man whom he sought was not there. The avenger of blood was at his heels. He leapt down the bank, stepped into a boat which lay hid among the willows; and the lusty strokes of his oars were drowned in the shouts of his pursuers.

"Here he is! That's the place he went in! At him, boys!" cried they, as they rushed into the open space. But here they were at fault. They had lost the track of him they were pursuing. Their clamours roused the old ferryman in his hut. Ferko, the coachman, who led the crowd of servants and peasants from the house, approached, and the ferryman, coming up, asked what was the matter, and whether some one had stolen a horse.

"No, no!" cried the coachman. "Our attorney has been killed, and we have pursued the murderer to this spot. We saw him a minute ago. He's hid in the bush, here; help us to find him. He must be here!"

"The Lord have mercy on us! What, the attorney killed! Well, after all there's not much harm done. But you are far out if you think to find him here. He is in the village by this time! A few minutes before we heard the row here, a man walked very fast by our house to the village. You heard the footsteps, Andresh, didn't you?"

"That's him! that's him! Quick! Go after him!" shouted the coachman; and, without waiting to hear the young man's reply, he darted off precisely in the same direction which the notary had taken on his way home.

"He is not here! He has made for the village, it's plain enough!" said the ferryman, as he with difficulty hobbled after the party.

As the hounds follow the scent, so the coachman and his companions followed the foot-marks. "What's this?" exclaimed Ferko, stooping to pick up a stick which lay on the ground. "It's a stick; a gentleman's walking-stick, too. It's a tshakany^[28]; no doubt the robber has stolen it somewhere!"

^[28] See [Note XI](#).

They traced the foot-marks up to the hedge of the notary's garden. The coachman walked round it.

"The devil take it!" cried he; "the foot-marks end here."

The others snatched the lantern from his hand, and eagerly looked for a continuation of the foot-marks.

It was no use; the track which had continued up to that point was lost. They were again at fault.

"Surely the earth can't have swallowed him!" said the ferryman.

"Perhaps he's hid on the other side of the hedge," said the coachman: "stay here; I'll jump over and see."

"No, no! don't do that!" cried the ferryman, pulling Ferko back; "that's the way to get a knock on the head. What does it matter to us if the attorney is killed? For my part, I wished him to the devil last summer; he won't come down upon me now for a hundred and fifty florins a year!"

But the coachman, though not stimulated to follow Viola from any love to Catspaw, paid no attention to this advice, and bounded over the fence.

He returned soon afterwards, declaring that all trace of the robber was lost; and they were just about to return home, when the ferryman's son came running to inform them that he had discovered some fresh foot-marks on the garden path. They all ran to the garden gate, which was open, and found the continuation of the foot-marks which they had so suddenly and mysteriously lost. They were distinctly traced up to the very door of the house.

"He is in the notary's house, or perhaps he is in the shed," said Ferko, in the tone of a man who, when he has come to a certain point, will hazard all. "Let us enter."

"What!" said the ferryman, seizing him by the coat; "you don't think of looking in Mr. Tengelyi's house for a murderer, do you?"

"And why not?" retorted Ferko.

"Don't you know it would not be the first time robbers have been in this house? It's here young Mr. Akosh was shot at!"

"But you forget," answered the ferryman, "that this house is a nobleman's!"

"What do we care for that? We are in search of Viola. Moreover, did we not ransack the house with the justice at our head?"

"That's different," said the ferryman; "they were gentlemen,—we are not. They would kick us out of doors."

"Well, we'll see about that. I am Lady Rety's coachman, and have the honour of wearing her livery. I should like to see the notary kick me!"

And Ferko tore himself from the grasp of the ferryman, and rushed into the house, accompanied by the men who came from the Castle.

The old man remained outside, heartily praying that the servants of the place would seize Ferko and his companions, and give them a thorough whipping.

However bold the coachman might have felt in entering the house, he was penitent and abashed when Mr. Tengelyi, who had only just come in, and had not had time to throw off his bunda, stepped out of his room, and said, in a commanding voice, "What do you want here?"

For a moment they stood speechless; but when, gradually regaining confidence, Ferko told the notary that Mr. Catspaw had been murdered, and that they had traced the robber's footsteps up to his door, Mr. Tengelyi became much distressed. He thought of Viola's letter, and could not doubt for a moment that the outlaw had perpetrated this dreadful act to gain possession of the papers. Perhaps he was, though unconsciously, the cause of the murder. This thought made the notary shudder. The coachman and his companions remarked the effect their news produced upon him, and looked amazed at each other, while Tengelyi stood motionless, with the candle trembling in his hand. By degrees he regained his self-possession, and began to inquire how the murder was committed? when? and where?

"We followed the robber to the banks of the Theiss, where we suddenly lost him," said the coachman, casting occasional glances at the notary's boots, which were covered with mud, and at his companions; "from there we have traced his footsteps to your house."

"I beg your pardon," said the ferryman, stepping forward; "we have found foot-marks leading to this place, it is true; but whether they are the robber's marks or not, I cannot say. And you know I said we ought not to enter this house, that it was a nobleman's curia, but——"

"You are mad!" said the notary, with indignation. "If you think a murderer is secreted in my house, search, and leave no corner unexamined!"

The inmates became alarmed by the noise; and Ershebet and Vilma got up and hastily dressed themselves; while the notary, with a lantern in his hand, led the way into every room and nook of his house, until they were convinced that the robber was not there.

"Did you see," said Ferko to the ferryman, holding him back; "did you see how he trembled when I mentioned the murder of the attorney?"

"Of course I did. Do you think I am blind?"

"And his boots too were up to the ankles in mud," continued Ferko.

"That's no wonder, in such weather as this," answered the ferryman; "ours are nearly up to the knees in mud."

"By God! If I had not known him these ten years, I would——"

"You don't mean to say that you suspect the notary of the murder of Catspaw, do you?" demanded the ferryman, with warmth.

"If nobody else had been in the house, upon my soul I'd believe it!"

"You are a fool, Ferko!" exclaimed the old man, turning round in the direction of the Castle, whither all the others repaired in silence.

During the search Mr. Tengelyi had been summoned in great haste to the Castle.

NOTES TO VOL. II.

NOTE I.

BUZOGANY.

Among the characteristic weapons of the ancient Hungarians was the buzogany, a short staff, with a heavy knob of precious metal at the end. The buzogany is a symbol of command, and as such it is still found in the hands of the Indian Rajahs. In Hungary, it was usually hung by the side of the sabre. It still denotes military rank and authority. The lower classes have a similar weapon, the tshakany; a long stick, with a square piece of iron at one end, and a hook at the other. The fokosh is a stick, armed with an axe and spike. The tshakany and fokosh are dangerous weapons in the hands of the Hungarian herdsmen.

NOTE II.

TOKANY.

Tokany is pork roasted with spices and scented herbs.

NOTE III.
SWATOPLUK.

Swatopluk was a king of the Czechian empire in the days of Arpad, who first brought his warriors into the kingdom of Hungary. When Arpad approached the confines of the country, he sent ambassadors to Swatopluk, to ask him for grass from the Hungarian heaths, and for water from the Danube (a variation of the demand of "earth and water" of classic reminiscence); and in return he offered the Czechish king a white steed with a purple bridle. Swatopluk, who had no idea of the Oriental meaning of the demand, readily accepted the horse, and provided Arpad's ambassadors with a plentiful supply of hay and water. Upon this the Hungarians advanced on the great heath between the Danube and the Theiss (A.D. 889). Swatopluk would have opposed them, but they offered him battle, and routed his army. The king of the Czechs was glad to make his escape on the very horse which he had accepted in exchange for his kingdom.

Grotesque illustrations of this transaction are frequently to be met with in ancient Hungarian houses. The legend under the pictures expresses Swatopluk's astonishment and wonder at the sight of the white horse, for, as king of a pedestrian nation, he is profoundly ignorant of horses and horsemanship. He questions the Hungarian ambassadors, whether the horse is likely to bite, and what food will please this wonderful animal; and on the reply that the horse is in the habit of eating *oats*, the king replies, "By my troth, a dainty beast! Nothing will please him but my own food!" The Slovaks, in Upper Hungary, are descendants of the conquered race, and still addicted to the historical diet of Swatopluk, the prince, who sold a kingdom for a horse.

NOTE IV.
HUNGARIAN NAMES.

In all Hungarian names the Christian name is put after the family name, as, Kossuth Lajosh, Lewis Kossuth; Teleky Shandor, Alexander Teleky; Gorove Ishtvan, Stephen Gorove.

NOTE V.

WIZARD STUDENT.

The legend of Faustus has a natural foundation in the creative superstition of darker ages. Hungary, too, has its wizard student, and one who need not blush to be ranged with Faustus, Albertus Magnus, Michael Scott, and Friar Bacon, for his power was and is great. The wizard student is possessor of a dragon, which carries him through the air. He has an absolute control over hailstones and thunderbolts. He is an impertinent fellow, fond of mischief, of pretty women, and milk. It is therefore but natural that the women in the Hungarian villages should offer him jars of milk, to engage his goodwill and to prevent his devastating their harvests with hail and lightning.

NOTE VI.

TATOSH.

This name belongs originally to the priests of the ancient Hungarians, and it is still given to soothsayers. Their characteristic feature is, that they are white-livered and gifted with second sight. But the name of Tatosh is likewise given to the magic steed of the Hungarian legend. The Tatosh is jet black, and so extraordinarily quick-footed that he will gallop on the sea without dipping his hoofs into the water. He is attached and faithful to his master, with whom he converses, and whom he surpasses in understanding.

NOTE VII.

KONDASH.

This word stands for Kanaz, or keeper of swine.

NOTE VIII.

SCARCITY OF HANGMEN.

Almost all the smaller Hungarian towns and boroughs had (before the Revolution) the right of judging and executing the persons who were within their jurisdiction. Capital executions were frequent, as is always the case when the power over life and death is given into the hands of small and

close corporations; but still, though a large number of people were hanged each year, the executions which fell to the share of each individual town and borough were few and far between. In cases of this kind the poorer communities were frequently at a loss to find an executioner; for they could not afford to maintain one merely for the chance of employing him once or twice every three years.

The greatest difficulty was usually experienced in a case of *Statarium*; for if the sentence was not executed within a certain time, it was annulled, and the prisoner came within the jurisdiction of the common courts. There was, therefore, no time left to send for an executioner to one of the larger towns; and it was a common occurrence that a gipsy was induced, by threats and promises of reward, to discharge the odious functions of an executioner.

Justice *in a fix* was the more prone to appeal to the help of the Bohemian population, from the vagrant habits of the gipsies, which prevented the man who volunteered as a hangman suffering from the odium which would have fallen to the share of a resident of the place, and from the fact that the extreme jealousy of the wealthier corporations made it by no means an easy matter to borrow a hangman. It is on record that the inhabitants of Kesmarkt, in the Zips, sent an envoy to the magistrates of the city of Lutshau to ask for the loan of their hangman, a request to which their worships gave an indignant refusal. "For," said they to the negotiator, "tell your masters we keep our hangman *for ourselves and for our children*, but not for the people of Kesmarkt!"

NOTE IX.

HASZONTALAN PARASZT.

The phrase of "good-for-nothing peasant" was, at one time, frequently used by the privileged classes. M. Kossuth's party succeeded in turning the odium of that phrase against those who employed it.

NOTE X.

BATTLE OF MOHATSH.

The city of Mohatsh, in Lower Hungary, was the scene of a terrible battle between the Hungarians and the Turks. Solyman the Magnificent succeeded his father Selymus on the Ottoman throne in the year 1520. After quelling an insurrection in Syria, and establishing his power in Egypt, he resolved to turn his arms against the Christian nations. His great-grandfather had endeavoured, without success, to obtain possession of Belgrade,—a city in which were deposited most of the trophies taken by the Hungarians in their wars with the Turks. The Sultan, having rapidly moved his army towards the frontiers, arrived in Servia before the Hungarians were even aware of his approach.

At this period the Hungarian power had greatly declined. The throne was occupied by Louis II., a young and feeble sovereign, who had no means of raising an army sufficient to contend against his powerful and ambitious enemy. "His nobility," says the quaint historian Knolles, "in whose hands rested the wealth of his kingdom, promised much, but performed, indeed, nothing. Huniades, with his hardy soldiers,—the scourge and terror of the Turks,—were dead long before; so was Matthias, that fortunate warrior: after whom succeeded others given to all pleasure and ease, to whose example the people, fashioning themselves, forgot their wonted valour."

Belgrade fell almost without resistance.

Solyman, having gained his immediate object, broke up his army, returned to Constantinople, and employed himself in fitting out a fleet for the conquest of Rhodes, which he also effected towards the end of the year 1522. Having devoted the three following years to the organisation of a large army, he resumed his designs against Hungary, taking advantage of the distracted state of Europe in consequence of the Italian campaign of Francis I. against Charles V.

The inroad of the Turks was sudden in the extreme. Before Louis had any knowledge of the intentions of Solyman, a Turkish army of two hundred thousand men had crossed the frontiers of Hungary. When the young monarch learned the peril to which his kingdom was exposed, he addressed applications for assistance to most of the Christian princes; but without success. He summoned the prelates and nobles of Hungary to his aid. They obeyed the call with great readiness; but the troops which they brought into

the field were ill-appointed and inexperienced. They had been accustomed to triumph over the Turks, and therefore treated the coming danger with haughty contempt. Archbishop Tomoreus, in particular, who had had a few slight skirmishes with the Turks, boasted of his own prowess; and assured the army, in a sermon which he delivered, that the infidels were doomed to destruction.

The king's troops amounted to five-and-twenty thousand men, horse and foot. His old officers foresaw the result of a conflict which was about to be undertaken with such inadequate means, and they advised the king to withdraw from the scene of danger. They insisted on his retiring to the Castle of Buda. But to this proceeding the army objected; and declared that, unless they were led by their sovereign, they would not fight. Whereupon the king advanced with his army, and encamped at Mohatsh, at a short distance from the Turkish vanguard.

A body of Transylvanian horsemen having been expected to join the king, it was debated whether he should not defer giving battle until the arrival of a force so essential for his support against the enemy. The impetuosity of the Archbishop, however, unfortunately decided the councils of the day, and preparations were made for the encounter.

The vanguard of the Turks consisted of twenty thousand horsemen, which were divided into four squadrons, and which harassed the king's troops by skirmishes. So closely did they watch the Hungarian army, that no man could attempt to water his horse in the Danube. They were compelled to resort to digging ditches within the confines of the camp. In the mean time, Solyman arrived at Mohatsh with the main body of his army. The Archbishop Tomoreus arranged the order of the battle. He stationed the cavaliers at intervals among the infantry, fearing that the Turks might crush his line by flank marches, unless it were extended as far as possible. A small force was left in charge of the tents, which were surrounded with waggons chained together; and, next them, a chosen body of horse was placed in reserve, for the purpose of protecting the king's person, in case any disaster should occur.

It is said that the gunners employed on the Turkish side, being, for the most part, Christians, purposely pointed the artillery so high, that their fire was

altogether harmless. Nevertheless, at the first onset, the Hungarians were completely routed by the superior number of their antagonists. Tomoreus was among the first victims of that fatal day. His followers displayed their usual gallantry, but perished, in this unequal conflict, one after another; and, the horsemen once trampled down and killed, the camp remained open to the assault of the enemy. The garrison was too weak to make any defence, and the reserve force was called in to assist them. The king, seeing his army overthrown, and his guard engaged in a fatal conflict with the enemy, took to flight; but his horse, scared by the turmoil of the conflict, bore him into a deep morass, in which he was drowned. Solyman marched up to Buda, which he took by assault.

[NOTE XI.](#)

For the meaning of Tshakany, see Note I.

END OF THE SECOND VOLUME.

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THE VILLAGE NOTARY.

VOL. III.

CHAPTER I.

If my readers had ever seen the inmates of the Castle of Tissaret, they would not be astonished to find that, after the first shock of the sudden death of Mr. Catspaw had worn off, the matter was thought of, and commented on, with utter indifference. The order and quiet of the Castle was quite restored, and the servants sat talking of the murder round a blazing fire in the kitchen. But although some of them were in the attorney's room almost immediately after the deed was perpetrated, nobody knew any thing about it. Everybody's statement differed. They sat talking until daybreak, and yet they were no wiser than when they began. They rose and separated with opinions as various as those entertained of Hannibal's passage across the Alps.

The greatest incoherence, however, was in the dying man's own statement. When they asked him who had done the deed, he distinctly mentioned the name of Tengelyi. But Mrs. Cizmeasz, who was an honest and truth-speaking woman, insisted on its being a request to see the notary, and protested that it had nothing to do with the murder.

Mr. Tengelyi had hastened to the Castle on the night of the murder, and on hearing that the dying man's last word was his name, he grew pale and agitated. This did not fail to produce its effects upon the observers.

As soon as he had caused the door of the room, in which the corpse of the attorney lay, to be sealed up, he left the Castle.

Mr. Skinner did not arrive before the next morning, though he had been repeatedly sent for during the night.

When his carriage at length drove up to the door, the cook ran out exclaiming, "Our attorney is murdered, sir!"

"Poor man!" said Mrs. Cizmeasz; "his last words were——"

"But we have found the murderer," said the cook with great joy.

"I found him!" cried the haiduk.

"Yes, in the chimney!" bawled the kitchen-maid.

"He got off!" cried Mrs. Cizmeasz, in a shrill voice.

"Yes, yes, we have him! It's the Jew—the glazier, sir; you know him," said the cook, who wished to be an important personage in the affair.

"He has made his escape," said the coachman, coming forward; "we followed him to the Theiss, when——"

"He is in the cellar," bawled the foot-boy; "I have bound him hand and foot!"

"Yes, sir," resumed the coachman, "we ran at his heels until we came to the thicket——"

"The door is duly sealed, sir, and I have the Jew under lock and key," said the cook, with dignity.

"It wasn't the Jew!" screamed Mrs. Kata.

"It was the Jew, sure enough!" said the cook.

"If it was the Jew, why did Mr. Catspaw shake his head?" urged the lady, shaking her head, in imitation of the attorney.

The dispute grew hot, and the clamour became deafening. Mrs. Cizmeasz protested that it was not the Jew, and the others swore it was the Jew.

"Are you people all gone mad?" thundered the justice, in the midst of the confusion; "it is impossible to hear oneself speak in such a Babel as this!"

In an instant the clamour ceased. Mrs. Cizmeasz fluttered and muttered still, and, turning to the person next to her, in whom she hoped to find a more patient listener, she declared, still shaking her head, that was the way in which Mr. Catspaw had shaken his when the Jew was brought before him.

"My dear friend!" said the justice at length to the cook, "is it not possible to get some breakfast?—it's bitterly cold!"

"Certainly, sir," answered the cook; "if you will go to my warm room, I'll get it as soon as possible." After a few minutes, some brandy and bread were brought until coffee was ready.

Mrs. Cizmeasz went fretting and grumbling to her room, leaving the kitchen-maid to prepare the breakfast.

The cook was happy. He had the justice now all to himself, and was busily engaged in explaining his own conviction of the murder, and in trying to persuade Mr. Skinner to believe the same. According to his opinion, there could be no doubt that the murder had been committed by the Jew, who, on hearing the approach of footsteps, had hid himself in the chimney, which also accounted for his not stealing any thing.

"The thing is too plain," added he; "a person with the smallest particle of sense could see through it; every murderer, when found in the act, hides himself behind the door, in a cupboard, or squeezes himself up a chimney! Oh, I have read of such stories over and over again. That silly woman fancies she is very wise, but she knows nothing about it."

"You are quite right," said the justice, in a fit of abstraction, and filling his glass for the third time; "you are quite right, the matter is very clear. As clear as can be."

"Did I not say so?" rejoined Mr. Kenihazy; nodding his head with great satisfaction.

"What did you say?" asked the justice, who wished to remind Mr. Kenihazy that he had had great difficulty in rousing him from sleep.

"I said that the man who had done this was certainly a great scoundrel."

"I remember you did say so; but I never should have thought this Jew had such audacity. Poor Catspaw! he was a very good man."

"And what a hand he was at tarok, the other day!" said Kenihazy; "twice he bagged the *Jew*; and with five taroks he won Zatonyi's *ultimo*. And now this Jew!"

"But the rascal denies it all!" said the cook, entering with the coffee.
"Suppose you can't succeed in making him confess?"

"Succeed!" said the justice, casting a contemptuous look at the cook. "Not succeed with a miserable Jew! I have done twenty years' service in the county, and never failed in any thing I wished to accomplish!"

"Yes, sir, everybody knows that," replied the cook, with great humility; "but Hebrews are sometimes very stubborn."

"Well, if he won't confess, he'll squeak!" said Mr. Skinner, pushing his empty coffee-cup aside.

"He will have Skinner before him, a haiduk in the rear, and me at the table; we'll show you sport, my boy!" said Mr. Kenihazy, with great glee. "And once in the midst of us, he'll confess, I'll answer for it."

The breakfast was over; and Kenihazy, wondering how any one could have the bad taste to drink coffee when such delicious wine and brandy could be got in Hungary, drank off a glass of brandy to wash the coffee down.

The justice rose and lighted his pipe, which he had laid aside during breakfast. He stalked up and down the room, trying the condition of his voice. He ordered the haiduks to be ready, and the prisoner to be brought before him at once.

The cook, to whom these orders were given, very curious to see the examination of the Jew, lost no time in executing the justice's mandate.

Mr. Kenihazy sat mending some pens; and his face was radiant with joy at having picked up a piece of coarse paper, on which he thought to take down the evidence, and by this means save the better paper allowed him by the county.

Mr. Skinner's manner of treating persons whom he suspected, was simple in the extreme. His inquisitorial powers vented themselves in abuse, imprecations, and kicks. Peti, the gipsy, and the treatment which he received at the justice's hands on the Turk's Hill, are by no means an unfavourable specimen of that worthy functionary's summary mode of dealing with the lowly and unprotected; and in the present instance, the

poor Jew learned to his cost, that the worthy magistrate's jokes had lost nothing of their pungency, and that his kicks retained their pristine vigour. But if the justice was violent, the Jew was stubborn. Neither Mr. Skinner's stunning rejoinders, nor the striking arguments of the haiduk, whose stick played no mean part in court, could convince the culprit of the propriety of making (as Mr. Kenihazy said) "a clean breast of it." Nothing can equal Mr. Skinner's disgust and fury. He stamped and swore—as indeed he always did—but to no purpose.

"Dog!" cried he; "I'll have you thrown into the wolf-pit. I'll have you killed!" And kicking the Jew, he sent him staggering and stammering out his innocence against the wall. "Innocent!" cried the justice, with a savage laugh, "Does that fellow look as if he were innocent?"

Mr. Kenihazy and the cook stood laughing at the culprit, while the big tears ran down his cheek from his one eye.

There was nothing, however, in the Jew's appearance that could impress one with an idea of his innocence. His red hair, matted and wet from the damp of the cellar, hung longer and straighter down his forehead than usual. His dress and beard were in great filth and disorder. His ugly features were wild and haggard from the pain of his bonds, and the ill-treatment he had received from the justice and Mr. Kenihazy; in short, he looked like one of the coarse woodcuts of Cain in the story-books.

"I am innocent—I am not guilty!" blubbered the Jew. "I implore you! I intreat you, Mr. Skinner, and Mr. Kenihazy, and Mister Cook, who knows well——"

"Yes; I know you, you villain!" said the cook. "You have always robbed me when I employed you——"

"Oh, I humbly entreat you! Oh, no, I never cheated any one!" sobbed the Jew. "The panes of glass in the saloon were very dear, and I——"

"You dirty dog!" cried the justice. "You want to shift the question, do you? I ask you again, and for the last time, why you murdered the attorney?"

"I did not kill him," answered the Jew, sobbing; "what should I have killed him for? He was my best friend; and if he were living now, he would not

see me used thus."

"Very possible, if you had not killed him!" quoth Paul Skinner.

"I never killed him," persisted the Jew. "When Mister Cook took me to the attorney, and asked him if I had stabbed him, he shook his head, you know he did, Mister Cook."

"That's true!" said the other, turning to the justice. "When I took the knave to the bed-side, and asked the attorney if he had done it, he shook his head."

"But who knows? Perhaps he didn't understand me, or he had lost his senses, or he was so disgusted!"

"Oh, no!" said the prisoner, eagerly. "He hadn't lost his senses, or he wouldn't have shaken his head twice again afterwards, when you asked him if I had stabbed him."

"That's what Mrs. Cizmeasz said, I'm sure," said Mr. Kenihazy.

"Yes," said the Jew; "Mrs. Cook and everybody in the house were in the room, and saw how poor dear Mr. Catspaw shook his head when I was brought in. He did nothing but shake his head while I was in the room."

"Call the cook!" said Mr. Skinner, recollecting her extraordinary and energetic behaviour on his arrival.

"It's a great pity," protested the cook, "that your worship should fatigue yourself with the gibberish of that woman, who is as blind as a bat in the matter. It was the Jew, and nobody but the Jew, that committed the murder."

"I know all that," said the justice, with dignity; "but it's necessary to observe certain forms." And again he desired the haiduk to call the cook.

Catharine Cismasz, or Mrs. Kata, as she was usually called, (for who, as she often and justly remarked, will give a poor widow her due? and even her Christian name is shortened, as if she were a mere kitchen-maid),—Mrs. Kata, I say, had meanwhile addressed her own partizans, to whom she complained of the stupidity of the judge, who would not condescend to listen to a reasonable woman. "I am sure," said she, "that fellow, the cook, will lead him astray; he's a treacherous knave, so he is, and he's always

getting my lady out of temper with everybody; and I'm sure, sirs, he'll say it was the Jew, and yet he's as innocent as an unborn babe, for when they took him to Mr. Catspaw's bed, he——"

Here she was interrupted by a haiduk, who informed her that she was wanted; whereupon her complaint was suddenly changed into high praise and admiration of the justice, who, she said, was a proper man indeed.

After Mrs. Cizmeasz had spent a short time in dressing her head and making herself spruce before a piece of glass which hung at the window, she set off, with great consequence, to see the justice; declaring, at the same time, that the truth should and would now be known.

She had never been in a court of justice. When Mr. Skinner asked her what her name and occupation were, two things she thought the whole world knew, she became much embarrassed; and when the judge inquired her age, the cook could not refrain from tittering. "Forty-two," said she, in so low a voice that it could scarcely be heard. And when the justice warned her, in a very solemn manner, to speak the truth, for that what she was about to say would all be taken down, and that, if she deviated from the truth, a severe punishment would be inflicted upon her, she was induced to believe that the whole was planned and got up by the cook to pique her. In order, therefore, to thwart him, and in reply to Mr. Skinner's exhortation, she said she really could not say exactly how old she was, as she had lost the certificate of her birth; but she believed she was younger than forty-two. The cook and Mr. Kenihazy laughed outright; and the justice assured her, with a smile, that he was not particular about the truth on that point, but he hoped she would be more accurate in her evidence; upon which she took the opportunity of assuring him that she always gave people to understand she was older than she really was.

The questions, Whether she had known Mr. Catspaw? If she had ever seen the culprit before? What she knew of him? &c. &c. put Mrs. Cizmeasz in better spirits, and indemnified her for the disagreeable impression which the first part of the examination had made on her mind.

She was one of those women who will neither hide in the earth nor wrap in a napkin the loquacious talent with which Nature has endowed them.

Mrs. Cizmeasz had, all her life, talked with ease from morning till night; and it could not be expected that now, perhaps for the first time in her life that she spoke from duty, she should stint her hearers, especially since Mr. Skinner had particularly cautioned her to tell all she knew.

Mrs. Cizmeasz had a powerful memory at times, and, on this occasion, remembered everything. She told where she had formerly lived; how she had come to the Castle; what had happened since her first quarrel with the cook; how the Jew (pointing to him) had stolen a florin and twenty-four kreutzers from her when she sent him to the Debrezin fair to buy twelve yards of calico: in short, the good woman left nothing untold that she could remember.

At length the justice jumped up, and paced the room in a state of great perplexity; and the clerk, who did not mean to write a book, laid his pen aside. The cook cast a triumphant glance first at the justice, and then at Mr. Kenihazy; as much as to say, "There, was I not right? Did I not say it was no use to examine this woman?"

Paul Skinner could restrain his impatience no longer; he exclaimed, "What, in the name of God, woman, do you mean by all this? Do you take me to be your confessor, or your fool, that you pester me with your d—d history?"

"I humbly beg your pardon," said Mrs. Kata, greatly astonished that any one should not take an interest in what she had related; "but your worship told me to tell everything and forget nothing, and that it would all be written down, because a man's life depended upon it——"

"That you should forget nothing relating to the murder, were my words."

"Exactly," resumed the lady; "but when you ask me about my name and occupation, and I answer that I am a widow, I must also mention my husband, and how long we lived together, and I assure you, your worship, we were very happy together, and when he died, and of what he died, and _____"

"Well, well," interposed the justice, heartily wishing her eloquence anywhere but there; "now tell us, in a word, is it true that when the cook took the Jew to the death-bed of Mr. Catspaw, he shook his head?"

"It is true, your worship," answered she, with a glance of defiance at the cook; "he did shake his head; if your worship could only have seen *how* he shook his head! Since I stood at the death-bed of my husband—poor man! God rest his soul, he was a cook——"

"Yes, we know all about it," said the justice, interrupting her; "he died of dropsy. But tell us, young woman, is it true that my poor friend, Mr. Catspaw, shook his head the second time when the cook asked him?"

"He did shake his head! Your worship cannot think how he shook his head! for all the world like my poor dead husband! God rest him! The last fourteen days I never left him, day or night——"

"Who knows," observed the cook, "but perhaps he shook it with disgust?"

"What!" exclaimed Mrs. Cizmeasz, "my husband shaking with disgust? My husband was happy to the last moment. He lost his speech, poor man; he understood no one but me, and whatever he wished——"

"Who the devil speaks of your husband?" interposed the justice; "God give him peace! he must have had little in this world. The question is, whether Mr. Catspaw was in his senses or not when he shook his head?"

"Out of his senses!" said Mrs. Cizmeasz. "I beg your worship's pardon, nobody can say that but such a fool as——" here she darted a look at the cook that left no doubt of its meaning—"he who doesn't understand a man unless he speaks. When the water came into my husband's breast he couldn't speak, but I understood him to the last; and he used to throw such sweet melancholy looks at me, as if he would say, 'Thank you, my sweet dove!'"

But here she came back to the point, seeing the justice get very impatient. "How could poor Mr. Catspaw be wandering in his mind when he answered questions which were put to him?"

"He spoke? and what did he say?" inquired the justice, very eagerly.

"He didn't say much, it is true, but it was distinct," answered the woman. "Everybody in the room heard him say 'Tengelyi,' when he was asked who had stabbed him; and then the rattles came into his throat."

"Tengelyi?" cried the justice and Kenihazy, in utter astonishment. "Most extraordinary!"

"Why does your worship listen to such nonsense?" interposed the cook, impatiently; "this woman would bring her father to the gallows!"

"Nonsense, is it?" cried Mrs. Cizmeasz; "then why does the justice listen to it, and why does Mr. Kenihazy write it down? Well, I don't care! I don't want to speak; if I had not been asked I would have said nothing; I never would have spoken to any one about it."

Mr. Skinner shouted at the top of his voice that she must not confound the evidence, but tell him if her memory was quite clear—if she was quite sure that Mr. Catspaw had mentioned the name of Tengelyi?

"Why should I not remember!" cried she, amidst a clamour of voices. "The attorney spoke as well as we do now. Everybody was in the room, and everybody heard him say, 'Tengelyi.'"

"Nobody heard it!" shouted the cook, in spite of all admonitions to keep silence. "When did he say it? What reason could he have for saying it? I say _____"

"When did he say it? When you took the Jew to his bed-side, and asked him if that was the man who had murdered him," screamed Mrs. Cizmeasz, getting into a generous passion; "first he shook his head, and——"

"It's not true!" bawled the cook, trying to drown her voice. "It's a lie! He first said Tengelyi, and afterwards shook his head."

"I say he first shook his head, and then said Tengelyi; and everybody who speaks the truth will say so too!" screamed the other.

"It's a lie, I say! and everybody that says it is a liar, though he swore it a thousand times!" shouted the cook, in a voice of thunder, and darting looks of the fiercest lightning at Mrs. Cizmeasz.

"I'll call the whole house to prove it," said Mrs. Kata, with a face as red as scarlet.

At length the justice interfered, and said, "To set this matter right, we must have another examination of witnesses."

While the haiduk was absent to call all the people together who had witnessed the last moments of Mr. Catspaw, the two cooks were engrossed in dispute, and Mr. Skinner warned Mr. Kenihazy to take particular notice of that part of the woman's evidence relating to the attorney's last words.

The messenger found the remainder of the witnesses jabbering away all together in the kitchen. He brought them at once to the justice; but never was a man more deceived than Mr. Skinner was when he thought to remove the veil from the mystery by the multiplicity of witnesses.

He had now got six instead of two. The steward and boots took Mrs. Kata's part; the kitchen-maid and scullery-maid that of the man cook; the cooks were equally backed. For a quarter of an hour after the witnesses had entered the room the noise and confusion were pitiable. At length the justice, shrugging his shoulders impatiently, said, "It doesn't signify a jot whether he shook his head before or afterwards. The principal thing is, that the attorney was distinctly heard to pronounce the name of Tengelyi. On that much depends. I hope you have taken that down?" inquired he, turning to Mr. Kenihazy, who nodded in the affirmative, without raising his head from the paper.

The contending parties looked at each other with astonishment. Mrs. Kata Cizmeasz, who had not the least intention of throwing suspicion on the notary, and who simply wished to prove her assertion that the attorney first shook his head and afterwards said "Tengelyi!" was now horrified at the justice's words. The cook alone had the presence of mind to remind Mr. Skinner that he had not corroborated this assertion, and also deposed that the dying man had certainly mentioned Tengelyi, but not when it was a question of his murderer. Everybody affirmed this with a nod, but particularly Mrs. Kata, who, when she saw the consequences of her evidence, burst into tears, and, sobbing, said, "I am a poor lone widow, and Mister Cook must know better than I do. I was so terrified when I saw the bleeding breast of Mr. Catspaw that I knew not what I did, or what I saw, or what I heard."

As the unfortunate witnesses endeavoured to retract what they had said, the justice was induced to assure them that everything they had said had been taken down: "And," added he, "if any of the witnesses endeavour to revoke or explain away what they have said in their evidence against Tengelyi, they shall see and feel the consequences of telling lies in a court of justice!"

Mrs. Kata, under the shock of these words, shrunk terrified into a corner of the room.

The cook, who had a profound veneration for the notary, was much afflicted, and, in spite of his respect for a justice, he could not suppress his indignation. "I cannot see, sir," said he, "what cause you can find in the evidence to suspect Mr. Tengelyi."

"What cause?" rejoined the justice, darting a look of wrath at the cook.

"What cause? That's a question on which your decision will not be required. Moreover, I think it cause enough, when this woman and two other witnesses affirm that the dying man (the simple assertion of a dying man is worth a thousand oaths of another person) named Tengelyi as his murderer."

"I did not say that," sighed Mrs. Kata, stepping forward; "I only said that the attorney shook his head, and then said 'Tengelyi.' I never thought these words could throw suspicion on the notary."

"It's quite certain," said the cook, who, being a freeman, felt himself insulted by the manner in which the justice had spoken to him,—"every man can have his suspicions if he likes; but when it's a question of murder, I think it a great shame that the mere prattle of a silly woman should throw suspicion on a man of Tengelyi's respectability."

"But did you not say yourself that Mr. Catspaw mentioned the notary?" said the justice, in a cutting tone. "Moreover, it's well known that Mr. Catspaw and the notary have been enemies all their life, and it is thought that the notary has not behaved to him as he ought to have done. Even yesterday they had a violent dispute; and who knows but what the attorney had to repent it in his last moments? And what is still more suspicious is, that they quarrelled again yesterday evening. The cook himself has said so. Make a note of that!" said the justice, turning to Mr. Kenihazy.

The cook could not deny this; and Mrs. Kata, thinking to benefit the notary, and make amends for her former imprudence, related the quarrel of the previous evening, with the addition of all the scandal and tittle-tattle of the village.

"Most strange! most suspicious!" exclaimed the justice, turning to Mr. Kenihazy; "that my friend should be found murdered in his bed the very night on which he had had a deadly quarrel with the notary. This woman's evidence proves beyond a doubt that my friend died by the notary's hand. I hope you have taken down every word," said he, still addressing his clerk.

The cook wished to speak; but, finding the justice would not listen to him, he said to Mr. Kenihazy, in a subdued voice, "If the Jew didn't do it, what business had he in the chimney?"

Mr. Skinner, instead of replying to the cook, addressed the Jew: "Who has bribed you to this horrid act? Who are your accomplices, you scurvy hound? For it's you who struck the blow, you vagabond!" continued the justice. "Confess this instant! Say who employed you to murder the attorney! If you are candid, and tell everything, you may do yourself some good; but if you hesitate, I'll——" Here he raised his hand in such a way as made the Jew instinctively throw his arm over his head to protect it; and no doubt he would have suited the blow to the attitude, had not a carriage at that instant driven up to the door.

The arrival of the sheriff and his family changed the scene at the Castle entirely.

Mr. and Lady Rety proceeded directly from the carriage to the room where the witnesses were examined. The justice gave them the full details of the murder, the news of which had reached them during the night. The sheriff and his wife seemed much afflicted.

"It is atrocious!" exclaimed Lady Rety, when the justice had finished, "that such a murder should take place in my house, and under the eyes and ears of so many people!"

"My poor wife is quite overwhelmed!" said the sheriff; "she had a presentiment of something dreadful all day yesterday; I never saw her so excited and feverish in my life!"

"Do not talk so," said Lady Rety, whose lip was pale and quivering; "people will take me for a lunatic. I only felt indisposed, as, indeed, I do to-day."

The justice endeavoured to condole with her ladyship, while Dr. Sherer hastened to feel her pulse; but the Jew, whose eye encountered Lady Rety's, looked at her with a glance full of meaning.

"It's quite certain," remarked the sheriff, "that he who committed the crime is well acquainted with the ways of the house, but, what is most strange, nothing is stolen!"

"We are not quite sure of that yet," said the justice; "the servants say that they found Mr. Catspaw's watch and pocket-book in his room. I should have had a closer search of the premises; but as Mr. Catspaw was your attorney, I thought it probable that he had in his possession papers and documents which you would not like interfered with, and I therefore resolved to seal the door, and wait your decision."

"You did quite right, sir," interposed Lady Rety; "Mr. Catspaw had in his possession many documents and law papers belonging to me. I'll go myself and look after them."

"My lady!" exclaimed the doctor, "you would not think of such a thing in your present delicate state of health?"

"It is my pleasure to do it," said the lady.

"Your ladyship had better not go," interposed the cook, with humility; "the body is in the room, and——"

"The body?" said Lady Rety, striving to suppress a shudder; "you must take it away. I know better than any one else where the attorney kept my papers, and I cannot be easy until I have satisfied myself that they are safe."

In obedience to her ladyship's commands, Dr. Sherer and Mr. Kenihazy left the room with some servants. Lady Rety was in deep thought, when Mr. Skinner, who stood just by her, said, "Thank God! we have at least the man who committed the deed in our hands;" and, dragging the Jew forward, he continued: "We found this fellow in the chimney immediately after the act was perpetrated."

"What, Jantshi the glazier!" exclaimed Lady Rety; "impossible! Mr. Catspaw was his best friend, and——"

"My love!" interposed the sheriff, "that doesn't prove any thing; unfortunately, there are many instances wherein men have committed the vilest acts against their benefactors."

"There can be no doubt," said the justice, "that this Jew is the instrument of some vile person."

Lady Rety turned ghastly pale at these words, and Mr. Rety and the justice asked at the same moment if she was ill; but, instead of answering them, she inquired if the Jew had confessed his crime.

"No!" replied the justice; "not exactly confessed; but that doesn't signify. This fellow is devilish stiff-necked, but I'll bring it out of him. Moreover, the circumstances are of such a nature, that not a doubt can be entertained that——" Then he went on to relate, with great self-satisfaction, his suspicions against Tengelyi.

The effect Mr. Skinner's information had upon the sheriff and his wife was extraordinary. "No!" said he, shaking his head; "one cannot think him capable of such a thing!" while Lady Rety, who was now more composed, remarked that "One could not say what a man of the notary's passionate character would not do, with such feelings of hatred as had always existed between him and the attorney."

"Oh, we shall soon know all about it!" said the justice, with self-complacency. "I would bring it out of this fellow if he were twice the vagabond he is."

Here the culprit fixed his eye upon Lady Rety, and said, in a threatening tone of voice, "If I am to be dealt with in this way, I'll confess everything."

"Dealt with, you rascal!" said Mr. Skinner; "if you don't speak out the truth freely, the haiduk shall deal his stick across your head!"

"Your ladyship has known me a long time," said Jantshi, in a supplicating tone; "I have always been an industrious and honest man. But the justice treats me like a dog; from behind, the haiduk strikes me; in front, the justice

kicks me and pulls my beard; rather than bear it any longer, I don't care who the devil I accuse!"

Lady Rety beckoned Mr. Skinner to the window, where she whispered to him that she thought the culprit was innocent, and that it would be well to treat him leniently: whereupon the justice swore that the Jew was a liar, and that he had treated him as kindly as possible. "These Retys are a strange family; the young ones protect the Bohemians, and the old ones defend the Jews," said the justice to himself. "If things are to go on in this way, there'll be no use for a minister of justice."

By this time the body was removed, and Lady Rety proceeded to the attorney's room, accompanied by the justice. Everything was in the same state as when found by the servants immediately after the murder, with the exception of the bed, which they had covered. The pool of blood on the side of the apartment, with the bloody knife lying beside it, presented an appalling sight on entering the room, and the lady stood for a moment aghast at the threshold. Mr. Rety and the justice remarked her terror, and advised her by all means to go away.

"Do not distress yourselves; it is only a womanly weakness," answered she. "It will soon be over. Mr. Catspaw was our faithful servant, and I cannot bring myself to believe in his untimely end!" And forcing herself forward, as if by a violent effort, she picked her way through the papers and articles lying on the floor, to the drawers; she then went to the box where the attorney kept all his law papers, but was equally unsuccessful in finding the much-desired documents. A few letters lay there, which it will be remembered had been put aside by the attorney before the murder.

Lady Rety was well aware that these letters were only a small part of the Vandory papers, and in hopes to find the remainder, she searched with the greatest care and patience. Still all was in vain; and she began to believe that the attorney had burned the other papers, and only kept these few letters, which, as the perusal of one of them showed her, were sufficient to force the bills from her, when her husband's conversation with Mr. Skinner attracted her attention.

"Exactly as I said!" exclaimed the latter; "the letters which we found on the floor, besmeared with blood, were directed to Tengelyi; and of those two

notes there on the table, one is directed to you and the other to Tengelyi. And here I have found at my feet a bill covered with blood. It's in the notary's handwriting: 'Books for Vilma, eight florins; dress for Elizabeth, ten florins,'" said the justice, throwing the bill down with a laugh.

"It cannot be denied," said the sheriff, looking more closely at the bill, "that this is the notary's writing; but how came it here?"

"That could easily be accounted for by the evidence given in the examination."

"Impossible! utterly impossible!" said the sheriff, who happened to be too honest a man to believe Mr. Tengelyi capable of the crime imputed to him. "You surely do not, Mr. Skinner, seriously suspect the notary? You know he is not a favourite of mine; but I assure you he is the last of all my acquaintance whom I should suspect."

Lady Rety, who had attentively listened to this conversation, understood at once the nature of the case. She knew that Catspaw had possession of the papers which had been stolen from Tengelyi's house, and it seemed but natural that some of the documents should have been lost in the hurry and confusion of the scuffle which evidently had preceded Mr. Catspaw's assassination. But what puzzled her was, that some unimportant letters, bearing the notary's address, had been found, and this circumstance drew her suspicions upon Tengelyi, as either the perpetrator of, or accessory to the crime. Her suspicions were confirmed by the fact that no trace of blood was found on Jantshi's hands, face, or clothes. "If," thought she, "Tengelyi has regained possession of his documents, the best way to neutralise them is to accuse him of the murder; for he cannot in that case produce them, without proving his own guilt." Led on by this idea, she protested that the case ought to be strictly examined, and that she was convinced that the Jew was innocent of the murder. "Perhaps," added she, "the rascal meant to steal; but since there are no traces of blood on him, it is utterly impossible for him to have committed the murder. You see the room is full of blood!"

"Examine as much as you like!" said the sheriff, who was so irritated by the thought that the best friend of his youth should be accused, that he forgot his usual politeness to his wife, "Yes, we will examine! I myself will examine, and refute, this very day, the base calumny against Tengelyi!"

"I am astonished at your unusual warmth!" said Lady Rety, with a soft but bitter tone, as she walked with her husband to the cook's room; "you were not wont to defend Mr. Tengelyi in this manner."

"Defend him?" answered the sheriff, firmly. "I think we have done this man a great injustice: he was once my friend; he has lived in my house as part of myself; and, taking all in all, he never did a wrong thing against me, and yet he is the man on whom this horrid crime is sought to be fixed."

Lady Rety saw, from the humour her husband was in, that it was best to say as little as possible on the subject then, and merely remarked that, at present, it was not a charge against Tengelyi, but only a "supposition;" and, for her part, she hoped those suspicions would prove unfounded. Upon this Mr. Rety remarked, dryly, that she would certainly see her wish realised.

Mr. Sherer and Mr. Kenihazy had returned from the inquest, and were walking up and down the room debating on the largeness of the wound, which the surgeon had pronounced to be mortal, because he had heard that a poor Jew had inflicted it; whereas, if a rich man had been supposed to have inflicted it, he would have declared that it was not mortal, and that death had been caused by apoplexy, or some other illness.

The Jew still stood in the same place in the room which he had from the first occupied, with the haiduk by his side, in anxious expectation of the moment when the examination would be adjourned.

Lady Rety summoned all the servants together, and desired them to relate to her, with the greatest care and attention, everything they knew respecting Catspaw's death.

Mrs. Cizmeasz said, in a timid voice, that she could not deny that she fancied she understood the attorney mentioned the name of Tengelyi when the cook questioned him about his murderer; but she supposed it was all a mistake; for that she was a poor silly woman, and never understood any thing properly. The testimony of the butler and boots was much the same, as was indeed the evidence of all the others: they adhered to their former statement, that the attorney shook his head when the Jew was brought; and everybody admitted that a violent quarrel had taken place on the evening of

the murder between the attorney and Mr. Tengelyi, and that the notary had driven him out of his house with a stick.

"But the Jew must know all," said the sheriff, who had been walking up and down the room in deep thought. "He was found in the chimney; he cannot deny that; he must at least have heard everything that passed. Rascal!" said he, turning to the culprit, "what did you want there?"

"You came to steal, did you not?" said Lady Rety, with evident emotion; "deny it if you dare! It was for that purpose the false keys were to be used, which were found upon you!"

The Jew, perceiving that suspicion rested on the notary as well as on himself, caught at Lady Rety's hint, and, throwing himself on his knees, confessed that he only came to steal. "Miss Etelka has many precious jewels," said he, entreatingly. "I saw them on her when I was repairing the windows the other day. I am a very poor and unfortunate man; and I thought to myself, if I could get some of them, it would help me. I knew Miss Etelka was not at home, and I tried to steal them. I hope your ladyship will have compassion on me, I will never do so again; I will ever be an honest man from this time."

"Fiddlesticks!" interposed the justice, with a sneer; "I dare say you'd like to be mistaken for a thief; you think that would save your neck: but it won't do! it's too evident that you at least had a part in the murder."

"Oh, I entreat you," cried the Jew, still on his knees, "I am innocent of the murder. Mr. Catspaw said so, for he shook his head when I was brought to him; and how was it possible for a weak man like me to kill a strong man like Mr. Catspaw?"

"Jew!" said Mr. Skinner, sarcastically, "that story won't do; you must find another plea: this is the first time in my life I have heard of Mr. Catspaw's strength."

"And was it likely," continued the Jew, imploringly, "that I should have gone without a weapon if I had any intention of committing murder?"

"We found a large carving-knife in the chimney," interposed the cook.

"I swear I know nothing about it," cried Jantshi; "somebody in the house must have put it there and forgotten to remove it."

"Yes, we know very well it belongs to the house," said the cook; "you stole it the day before yesterday."

"Oh, indeed, Mister Cook, I did not; and was the knife which you saw bloody? And should I not be bloody if I had killed the attorney?"

Here the steward remarked that "Jews were great conjurors. One of their tribe came to the house a day or two ago," continued he, "and made us all sign our names on a piece of paper, and in the twinkling of an eye he made them disappear again. And who knows but what this Jew has learnt the art from him; and all the world knows, that nobody is so expert at getting out blood stains as Jews."

This reasoning of the steward impressed nobody but the servants.

"Considering the quantity of blood the attorney lost," said Lady Rety, "it's quite incomprehensible to me how the murderer should escape without staining his clothes. However," said she, turning to the Jew, "if you did not participate in the actual deed, at least you know everything that passed; you must know the murderer!"

"I heard everything," said Jantshi, sighing; "I heard everything from the beginning to the end, and I shudder still when I think of it!—I wanted to jump out to help the poor man, but I was so frightened; and then I thought, too, if any thing dreadful should happen, and I should be found there; and then I became so frightened that I had no power to move."

"Well, what did you hear?" inquired Lady Rety, encouragingly; "you surely must know whether it was Tengelyi, as the justice suspects, or not? Now sit down and tell us all about it," said she, meeting at the same moment the glance which her husband cast at her when she mentioned Tengelyi.

"If you think," said the sheriff, turning to the Jew, "to exculpate yourself by cunningly involving an innocent man, you shall find yourself mistaken; you may say what you will, the strongest suspicion must always remain attached to you."

The Jew was too cunning to make any reply, and merely said that "he could not tell who the murderer was, as he spoke in a suppressed voice; but," said he, "I heard Tengelyi mentioned several times, and I heard papers demanded, and the murderer took papers away with him; but as I said before, I don't know who he was; those who followed him ought to know."

Ferko, the coachman, who had hitherto been a quiet listener, was now asked to give a circumstantial account of what he knew. There are people who are very eager to do any thing but their duty: Ferko was one of them. When the house was first alarmed by the attorney's assassination, Ferko was the first to leave his stables and to pursue the murderer, accompanied by the servants, who showed no less zeal than himself. But when the pursuit led to a very different result from what he had expected, and when, instead of taking the robber, he followed the track to Tengelyi's house, where he saw the notary, his zeal vanished, and it struck him that not to have seen any thing was by far the most prudent way of managing the matter. Perhaps he suspected the notary; but he was not inclined to endanger his own safety by giving evidence against a man whose rank in life was so far above his own. He resolved to give no evidence against Tengelyi; and as this resolution was unconditionally approved of by his best friend, to wit, by Peti the gipsy, he stated, in reply to the sheriff's questions, that he had pursued the robber to the banks of the Theiss, where he had lost his track. Afterwards, he and his friends had proceeded to the notary to inform him of what had happened.

This account would have been quite satisfactory, but for the evidence of the servant who had accompanied the coachman on his expedition; and who, merely for the sake of varying the lesser features of the evidence, stated that they had picked up a stick on the field, and that the said stick was in the ferryman's possession. That person was called in and examined: the result was, that all the unfavourable circumstances which spoke against Tengelyi were gradually elicited from the trio, in spite of the obstinate defence which they made of the notary's innocence.

"But where is the stick you talk of?" said Mr. Skinner, with evident satisfaction at the turn which the examination took.

"With your worship's permission," replied the ferryman—"that is to say, begging your worship's pardon—that is to say, I hope your worship will

excuse me, we found the stick in the middle of the road, on our way from the Theiss to the notary's. We all saw it as it lay on the ground."

"Where is it?" asked Mr. Skinner, sharply.

"Please your worship, I have left it in the kitchen, for I could not presume to come to your worship with a stick."

"Bring it here instantly!" cried the justice. The ferryman left the room, and returned with a black stick with a brass fokosh at the end. Everybody was startled. Mr. Skinner took the stick and showed it to the sheriff, who clasped his hands in utter amazement.

Lady Rety whispered to the clerk, and the cook cried instinctively, "I know that stick! It belongs to the notary."

"You are both to be sworn," said Mr. Skinner to the ferryman and the coachman, "that this is the stick which you found last night." And, turning to the sheriff, he added, "I told you so! The matter is as plain as can be."

"It is clear beyond the possibility of a doubt," said Lady Rety, seizing the fokosh in her turn. "I have always seen that stick with Tengelyi; and here are his initials, 'J. T.' It is shocking!"

"I really don't know," said Rety, with great emotion; "there are many things against Tengelyi, but the impression on my mind is——"

"But consider, sir!" cried Mr. Skinner; "only please to consider! Tengelyi quarrels with Catspaw, and says he'll have his revenge. Catspaw is murdered that very night, and when dying he says that Tengelyi is his murderer. The Jew, who I now believe came merely for the purpose of thieving, hears that Catspaw is asked to give up Tengelyi's papers. The coachman pursues the murderer after the deed. The track is lost for a moment. They find it again, and follow it to the notary's house, whom they see at midnight in his usual dress, covered with dirt and violently agitated. Letters are found in Mr. Catspaw's room addressed to Tengelyi; and, besides, here is the notary's stick! What do you say to that?"

"Nothing!" replied the sheriff, shaking his head; "but all this cannot convince me. I have known Tengelyi these——"

"Indeed!" said Lady Rety, with a sneer. "It strikes me that you and the notary are mighty good friends."

"I am not his friend; but I will never believe him guilty of such a deed."

"I will furnish you with other proofs!" said Mr. Skinner. "I will go at once to his house, and examine him and his family."

"But, sir, have you considered that——" said the sheriff. But his wife interrupted him by telling Skinner to make haste, lest the notary might remove the traces of the crime.

"But Tengelyi is a nobleman!" protested Rety.

"He says he is a nobleman!" put in Lady Rety. "And it has been decided in the Assembly that he is to be treated as not noble, until he proves that he is. Go at once!" added she, turning to Skinner, "for if you were to bring him here, it would create such excitement. After all, he may be innocent."

The justice and his clerk kissed her hand, and left the room. When they were gone, the sheriff seized his wife's hand, saying, "Do you really think Tengelyi is capable of such a deed?"

"And why not?" said she, looking her husband full in the face.

"You know Tengelyi's life, you know his character, his——"

"All I know of him is that he is my enemy!" retorted Lady Rety; "and I shall never forget that, I assure you!" Saying which she left the room.

Rety's heart shrunk within him when the soul of his wife was thus brought before him in all its native ugliness. He shuddered to think that he had hitherto obeyed the dictates of this heartless woman, and he hastened away to protect the notary from the ill-treatment to which he was convinced Mr. Skinner would subject him.

CHAP. II.

Though ignorant of the suspicion which had been cast upon him, Tengelyi passed the night in sorrow and remorse. He was convinced that the deed of blood was done by Viola's hand; and his soul trembled within him as he thought that, instead of preventing the crime, he had actually gone to meet the robber on the banks of the Theiss. He felt degraded and wretched by this strange complicity. After a sleepless night, he rose with the day, and hastened to Vandory, who was still in happy ignorance of what had happened.

"Shocking!" cried the curate, when Tengelyi had finished his narrative of the late events: "to think that he should be summoned to appear before God in the very midst of his sins, and without having one moment left for repentance!"

"Shocking, indeed!" said the notary; "but is not mine the fault? Am I not a partner in this crime? I all but knew that Catspaw had possession of my papers. I ought to have known that Viola could not wrest them from him without taking his life. And what did I do? Instead of preventing the deed, I obeyed the summons of the outlaw. I waited for him, to receive the booty from hands reeking with the blood of his victim!"

"Viola's deed is horrible. I understand your feelings. But, tell me, what could you have done to prevent him?"

"My duty. I ought to have informed against him. I ought to have arrested him."

"No," said Vandory. "How could you think of arresting a man who relies upon your honour? Besides, to arrest Viola, means to deliver him up to the hangman."

Tengelyi was about to reply, when the Liptaka rushed into the room.

"Mr. Tengelyi, sir! For God's sake, do come home! Do, sir!" cried the old woman.

"What is the matter?" asked Vandory and Tengelyi at once; for the manner of the Liptaka impressed them with the idea that some accident of a fearful nature must have happened.

"Oh, gracious! The justice and the clerk!" gasped the Liptaka.

"Do tell us, good woman; what *has* happened?" said Vandory. "Why should not the justice come to the notary's house? Is the event so very extraordinary?"

"Oh, sir! but if you knew what he comes for! He says, the notary—you, Mr. Tengelyi, sir!—have murdered the attorney—confound the fellow!—and he's come with the clerk and the haiduk; and he's at it! He questions everybody in the house."

Though used to misfortune, though prepared to meet injustice at every step, Tengelyi was, for a moment, overwhelmed with grief and amazement.

"This is too bad!" said he, with a tremulous voice. "I was prepared for any misfortune; but I was not prepared to hear myself accused of a crime! Yes; I am not prepared to answer a justice, and to plead in my defence, when the crime laid to my charge is murder!"

"It is impossible!" said Vandory, seizing his hat. "You are mistaken, my good woman. There's some mistake, I'm sure."

"I thought so too, sir," said the Liptaka: "that was my opinion, when the justice told Mrs. Tengelyi that the notary was accused of a heinous crime, and that he came to examine him. I fancied the villain was merely joking; but when they called the maid, and the man, and the neighbours, and examined them severally,—when they did that, sir, I understood that the rascal pretended to believe in what he said. And he would have questioned Mrs. Tengelyi; but she told him she was a nobleman's wife, and was not bound to answer questions. Oh! and the justice,—don't be shocked, sirs!—he said the notary was not a nobleman; and, if she wouldn't reply, he'd make her! Oh! but when he said that, I ran away to call the notary; for it's he that is learned in the law, and he'll make the justice repent his impertinence!"

"You see, the affair is beautifully got up," said Tengelyi, with a bitter smile. "They have robbed me of my proofs of noble descent, and now they are at liberty to do with me as they please."

"But——" said Vandory.

"Come along!" cried the Liptaka. "The sheriff, too, is there! He came when I ran away!"

"Come," said Tengelyi, with increased bitterness. "Come; we are safe now. You know my dear friend Rety has come to protect me in my hour of trouble."

Matters were indeed in a sad state in the notary's house. Mrs. Ershebet insisted on her privilege; and nothing could induce her to reply to the questions which the justice put to her; but the whole of the other evidence, which was taken down, went against the notary. The neighbours proved the quarrel, and the forcible expulsion of Mr. Catspaw from his house; and one of them quoted Tengelyi's words, that the fellow (viz., Mr. Catspaw) should die from his hands. The maid deposed that her master had left the house late at night; the stick was at once identified as the notary's property: in short, all the circumstances of the case were so suspicious, that the sheriff, who assisted in the proceedings, and who sought to modify Mr. Skinner's violence, though convinced of Tengelyi's innocence, could not but admit that there was a strong case against the notary.

When Tengelyi entered the room, Mrs. Ershebet rushed up, and embraced him, with sobs and tears.

"Be comforted," said the notary. "This is not our first persecution, nor is it the last. If God be with us, who can prevail against us!"

His grave and dignified manner affected the sheriff; who, walking up, addressed his former friend, and assured him that no persecution was intended by the justice's proceedings.

"Circumstances," said he, "will, at times, force the best of us to clear themselves of suspicion by an explanation of their conduct; and in the present instance, I am sure, nothing can be easier to Mr. Tengelyi."

"I thank you, sir," said the notary, dryly, "and I am sure, if your will had been done, these people would have treated me as they would wish to be treated in a similar case, and, indeed, as any honest man has a right to be treated. Allow me now to ask Mr. Skinner what the circumstances are that have created a suspicion of my having murdered Mr. Catspaw, for I understand that is the charge which they bring against me?"

"We'll satisfy you to your heart's content, sir!" cried the justice, who was in the habit of speaking in the name of the firm. All his professional sayings were delivered under the authority of Skinner and Co. He then proceeded at once to give a clear, and, strange to say, comprehensive summary of the evidence, which he concluded by repeating the chief points of the charge.

"Considering," said he, "that the said Mr. Catspaw was murdered by some person or persons unknown;—considering that no robbery was committed, and that no feasible grounds can be found why anybody should have committed that murder;—considering that the said Tengelyi's hate against the said Catspaw is a matter of vulgar talk and notoriety, in evidence of which we need but adduce the yesterday's scene, in which the said Tengelyi is proved to have threatened to kill the said Catspaw;—considering that the said Catspaw was unjustly and maliciously accused of having possessed himself of certain papers and documents the alleged property of the said Tengelyi, the which circumstance goes far to establish the presumption of an interested motive in the case of the said Tengelyi;—considering that the crime was committed at midnight, at a time when the said Tengelyi, against his usual habits and custom, was from home, and considering that sundry persons who went in pursuit of the robber came to the house of the said Tengelyi, where they found him (*i. e.* the said Tengelyi) in a dress spotted with mud;—and, lastly, considering that certain articles which were found in the room where the crime was committed, and a stick which was picked up on the road which the alleged murderer took, have been identified as belonging to the said Tengelyi, there can be no doubt that there are grave reasons to suspect the said Tengelyi of being guilty of the said murder."

"Well, sir!" continued Mr. Skinner, after delivering this address, which bore a striking resemblance to the preamble of a sentence of a Hungarian court, "Well, sir! what have you to say to this?"

The notary was silent.

"Don't be confused, sir!" said Mr. Skinner; "please to speak the truth, sir. You see our questions are put with the utmost politeness."

"Don't give him an answer!" cried Mrs. Ershebet, passionately. "Thank God, no one has as yet proved that we are not noble! They cannot force you to answer!"

"I *will* speak!" cried the notary; "I'd reply to the basest of mortals if he were to charge me with so foul a deed!"

"You see, madam, your husband does think us worthy of a reply," said the justice: "don't be afraid; let him speak! I'm sure he'll give us the most satisfactory explanations."

"I can indeed give you the most satisfactory explanations, sir," replied the notary, who, after adverting to the fact that his late suspicions of Mr. Catspaw were now proved to be well founded, proceeded to state the contents of Viola's letter, and the steps which it induced him to take.

Mr. Skinner listened with a sly and incredulous smile.

"But, sir," said he, "how could you endanger your precious life by doing the robber's will? Mind, you say you were unarmed; and we know but too well that you were alone, and at night too! Would any man of sense wish to meet the greatest robber in the county under such circumstances?"

"I never did Viola any harm, and I had not therefore any reason to fear him, when I learnt from his letter that he regarded me with feelings of gratitude; after all, what could I do? I wished to have my papers, and I availed myself of the only opportunity that offered."

"Will you have the goodness to show us that letter?" asked the justice; "I'd like to see the robber's autograph."

"The writer of the letter intreated me to burn it," replied Tengelyi, "and I have burnt it."

"That's a pity! Perhaps you've shown the letter to some one. We want two witnesses, you know!"

"I informed my friend Vandory early this morning."

"Oh! ah! I understand,—yes, early this morning!—about the time when I came to the village and commenced examining the witnesses, eh? Is that all you have to say?"

"No!"

"From your hesitating manner I take it that you knew of the murderer's intentions."

"You have no right, sir," cried Tengelyi, "to construe any of my words in that sense!"

"Sir!" retorted the justice, "it's mere folly to deny the fact. You admit that you had reason to suppose that Mr. Catspaw was possessed of your papers; and, supposing there ever existed a letter of Viola's to you, you must have known that the robber intended to obtain the papers by means of a crime."

"Is this all?—no! more is behind!" continued Mr. Skinner, after a pause. "Your own confession proves that you were not only privy to the murder, but that you acted the part of one who stimulates and instigates the murderer. It is quite clear that Viola had no interest in the papers, nor would he have risked his life for them unless an artificial interest was created in his mind. And whose advantage did that artificial interest tend to? whose interests did it serve to promote?—Yours, and only yours!"

Tengelyi would have answered; but Mr. Skinner continued, with great pathos:

"And who is it that is guilty of so heinous a crime?—a notary! a man whose duty it is to prosecute the breakers of the law, and who imposes upon the county and the sheriff by making his house a den for thieves and robbers! This case," added Mr. Skinner, turning to Kenihazy, "is beyond our jurisdiction. It is our duty to send the prisoner to the county gaol, to prevent his being liberated by Viola and his other comrades."

The sheriff, who watched the case with great interest, interposed, and offered to be bail for the notary's appearance; but Mr. Skinner thought he had shown his respect to Mr. Rety more than sufficiently by eschewing the low abuse and the curses with which it was his habit to give vent to his feelings on similar occasions. He refused to accept bail; "For," said he, "I would not accept it even if Mr. Tengelyi's nobility had never been doubted; the privilege of nobility cannot protect a man in the present case. The associates of robbers——"

"How dare you call *me* an associate of robbers?" exclaimed Tengelyi, his fury getting the better of his discretion; "How dare you, sir? You, of whom

it is known that you are a receiver of stolen goods!"

What the notary said was, more than any thing else, calculated to wound the feelings of the worthy Mr. Skinner, and a sharper sting was given to the reproach by the fact of its being thrown at the magistrate's head in the presence of the sheriff and of a numerous audience. There certainly had been cases in which the owners of stolen cattle had accidentally found their property in Mr. Skinner's stables; but when, after leaving the place in confusion and dismay, they returned with a witness, the cattle, somehow or other, had disappeared. Accidents of this kind are not the less disagreeable from their not being unheard of; and Mr. Skinner's rage, in the present instance, passed all bounds.

"Do you ask me how I dare to call you an associate of robbers?" cried he. "You'll find, to your cost, that I dare more than that. I'll *treat* you as an associate of robbers. I'll have you put in irons, sir; for everybody knows that some time ago, when we hunted Viola in the village, the robber found an asylum in your house! Ay, you may stare! And when I wished to search it, your wife had the impertinence to put in a protest!"

"How dare you utter this calumny?" said the notary, with increasing violence. "I sheltered Viola's family because they were in distress; but I never saw the robber. Come, Ershebet; was Viola ever in our house?"

Mrs. Ershebet, who was equally ignorant of what Vilma and the Liptaka did on that occasion, affirmed that Viola had never entered the house; but the justice sneered, and forced the old woman, Liptaka, to repeat the statement which she had made before the court-martial.

"It's but too true, sir," said she. "While they were hunting after Viola in the village, he was hid in the house. I hid him in the back room behind the casks; but neither the notary nor Mrs. Tengelyi was aware of it. And I told the gentlemen of the court that I was too frightened to tell the notary what Viola desired me to tell him, namely, that he ought to look to his papers. Heaven knows but a great misfortune might have been prevented, if I had done as I was bid!"

"I'd be a fool to believe you!" said the justice. "How could you take the robber to the back room unless some one knew of it?"

"Some one did know of it, but neither the notary knew of it, nor his wife, for she was in bed at the time. Miss Vilma and I were sitting up when Viola came to the house. We were sitting up with Susi, when we heard the noise in the street. I went out and found Viola. The place was surrounded, and there was no escape. I knew they'd hang him if they could take him, so I entreated Miss Vilma to allow me to take him in. She was moved to pity, and gave her permission. That's the long and the short of it. If it was wrong to hide him—very well! You may do with me as you please. I am an old woman, and I'm the only criminal in this business."

"Never mind, you old beldame!" cried Mr. Skinner, angrily. "We'll clear our accounts with you one of these fine days. We must now examine Miss Vilma, since it appears that all the inmates of this house are leagued against the law!" and, turning to Mrs. Ershebet, he said, "Call your daughter!"

"Never!" said Mrs. Tengelyi. "My daughter is the betrothed bride of Akosh Rety; who will dare to offend her? To think that my own Vilma should be examined for all the world like a common culprit!" said the good woman: but Tengelyi asked her to fetch her daughter.

"But, my dear Jonas, how can you think——"

"Go to your room and call your daughter!" repeated Tengelyi. "I am convinced that the Liptaka tells an untruth. My daughter has never kept any thing secret from me."

Mrs. Ershebet left the room, and returned with Vilma. The power of beauty is irresistible; even Mr. Skinner, in spite of his innate vulgarity, lost half of his impertinence when Miss Tengelyi appeared before him. He said it was necessary that a few questions should be put to her, but that he was ready to wait, if she thought it inconvenient to answer them now.

"Go on!" said Tengelyi, dryly. "Speak, Vilma. Tell us, is it true that Viola was hid in our house at the time they pursued him through the village?"

"Father!" cried Vilma; and her pale face became suddenly flushed.

"Fear nothing, my love! You've always been my good, my dear child. You were always open and candid. Tell us, now, is it true that Viola was in our house, and with your permission, too?"

Vilma stood silent and trembling. Mr. Skinner pitied her, when he saw the effect the question produced on the poor girl.

"Dearest Vilma, I intreat you to have no fear!" continued Tengelyi. "I know very well it's a vile calumny. I know you would never have done such a thing without my consent, or, at least, without informing me of it after it was done. You see, Vilma, dear, this woman—God knows I do not deserve it at her hands!—tries to clear herself by saying that it was with your permission she hid Viola in my house."

Vilma's fear yielded to the impression that a confession on her part was necessary to justify her old friend. She wept, and confirmed the statements of the Liptaka.

"Pardon me, dearest father!" added she; "I am the cause of this misfortune. I asked the Liptaka to hide Viola in this house, and I asked her to keep the matter secret from you, for I knew you would be angry with us, because they say Viola is a great criminal; though it is but natural that I did my best to save the wretched man from certain death."

"Gammon!" muttered Mr. Skinner. Kenihazy fetched sundry deep sighs; and Rety remarked that he thought Vilma's evidence consistent and credible.

Tengelyi stood lost in speechless agony. Vilma was silent, but the looks which she cast upon her father expressed unutterable despair. Vandory alone broke through the solemn silence; and, seizing the hand of his friend, he entreated him not to yield to his grief.

"Fear nothing!" said Tengelyi, gloomily. "Since I have come to this—since my own daughter tells me the truth only when examined by a judge—since it is so—there is nothing to startle; nothing is left to amaze me! It is enough!" continued he, with a deep sigh, turning to the justice. "Let us make an end of it. You know all you can wish to know. You know that everything speaks against me. I see no reason why you should trouble yourself any more with me. Give me two hours' time to arrange my affairs, and, if you please, have my house watched in the meantime."

"Of course, if *you* have said all you have to say, there is no reason for further ceremony. I'll have the carriage ready in two hours. You had better

take all the things you want for your stay in Dustbury, which, I am afraid, will be longer than you seem to anticipate."

"I will accompany him!" cried Mrs. Ershebet, weeping; "I will not leave my husband in his trouble."

"My dear Ershebet," said the notary, "I must insist on your remaining where you are. I am accused, and I must prepare my defence, and for that purpose I ought to be alone."

Mrs. Ershebet wept still more; but Mr. Skinner remarked that he was not sure whether the regulations of the prison would allow the prisoner to communicate with his family. Having said this, he left the room with Kenihazy, thereby conferring a substantial benefit, not only on the notary and his family, but also upon himself, for he had scarcely left the house when Akosh Rety arrived in a state of fearful excitement.

"For God's sake, tell me what *has* happened?" cried he, as he rushed into the room.

"My dear Akosh!" cried Mrs. Ershebet, taking his hand, "we are lost. Our name is dishonoured. My husband is accused of murder. They are going to take him to the county gaol."

"And I am the cause of my father's ruin!" cried Vilma. "Save him, Akosh; if you ever loved me, save him!" And the wretched girl fell fainting to the ground.

They took her away. The notary looked after them in silence; and, turning to Vandory, said: "Be a father to them when I am gone!"

Rety, the sheriff, though deeply moved, was a silent spectator of this scene; for the cold politeness with which Tengelyi deprecated his interference whenever he attempted to advocate his cause, prevented him from expressing his sympathy. He now came up to the notary and assured him, with a trembling voice, that, come what might, he would use the whole of his influence to extricate his former friend from his present painful position.

"I thank you, sir," said Tengelyi, coldly, as he turned to the speaker. "I must confess I was not aware that we were still honoured by your presence under

my roof. I thought you had accompanied Mr. Skinner; for, as I take it, the transaction which excited your interest is now over. Everything is in the best order, and the crime, it appears, is fully brought home to me."

"Tengelyi," said the sheriff, with deep emotion, "do not treat me unjustly. What brought me to this house, was my wish to assist you by my presence, and to induce Skinner to treat you with kindness and moderation."

"If that was your intention," retorted Tengelyi, "it would have been wise not to have used your influence for the election to that post of a man whom the presence of his chief does not prevent from abusing the powers of his office."

The sheriff was confused.

"I will not argue that point with you," said he; "but what I wish to assure you of is, that, however circumstances may speak against you, I still am convinced of your innocence. I assure you, you can rely upon me!"

"Sir!" said the notary, "there was a time when I did place my trust in my friends; but they have since been kind enough to convince me that friendship is far too pure and lofty to descend to this poor world of ours, I shall shortly be called upon to appear before my judges; and if you, sir, think you have strength enough to forget the friendship which you have hitherto shown me, it will give me pleasure to see you on the bench. Pardon me, if I leave you, I have but two hours to myself, and I wish to spend them with my wife and daughter."

And, bowing low to the sheriff, Tengelyi seized Vandory's hand and led him from the room. Rety sighed, and left the house.

CHAP. III.

The notary's position was critical, his future doubtful, and his separation from his family painful in proportion. Tengelyi wanted all his strength of mind to speak words of consolation and hope to his weeping family. The

despair of his daughter in particular filled his heart with the deepest, bitterest grief.

"Do not weep, dear girl!" said he, embracing poor Vilma, whose pallid face showed more than her tears what agonies she felt. "You know your father is innocent. Things will clear up, and I shall be allowed to return to you. Won't you be my good, happy girl, when I come back!"

"Oh, father!" cried Vilma, "to think that you should go to prison, to be confined with those wicked people though but for a day, though but for an hour! And to think that I am the cause of it, dear father, it drives me mad!"

"You, my daughter? What makes you think that your confession of Viola having been hid in the house can do any thing to make my case worse than it is?"

"Father!" said she, sadly, "don't talk to me in that way! I am undeserving of your love. Will they not say you were aware of Viola's being in the house, and that you wished to deny it? And even if this were not so, are not all our misfortunes owing to our having taken in Susi and her children? And that was *my* doing!"

"And since *that* is the cause of your misfortune," interposed Vandory, "I am sure God will not abandon you in your trials. His ways are indeed unaccountable; but I never heard of a good action having led a man to utter ruin!"

Tengelyi sighed, but Vilma felt comforted; and even Mrs. Ershebet's sobs ceased when the curate told her that this unjust accusation was possibly the means to defeat their enemies, and to lead to the recovery of the documents. The notary added to the comfort of his wife by assuring her that his incarceration was not likely to continue for any length of time, and that Vandory would be their friend and adviser during his absence.

Again Mrs. Ershebet entreated him to allow her and Vilma to accompany him to Dustbury; but the notary felt that he wanted all his strength for the moment in which he must cross the threshold of the prison; and, with Vandory's assistance, he prevailed upon his wife to desist, at least for the present.

"If my captivity were indeed to be of long duration," said he, "I would of course send for you. But in the first days I must devote myself exclusively to an examination of my position, and of my means of defence. Völgyeshy is an honest man. I intend to retain him as my counsel; and Akosh, I know, will find means of informing me how you are going on. Where is Akosh?"

Mrs. Ershebet replied, that he had left the room with the sheriff; and Tengelyi turned to arrange his papers and books, when the young man entered. He looked excited, and his eyes showed traces of tears.

"Have you spoken to your father?" cried Mrs. Ershebet.

"I have!" replied young Rety, with a trembling voice.

"And what does he say?" asked Ershebet and Vandory at once.

"Nothing but what is beautiful and edifying, I assure you!" said Akosh. "He wept; indeed he did! He embraced me! He called me his dear son! He told me he was convinced of Tengelyi's innocence; and his heart bled to think that so honest a man, and his old friend too, should be in such an awkward position; and Heaven knows what he said besides! He pleaded Tengelyi's cause admirably; but the end of it was that he refused to comply with my request. He said that fellow Skinner would not take bail, and he could not force him. In short, he said there was nothing to be done. But then, you know, he told us his *heart* was bleeding; can we ask for more?"

"I could have told you so!" said Tengelyi, quietly.

"No! no! You could not!" cried Akosh, passionately. "If an angel from heaven had told me that my father would reply to my entreaties in *this* manner, by Heaven I would not have believed it! Oh! you cannot know how I implored him. I wept! I knelt to him! I reminded him of my poor mother! I told him, if he had ever loved me, if ever he wished to call me his son, if he would not make me curse fate for having made him my father, he should grant me this one, this poor request! And he refused to grant it!"

Vandory felt hurt at the manner in which Akosh spoke of his father. He said:

"Who knows whether he was not justified in saying that he *could* not comply with your request?"

But Akosh replied with increased bitterness:—

"Do you really think Skinner would have dared to resist my father if he had insisted on putting in bail for Tengelyi, or, at least, on having him confined in our own house? Oh, indeed, and what was His Excellency, the lord-lieutenant, likely to say to such an infraction of the rules? And perhaps the illustrious Cortes would not be pleased with his protecting the notary! Such are the reasons which induced my father to stifle his better feelings, and to spurn me, his only son, who wept at his feet!"

"Who knows," said Vandory, "how painfully he felt it that he was compelled to refuse you?"

"No matter!" said Akosh. "When I left the house, I saw Kenihazy busy with the carriage. We have not much time left; it were a shame to lose that time in a dispute about my father's character." And, turning to Tengelyi, he added, "Will you allow me to accompany you to Dustbury?"

The notary repeated to him what he had already stated to the other members of his family. He entreated him to bring him news of Mrs. Ershebet and Vilma; "and," added he, with a smile, "to recommend them to your protection is unnecessary!"

"All I wish is, I had a better right to protect them. I wish Vilma were my wife. What my father would not do for his son, he might perhaps be induced to do for the honour of his name."

"I understand you!" said Tengelyi; "but, thank God! I want no protection to prove my innocence. I have nothing I can leave my daughter but an honest name; and until the honour of that name is restored, I cannot consent to your marriage."

Akosh would have replied; but the carriage, which drove up that moment, diverted his thoughts into another channel. Tengelyi embraced his wife and daughter, seized his bunda, and stepped into the carriage, which Rety had sent, to the great vexation of Mr. Skinner, who intended to convey the notary in a peasant's cart. Mr. Kenihazy seated himself beside the prisoner,

two haiduks occupied the rumble, and the unfortunate notary thanked heaven when the carriage drove off, and withdrew him from the gaze of his despairing family.

The county gaol at Dustbury was, in those days, free from the prevailing epidemic of philanthropical innovations, which a certain set of political empirics are so zealous in spreading. The ancient national system of Austrio-Hungarian prison discipline was still in full glory; but as coming events cast their shadows before, so this venerable and time-honoured system was every now and then attacked by the maudlin and squeamish sentimentality of modern reformers. Nay more, a committee was appointed to inquire into the condition of the prisons and their inmates in the county of Takshony; and though the keeper of Dustbury gaol allowed each prisoner on the day of the inquest full two pints of brandy; though they were ordered to play at cards, and be merry, the gentlemen of the committee insisted on giving a libellous account of Captain Karvay's mode of treating his prisoners. The established prison discipline suffered a still ruder shock, when, in the gaol of a neighbouring county, no fewer than six prisoners were dull enough to permit their feet to be frozen by the cold; and though the county magistrates gave them the full benefit of their attention, though their feet were amputated with a handsaw, though only one of the patients survived, and though such things were known to have frequently happened without any one being the worse for it, yet (so great is human perversity) a cry of indignation was got up against the worshipful magistrates of the said county, for all the world as if those honourable gentlemen had *made* the cold.

And besides, at the very time that the prisoners' feet were frozen in the lower gaol, there were no fewer than eighty prisoners confined in one room in the upper part of the building; and these eighty men, though they disagreed and fought on the slightest provocation, were still unanimous in their complaints of excessive heat. This circumstance shows that malicious persons will complain of any thing, if they can but hope to bring their betters into trouble. But the committee of inquiry could not continue for ever, and the cry of indignation became hoarse from its very excess. The new instructions, which government was weak enough to publish during this crisis, were put on the shelf, and Mr. Karvay returned to his Austrio-Hungarian management, of which the excellence was clearly proved by the

yearly increasing number of its *pupils*—pupils, we say, for what is a prison but an academy for grown-up boys and girls?

The council-houses in Hungary serve likewise the purposes of county gaols. The council-chambers, the court, and the prison are under one roof. This system has its merits on account of its compactness. The council-houses, which, though not exactly *built* by the nobility, are built for their exclusive use (always excepting the prisons, of which the nobility leave a small part to the peasantry,) are not only used for quarter sessions and the like; no, they are also made to serve purposes of a more social nature.

The hall, for example, with its green table, resounds in the morning with the shrill tones of Hungarian eloquence, or it is hushed by the gravity (it is well known that this inestimable quality is greatly aided by the smoking of strong tobacco) with which sentences of death are passed, and criminals sent off to instant execution. But whatever want of measure and order a man may detect in the debate of the morning, he will find it brought to its level in the ball of the evening, when a hundred couples move to the sounds of harps and violins. Among the miscellaneous uses to which the county-house is put, one of the most important is that it serves as a place of rendezvous for the assessors and other officials. They meet in every room, and show a wonderful activity in conversation, and a no less wonderful energy in smoking their pipes, which pursuits are notoriously conducive to despatch and accuracy in business. The Hungarian nobility resemble the Romans in more than one respect. That classic people had an innate desire to pass their time in the forum; the Hungarian assessor exults in his council-house. In it he passes his life. It is here he works, eats, smokes, sleeps, and gambles. In the county of Takshony, this laudable custom was of course in a high state of perfection. It is therefore but natural that Mr. Skinner should have left Tengelyi's house only to proceed to the council-house at Dustbury, where he spread the news and surrounded himself with a chosen body of his friends, who, with him, were eagerly looking for the arrival of the prisoner. We find them in the recorder's office, where Mr. Shaskay condoled with the assessor Zatonyi about the depravity of the world; while James Bantorny, holding the recorder by the button, informed that worthy magistrate of all the forms and observances of the English trial by jury; and an Austrian captain, who spent his half-pay at Dustbury, held forth at the further end of the room, assuring some of the older assessors that this shocking increase of crime

was solely owing to the flagitious mildness of the penal laws, a proposition to which his hearers gave their unconditional assent by sundry deep sighs and significant exclamations against the scandalous scarcity of capital executions and the jeopardy into which this ill-advised leniency put the lives and limbs of the well-clad and bean-fed among the Takshony population. Völgyeshy, though generally averse to large assemblies, had joined and indeed scandalised the party, by protesting his conviction of Tengelyi's innocence.

Mr. Kenihazy's arrival, and the news that he had safely conveyed the prisoner to Dustbury, drew the attention of the several groups in the room to the worthy clerk, who gloried in the excitement which his presence produced.

"Heavy roads," said he, wiping the perspiration from his forehead. "Heavy roads, I assure you, gentlemen! I'd never have thought that we should have had so much trouble."

"So he did trouble you!" said Mr. Skinner. "Very well. I thought as much. You are so late, I am sure something came in your way."

"Came in my way with a vengeance!" said Mr. Kenihazy. "Luckily, I had the two haiduks. I could never have done without them."

"What the devil! Did the notary fight? Did they endeavour to rescue him?"

"No! not exactly!" said Mr. Kenihazy, reluctantly; for the general interest these questions excited made him loth to disappoint his audience, "we fell asleep on the road. They are doing something to the bridges. We were forced to leave the dyke. The carriage was almost swamped in the mud; and, as I told you, if the haiduks had not been with me, and if I and the notary had not put our shoulders to the wheels, bless me, we shouldn't have been here till to-morrow morning; in which case the brigand would have attempted to rob me of my prisoner. But I'd like to have seen them, that's all!" added he, shaking his fist; "I'd have taught them manners, dirty knaves as they are!"

This explanation of Mr. Kenihazy's late arrival was far too commonplace to satisfy the worshipful gentlemen; but still the principal interest remained concentrated on Tengelyi, and half-a-dozen voices asked at once:

"How did the notary behave?"

"What did he say?"

"Did he make any ill-natured remarks?"

"He did not do any thing," replied Mr. Kenihazy; "how could he? since the sheriff ordered me to treat him with the greatest leniency!"

Everybody was astonished, and the recorder exclaimed:

"Are you sure that the sheriff gave such an order?"

"Of course he did. I never saw him more energetic in my life than when he told me that he was convinced of Mr. Tengelyi's innocence—yes, innocence was the word!—and that we ought to avoid any thing which could possibly make his position more painful."

"Strange!" cried Shaskay, shaking his head.

"*I* thought it strange; but as the sheriff told me that to offend the prisoner was as much as an offence to himself——"

"It's quite natural! quite! you know," cried Mr. Skinner, when he saw and cursed his clerk for the effect which those words had on the company, but particularly on the recorder. "It's quite natural, you know. His son is in love with the notary's daughter; and now that Tengelyi has got himself into trouble, the sheriff must do something in the way of taking his part, for there is no saying what that hot-headed fellow Akosh would not do. But *I* am the man who knows the sheriff's real sentiments. Lady Rety told me to use all due diligence and severity in the trial of the offender, who has murdered her most faithful servant; and we know, gentlemen, that the sheriff never differs in opinion with his lady."

"If that is the case, I have been wrong in what I did," said Mr. Kenihazy, scratching his head; "after what the sheriff told me, I did not even offer to bind his hands and feet—indeed, I have treated him with great politeness. I wanted to converse with him, but he made no reply to what I said."

"Conscience! it's all conscience!" groaned Mr. Shaskay.

"That's what I thought when he refused to smoke a pipe, though I offered it over and over again."

"You might have let it alone, sir," said Mr. Zatonyi, with great severity. "In your relations with prisoners, your behaviour ought to be dignified, grave, and majestic: to show them that there is some difference between you and a vagabond."

"Never mind, Bandi," said Mr. Skinner, when he saw that his clerk smarted under the reproof, "never mind; you're over polite, you know. Tell them to send the prisoner up. We'll be grave enough, I warrant you!"

Mr. Kenihazy left the room; and a few minutes afterwards Tengelyi entered with an escort of four haiduks. Völgyeshy accompanied him. That gentleman had left the company, when he heard of the notary's arrival: he had gone to confer with him. The notary's face was serious, and his behaviour had that dignity, gravity, and majesty which the assessor advised Kenihazy to practise in his relations with culprits.

"How devilishly proud the fellow is!" whispered Mr. Skinner to Mr. Zatonyi: "but never mind; we'll get it out of him in no time."

"So we would if the sheriff did not protect him!" sighed Zatonyi.

The formal surrender of the prisoner was made, and Tengelyi expected every moment that they would take him to his prison; when Captain Karvay asked the recorder what kind of a chain the notary was to have.

Simple as this question was, it seemed to puzzle the magistrate, who was at length heard to say, that it would be better to wait for the sheriff's arrival, before any thing was decided on the point.

"Nonsense!" cried Mr. Skinner; "give him a chain of eight or ten pounds, and have done with it."

Before the recorder could make an answer, Völgyeshy interfered, saying, "that to chain the prisoner was useless and therefore illegal. No attempt had been made to escape."

"It strikes me," said Zatonyi, "that Mr. Völgyeshy is the advocate of every criminal."

"No, not of every one," replied Völgyeshy; "but I am proud to plead the cause of those of whose innocence I am convinced; and it is for this reason I have asked Mr. Tengelyi to put his case into my hands."

"Have we then the honour of seeing in you the advocate of Tengelyi?" said Mr. Skinner, with a sneer.

"*Desperatarum causarum advocatus!*" whispered Zatonyi. "If Viola had not escaped, you might have seen a practical illustration of the results of your defence."

"Whatever result my pleadings may have, does not depend upon me," retorted Völgyeshy. "All I say is, that I mean to do my duty to my client, and I know that our respected sheriff will take my part against you."

These last words told upon the recorder; and, after a short consultation, it was resolved to lock the notary up without chaining him.

Messrs. Karvay and Skinner were utterly disgusted with this resolution. The gallant captain complained of the unfairness of the court, who made him responsible for the safe keeping of the prisoner, and who yet refused to sanction the necessary measures of precaution. But a sheriff's influence is great, particularly immediately after the election; and all Mr. Karvay gained by his demurrer was a hint from Shaskay, to the effect that it was far easier to keep a prisoner in gaol than to confine certain people to the field of battle; and the homeric laughter which followed this sally drowned his voice, when he rejoined that great caution ought to be used with any deposits in a council-house, since certain monies, though wanting feet and though kept in irons, had been known to vanish under the hands of certain people. This brilliant repartee was utterly lost, and nothing was left to the gallant gentleman but to protest that it was not his fault, if he was unable to obey the sheriff's orders respecting the treatment of the prisoner; for since they would not allow him to chain the notary, his only way was to put him into the vaults.

This proposal filled the mind of Völgyeshy with horror, not indeed because the vaults of the Dustbury prison have any resemblance to those mediæval chambers of horror which the managers of provincial theatres expose to the horrified gaze of a sentimental public. No! The cellars of the Dustbury

prison, though by no means eligible residences, were not half so bad as the most comfortable of the lath and canvass dungeons to which we have alluded. The door of these vaults, which opened into the yard, led you to twelve steps, and by means of these into a passage, lined with a score or so of barred doors. The whole arrangement was simple, safe, and useful. There are none of the paraphernalia of a romantic keep, no iron hooks, no trap-doors, no water-jars; on the contrary, if the prisoners have any money, they can get wine and brandy, and as much as they like, too. The Dustbury prisons are strangers to the nervous tread of pale and haggard men. It is true that the number of prisoners prevents walking; but there is a deal of merry society; there is smoking, idleness, swearing, singing, in short, there is all a Hungarian can desire. This shows that the lower prisons of Dustbury are very satisfactory places, at least for those for whom they were built. There were, indeed, some witnesses and a few culprits, who, though uninured to prison life and averse to its gaieties, were compelled to a protracted stay in these places, and who had the presumption to complain. But of what? Of nothing at all! there was no reason to fear that the gaoler would let them die of thirst, for on rainy days there was an abundant supply of water, which came in by the windows, and which was retained in its own reservoir on the floor of the prison. But they complained of the badness of the air, (and indeed the air *was* bad, at least it seemed so to those who were not used to it), which might perhaps have been the cause of the prevalence of scurvy and typhus fever.

Such places are unquestionably very disagreeable, for the prevailing prejudice forces magistrates and guardians to dispense medicines to each of the sick prisoners. And medicines are fearfully expensive! But this motive was scarcely powerful enough to induce the Cortes of the county of Takshony to build new prisons; for the gentlemen of the sessions adopted certain remedial measures against long druggists' bills. The prisoners were treated by a homœopathic practitioner, and this measure reduced the charge for medicines to a very low figure indeed. The construction of a new prison cannot therefore be ascribed to pecuniary motives. No! it was simply owing to the impossibility of confining more than a certain number of people within a prison of certain dimensions; and though one half of the culprits were always allowed to go at large on bail, yet the county was at length compelled to provide for the accommodation of a greater number of its

erring sons. The new prison was built on the best plan, and fitted with all modern improvements. It contained eight good-sized rooms and a hall. Each of the eight rooms was inhabited by from twenty-five to forty, and the hall by from fifty to eighty prisoners. But, strange to say, the sanitary condition of the inmates of the new prison was as bad as that of the sojourners in the old vaults, and this extraordinary circumstance fully justified the opinion of some of the older assessors, that the frequency and virulence of disease had nothing whatever to do with the locality.

Such was the state of the gaol in which the people of Takshony confined above five hundred prisoners; and it is therefore but natural that Völgyeshy should shudder at the thought of Tengelyi being confined in the same room with the other criminals. Four small rooms were set apart for the reception of prisoners of a better class; and Völgyeshy insisted on his client's right to have one of those rooms.

"What next?" cried Zatonyi, laughing. "Did I ever! A village notary and a private room in a prison! It's too good, you know!"

"I say!" cried Mr. James Bantorny; "Mr. Völgyeshy is right! Every prisoner ought to be locked up by himself, that's what the English call solitary confinement: each cell has got a bed, a wooden chair, a table to do your work on, and a Bible, or a crucifix if you are a Catholic. It's the best plan I ever heard of! I've seen it in England. Did any of you ever read the second report? I mean the Second Report on Prison Discipline?"

"Nonsense! I wish you'd hold your peace with your English tom-fooleries!" said Zatonyi. "We are in Hungary, sir!"

"But I say," rejoined James, "there is not a severer punishment than solitary confinement. Auburn's system, of which I saw the working at Bridewell, is nothing compared to it!"

"Of course! of course!" laughed Zatonyi; "you'll come to advise us to give our prisoners coffee, and sugar, and rice, as I understand people do in America. But now tell me, how can you confine each prisoner by himself, when there are five hundred prisoners and thirty-three wards? There's no room, my dear fellow; that's all."

"And why is there no room?" cried the Austrian captain, passionately.

"Because, instead of hanging people, as our fathers did before us, we go to the expense of locking them up for so many months or years. If I had my way, I'd make room for you! Fifty stripes and the gallows! There's a cure for you; and all the rest is d—d nonsense!"

"I should have no objection to Tengelyi's having a separate room," said the recorder; "but really there is none. The four cells which are set apart for solitary confinement are taken."

"Then there *are* some rooms devoted to that purpose, are there?" cried Mr. James Bantorny, eagerly. "Oh, very well! Did I not always tell you we'd come to imitate England? Solitary confinement is introduced for four prisoners! A beginning being once made, I have no doubt but the rest will follow."

"You are right!" said the recorder, in a mortal fear lest it should be his lot to have a description of the Milbank prison. "But, after all, who can help that we have but four rooms, and that they are all taken?"

"Taken? By whom are they taken?" inquired Mr. James, who took a praiseworthy interest in prisons and their inmates.

"One of them is retained by the baron," said Captain Karvay. "It's now three years since the poor gentleman was sent to prison, and I'll swear to it he's innocent."

"Is he indeed?"

"Nothing more certain!" said the gallant captain. "He's a capital fellow, but a little violent, you know: and it may have happened that he has ordered his servant to beat a man; indeed, I don't know, but perhaps he did it himself. It's what everybody does, you know, and nobody minds it. But the baron had ill luck. Thirty years ago, he knocked one of his servants on the head, and the fellow died in consequence of the blow. A prosecution was commenced and carried on, and while it was being carried on it was all but forgotten; when, as ill luck would have it, the poor baron chanced to get himself into a fresh scrape. He is fond of his garden. The peasants stole his fruit and flowers. So he swore the first whom he could lay his hand on should have forty stripes. It was a vow, you know. And what happened? The

very next morning a young chap was caught stealing cherries. Of course the baron could not think of breaking his vow. The young fellow was not quite ten years of age; he could not stand forty blows, and he died before the thing was fairly over. There was another row, and the county magistrates could not but sentence the baron to be confined for six months; the upper court cancelled the judgment, and gave the poor man four years! Only fancy! and he's seventy years old. It's an atrocious cruelty, you know, to send such a man to prison, and for four years too!"

"Yes, I remember," said James Bantorny. "I heard it talked about when I returned from England. But I thought he had got over it. Some time ago I saw him on his estate."

"Why," replied the recorder, "if we were not to give him a run now and then, his manager would play the devil with his crops and cattle."

"The second room," continued the captain, "is inhabited by an attorney: he was sent here for forgery. And in the third room lives an engineer, who is likewise accused of forging bank-notes."

"And did it ever strike you," asked Mr. James, with great anxiety; "did it ever strike you that solitary confinement exerts a salutary influence on the prisoners?"

"It certainly does. Ever since the baron has lived with us, he's grown fat; he never complains of any thing except of his ill luck at cards, and that he cannot get any wine which is strong enough for him. He's blunted, you know."

"Wine and cards are not fit agents to carry out the purposes of solitary confinement: but, after all, the English too have, of late, relaxed the former rigour of their system. But how do the others go on?"

"The attorney acts as middleman between the borrowers and lenders of money, and the engineer is always writing and sketching. I suppose you saw his last *quodlibet* with the sheriff's portrait, and the autographs of all the magistrates, and with a few bank-notes mixed up with them. It was remarkably well done, especially the notes."

"Capital!" said James. "Occupation is the life of prison discipline. It improves the criminals, you know."

Völgyeshy, who had scarcely kept his impatience within bounds, interrupted this conversation.

"One of the cells is untenanted," said he; "why don't you put Tengelyi in that?"

"Impossible!" said the captain, dryly. "The worshipful magistrates have resolved that one of the rooms must be kept empty, to provide for an emergency."

"But is not this an emergency?" asked Völgyeshy.

"I don't care whether it is or not!" said the captain, twisting his moustache. "All I say is, that the worshipful magistrates have instructed me to keep that room empty. I have my orders, sir. Besides, we cannot put the notary into that room to please anybody; for Lady Rety has used it as a larder these three years, and she keeps the key."

Still Völgyeshy persisted; but the recorder interfered, saying, that the mildness which the sheriff had recommended could not, by any means, be carried to the bursting open and disarranging the larder of the sheriff's wife. And when Völgyeshy told them that, at least, an arrangement might be made by confining two of the three prisoners in one room, and assigning one of their cells to his client, his proposal excited a violent storm of indignation.

"I wish you may get it!" cried Captain Karvay. "I wonder what the baron would say if I were to force somebody upon him! And I don't know what he would say if I were to tell him it was to make room for a village notary."

But the decision of the affair was, as usual, brought about by Mr. Skinner's energy. That great lawyer protested that he could not think of fighting or squabbling for such a self-evident point; that Mr. Völgyeshy had a right to defend the notary as much as he pleased; but that the worshipful magistrates had an equal right not to care for Mr. Völgyeshy or his defence.

The matter being thus settled to the satisfaction of all but the notary's counsel, the recorder said to Karvay: "But you'll put him somewhere where the crowd is not too great!"

"Of course. I'll send him to No. 20.,—as sweet a room as you'd like to see, and with but five people in it. There's the old receiver; a murderer; a man confined for horse-stealing; and two children convicted of arson."

"Very good," said the recorder. "Whatever he wants, he must have; for the sheriff wishes us to treat him kindly."

With a heavy heart did Völgyeshy follow the captain to the hall, where Tengelyi was awaiting the close of the discussion.

"It's rather strange that they should leave me without chains," said the notary, as they descended the steps to the vaults. "I am in the power of these people; and, I assure you, they'll give me a taste of what they can do."

"I'll make an end of it!" cried the advocate. "I'll go and talk to the sheriff. He cannot mean——"

"He does not mean any thing!" said Tengelyi, with bitterness. "It's a pity that you should trouble yourself; not only because you'll lose your labour, but also because, in my position, a man gets blunted to smaller sufferings."

"But the additional straw which——"

"I am no camel, my dear sir.—Stop here. I will not allow you to accompany me farther." And, turning round, the notary followed his gaoler.

Völgyeshy left the place sadly and reluctantly. At some distance from the council-house he met Kalman Kishlaki, who had just come from Tissaret to inquire for Tengelyi. The news of the notary's confinement in the vaults struck young Kishlaki with angry surprise. He hastened to the place where he had left his horse; and, without giving the poor beast time to rest, he rode back to Tissaret to appeal to Akosh, and, through him, to the sheriff.

CHAP. IV.

The last rays of the setting sun shed their brightness on the roofs of Dustbury, when Tengelyi entered his prison. As he paused on the fatal threshold, his heart ached within him, to think that this was his farewell to the free light and air of heaven. The prison was dark. The dirty panes of glass in the windows, the rough paper which, pasted over the frames, supplied the want of them in more than one place, added to strong bars of iron which protected the windows, created a dim twilight even in the midst of the gladness and brightness of day; but to those who entered the place in the afternoon, as Tengelyi did, it appeared as dark as night, until their eyes became accustomed to the darkness. This circumstance, and the murky and fetid air which he breathed, unnerved Tengelyi so much, that he paid no attention to the words of comfort which the turnkey addressed to him. That meritorious functionary, who gloried in the military rank of a corporal, considered every new prisoner in the light of a fresh source of income to himself; and his politeness to the notary was not only unbounded, but even troublesome. He bustled about the prison; selected the most comfortable place for the new comer; deposited the notary's luggage in what he called a snug corner; and exhorted the other prisoners, rather energetically, to be civil and polite to their guest. He asked Tengelyi whether he had any commands for the night. The notary asked for some bedding.

"We'll find it for you," said the corporal. "Of course I must borrow it from some other man; and I don't know what he'll want for it a day; but if you'll pay the damage, we'll find it for you, that's all."

Upon the notary declaring that he was willing to do so, the corporal continued: "We find you every thing for your money. You can have meat, brandy, wine, whatever you like, if you've got some money. I say," added he, in an under tone; "it would make matters pleasant if you were to send for a drop for these chaps. When they get a new companion, they want to drink his health, you know; and these here fellows are dreadfully put out, because they've been disturbed in their places. You ought to make things pleasant, you know; for they *will* be mischievous unless you do."

The notary declared his readiness to "make things pleasant," as the corporal called it.

"I say!" cried that person; "this gentleman is a real gentleman, and nothing but a gentleman. He means to give you wine and brandy to drink his health in; so don't trouble him!"

Saying which, and while several voices expressed their joy, the corporal left the cell and locked the door. Tengelyi sat down on his luggage, and leaning his face on his hand, he gave himself up to his gloomy thoughts; but he had scarcely done so, when a voice from the other side of the place disturbed him.

"Don't be sad, comrade!" croaked the voice. "This cursed cellar is awfully cold. If you're once sad, you're done for!"

The place was so dark that Tengelyi could not distinguish the speaker's form; but the cracked voice, and the gasping and coughing of the man, showed him to be old and decrepit.

"What's the use of being mum?" continued the voice. "Take it easy! People who live together ought to be cronies! Besides, we are much better off here than you or anybody would think—ain't we, boys?"

"Yes! yes!" replied two voices, which evidently proceeded from a man and a boy.

"We're snug and comfortable! There are some drawbacks, you know. My poor Imri here has a whipping on every quarter day, and Pishta is going to lose his head—that's all. It's a bore, you know."

"What the devil makes you talk of it?" said the man's voice, trembling.

"Never you mind! Who knows but you'll get off for all that? Why, you were not even twenty when you did for that Slovak; by the same token, you were a jackass to kill that fellow of all others for the miserable booty of ninepence which you found in his pockets. As for me, I've twice been under sentence of death, and you see I'm none the worse for it. But if they *will* chop your head off, why, it's some comfort to think that they hanged your father before you. Never mind, boy, you're as likely to dance on my grave as I am on yours! When a man has lived up to ninety-three years——"

"Three and ninety years!" sighed the notary, with a shudder.

"Three and ninety years!" continued the old man, with his usual cough. "It's a good old age, you know; and fifty-four years of that time I've lived in gaol, and I'm none the worse for it; if the Lord keeps me alive, they'll discharge me on St. Stephen's day that's coming."

"Fifty-four years?" cried the notary.

"Ay! it's a good long time, ain't it? I've been in gaol for stealing horses and other cattle, and I was a party to a murder. Twice they locked me up for arson, but, d—n me, I had no hand in it in either case; and this time I'm caged because people *will* have it that I was the head man in the Pasht robbery—you know three men happened to be killed on the occasion. Never mind, I'm to be a free man on St. Stephen's day; and, after all, though *I* say it who should not, their worships were not far out when they brought that business home to me!"

"I say, father, you're an out-and-outer!" said the boyish voice. "Come, tell us of the Jew that lost his life!"

"Tell you, indeed, you abortion!" said the old man. "Don't you hear me coughing. Ask Pishta! he'll tell you how he diddled that Slovak."

"D—n Pishta! he doesn't tell stories half so well as you do, father; it gives one an appetite for the business to hear you."

"Never mind, lad! you'll have your share of it, I warrant you!" laughed the old man. "The devil shall take me by ounces, if you don't kill a man before you've got a beard to your chin."

"I'll kill any one! I'll drink blood! Let me once get out of this place, and you'll see!"

"Will you, indeed! You'll get the shakes before you do it, my boy."

"Drat the shakes! I'd wish you to see me at work. I'm not the coward I was when they brought me here. Wasn't I a fine fellow, father? A knife made me *funky*. But your fine stories have set me up. I can't help dreaming of the old Jew whom they hanged in the forest. Let me once get an axe in my hand! I shan't use it for woodcutting, that's all."

"Bravo!" cried the old man. "You're a bold fellow, you are! By the bye, what's the other chap about?"

"He's asleep!"

"Is he? then box his ears, and wake him!"

And turning to Tengelyi, he added, "That boy Imri is a whapper, sir; but the other chap's a scurvy rat!"

A loud wailing cry, and the entreaties of the other child, showed that Imri had obeyed his patron's command; and though the notary was resolved not to enter into any conversation with his fellow-prisoners, that cry of pain overcame his resolution.

"Why don't you let the poor boy sleep?" said he.

"You leave my children alone, sir!" said the old robber, rather fiercely.

"They ought to fight. It does them good, you know. Makes them hard, sir, as hard as nails! That little fellow, Imri, is a whapper, sir. That boy'll do me honour, that boy will; but that sleepy cove in the corner will never come to any thing. I've given them a year's schooling, sir, and that's why I ought to know them."

"You would do better to think of your death-bed, old man. You are driving these children to ruin."

"Ruin be d—d! I'll make men of them. I'll give them reason to be grateful to their worships for locking them up with me. I'll give them a bit of education, you know."

At this moment the turnkey opened the outer gate of the prison, and brought a large lamp, which he placed in the hall, so as to economise its light for three of the cells. The reddish glare of the lamp showed the notary the place to which his misfortune, and the malice of his enemies, had brought him. It was a perfect hell of sweating walls, half-rotten straw, filth, chains, and iron bars. The old prisoner, to whom Tengelyi had spoken, squatted in a corner, with his head leaning on his knees, so as to conceal his features. But in the intervals of the conversation, he raised his head, and showed a countenance on which the crimes of nearly a century had set their mark. His was one of

those faces which, once seen, are always remembered, and the very turnkey felt some awe when he approached him. His white beard, which covered the lower half of his face, the thin long silvery locks which descended to his shoulders, and his sunken eyes and temples, showed that he had reached an age which few men attain, and the sight of which is wont to fill us with respect, or at least with pity. It was not so in the case of this man. The keen look of his eyes under his bushy eyebrows impressed you with a conviction that this patriarch of the prison, though he might want the power, did not lack the will to commit any crime; and when his trembling and shrivelled hands were stretched forth towards you, it was not pity, but a feeling of comfort you had in thinking, that these hands had lost the strength to grasp the dagger or aim the blow.

At the old man's feet lay a boy of fourteen, with a withered and oldish face. His cheeks were pale, his forehead wrinkled, and his eyes dull and glazed, except when the old man called him by his name, or stroked his hair with a trembling hand. It was then that some feeling was expressed in that haggard face. It was then that the boy's eyes gleamed in wild exultation. It was the yearning of the human heart for kindness, and its gratitude even to the depraved. The other boy, whose wailings induced Tengelyi to speak, had crept up to the iron railings of the door, and there he stood gazing at the light of the lamp. When the flame burnt clear and bright, the boy clapped his hands and laughed; but when it burnt low, he said he was sure the lamp was neglected, and that it would go out, as it did the other day.

"If I could but creep through the bars!" sighed he. "If they'd only let me trim it! I'd give it a large wick and plenty of oil; and I'd make it burn with a red flame, and a yellow flame, and a blue flame! Look, look! what a bright jet of fire! Grow! grow little flame! rise to the house-top, and shine over the town and warm it! Oh, see how splendid!" And the poor lad pressed his glowing face to the iron bars. "Oh! if they'd but let me touch it!"

"It's no go, my boy!" cried the young murderer from the furthest corner of the cell; "they won't allow you to set the prison on fire, as you did the other day. Get away from the bars, you little rascal; if you don't, I'll drag you away by the hair!"

"Bravo, Pishta! Give it him!" said the old man; "he all but killed us with his smoke. You see he's mad!"

Pishta got up and seized the boy; but Tengelyi interfered, and asked how the child could have set the prison on fire.

"That boy! There never was such a boy! He used to ask me by the hour for my steel and flint; and when he once had it, there was no getting it away from him. He would strike fire, and when he made the sparks fly he laughed and screamed like mad. And one night he prigged a piece of tinder and lighted it, and put it in the old cove's straw."

"Pull his ears for him, Pishta!" cried the old man. Even Tengelyi's interference would not have saved the lad from being beaten, had not the appearance of the turnkey, with some bottles of wine and brandy, engaged the attention of the prisoners.

"Give us the brandy, Imri; and I say, Pishta, take a bottle and let that nasty toad alone, since the man who treats us wishes to protect him. Let him stare at the flame to the end of time; only look sharp that he doesn't claw your tinder. Will you not take a drop, sir?" added the old man, addressing Tengelyi. The notary's refusal astonished him quite as much as the cleanliness and neatness of his dress and appearance.

"If you don't care, I'm sure *I* don't!" said he; and, turning to his comrades, he added, in a whisper: "Leave him alone, for after all he pays for our brandy. To-morrow morning we'll make him send for some more. He's our cellar, you know! Drink, Imri, my boy! Stick to the brandy. You look rather queer about the eyes; but never mind, you'll get used to it, and you're a whapper for all that."

Thanks to the old man's calculations on his future generosity, Tengelyi was left to his reflections. The prison presented a scene of uproarious hilarity, which, at length subsiding, gave place to the deep and heavy breathing of its drunken inmates, when the door again opened and admitted a man, who, laying a mattress, a pillow, and a blanket at Tengelyi's feet, introduced himself as Gatzi the Vagabond, a former inmate of the cell, though at present a kitchen prisoner^[29] of the recorder's. Having thus informed Mr. Tengelyi of his state and station, both in the world and in the prison of

Dustbury, he produced a small basket with eatables, adding that they were sent by Mr. Völgyeshy, who wished the notary to be patient, for that he was sure to have his own private room next day. "And," added Gatzi, "I'll make you a bed fit for a king to sleep on. I've just made the recorder's bed, and he is particular, you know."

[29] See [Note I](#).

Tengelyi, who had not broken his fast since the previous day, took some meat and bread, and invited the new comer to fall to.

"Thank you!" said Gatzki the Vagabond. "I've eaten as much as I can eat. The recorder had no end of things for supper. I waited at table, and minded my own business, I can assure you. But you don't take any wine! I hope it's good; and it's I myself fetched it at the inn, and the landlord knows he can't do me, for if he did I'd go to the Lion next time, that's all."

"Try it!" said Tengelyi. "As for me, I do not mean to take any."

"I humbly thank you!" said the prisoner, seizing the bottle. "Ah, well-a-day, what wine! Bless me, if you'd give me such wine every day, I'd never wish to leave this place."

"It strikes me you are pretty well reconciled to your captivity."

"Oh I'm far more comfortable than I might be. I've been a servant ever since I was a boy; and now I'm a kitchen-prisoner. Dear me! there's no difference between the two; and when the weather's bad, and I sit by the kitchen-fire thinking how they used to set me to work, both in winter and in summer, it strikes me that I'm better off than I ever was. I've got plenty to eat, a warm jacket, and a few kreutzers now and then for an extra service. The haiduks don't bully me—in short, it's the very place for a poor fellow like myself."

"But what of liberty? Would you not like to be free and unfettered?"

"These chains of mine *are* troublesome; yes, so they are, especially when I've to change my boots. You can't believe how awkward they are at times, though they are lighter than any in the place. But, after all, who knows when they take them off but that I must carry heavier loads to gain my bread? And as for liberty, why you see, sir, in fine weather, in a starry night, I think it would be a nice thing indeed to be racing over the heath with my fellows; but, after all, liberty's very uncomfortable: a man must work for his bread, you know."

The notary sighed.

"Cheer up, sir!" said the Vagabond, in happy unconsciousness of the real cause of the notary's sigh. "Cheer up, sir! To-morrow you'll have your own room; and since Mr. Völgyeshy's your lawyer, I am sure you'll get through the business, however ugly it may be. The devil himself could not live in this hole among a parcel of blackguards! Would you believe it, sir? there isn't a respectable man among the lot!"

"Society's none of the best in the other cells, I dare say," responded the notary, as he settled down for the night.

"Oh, but it is! It was quite a pleasure to be in the cell I once lived in. They were all men of substance, I assure you, sir, and mighty fine stories they told. There was no end of good stories. There was a woman, too—but this is a place to despair in."

"Then, I presume, this is not your own cell?"

"By no means!" said Gatzi the Vagabond, with great pride. "I'm in the habit of sleeping in the recorder's kitchen, or in the yard, and I've only come down here because Mr. Völgyeshy told me to watch lest something might happen to you, sir."

"What can he mean?"

"Why that old fellow there is fit for any thing in a small way. He's been after one of the boys in such a manner that the poor child has got the epileptics."

The notary shuddered.

"Why do they allow him to have the children in his cell?" cried he.

Gatzi the Vagabond, stretching his limbs in his bunda, replied, with great composure:—

"They say the fellow's so desperately wicked, that whenever a man was locked in his cell, he was sure to commit some horrid crime the moment he came out of prison. As for Pishta, they've put him here because the recorder says he has no chance of living. He'll lose his head to a certainty. And the children are small and weak; what harm can they do when they get out?"

"But what are they in prison for?"

"It's a queer thing altogether!" yawned Gatz. "There were no end of fires in the village where they come from, and it was found out that half the children in the place had a hand in it; little toads, you know, of from twelve to fourteen. Mr. Völgyeshy says it's a disease; and I dare say he's right, for one of the boys has been a making fires ever since he came here. But, whether it is a disease or not, it didn't matter. The justice had the other boys and girls soundly whipped; and as for these here two, he sent them to gaol because they're orphans. Fine plants they'll come to be. Good night, sir!"

CHAP. V.

There are moments in the life of every votary of the world's splendour and ambition in which, wearied by the obstacles which obstruct his path, and harassed by the petty failures of a thousand wishes, the more ardent because they are unreasonable, he looks back with something like regret on his past career, while the future fills his soul with fear, mingled with disgust. The rewards of ambition are scanty, its labours great. There is profuseness in the promise, there is a niggardly stinginess in the performance. The hour of doubt and sorrow comes for every one; that hour which makes us feel that "the paltry prize is hardly worth the cost." But the man of real ambition, the man of high purposes, who walks the rugged paths of greatness, not because he wishes that the crowd should stare at him, but to satisfy his own ardent mind; not because he longs for command, but because his mind thirsts for freedom,—such a man, even in his darkest hours, will never look back to the past with that intensity of bitterness which the sheriff felt, when, pacing his room, and reviewing his position, he became convinced of the fact that his past career was as false as his present existence was hollow.

His was not an unfeeling heart. In his younger years he was loving, and zealous for the love of others. Moderately accomplished, with a fine property, and a good face and figure, Rety was formed to pass his life in tranquil happiness. But there was something in his character which blasted the fair hopes of his youth. He was weak and vain, and these two qualities

spoilt his appetite for the good things with which fortune had so amply provided him. Once removed from his natural sphere, his life was a series of bitter disappointments. His attachment to the friends of his early youth sprang from a desire of praise and friendly conversation. When he entered into practical life, he was equally influenced by the views of his family, and by their advice; and though in the outset he was rather a passive than an active sharer of the high plans of his father, his vanity soon caused him to covet those very distinctions which he for a time pretended to disregard. His first move in that career brought him in opposition to Tengelyi, the friend of his youth. Rety was not insensible to the meanness of the transaction. He did all he could to change his father's purpose. He told him that to treat his friend in this manner would for ever undermine his self-respect. But his father protested that all the hopes of his life were bound up in this one desire; his mother added her entreaties; and the neighbours said there never was so young and so gentlemanly a justice in the county. And when they all protested that Tengelyi had not the least chance of carrying the election, Rety wanted the strength to resist, and all that the nobler feelings of his mind effected was to make him ashamed of himself. He was afraid to meet his friend; and he added to his wrongs by breaking off the acquaintance.

Thus launched into public life, accustomed to the frequent glorifications and distinctions of county life, Rety's innate vanity became of gigantic growth; and when he took his father's place of sheriff, when the Cortes of the Takshony county made him the object of their devotion, he exulted in what he considered his pride of place.

Some people accused him of want of principle. They protested that his habitual dignified reserve was the result of a deep scheme, and that his ambition was of the most insatiate and the boldest kind. They were mistaken. The sheriff was satisfied with his position. All he wished was to be the first man, the beloved and exalted man of the county. His was a modest vanity. His mind did not crave for fame, or for a grand sphere of action. He was satisfied to rise gradually and peaceably, and to be surrounded by an admiring circle of friends. The county of Takshony yielded the fullest satisfaction to these wishes, and the sheriff's aspirations were confined to its borders. It never struck him that it is a disgrace for a man to be the favourite of *all* parties. But this tranquil enjoyment of petty honours could only last while there was no one near him to disturb it. His

distinctions ceased to be grateful to him when new wishes were awakened in his heart. The death of his first wife and his second marriage served to disgust him with his repose upon his laurels.

In the choice of his first wife he had followed his heart; his second alliance was caused by ambition. The woman of his choice had no property; but she was a magnate's daughter, and celebrated for her beauty and her talents. To think of the many that would envy him if he, a widower, were to marry the most beautiful woman in the county, made him happy; and that thought was a solace to him, even when he found to his cost that his wife had other qualities besides beauty and talents. Lady Rety felt uncomfortable in her position as the wife of the sheriff of Takshony. Though her father was poor, he had rich relations, many of whom were high in office; and the uninterrupted correspondence in which she stood with some of the greatest men in Hungary, while it dissatisfied her with her present station, caused her to strain every nerve to raise her husband to a higher rank. From the moment she entered his house, she strove to urge Rety on.

And she succeeded. He had hitherto prided himself on being the first man in the county. She told him that was a small matter indeed. She told him the county of Takshony was not worth living for; that the cheers, the exultations of the crowd were caused by his cellar, and not by his merits. The affability which his office imposed upon him as a duty became perfectly odious to Rety's mind, when his wife convinced him that it was a meanness to bow and smile to the Zatonyis, Skinners, and Kishlakis. She spurred him on; she sneered at him and his county politics, until he felt utterly wretched, demoralised, and contemptible. He yielded, and resolved to aim at higher dignities.

That resolution was the curse of his life. A vain man wants the breath to run a long race: vanity must have applause for each word, and praise for each act. Rety knew that the road to higher things is open to those only who league themselves with one party. And when he left his batlike position, when he joined a party for good, he saw to his horror that there were some people who doubted his excellence; the criticisms of his enemies made him miserable. And when he yielded to the impulse of his ruling passion, when he returned to his undecided position between the hostile factions, their shortlived applause was poisoned by the sneers of his wife. The sheriff's

conduct was vacillating and fickle. Nobody could be more painfully conscious of this fact than he himself was.

The part which Lady Rety played in the robbery of Tengelyi's papers was divulged by Viola's confession, and eagerly commented on by the gossips of the county. Those who credited the robber's statement believed too that the sheriff had acted in concert with his wife. But this opinion was erroneous. The sheriff knew nothing of Lady Rety's plans; and, though sensible of the importance of the papers which Vandory possessed, he was too honest, and, indeed, too weak, to consent to any thing like a crime. But when the robbery had been perpetrated, and when his wife informed him of Viola's confession, he asked her with horror whether the robber had spoken the truth. "He has!" replied she, with that boldness which experience told her was wont to awe him into submission. "I have done the thing I am accused of. But why did I do it? It was for the benefit of your family, name, and interests. Will you accuse me? Can you think of producing me in a court of justice? Will you dare to cast dishonour upon your own name? If you do, you effect your own ruin, without convincing any one of your innocence. They accuse you more than me. If you turn against me they will say, it is not because you are innocent, but because you are a knave. The only thing you *can* do is, to hush the matter up."

Rety was miserable. But there was no alternative; and he chose to become an accessory after the fact. Mr. Catspaw's assassination increased the difficulties of his position. Some papers, of which the property was traced to Tengelyi, were found in Mr. Catspaw's room. So long as Tengelyi was thought to be the murderer, the circumstance of the papers being found might be explained by asserting that the notary had lost them when he committed the crime; but if he could prove his innocence, were not those papers likely to increase the suspicions which the sheriff felt were entertained against him? And was not Tengelyi likely to rest his defence on those very suspicions?

Rety, as is usually the case with weak men, was by no means fond of the person who reigned over him; the coldness of years ripened into hate. He was estranged from his old friends; scorned, and perhaps hated, by his own children; he was exposed to danger and infamy, and all for her sake. He could not pardon his own weakness, but he hated her the more cordially; a

feeling which she returned with interest. This distracting position was still heightened by the contents of a letter which the sheriff took up at times, and threw down again, to stamp the floor and ponder on certain points which seemed to move his feelings. That letter, which was in Vandory's handwriting, was to the following purpose:—

"My dear Brother,

"You know that I am not in the habit of using this name too often. I loved it once; but I have dropped it since I saw that it would hurt your interests. I am your brother, but I have never claimed other rights than those your heart gave me; and if I now remind you of the bonds which unite us, it is to recall you from the path which leads to certain ruin.

"Samuel, you are on the brink of an abyss. The very next step you take will decide your fate for ever. If you proceed in your career, you are given over to evil. Your honour, now jeopardised, is irretrievably lost. There are crimes which defy all repentance. Consider, my brother, whether worldly honours and riches can repay you for peace on earth and for the loss of your hopes of heaven!

"There was a time in which you professed friendship for Tengelyi; but let that pass. You thought proper to sacrifice his friendship to the cravings of your ambition. I leave it to your heart to decide whether you were right or wrong. But even if Tengelyi had never been your friend, you ought to feel for his situation. You are convinced of his innocence; you know the circumstances to which he fell a victim; you know the authors of his misfortunes; and you know those who accuse him because they wish to hide their own misdeeds. Will you suffer him to fall a prey to his enemies? Will you plunge his family in misery and ruin? I never thought that I should have to raise my voice in a case in which duty speaks so clearly. I was convinced that you, who bear so great a share in Tengelyi's misfortunes, would strain every nerve to save him. I was mistaken. The entreaties of your own son could not prevail upon you even to alleviate the sorrows of this ruined family. All that is now left to me is to remind you of your promise to me; and, though reluctantly, I must also remind you of the obligations which, according to your own words, you are under to me.

"Yes, Samuel; a review of the past will convince you that I was always a faithful brother to you: that, for your sake, I sacrificed what mankind prize as most high and valuable; and that I have a claim upon your gratitude.

"I was a child when my mother died, but I was old enough to become conscious of the change in my life when our father married for the second time. Your mother was the bane of my childhood. Before she was a mother she hated me, because I reminded her of what she longed for; and when you were born, she feared lest I should share our father's property with you. Everybody pitied me, and there were some people who wished me to hate you. But I loved you. I loved to embrace you; to hear you speak, and to teach you my childish games. I was neglected, hated, and persecuted; but I had a brother, and I hoped to be happy when he came to be a man. My childhood was so utterly wretched, that my hopes had nothing but the distant future, and the older I grew, the more insupportable became my condition. You say my father loved me. He never showed it. The slightest mark of kindness from him would have prevented me from quitting his roof as I did. My departure from home was covered by a distant relation of my mother's, who found the means and the passports for a journey to a foreign country. He supported me during the first years of my voluntary exile. At the end of three years he died. Death surprised him with such awful rapidity, that no time was left to inform his friends of my whereabouts, or to provide for me in his will, and I found myself, at the commencement of my studies at Göttingen, thrown upon my own resources, and, though not friendless on foreign soil, I felt homesick. But I had no faith in my father's affection, and I conquered that feeling. My poverty could not shake my resolution. I worked for my living, and was happy and proud that I could support myself. I lived thus for more than ten years. My longings for my country passed away. I all but forgot my mother's language; and when I passed my examinations and took my degrees, I felt as a native of the foreign land in which I lived. It was at this time I saw your name in the lists of the University of Heidelberg. I left Göttingen, and hastened to meet you.

"I write this, not to reproach you. If I was useful to you, your presence was a source of happiness to me. What I wish is, to remind you of those happy days, of those days when there were no secrets between us; when it was as unlikely that I should ask for any thing that could give you pain, as that you should refuse to comply with any of my requests.

"No one knew of our consanguinity, and many people wondered at our friendship; I was so much older than you. Even Tengelyi could never suspect that we were brothers. We agreed to return together to my father's house, and to ask his pardon for my rash and injudicious step.

"Heaven would have it otherwise. You knew the woman whose love caused me to forget all other ties, and to make her country mine. I knew my father was proud. I knew that my chosen wife would be a source of annoyance and sorrow to him. He could never be reconciled to the marriage of his son with the daughter of an artisan; and you, too, advised me to take the place which at that time was offered to me, and to remain in Germany.

"My happiness was of short duration. My wife died a few months after your departure from Heidelberg. I felt very lonely. You were far away. Tengelyi had left the place before you. My soul was sorrowful, even unto death. I resolved to turn my steps homewards, but I did not inform you of my resolution.

"I wished to see my father and his house before introducing myself to him as his son. What I saw convinced me that it was better to remain unknown as long as my father lived. My name and my claims to the property were likely to inflame your mother's hate against me, and the prodigal's return would have embittered the last days of his father. We resolved to keep the secret between us; and when your recommendation caused me to be appointed to the curacy of Tissaret, I had no reason to desire a change of my position. I lived in the house as one of the family. My father, led by instinct, loved me like a son, and I was permitted to cheer his declining age. Your mother died, and my father's death followed soon afterwards. In his last hour I knelt by his bed, told him who I was, and asked his pardon. He wept. He embraced and blessed me as his son. You were present, he blessed you too, and entreated us to be of one mind, and to love one another.

"After my father's death there was no obstacle to my assuming my real name; but while I stayed in your house a variety of circumstances had come to my knowledge which prevented my taking that step. Our father was in debt, and you and your wife had, for some years, lived on your expectations. To claim my share of the property was to condemn you to a life of privations and regret; and to assume my name and resign my heritage

was ungenerous. It was burdening you with an obligation in the eyes of the world. Besides, I was fond of my new vocation, and I felt that the position my name would give me was likely to interfere with my duties as a clergyman. I entreated you not to reveal the secret of my birth to the world. As it was, I could live with you, and love you as a brother, and that was all I wanted.

"The world would say that I sacrificed much to you. I sacrificed a name of which you yourself are proud, a fine property, and an enviable position; for though I am not eager for honours, I have often felt that my power of doing good to my fellow creatures would be greater if I had not resigned the advantages of my birth. Do not force me to believe that I made that sacrifice for one who is unworthy of it!

"Tengelyi's fate is in your hands. It is in your power to save him, and to restore his honour and reputation to their pristine purity. I need not tell you how you can do it. But, my brother, if you ever loved me, if our father's last prayer is indeed sacred to you, and unless you wish me to curse the moment in which my love for you induced me to sacrifice my interests for your sake,—do, for your children's sake, for the sake of your hopes of heaven, what your duty and conscience command you to do.

"BALTHASAR."

The sheriff had just read the last lines of this letter, when the door opened. His brother stood before him.

When Kalman returned from Dustbury, he went to Vandory, and gave him an account of Tengelyi's situation; on hearing which, the curate hastened to the sheriff, to intercede in behalf of his friend.

Vandory's arrival took the sheriff by surprise. He was not prepared for an interview with his brother; and, evidently confused, he held out his hand. But the curate did not seize it. His face had lost its habitually mild expression. It was solemn and severe.

"Balthasar!" said the sheriff, sadly; "will you not take the hand which I hold out to you?"

"Samuel!" replied the curate; "why should our hands meet, since our hearts are far asunder?"

The sheriff threw himself back in his chair.

"Alas!" cried he; "and you, too, repulse me! you, too, condemn me, Balthasar! you, whose heart is so full of love and pity!"

Vandory was deeply moved by the sorrow which his brother's features expressed.

"I condemn no one," said he. "Believe me, I would not have come to you if I were not convinced that your good natural disposition would triumph over these guilty passions. But the least delay is fatal. Tengelyi is in prison——"

"Don't name him!" cried Rety, violently. "Would to God I had never heard his name!"

"You are indeed far gone," sighed Vandory. "To think that, instead of repenting, you should hate the man whose pardon you ought to implore!"

"Implore his pardon? his?" cried Rety. "No! he is the spoiler, the destroyer! Is it not he who caused my only son to leave my house, cursing fate which made him son to *me*? Is it not he who robs me of the affections of the last person that loved me? Tell me of one of my sufferings which may not be traced to him!"

"And who is the cause of all this?"

The sheriff was silent.

"Whose fault is it," continued Vandory, with great earnestness, "that the bonds of friendship which once united you are now torn asunder? Who was the persecutor? who the destroyer?"

The sheriff would have spoken, but Vandory proceeded:—

"Tengelyi is in prison. He is locked up with murderers and thieves; and you, the sheriff of the county, use your power and influence only to wreak your vengeance upon him, and to add to his sufferings. Who, I ask, is the injured party?"

"I am not the cause of the notary's sufferings," said the sheriff, pettishly. "I am convinced of his innocence; but I cannot stay the arm of justice, even though it strike in a wrong direction."

"Samuel!" replied the curate, sadly, "that excuse will exculpate you in the eyes of man; but how will you stand with it before God, when He calls you to account for Tengelyi's sufferings?"

"I've done all I could do!" retorted Rety. "I offered to bail him. I implored Skinner, and I instructed Kenihazy, to treat the notary with the greatest mildness. Can you, in reason, ask me to do more?"

"I, as your brother, can indeed ask you to do more! I sacrificed everything to you——"

The sheriff looked confused and ashamed.

"Fear nothing," said the curate, with a sneer (the first he ever was guilty of): "nobody can hear my words. You need not be ashamed to be reminded of what, it seems, you have forgotten; namely, that it is your brother who speaks to you."

Rety made an unsuccessful attempt to speak; but Vandory continued:—

"Yes; I am your brother. The papers by which I could have proved my birth are lost. A court of justice might, perhaps, refuse to hear me, if I were to claim my name and property; but you know the truth of what I say, and you cannot deny that I treated you as a brother ought to do."

"My gratitude——" muttered Rety.

"Where is it? Where is the brotherly affection which was to indemnify me for the loss of wealth; that is to say, of power and influence to do good? This is the fulfilment of your voluntary promise never to refuse any request of mine! I confided in those promises; for I was convinced that I should never abuse my power. We were happy as it was; and I was satisfied with my position, which gave me an opportunity to improve the condition of the peasantry. Even our former intimacy with Tengelyi was on the point of being restored. He was willing to forgive and to forget. Your children were a new bond of union between you. Whose fault was it that those happy days

are gone? I will not accuse you; but I will ask you, when were you happier, —then, or now? You sigh? Oh, Samuel! why did you not listen to the still small voice within you, which protested against the first step on that fatal path? I will not talk of the heartlessness with which you treated Tengelyi. Akosh loved Vilma. You knew it was my dearest wish that these children should not be separated; but your pride revolted at the thought that your son should marry the daughter of a notary; and Tengelyi, the friend of your youth, was ordered to leave your house!"

"I knew nothing of my wife's doings!" cried the sheriff. "I would never have consented to her treating the notary as she did."

"Be it so!" continued Vandory, warmly, and even passionately. "I will not argue with you whether that assertion agrees with what you did afterwards. As the world goes, a father has a right to dictate to his children; I will not quarrel with you because you abused that right. But the abstraction of my documents——"

The sheriff started up. "All is lost!" cried he. "My own brother condemns me as a villain!"

"God sees my heart!" replied Vandory. "When the first attempt at a robbery was made in my house, I would have spurned such a suspicion. I made a voluntary resignation of my birthright. How, then, could I suspect that any one should desire to rob me of the documents by which I could prove my rights? That I had no suspicion against you, is shown by my informing you and your wife of my intention to commit those papers to Tengelyi's keeping. But when the robber followed them even to my friend's house; when Viola accused the attorney and your wife as guilty of the theft; when I considered that no one besides you could take an interest in those papers——"

Vandory stopped before he pronounced his conclusion. The sheriff covered his face with his hands.

"I am not naturally prone to suspect any one," continued the curate; "and to suspect you, of all men, gives me unspeakable grief. If you can explain it, if you can exculpate yourself,—I will thank God, and ask your forgiveness, even on my knees!"

Rety rose from his chair. His heart was full, to overflowing. Not to speak was death to him. So he told his brother the share which his wife had taken in the robbery, and of her having informed him of it after the deed was done. "You may despise me," continued he; "you may hate me; but I could not, I cannot, act otherwise than I did. My evil genius induced me to marry that beldame. I was blinded by her family, her beauty, and by the praises of people who called her the queen of the county. I knew that she married me for my fortune; and I never mentioned your existence to her. Afterwards, I waited for a good opportunity to break the matter to her; until circumstances forced me to an explanation. She discovered my son's attachment to Vilma, and insisted on my sending Tengelyi, or, rather, Vilma, out of the house. As for me, I admit that I would have liked it better if Akosh had chosen another woman for his wife; but, partly for your sake, and partly because I hoped that he would change his mind, I refused to obey Lady Rety's commands. She acted for herself; and, when I reproached her, she sneered at me for being in fear of a curate and a poor notary. It was then I told her of your real position, and of the power you had of depriving me of one half of my estates. The wretched woman would not be dependent on your generosity: she availed herself of the attorney's help to deprive you of the papers by which you could prove your claims."

"My poor Samuel!" cried Vandory.

"Oh, my brother!" continued the sheriff; "neither you nor any one else can conceive the agony of my heart! My children turn away from me; my reputation is gone; and you yourself consider me as the partisan of robbers and thieves!"

Vandory would have spoken; but the sheriff continued, violently:—

"Don't speak! don't try to comfort me! I *am* the accomplice of robbers; and my very position compels me to hush down and cloak this villanous business!"

"The bonds which unite you to your wife are sacred," said the curate. "You are not allowed to abandon her to her fate; and, fallen though she is, it is your duty to defend her. But you must not sin for her. You may, indeed, you ought to, sacrifice yourself for her sake; but it is sinful to endanger the life

of a guiltless man merely to shield that guilty woman from the punishment she so richly deserves!"

"I understand you," replied the sheriff; "nor would I hesitate for one moment, if I could save Tengelyi by sacrificing my wife. I hate her! But what is the use of accusing her, and of dishonouring the name of my children? The more clearly it is proved that the attorney robbed Tengelyi of his papers, and that my wife was accessory to the act, the more convincing will be the proof of his seeming guilt."

Vandory acknowledged the justness of this view of the case. He admitted that the sheriff was unable to effect Tengelyi's liberation; and he therefore entreated him to protect the notary against the petty persecutions of his enemies. The sheriff was amazed when Vandory informed him of the manner in which the people at Dustbury had thought proper to execute his orders respecting Tengelyi. He promised to go to Dustbury early the next morning, and to provide for the prisoner's comforts.

"Do, Samuel," said Vandory; "do your best for poor Tengelyi, and leave it to God to do the rest."

The sheriff sighed.

"Be of good cheer!" continued the curate: "let us hope for better days."

"Brother!" said Rety, sadly; "the man whose conscience accuses him, knows neither hope nor comfort."

CHAP. VI.

A few days after Tengelyi's incarceration, Mrs. Ershebet removed to Dustbury, where she hired a small house. The wretched woman was a prey to the deepest misery. She was proud of her husband. She was accustomed to hear his praises wherever she went. It was generally admitted that Tengelyi was the most honest and upright man in the county; and that man, the pride of her heart, and her idol, was in gaol! He was accused of a crime:

the dangers which threatened him made her shudder. Ershebet was a strong-minded woman. She stood by Tengelyi in all the reverses and vicissitudes of his life. But the last blow was more than she could bear. Her distress made her careless of everything; even her daughter's society and conversation failed to cheer her, and her former friends were convinced that she could not survive Tengelyi's sentence.

Vilma, on the other hand, rose with the storm. She was convinced of her father's innocence, and firm in her hopes of better days. Her sorrow was of the keenest, but it was tempered by her conviction that it was her duty to cheer her mother, and by her love for Akosh, whose devotion kept pace with the unfortunate events which threatened for ever to destroy the honour and prosperity of the notary's family. The sheriff was now no longer opposed to the wishes of his son; indeed, there was nothing to prevent the perfect happiness of the young couple, except their anxiety concerning Tengelyi's fate.

The notary himself bore the blows of misfortune with his usual sturdy perseverance, but, we regret to say, with more than his usual bitterness. Neither Völgyeshy's advice, nor the entreaties of Akosh and Vandory, could induce him to see the sheriff. He refused to avail himself even of the legal remedies which were at his command, unless they agreed with his ideas of what the law ought to be; and Völgyeshy's complaints that his conduct was likely to injure the defence, he met with dogged indifference.

"I am innocent!" was his usual plea on such occasions. "My innocence will sooner or later come to light; and although I am forced to prove that I am not guilty, I will at least avoid guilty means in doing so."

This was the state of affairs during winter; nor was it changed in the beginning of spring. The prisoner passed that time surrounded by all the comforts, and even luxuries, which the ingenuity of the sheriff could devise, and which the nature of a gaol would admit of. His little room was comfortably furnished; he was not without society, and among those who visited him, no one was more assiduous or more eager to effect a formal reconciliation between the notary and the sheriff, than Völgyeshy the advocate. It is in the midst of one of their discussions on the manner and time of the defence, that we find them on a fine day in March.

"Consider, my friend," said Völgyeshy; "there can be no humiliation in your speaking a few kind words to the sheriff: nor is there any meanness in writing one or two simple lines to the lord-lieutenant, entreating him to adjourn your case."

"But I tell you it is a humiliation!" retorted the notary. "I will not condescend to beg for mercy. I am innocent. If they condemn me, it is their affair, not mine!"

"But you need not beg for mercy," replied the advocate, with a sigh. "All I desire is, that you should treat people with kindness and civility; that you should not insult them when they show you sympathy, as you did the other day when Kriver and the attorney-general called on you."

"And what is the use of this sympathy? Do these people think me guiltless? No! they came because the lord-lieutenant mentioned my name with kindness? Am I to herd with beings like these?"

"My dear sir!" entreated the advocate, "consider the nature of the charge; pray consider the consequences of your conduct!"

"The consequences? Oh, I am aware that my conduct leads me to the scaffold!" replied the notary, passionately. "Let them do their worst; and may my blood be on their heads! I am not their first victim, nor indeed the last."

"And your family!" cried Völgyeshy. "What is to become of your wife and children?"

Tengelyi covered his face and wept. At last he said, with a trembling voice:

"What is it you wish me to do? Am I to kneel to Skinner? am I to bribe false witnesses? or have recourse to some equally infamous means? I know that these things have more effect in our courts than the musty legal remedies which they taught us at college. We adopt a homœopathic treatment to cure wickedness. If you are accused of a crime, you may save yourself by committing a crime. Our Dustbury magistrates wish to prove their oriental descent, by extorting presents from the suitors in their courts. I know it all; but how can you ask me to condescend to sue and to bribe?"

"My dear friend, you are unreasonable!" said Völgyeshy, seizing the notary's hand.

"Unreasonable!" cried Tengelyi. "I, of all men, have cause to be so. I commenced life as an enthusiast, I grant it; but were its lessons lost upon me? No! All I have latterly wished for was, to be a useful and humble member of the community, and to end my life in peace. But even this is denied me. My wife is not likely to survive my misfortune; my daughter's grief, though less avowed, is not less acute. My son has to enter life with a dishonoured name: and after all this, I am expected to abandon my principles! Is it not enough to drive a man mad?"

"No!" replied Völgyeshy; "for no honest man was ever in so distressing a situation, and without his own fault too. I admit all you complain of; but what I say is, that there is no humiliation in your asking the lord-lieutenant and Rety to adjourn the decision in your case."

The notary shook his head, and replied,—

"My asking them to delay the sentence, what is it but a confession that I doubt the justice of my own cause?"

"By no means. It is a proof that you do not consider the case ripe for decision. We cannot but admit, as it stands at present, that all the evidence is against us. Public opinion is in your favour. Nobody doubts your innocence, though there is no evidence we can adduce in support of our statement of the case. If you were to be judged by a jury of your countrymen, I am sure I would not hesitate to appeal to their verdict. But the judges cannot travel out of the record, and they cannot but decide against us. Time may do a great deal for us. That Jew is now dying of typhus fever; who knows but he may recover, and our promises may induce him to confess the truth? Perhaps we may find out Viola, and defeat the accusation by producing him; perhaps some circumstance may turn up——"

Here the advocate's argument was interrupted by Janosh, the hussar, who had quietly entered the room and listened to the latter part of the conversation. Yielding to the entreaties of his son, the sheriff had consented to let Janosh wait upon the notary in prison; a duty which the old trooper

fulfilled with so much alacrity, that even Tengelyi was moved by the devotion and kindness of his new servant.

"I say, sir," said the hussar, approaching the table at which Völgyeshy and the notary were seated, "is it a fact that they cannot injure you if we manage to produce Viola?"

"Certainly!" replied Völgyeshy; "if Viola could be induced to appear and to confess that it was he who killed the attorney, there can be no doubt but that the decision would be in our favour."

"Then the great thing is to find him?" said the hussar.

"We have tried it in vain," replied the advocate, with a sigh. "We have sent orders to all the justices, we have written to all the counties, but nothing has come of it."

"Well, sir, no wonder he dodged you," said Janosh, shaking his head; "who the deuce thinks of sending a drummer to catch rats? Viola won't leave his address at a justice's, I promise you."

"But what are we to do? Do you know of any other way?"

"Of course I do! it's the only way to do the thing. If you hunt after your watch, some thief will tell you where it was last heard of. If you wish to find Viola, you had better speak to some of his cronies."

"We have asked the Liptaka, and Peti the gipsy?" replied the lawyer.

"Well, as far as the gipsy is concerned," said the hussar, "I'll be bound that cunning creature could give us a hint or two, if he thought proper. But who knows whether he was not a party to the murder of the attorney? Besides, he is Viola's sworn brother, and thinks, perhaps, they would hang him, if they had him fast and sure."

"As for the hanging part of the business," said Völgyeshy, "Peti knows very well that Viola is not to be tried by court-martial. A common court will not condemn him to capital punishment, since he is not guilty of any other great crime besides the assassination of Catspaw; and, especially, since he has once gone through his agonies."[\[30\]](#)

[30] See [Note II](#).

"That's what the sheriff may say; but Peti won't believe it. A gallows is an ugly concern to joke with. But there are others—"

"Who?" asked Völgyeshy.

"Why, sir, any of the robbers that are now in gaol. An honest man does not know his fellow, but a robber does. For instance, there is Gatz, sir, the Vagabond; give him leave of absence for two or three weeks. I will put on a peasant's dress and go with him, and I'll promise you I'll keep him safe. Now, I tell you, if he and I don't bring Viola to this place! you may call me a liar, even when I tell you that we beat the French at Aspern."

Völgyeshy, who was aware of the uninterrupted correspondence in which the captive robbers in Hungary stand with their comrades out of doors, volunteered at once to solicit the dismissal from custody of Gatz the Vagabond, and he proposed that the two men should start early the next morning.

"We had better go this very night," said the hussar. "If any of the robbers see me leave this place with the Vagabond, I'll warrant you there's not a robber in the county but will know of it before to-morrow's sunset. They'll mistake him for a spy, and if they do, we may go whistling after Viola."

Völgyeshy was struck with the truth of this remark.

"And besides, sir!" continued Janosh, confusedly. "I beg you a thousand pardons; and I'm sure I'll do any thing I can for Mr. Tengelyi—any thing I'll do to get him out of this confounded place; but Viola is after all a fellow-creature, and his wife is the best woman I ever set my eyes on, and his children are so pretty,—they've called me Batshi, and plucked my moustache! You see, sir, it wouldn't be decent in me to twist a rope to hang their father with. Punish him as you please, sir; but as for death—you see it's a very queer thing!"

Völgyeshy repeated his former statements and promises; and the old soldier, who was well pleased with them, stroked his moustache, saying,

"Well, if that's the case, sir; and why shouldn't it be? especially since the sheriff has said so, and after all he is the man to say who is to be hanged; since that's the case, I'll be a rascal if I don't bring Viola along with me. It's much better for him, poor fellow, to get his punishment, and have done with it; and as for his wife and children, I'll be bound Mr. Tengelyi will do what is right by them. Let Gatzki go with me, and you'll see what we'll do. It's not the first time I've left my quarters with a queerish order; still no one can say but that I've always come back with credit to myself. The worst thing a man can do is to despair!"

CHAP. VII.

The month of March is notoriously fatal to the inmates of the Hungarian prisons. The typhus fever increases in that month to a fearful violence. It is but natural that the year of Tengelyi's captivity should have exhibited the average amount of disease and mortality in the Dustbury county gaol. Nothing, indeed, appeared more natural to the Dustbury people. They looked upon the sufferings of their fellow-creatures with so much indifference that a stoic might have envied them; and as for the prison coffin, which was put in requisition more than once a day, it was to them a matter of light and fanciful conversation.

The medical inspector of the county of Takshony—and here our readers must pardon us a short digression on the merits of the Hungarian medicinal police, for the man who filled that important office, and whom we shall take the liberty of most particularly introducing to the public, had devoted his whole life to the elucidation and exemplification of that great official problem, how far it is safe, and even profitable, to neglect and disobey the orders of superior boards and committees?

It is now some years since a terrible disease prevailed among the cattle throughout the country. Pursuant to an order of the High Court, all communication was interdicted between the counties; the county of Takshony too was placed in a state of unenviable isolation, and a rigorous

prohibition was published against the importation of foreign (that is to say, not Takshony) cattle.

And what was the consequence? One of the justices having bought some cattle in a neighbouring county, insisted on taking them to his estate. The sanitary commissioner and the border guards protested; and the justice, who was accustomed to have his oxen and sheep in the fields of his neighbours, was now precluded from taking them to his own fields. But a state of things which involved so gross a violation of the laws of property, could not possibly last. For the medical commissioner of the county remarked with great fairness, that the order of the High Court stated expressly that no *foreign* cattle should be allowed to enter the county, but that it was perfectly ridiculous to suppose that any oxen belonging to a county magistrate could be *foreign* cattle. Some few months after this lucid decision, which, strange to say, did *not* obtain the unqualified approval of the High Court, this meritorious servant of the public proposed to an assembly of magistrates to prohibit the transit of cattle for the term of one month, since it was proved by the experience of years that the disease among the cattle had always broken out in this particular month, just about the time of the Dustbury cattle market. There was not at the time any disease among the cattle in the neighbouring counties; but one thing is certain, viz., that the landed proprietors of Takshony realised enormous sums by the sale of their oxen. A variety of other measures might be adduced to prove that the medical commissioner was fully deserving of the high degree of popularity which he enjoyed. It now remains to be told how it happened that this deserving patriot was elected to the important post of a county commissioner of public health.

When his predecessor, the late commissioner, died,—the worthy man was notorious for killing pheasants and larks with the same sized shot, and drugging all his patients with the same modicum of pills,—the lord-lieutenant and the Estates of Takshony had a tussle on the appointment of a medical officer. The lord-lieutenant promised the place to a distinguished young man of excellent conservative principles. He was a Roman Catholic; he had a diploma; he had been tutor to a magnate, and he had written several poems and charades. But the Estates of the county of Takshony laughed at his Excellency's recommendation, and, insisting on their right of election, they chose another man, and one of whose abilities the county was

utterly ignorant. But it was said of him that he knew French, English, and the breeding of silkworms, that he was an honorary member of sundry foreign agricultural societies, that he had studied medicine and law at the university of Sharosh-Patak, and that he was a Calvinist. But the election was annulled; the county was divided into two hostile camps, and the contest lasted above a twelvemonth, when the rival candidates were forced to withdraw from the field, and the hostile factions united in favour of a third party; the reigning medical commissioner of the county. He was a Lutheran, and as such he was agreeable to his Excellency, who hated the Calvinists, and to the Estates, who bore an equal hate to the Romanists. The successful candidate was not of the conservative nor indeed of any other party; he had never been a tutor; he was ignorant of foreign languages, and of the breeding of silkworms; he was not a member of any learned society either at home or abroad; and he was therefore agreeable to all parties, and (as Kriver said) a born angel of peace for the county of Takshony.

Dr. Letemdy, the medical commissioner, was a great man. He treated every one of his patients according to the very system which that individual patient preferred to all others. This accommodating temper of his was, like virtue, its own reward. If the patients had the worst of it, the fault was their own; and besides, Dr. Letemdy had a number of champions on his side. The homœopathists said it served the patient right, for the fool insisted on being treated allopathically; and when the patient refused to be bled, the allopathists raved about the fatal theories of the homœopathists. Add to this that he advised the old bachelors to marry and the young ladies to dance; that he sent the married ladies to the watering-places, and that he indulged his male patients with tobacco, gulyashus, tarhonya, and wine; and it is but natural that Dr. Letemdy was held in great veneration, not only in his own county, but also in the districts and "demesnes that there adjacent lay."

An epidemic disease is the touchstone of a physician. It is here he has to prove not only his skill, but also his courage, his devotion, his philanthropy. The typhus fever which raged in the Dustbury gaol gave Dr. Letemdy a favourable opportunity to display his brilliant qualities; and candour compels us to state that he did display them to a most dazzling extent; for, considering that the great duty of a medical commissioner consists in preventing the extension of an infectious disease, and considering that he was in daily communication with the first families of Dustbury: he made an

heroic sacrifice of his feelings, as a physician and a man of science, by never once crossing the threshold of the infected place. The prisoners were thus left to their fate and to Nature; the druggist's bill was remarkably moderate, and Dr. Letemdy could not, in justice, be accused of having adopted a false treatment in the case of any of the many deaths which were daily reported to him, and which he, excellent man! entered, though with a bleeding heart, on the register.

The majority of the Dustbury prisoners were not generally discontented with their involuntary place of residence. Cheerful society, wine, brandy, gambling, singing and laughing, indemnified them, especially in winter, for the pleasures of liberty; and, indeed, there were some of the noble and ignoble inmates of the place who strove hard in autumn, and would not be satisfied till they were safely housed in what they considered their winter quarters.

But in the month of March of the year 18— the Dustbury gaol was a place of howling and gnashing of teeth.

There was a sick ward in the prison. The Estates of the county, obedient to superior orders, had one room and six beds prepared for the sick among the prisoners. And although there were only five hundred people in the gaol, it so happened that the sick ward was always full; nor was it possible, during the prevalence of the epidemic, to separate the infected from those who were in health; each remained on the spot where the hand of disease struck him. The upper rooms had from thirty to eighty prisoners, and from two to three corpses daily. Many of the vaults were absolutely emptied by the death of their inhabitants.

The prisoners were moody and desponding. Even the boldest shrunk from the sight of death in its ghastliest form; and the very haiduks who did the service of the prison, spoke of the scenes which they witnessed with pity and even with tears. The cells which once resounded with riotous laughter and wild songs, were now silent as the grave; but when night came on, the slow measure and the lugubrious sound of hymns was heard to rise from the loopholes which led to the streets. The sound was like the groaning of a vast multitude. And at night, too, the sentinel on his lonely post listened to the prayers of the prisoners, to the confused and earnest murmur which rose on

the air and was hushed in silence. The prisoners conversed but little, and always in whispers. When the haiduks entered the gaol in the morning, to take them to their usual exercise in the yard, they found the wretches clinging to the iron railings of their cells, each crying out and entreating them to open his cell first, that he might not lose any of the precious moments of air and sunshine. Some who were struggling with the disease, and who could not stand or walk, crept up the steps and lay on the pavement of the yard, happy to breathe the fresh air of the morning and to see the bright sun before they died.

Among the prisoners in the cell next to the steps were two brothers. They were herdsmen, and the sons of honest parents. An hour of youthful frolic had brought them into the hands of the justice, and from thence to gaol. The younger of the two, a mere child, was the first to fall ill, and his brother tended him as a mother would her infant. It was he who had persuaded his younger brother to do the deed for which they were imprisoned; and was he to see that brother die? He implored the haiduks to send for a doctor, or to procure his brother's release. He said he would willingly suffer the punishment for both. "Let them keep me here two years instead of one! let them keep me here for ever, but let that poor boy go! He is innocent! I told him to do it!" cried he, wringing his hands, and entreating the corporal of the haiduks. Even the eyes of that hardened man filled with tears as he replied, that the entreaties of the prisoner were of no avail, the county having resolved to confine all the inmates of the prison to its precincts to prevent the disease from spreading. As the days wore on, and when there was no hope of the lad's recovery, the unfortunate young man spoke to no one. At the hour of recreation he seized his brother's wasted form, took him to the yard, sat down by his side, and taking the poor boy's head in his arms, remained quietly sitting there during the short half-hour which they were allowed to stay out. One day a haiduk said to him: "Why do you drag him about with you? Don't you see he is dead?" The prisoner shuddered. He looked at the body which lay by his side. He kissed it—but there was no breath! He put his hand to its heart: it had ceased to beat! He stared into its eyes, they were fixed and glazed! its limbs were stiff and cold. "He is dead!" cried the prisoner, with a broken voice, as he reeled and fell. They took him back to the cell, but he never regained his consciousness. He, too, fell a victim to the epidemic.

In a cell adjoining his there was a man who moved even his fellow-prisoners to compassion. He had passed ten years in gaol: his hair was turning grey; his body had lost its former strength; but the term of his punishment was all but over. Only a few weeks were wanting to the day to which he looked for his return to the world, broken in health, but rid of his chains. Nobody expected him. Nobody was to receive him and greet him; but he was to be free! That one thought made up for all he had suffered. When the fever broke out in the gaol, he grew anxious and restless: he asked his fellow-prisoners how they did? he asked the haiduks whether there were any deaths? For the first time in his life, he was afraid of death; for the first time in his life, he had an earnest hope. Two days before his liberation he was taken ill. His despair was fearful to behold. He told the bystanders that he expected to be a free man in forty-eight hours: he talked of his native village and of his plans for the future, and that he intended to live an honest life, if, indeed, his life were spared. He prayed and wept. He cursed the hour of his birth; he hurled his maledictions against God, who had kept him alive all these long years to deprive him of the fruits of his hopes and his patience. He doted on life; after ten years' absence, the world seemed a paradise to him; there was a deep yearning in his soul for the fresh green meadow, the glassy expanse of the river, and the wide and boundless view over the Puszta. He had dreamed of these things during the long weary nights of his captivity; and now, when there was but the space of one single step between him and this longed-for bliss, now, now he was to die! Now, even before he was free! even before the chains were off his hands! There was the glow of fever in his brain, turning, whirling, and distorting the things of this earth before his burning eyes: but that one thought was uppermost even in the wild ravings of fever; and his wailing voice was heard to lament the fate which robbed him of liberty.

At length death set him free! And many were there in that prison who gasped for freedom, and found it in the grave.

And, after all, if they had been but guilty! If there had not been men, aye, and women, too, who died in that prison by no fault of theirs! For the law of Hungary, that nobody can be punished until he has been sentenced by a competent judge, is a privilege of the nobility; and thus it would be difficult to point out any prison in which there are not a great many people, in consequence of an information against them,—and that but too often

unfounded,—who for years suffer as much and more than the greatest criminals. This was the case in the Dustbury prison.

Among a variety of people who were arrested at the suit of some unknown informer, there was one man who was perfectly innocent, and who, after an incarceration of five months, had not yet been able to find out how, why, and wherefore he was in gaol. The poor man, whom his fellow-prisoners despised for his very honesty, sat apart from the rest in a corner of his cell. His young wife had done and sacrificed her all to obtain her husband's liberation. Three times daily did she come to the windows of the prison and looked in, and he, shaking off his despondency, came up to the window and told her that he was well, asking for his father and mother and his children; and when he felt that his voice trembled with inward weeping, he entreated her to go away, because he would not have her know how much he suffered. Völgyeshy's mediation availed the poor woman at length to prove her husband's innocence. Early in the morning, when the prison was opened, she went down to the cell; but her husband lay senseless on the straw. He was discharged, and a few days afterwards death set his seal to the warrant of his deliverance.

There were but two men who strove to soften the sufferings of these poor creatures. One of them was Vandory; the other was the Catholic priest of Dustbury. Religious questions ran at that time very high in the county, and the adherents of the two sects were engaged in a violent controversy about the most legitimate method of solemnising marriages between Protestants and Catholics. Vandory and the Catholic priest thought proper (in spite of the general displeasure which their proceedings excited) rather to *act* than to *talk* religion. The church militant was sufficiently represented in the county of Takshony; perhaps it was not amiss that there were at least two men who opined that the Church had some other duties besides fighting its own battles; and that amidst the violence of the contending parties there were two men who devoted themselves to peace-making, to instructing and comforting the quarrelsome, ignorant, and distressed. Whenever Vandory could manage to leave Tissaret for Dustbury, he passed the greatest part of his time in the prison. The priest followed his example; and the words of bliss and comfort of the two curates gave new hope to many a wretched heart. Some indeed there were who scorned the messengers of peace, but

even they came at length round, and listened to them; for what man, especially in a season of distress, can do without the comforts of religion?

The effect of Vandory's words upon the prisoners was truly miraculous. When he entered the gaol, when they heard his voice, and even his step, their faces were radiant with joy. The inmates of the wards which he entered assembled round him in respectful silence, and the kind and loving manner with which he addressed them softened the hearts even of the most hardened. But most powerful was his influence on the Jewish glazier, on the man who was suspected of being an accessory to the assassination of Mr. Catspaw. The circumstance of his having been found in the attorney's chimney made his evidence of the greatest importance in the Tengelyi process; and Völgyeshy, the notary's counsel, insisted on the Jew being confined in a separate cell. The sheriff seconded this demand. A room, which was originally destined for the keeping of firewood, was prepared for the reception of the prisoner, who was at once consigned to it, to the unbounded delight of Mr. James Bantorny, who considered this mode of disposing of the Jew as a glorious victory of the principles of solitary confinement. Lady Rety, indeed, objected to what she called an unnecessary harshness, in the case of a man of whose innocence she protested she was convinced. So strong was her feeling on this head, that she even condescended to visit the prisoner once or twice; and though she with genuine humility insisted on the turnkey keeping the secret of these visits, that generous man was equally eager to proclaim to the world this fresh instance of the condescension and charity of the excellent Lady Rety. Indeed, that charity was the more meritorious, inasmuch as no one else pitied the Jew. Nobody spoke to him. The very haiduk who brought him his scanty allowance of bread and greens treated him with contempt, and the prisoner was abandoned to all the torments of solitude. He had no hopes of the future, no gladdening reminiscences of the past.

Gladdening reminiscences! He was a Jew; that one word tells his whole history. Born to be a sharer of the distress of his family, brought up to suffer from the injustice of the masses, cast loose upon the world, to be not free but abandoned; struggling for his daily bread, not by honest labour, for that is forbidden to a Jew, but by trickery and cunning; crawling on the earth like a worm which anybody may tread upon and crush; hated, hunted, persecuted, scouted: such was his past. Such are the sufferings common to

the Jews in Hungary; but Jantshi had a heavier burden to bear than the generality of Jews. His disgusting ugliness made him suspected even before he was guilty; and now that his features were still more distorted by fear, he was the very picture of misery and wretchedness. But nobody pitied him; and it seemed that he himself doubted whether any one could pity him. Vandory found him moody and uncommunicative; the curate saw that the Jew considered him as a spy. He strove hard to gain the prisoner's confidence; but in vain! Jantshi received him with the deepest humility. He replied to every question, and he seemed to have no objection to become a convert; but everything he said showed that he considered the curate's visits as a kind of examination.

This state of things changed suddenly when the prisoner was taken ill. He, too, was seized with the epidemic. His case was hopeless. He lay alone in his room; there was no one by to cool his parched lips with a draught of water. It seemed as if the people out of doors reckoned him as one of the dead; for even Lady Rety was quite comfortable in her mind when she understood that there was no hope of the patient's recovery, and that his delirious ravings were incoherent. Vandory alone showed his kindness of heart, by doing all he could for the poor man. When in Dustbury he called upon him twice a-day, and hired a woman to sit up with him. Awaking from his delirious dreams, the Jew saw Vandory sitting at his bedside; when he started up at night, moaning for water to slake his burning thirst, the nurse came and gave him to drink; and when he asked who it was that sent her, she told him it was Vandory. The curate was to him a providence, a guardian angel; in his wildest dreams he called for him, imploring his help; and as the days passed by, as he grew weaker and weaker, when the tide of the fever turned back, leaving his mind clear and unoppressed for the last time, he called out for Vandory; "For," said he to the nurse, "I cannot die unless I speak to the curate, and thank him for all he has done for me. Besides, there is a secret,—something which Mr. Vandory cares to know, and which I ought to tell him. I entreat you, my dear good woman, go and see whether he has come from Tissaret!"

The old woman left the cell, and shortly afterwards the curate entered it. On seeing him Jantshi broke out into a paroxysm of tears.

"Be comforted, my friend!" said Vandory, with deep emotion. "God is merciful, and His mercy will not forsake you!"

The prisoner seized Vandory's hand. His tears drowned his voice: he was silent.

"You are much better now," said the curate, sitting down by the bed. "You will recover, I am sure; and I trust you will be a useful member of society."

"Oh, dear, reverend sir!" said the Jew, with a firm voice; "it's all over with me! I feel that I must die; but it is not for that I weep. I have not had so much joy in the world that I should regret to leave it. I never knew my father and mother; and a poor Jew's life is very little worth. When I'm once underground, they will perhaps cease from troubling me. But, reverend sir, when I think of all you have done for me—for *me*, whom people treat like a dog; and when I think that you, who did this, are a Christian, and that it is you, sir, whom I——" Here the prisoner's voice was lost in tears. He covered his face with his hands, and sobbed.

It struck Vandory that this was the time to impress upon Jantshi the necessity of his conversion to a purer faith. He therefore told him that God was indeed merciful, and willing to receive the homage, of the humblest heart; and that Christ——

But the Jew shook his head. "No, reverend sir," said he, with a sigh; "do not ask me to do it. I will never abandon the faith of my fathers. How utterly lost a wretch I must be if, after having clung to that faith all my life (it was my only virtue, sir), I were now to abjure it. There is nothing in the world I would not do for you, sir; but do not ask me to do this!"

"My son," said Vandory, "do not think I wish for your conversion for *my* sake. It would be a grievous sin if I were to ask you to consult any thing but your own conviction in this, the most important step in life. But I urge the matter for your own sake—for the sake of your soul's welfare. The religion of Christ is the religion of love——"

"The religion of love!" cried the Jew, with something like a sneer. "Sir, go and ask the Jews, my brothers, what they know of that love? If all Christians were like yourself, sir," added he, in a softer tone, "I might possibly have left my faith, and accepted theirs. I, for my part, have found

but few good men among the Jews. As it is, I wish to die in my father's faith. But there is a secret on my soul which I must communicate to you before—I am fast going, I fear!"

Vandory moved his chair close to the bed, and the Jew detailed to him the circumstances of the robbery of the documents, and the share which the Lady Rety and the attorney had in the perpetration of that crime.

"But who killed the attorney?" asked Vandory. "You ought to know. The place where you were found allowed you to hear all that happened in the room."

"I heard it all. It was Viola who did the deed. He spoke to the attorney, and I know his voice."

"Wretched man! Why did you not state this in your examination?" sighed Vandory. "You know that another man, an innocent man, is accused of the crime, and you know that your confession alone can save his honour and his life!"

"You ask me why I did not state it?" replied Jantshi, staring at the curate. "The lady, who is as great a lawyer as any in the county, told me that the suspicion would lie with me if I were to speak in Tengelyi's favour."

"But what business had you in the place where they found you?"

The Jew shook his head.

"I implore you," said Vandory. "I entreat you——"

"Why shouldn't I say it!" cried Jantshi. "I've sworn to keep the secret; but this woman has abandoned me in my distress, why then should I spare her? Listen! I will tell you. The day before the murder, the Lady Rety and the attorney had a quarrel. He refused to give her the papers which he had taken from Viola. The lady sent for me, and promised me two thousand florins, if I would——"

The curate clasped his hands in astonishment and horror.

"If Viola had not anticipated me," whispered the Jew, "I would have killed the attorney!"

He fell back upon his pillow. Vandory sat silent and lost in thought. Jantshi's tale had filled him with horror, but with hope too, for it held out a chance for Tengelyi. Rising from his seat, he said,

"My friend, thank God that He has given you strength and time to repent and atone for your sins. What you have told me suffices to clear the notary from suspicion; but to make your testimony effectual, you must repeat it in the presence of two witnesses."

"Am I to repeat what I shudder to think of?" said the Jew, mournfully.

"It is your duty. How can you expect God to show you mercy, if you refuse to atone for your sin?"

"I will do it!" said Jantshi, after a pause. "The notary is your friend. I will do it for your sake!"

"If you are too weak," said Vandory, deeply moved by these words and the way in which they were uttered; "if you are weak now, you had better take rest. In a few hours——"

"No! sir, no! Now or never! In a few hours I shall have ceased to speak. Come back at once, reverend sir! Tell anybody to come. I'll tell them all, for I am a dying man. I care not for the sheriff's displeasure. He cannot harm me now!"

"You need not say any thing to excite Lady Rety's displeasure," said Vandory. "Your transactions were chiefly with the attorney, you need not tell them any thing about your intentions——"

"But I *will* tell them!" cried the Jew, with a savage exultation. "I will have my revenge. That woman was my evil genius! She led me on to crime, and abandoned me in my distress!"

"And is this the moment to think of revenge?" said the curate.

The Jew was silent. At length he replied, "Let it be done as you wish it. I will do anything to please you. But," added he, "go at once. My time is very short, sir."

Vandory called the nurse, and hastened away.

CHAP. VIII.

When he left the cell of Jantshi the glazier, the curate hastened to find some trustworthy persons whom he might take to hear and testify to the Jew's confession. The great county sessions were being held in the county house, and the curate was aware that some of the justices and assessors were sure to be assembled in the large hall of the building. When he entered it he found a numerous meeting, under the presidency of no less a person than Mr. James Bantornyi.

The gentlemen there and then assembled were members of an association for the prevention of cruelty to animals. Mr. Bantornyi was the founder and chairman of this charitable institution. Mr. James was a fit and proper person to take the chair, for no man could vie with him in racing and hunting, which pursuits, as every body knows, are prone to create a loving tenderness for the animal creation in the human mind. When Mr. James returned from England, his ambition had taken a higher flight. He was emulous of the laurels which Wilberforce and the Quakers earned in advocating the interests of the black, and injuring that of the white population of the British colonies. There are no black people in Hungary; but there are gipsies who are brown, and Bantornyi's "Association for the Improvement of the coloured Population of Hungary" would have enchanted all the Wilberforces and Gurneys of Great Britain. The landed interest of Takshony was greatly in favour of the plan. The gentry were indeed but slightly acquainted with Mr. Wilberforce's emancipation theories; but when Mr. James Bantornyi made his grand speech, and explained that *gradual* emancipation was carried out by apprenticing the slave, and by making him work four days in the week, the Takshony people became quite enthusiastic for this kind of philanthropy, which they preferred to their own *Urbarium*,^[31] the compilers of which had been most disgracefully neglectful of the vagrant population. But, strange to say, the gipsies demurred against the proposed improvement of their condition. They fled from the hands of the philanthropists who sought to apprentice them; and Mr. James Bantornyi saw clearly that Hungary was not ripe for his more subtle projects, and that his activity must be displayed in another field.

^[31] See [Note III.](#)

He therefore founded his famous Association for the Prevention of Cruelty to Animals. There was much opposition, but his perseverance triumphed over it. It was argued that the ninth chapter of the first volume of the *Tripartitum*^[32] would go for nothing if the privileges of the Hungarian nobility were extended to dumb animals; and that a landed proprietor and a member of the Holy Crown would lose his high position if he were forbidden to whip his horse to his heart's content. The objection was grave, but Mr. James was fertile in expedients. He stated that the association would confine itself to the prevention of cruelty to animals in the case of the *villain* population of the county. Again, it was objected that peasants were, in the service of their landlords, sometimes compelled to beat their horses; and Mr. James decided that it was by no means cruelty to animals if a nobleman beat a horse or other cattle, or caused it to be beaten, nor was it cruelty in a peasant to beat his horse on robot-days, or in winter. So liberal an extension of protection against the restrictions of the association silenced even its greatest opponents; and the Association for the Prevention of Cruelty to Animals held its sittings, and flourished to the satisfaction of its members, and especially of its paid secretary and treasurer.

[32] See [Note IV](#).

When Vandory entered the hall, the assembly were in the act of considering and debating on the case of an ass which had suffered from the violent temper of its owner. Party feeling ran high; for a strong body of conservative members argued that, whereas the association was intended to prevent cruelty to, that is to say, the beating of, animals, that is to say, of horses: the benefits of its protection could not, with any degree of propriety, be extended to asses, sheep, and other creatures of an inferior description. The radical members, on the other hand, were equally zealous, and far more pathetic, in the cause of donkey-emancipation; and, excited as they were with the debate and the various points of thrilling interest which the subject offered, they remarked with astonishment, not unmingled with disgust, that the curate, unmindful of the merits of the question, approached Völgyeshy and Louis Bantorny, whispered to them, and left the hall in their company. Everybody was puzzled, and some were eager to know the secret of this sudden intrusion and mysterious disappearance. Mr. James Bantorny was highly incensed against Vandory; for the members declined giving their attention to the question, and it was found necessary to adjourn the meeting.

But besides Mr. James Bantornyi, there was another person in the council-house whom Vandory's conduct affected equally powerfully and still more disagreeably.

Lady Rety sat at the window of her bedroom, of which the view commanded the yard, when she saw Vandory leaving the glazier's cell, and walking straightway to the great staircase of the council-house. She was struck with his manner, though it excited no apprehensions in her mind. But, after a short time she saw him returning, accompanied by Völgyeshy and Louis Bantornyi. They entered the prison, and, immediately afterwards, the nurse whom Vandory had hired to attend the Jew, left the cell. They had evidently sent her away.

"What can this mean?" thought Lady Rety. "The Jew is delirious: he cannot recover. What can they want in his cell? This is indeed strange! Völgyeshy is Tengelyi's advocate; and Vandory—If that Jew were not such a rascal—I must look deeper into this business. I'm frightened, and I ought to be calm. The woman who waits upon the Jew is in the yard. I'll send for her; for she ought to know all about it."

Lady Rety sent her maid for the old woman, who soon after entered the room, with many curtsies. She was utterly bewildered to have been sent for by, and to be compelled to talk to, the lady sheriff.

That lady strove hard to conceal her emotion. She told the poor woman that Jantshi was an old and faithful servant of her house, and (to the best of her opinion) innocent of the crime laid to his charge. She added, that she took the greatest interest in the unfortunate man; and, having praised the nurse for her care and watchfulness, she asked her how her patient did, and why Mr. Vandory and the two other gentleman had gone to his cell?

The replies of the woman were not calculated to quiet Lady Rety's apprehensions. She learnt that the Jew had regained his consciousness; that he sent for Vandory; and that he said something about a secret. She was likewise informed of the fact, that the curate had had a long interview with him; and she trembled to think that Völgyeshy and Louis Bantornyi had been called in to be witnesses to his confession.

"Did you hear what the Jew said to Mr. Vandory?" asked she, with a trembling voice.

"His reverence sent me away," said the old woman; "although I cannot, for the life of me, understand why he should do so; for I've never been a gossip all the days of my life; and he might have trusted me with a Jew's secret any day. But, since his reverence sent me away, I know nothing about it; only, I believe the infidel made confession of his crimes."

"Why do you think so?" said Lady Rety, with a start which attracted the old woman's attention.

"I'm sure I did not listen; and, even if I had wished to do it, I could not have done it, because I'm rather deaf; but I think they talked of bad things; for I've never, in all my born days, seen his reverence so violent as he was when he left the cell. God knows; but I think the Jew has told him of great crimes. When I came back to the cell, the unbeliever was quiet for some minutes; but I had scarcely sat down, when he became restless, and asked me whether they would come. 'If they wish me to confess,' says he, 'they ought to make haste! Why don't they come?' I told him his reverence had just gone away, and he ought to be patient; but he tossed about, and groaned. It was a sad thing to see him plagued by his conscience; and he would not be quiet till his reverence came back with two other gentlemen. He asked them whether they'd allow him to confess; and when they said 'Yes,' he seemed quite comfortable.—But, my lady," cried the old nurse; "your ladyship is so pale! Is your ladyship sick?"

"No!" said Lady Rety, with a violent effort to appear unconcerned. "Go to your patient, my good woman. The gentlemen will probably leave him soon."

"Very well, your ladyship. I'm sure the poor man won't live till to-morrow morning; and perhaps he'll want me in the night. All I care for is, that the truth should come to light; for that is the great thing, after all: is it not, your ladyship?"

"Go! go!" gasped Lady Rety. "I dare say the truth *will* come to light!"

The old woman kissed her hand, and left the room.

Lady Rety locked her door; and, overwhelmed with despair, she flung herself on the sofa.

The Jew had made a confession. From Völgyeshy and Vandory she could not expect forbearance. She could not hope that Tengelyi's friends would make a secret of what Jantshi had told them; since his disclosures were evidently in Tengelyi's favour. She knew that she was hated by all, and that against such accusations she could not rely on the assistance of her husband.

"What shall I do?" cried she, with a shudder. "Is there no means of salvation?—There is none! Tengelyi's case is too far advanced to be suppressed; and even if it were not, to whom could I confide my dreadful position? Whose advice can I ask? On whose assistance can I rely? My husband?—am I to truckle to him? Am I to implore his assistance? He never loved me! He hates me now! He will leave me in my danger! He will turn against me to prove his own innocence! No! I will do any thing but bend to him!"

A sudden thought seemed to strike her. She fixed her eyes on the desk which stood on the dressing-table. She shuddered.

"No! No!" cried she; "it has not come to this pass yet. I cannot do it!"

She went to the window; but before she had opened it, her eyes were, as if by magic force, again attracted by the desk.

"It makes me mad!" said she. "God help me! That thought haunts me! I cannot shake it off!"

"But why?" continued she; after a pause—"why should I shudder at the thought. To die——? After all, death robs us of that only which we have. And is there anything I have to lose? I have no children. I detest my husband. My plans are frustrated. Infamy and punishment await me—I have no choice!"

She opened a secret drawer in the desk, and produced a small bottle containing a whitish substance. Her hand trembled as she put it on the table.

"Here's arsenic enough to poison half the county. This is my last, my only alternative.—But they say it is a painful death. They have told me of people who died after excruciating torments of many hours, foaming and cursing with the intensity of the pain. What if this were to be my case? Horrid! to suffer the agony of hours! to feel the poison eating into me; to feel my every nerve struggling against destruction! to howl and to suffer, and to have no one to tend me! to have no one by to wipe the sweat of agony from my face! Or worse, to be surrounded by those whose every look tells me that they are waiting for the end, not of my sufferings, but of my life!"

With a convulsive motion she pushed the poison away.

"But no!" cried she, with a sudden resolution. "I will not live to see their triumph! I'll take the whole of it! it will shorten my sufferings. It will kill me in a minute—Oh, but to die! to die! and there's twenty years' life in me!—Suppose the old woman told me a lie? Suppose what she said was not true; or that the Jew did not tell Vandory what I fear he did? Why should he betray me? What good can it do him? I must know more about this matter before I proceed to extremities," said she, as she took her cloak, and restored the poison to its place in the desk.

Night had set in. Nobody observed the guilty woman as she crossed the court-yard and knocked at the cell in which the Jew was confined. The old nurse opened it. She looked aghast when she saw the sheriff's wife in that place and at that time.

"How does your patient go on?" asked Lady Rety.

"He's quiet now!" said the old woman. "When the gentlemen left him, he said he was happy now that the murder was out. He's been asleep since. Poor fellow! if he could but know that your ladyship's ladyship has condescended to ask how he is going on!"

"Leave the room!" said Lady Rety, with a trembling voice. "I want to speak to this man before he dies."

The old woman tarried; nor was it until the lady had repeated her command, that she left the room, muttering and discontented. When she was gone, Lady Rety approached the bed and spoke to the Jew.

He made no reply. His breath came thick and irregular. His limbs moved convulsively. The shadows of death were thickening over him.

Again and again she spoke to him. At length he raised his weary head, and stared vacantly at the Lady Rety.

"You do not know me," said she. "Look up, man! Tell me, do you know who I am?"

"Leave me alone," gasped Jantshi. "I've told you all I know. I've nothing more to say. Let me rest."

"Look up, and see to whom you are speaking. It is I, the Lady Rety!"

"The Lady Rety?" said the Jew, while a ray of returning consciousness darted over his features.

"Who else would come to you? Who else cares for what becomes of you?"

"Begone!" screamed the dying man. "Begone! What can you want of me? I'm not strong enough to steal or murder!"

"You are mad!" cried she. "How *can* you talk in this manner? Suppose some one were to hear you?"

"I do not care," replied he. "I have no fear of anybody."

"Do not let them impose upon you," said she. "I know they tell you there is no hope for you. They've told you so to make you confess; but I have it from the doctor that you are in no danger whatever. You're weak, that's all. Keep your own counsel, I entreat you! They tell me Mr. Vandory called upon you; did he?"

The Jew groaned and laughed at the same time. He stretched his trembling arms and seized Lady Rety's hands.

"Ah!" said he, "that's what you come for? You want to know what I have said of the crimes which we have committed. Set your mind at rest. I've told them all—all—all! Do you understand me? I've told them every circumstance, from the first day that the attorney hired me to steal the

papers, to the night you promised me your cursed money if I would kill the attorney. You said——"

"Silence, miscreant!" cried Lady Rety, striving to disengage her hands from the grasp of the Jew.

"Miscreant! Ay, indeed, miscreant!" retorted the Jew; "but how will they call *you* who bribed me to these enormities?"

"Rascal of a Jew! who will believe you?"

"They are sure to believe me. Viola has said what I say, and nobody can doubt it!"

"You must revoke all you have said. I'll bring other witnesses to whom you must say that they bribed you to give false testimony."

"I will not revoke a word of what I have said—not a single word——"

"How dare you, Jew——"

"Don't threaten me! Your promises and threats cannot affect me now. This very night will remove me from your jurisdiction. But you," added he, with a convulsive effort—"You who seduced me and abandoned me to my despair—you, Lady Rety, will find your judge. I've dreamed of it. I see it now! I see you standing by the side of the executioner. He has a large glittering sword. Tzifra, too, is there, and Catspaw, and a crowd of people. They tie you down upon the chair——"

His voice sunk down to an indistinct murmur, and his hand, which still clasped Lady Rety's fingers, held them with a cold and clammy grasp. She tore it away, and, rushing past the nurse, she hastened to her apartments.

She rang for her maid.

"Give me a glass of water!" said she.

Julia, the maid, was astonished and shocked to see her mistress look so pale.

"Are you ill, my lady?" asked she. "Shall I go for Dr. Letemdy?"

"No! Hold your tongue! Mind your own business!" said Lady Rety. "Give me a glass of water, and be off!"

Julia obeyed. Lady Rety locked the door after her.

It is easier to defeat the sympathy of mankind than to baffle their curiosity. Lady's maids in particular are always most eager to mind other people's business when they are told to go about their own. Julia had left the room, but she returned to the door and listened.

What she heard served still more to excite her curiosity. Lady Rety walked up and down. She sat down, arranged her papers and wrote. Again she got up, and tore some papers. Again she paced the room. She opened a drawer. Again she sat down, and Julia overheard a deep, deep sigh. Then again there was a sound as of something being stirred in a glass.

"She is ill!" thought Julia. "She's taking her medicine! I ought to call the doctor!"

She listened again, and heard the rattling of the glass as it was violently put down upon the table. This, it struck her, was a sign that her mistress was fearfully ill-tempered. She thought it more prudent not to go for the doctor. After a short time she heard deep groans. She knocked at the door, but she received no answer. This circumstance, and the moaning inside, which became more violent every moment, caused her to forget Lady Rety's ill-temper, and to hasten to the sheriff, whom she found closeted with Vandory.

Julia told them all she had heard when listening at her mistress's door.

"She has done the worst!" cried Vandory. "Let us make haste. Perhaps there is time to save her!"

They hurried to the room. They tried the lock. It resisted. A low moaning was heard from within.

"Break it open!" cried Vandory.

As the two men rushed against the door, it gave way. They entered.

It was too late.

The glass,—the poison,—the livid and distorted face of the wretched woman, showed them that there was no hope.

She looked at her husband, and made a violent effort to speak; but when he knelt down, and seized her hand, he felt it stiff and cold.

She heaved a long deep sigh.

"May God have mercy upon her soul!" said Vandory. "She is dead!"

CHAP. IX.

Even the humblest among us excites the interest of at least some of his fellow men, at the very time when he is removed beyond its sphere. The church bells toll for the poorest man, and, however lonely he may have been throughout life, people will assemble round his coffin. Whatever may have been the obstacles that blocked up a man's path when alive, there are no impediments to the progress of his funeral procession; and the very beggar, who never had a crust or a rag which he could really call his own, comes into possession of a small freehold, which is given to him to hold, and to enjoy, till the day of judgment. A dead body is an object of interest and of awe. And why? Is it because respect is due to him who acts sensibly, and because the majority of mankind cannot do a more sensible thing than to die? Or is it because the dead have passed through that arduous ordeal in which all of us are equally interested? Death is indeed a capital teacher. Any one who has his doubts about the value of earthly things, and who would wish to know whether the objects he strives for are worth his trouble, can easily set his mind at rest by watching the death of any of his fellow-citizens. A funeral procession, a coat of arms, or a name on the coffin, and on the grave or mausoleum a marble column or a wooden cross; an after-dinner conversation, a score of mourning letters, a paragraph in the provincial papers, or at best a column in "The Times" or "La Presse," that is the *gloria mundi*! A crape hatband, and a suit of mourning; quarrels about the expense of the funeral, or the "cash he left behind him," is all that

reminds us of the love and devotion of family life. And as for friendship—we all know its value and its duration!

We do not mean to plead in defence of the cynical views which we have just expressed. Bitter thoughts *will* press to the surface of our heart when we ponder on the pride, pomp, and circumstance of life, and the utter oblivion to which we fall a prey after our surviving friends have paid us what they significantly call "the last honours." But still, as there is an exception to every rule, we must admit that the people of Dustbury were neither unmindful of Lady Rety's death, nor forgetful of it; at least not in the first fortnight after the event. The most noble the Lady Rety was a person of great importance. Her decease would have attracted attention under any circumstances. That a lady of rank and property, the head of an excellent table, and the owner of a splendid wardrobe, should depart this life, is shocking, even if she takes that step with all due formality, and with the assistance and advice of half-a-dozen physicians. But Lady Rety's case was far worse. Dr. Letemdy had indeed been called in, but at a time when his help and co-operation was quite out of the question; and his professional learning was of no avail, except in enabling him to protest that the most noble lady might have been saved, if greater despatch had been employed in soliciting his presence. Mr. Sherer, who was likewise on the spot, asserted his conviction that the draught of which Lady Rety died must have been any thing but sugar water, and that almond milk might have saved her life, if she had not died before he could offer that miraculous medicine. But the fact remained unaltered. Lady Rety had taken poison. The medical men in the county of Takshony had a just title to complain of this encroachment upon their legal sphere of action, and the people of Dustbury were equally justified in their laudable and charitable endeavours to discover the secret causes of this shocking occurrence.

Rety's family and friends would have it that the accident was occasioned by a mistake. Lady Rety, they said, was in the habit of taking magnesia, which she kept in a drawer where she had some time previously placed a bottle of arsenic for the purpose of killing rats. In the twilight of evening she had taken the poison instead of the drug; and this—the Retys protested—was the cause of the terrible catastrophe. But explanations of this kind are by no means palatable to the understanding of the crowd. The Dustbury gentry would not, and could not, credit any thing like a simple story. They all and

each launched into the boundless realms of surmise and speculation, and in their praiseworthy endeavours to make out a substantial and shocking account of Lady Rety's death, they were eagerly assisted by Julia, who had been all but an eye-witness of the decease of her mistress. Julia gave so interesting an account of the sadness and despondency to which her lady had of late been a victim, and of her extraordinary behaviour on the last day of her life, that all her hearers relinquished any doubts which they might have entertained, for the firm and (under the circumstances) comfortable conviction of Lady Rety's suicide. But as for the cause of that step, it remained a secret and a mystery to the gossips of the town of Dustbury.

The sheriff made no allusion to the cause of his wife's death. The most watchful sympathy or curiosity could not trace home to him any word or action that could have strengthened or confirmed any of the various surmises and rumours which were afloat on the subject. The cause of Lady Rety's suicide remained an open question. Perhaps it was attributable to temporary insanity; perhaps she had been urged to that desperate step by the conviction of her inability to prevent her son's union with Vilma Tengelyi, and she preferred death to certain shame; or perhaps the sheriff had driven his wife to despair (the ladies of Dustbury were very eloquent on this last hypothesis) by a concentration of matrimonial brutalities; for what woman is a stranger to martyrdom? Certain it is that none of Mr. Rety's words or looks could be adduced as an authority for all or any of the above surmises. Still, those who knew him became aware of the deep impression which the death of his wife had made on his mind.

His sorrow was not indeed caused by a return to the old love of days long gone by. The flowers of love have indeed been known to luxuriate in the soil of a churchyard, especially in the case of couples whose matrimonial doings did not present that edifying spectacle of love, honour, and obedience, which is inculcated by, and which is so rarely to be met with out of, the catechism. Mr. Rety had had too deep an insight into his wife's character to lament his loss. His grief was the growth, not of affection, but of remorse. He accused himself for being the cause of the misfortunes he saw around him. A letter was found on her table, which the miserable woman had addressed to him; and in which she reproached him as the cause of her unfortunate life and wretched end. And was not this accusation well-founded? Could Rety look back upon the past without feeling that the

events to which his wife fell a victim, were brought about by his own culpable weakness. If he had candidly told her of his relationship to Vandory, she would perhaps have refused to marry him; or if she had, she would have been resigned to the idea that the curate was her husband's brother, but she never would have thought of committing the crime to which her evil spirit had urged her. Rety's weakness and indulgence had made her the woman she was; his dislike and aversion drove her to that desperate step which she would never have taken, if she could have hoped for the sympathy and protection of her husband. Thoughts like these filled Rety's mind with bitter grief, which not even Vandory's gentle words could assuage.

The Jew's confession, which was the cause of Lady Rety's death, remained without any of those favourable results which it was expected to have. It had no influence on Tengelyi's fate. Even before the Jew made his confession, there were few who doubted of Mr. Catspaw's having been implicated in the robbery of the documents; but this very fact, when once established, strengthened the suspicions which were entertained against Tengelyi. If the documents were in Mr. Catspaw's possession (and Jantshi's evidence proved that they were), that fact alone was reason enough to induce Tengelyi to commit the crime of murder. The Jew's assertion, that it was Viola who killed Mr. Catspaw, was unsupported by the second witness, and inadmissible as evidence against the numerous and grave circumstantial evidence which was adduced against the notary. His only hope of safety lay in the contingency of Viola's capture and confession of the murder. That hope was a vague one. It was now more than a fortnight since Janosh and Gatz the Vagabond had left Dustbury in quest of Viola, and no news of their whereabouts and their chances of success had reached Vandory. It was scarcely reasonable to suppose that the old hussar should succeed in an undertaking, which had hitherto foiled the endeavours of Akosh, Kalman, and Völgyeshy, and, indeed, of all those who took an interest in Tengelyi's fate.

Peti, the gipsy, was indeed strongly suspected of being privy to the secret of Viola's retreat; but neither entreaties nor promises could induce him to answer young Rety's questions. As for the Gulyash of Kishlak, who was known to have received Viola's family, after the flight of the latter, into his tanya, and who had afterwards taken them away in his cart, he, too, gave

none but unsatisfactory intelligence. He protested that he had taken Susi and her children to a Tsharda, at the distance of about three miles from Kishlak, where he had left her. He had not the least idea what could have become of her. Curses and entreaties, threats and promises, were alike in vain; it was evident that even the rack could not induce him to say more. The old woman, Liptaka, though devoted to the Tengelyi family, and especially to Vilma, was inexhaustible in excuses of her ignorance of Viola's whereabouts; until at last, wearied and perplexed by young Rety's questions, she protested that she would not betray Viola's confidence, even if she could; and when Akosh attempted to move her by his entreaties, she exclaimed:—

"No! no! Master Akosh! You know I'm as fond of you as ever a nurse was of her own child; but do not—do not compel me to hate you! I'd lay down my life for Mr. Tengelyi; but I won't be a Judas, no! not even for *his* sake! He has no end of friends; they'll liberate him, sooner or later; and even if he were to remain in prison, I know they keep him decently and comfortably, and his family is well provided for. But Viola can expect no mercy at the hands of the magistrates! To give him up to his enemies is to murder him and his family; and even if Susi were not my near relative, I'd rather tear my tongue out than betray her husband!"

What could Akosh do? Viola's friends were resolved to keep the secret; and, after a search of two weeks, old Janosh was still as much as ever in the dark as to the direction which the fugitive had taken.

Both Janosh and Gatzi the Vagabond were convinced that Viola was not hidden in any of the neighbouring counties. It was not indeed likely that he had left the kingdom of Hungary, as Gatzi was fond of asserting; but even this reflection was but cold comfort to the two adventurers. In which of the fifty-two counties of Hungary were they to seek him? was indeed a question which sadly puzzled the tactics and the military experience of old Janosh.

"Viola is a devil of a fellow!" said he to his comrade. "He has retreated, and so cunningly too, that Satan's self would be at a loss to find him. Ej! what a general he would have been!"

"What does '*to retreat*' mean?" asked Gatzi, who listened to the tales of his companion with the greatest interest.

"Did I ever!" cried the hussar. "Do you mean to say you don't know what it is to retreat? But, after all, it's but natural," added he, after a few moments' consideration. "You have not been in the wars, where they would have taught you. Now, mark me! to retreat is when they order you to fall back."

"Ah! I understand! It's when the enemy drives you."

"You're a fool!" said Janosh, angrily. "A good soldier won't run away, nor will he be driven. I have never been in a battle in which we did not beat the enemy, and yet we retreated!"

The old hussar, like many soldiers in the Austrian army, was firmly convinced that the Emperor's troops had never been defeated.

"To retreat," added he, "means to fall back, after you've given your enemy a drubbing. Do you understand me?"

"Oh yes! I understand!" replied Gatzki; "but I can't make out why you should fall back after a victory."

"Donkey!" said Janosh, with a compassionate smile; "you retreat because you're ordered to fall back; and a soldier who doesn't obey orders is shot. That's all!"

"But why do they order you back?"

"Why, indeed? That's not our business!" replied the old trooper, angrily; for it was the very question which had puzzled him all his life. "Why, indeed? A good soldier obeys his officers, and the rest doesn't concern him. Why they order you back? A stupid question that! Perhaps it is to make you advance, for if you fall back you've got room to go forward. Perhaps they do it to give the enemy time to rally their men, and to prepare for another battle. I say, Gatzki, if you were a soldier, and if you were to ask such questions, they'd shoot you on the spot!"

Such conversations were instructive to the Vagabond Gatzki, and entertaining for Janosh, who gloried in the reminiscences of his campaigns; but they did not promote the ends of the two travellers. The Gulyash of Kishlak was as little communicative to Janosh as he was to his young master, nor was the hussar more lucky in his inquiries in other quarters.

"It strikes me they've agreed upon it!" murmured he. "They have but one answer to all my questions, and that answer is the worst they can give. Every one says, 'I don't know; you'd better inquire somewhere else!' and so we go from one tanya to another, without being any the wiser for it!"

They had, indeed, by this time, made the round of three counties; and though Gatzki became gradually accustomed to their roving life, and though Janosh, riding, as he did, through forests and over moors, felt almost happy to live again the life of a trooper, they came at length to be fairly tired of their fruitless search. The season, too, was by no means favourable. The month of April has a general reputation for changeableness; but in the year in which Janosh and Gatzki rode in search of Viola, that month was by no means changeable. On the contrary, it rained from the first day to the last. Janosh had seen a deal of hardship in the course of his long and eventful life; but still his temper was not proof against the provoking sameness of this extraordinary April weather. At length he fairly lost his patience.

They were just traversing the third county, at a distance of about eighty miles from Dustbury. They had been on horseback from an early hour in the morning, and now the sun was setting, when Gatzki confessed to his older comrade that he could not find the tanya to which he had promised to conduct him. The old man had hitherto borne all disappointments with great fortitude, still hoping to get news of Viola; for Gatzki had told him that the Gulyash to whom they were going knew all the herdsmen of the district. What was to be done? They were in the heart of the forest; they had lost their way; and, although Janosh swore that it was a shame for an old man to follow at the heels of a mere boy like Gatzki, he could not but wrap himself up in his bunda, and follow his companion, who was looking for marks on the trees, and for cross branches on the road, these being the signs by which men of doubtful honesty are in the habit of marking their track for the benefit of their comrades. It was quite dark when the two wanderers were at length attracted by the glare of a fire. They struck from the path which they had hitherto pursued, and reached the tanya which they sought. The pleasure which Janosh felt as he stretched his limbs by the fire could not be greater than the rapture of the Gulyash when he recognised Gatzki. The old herdsman, it seems, had been Gatzki's partner in more than one affair of which they did not care to inform the county magistrates.

When the old Gulyash had had his chat with his young companion, Janosh stepped in and asked for Viola. The first answer which he received was a profession of utter ignorance on the part of the Gulyash; when Gatzki too showed his desire for information, the herdsman told them to stay the night.

"To-morrow morning," said he, "I'll conduct you to somebody who is likely to answer your questions. There is a Gulyash in this neighbourhood who came last autumn from your part of the country. He is a good-for-nothing fellow, who does not associate with any one. He doesn't sell cattle, and there is no talking to him. But, after all, it is very likely that he can give you the information you require."

"Who can he be?" said Gatzki, astonished. "I don't know of any herdsman from our parts who has gone to this county."

"It's the brother of the Gulyash of Kishlak," replied the old man. "His brother is a trump of a fellow; but this chap is a blockhead. He won't speak to a body."

"It can't be the brother of the Gulyash of Kishlak. Old Ishtvan had but one brother, who died last autumn."

"Nonsense! I tell you, man, I have seen him. He is a handsome fellow, and darkish. He brought his wife and two children. Don't tell me he's dead."

"I say, the brother of the Gulyash of Kishlak is dead, though the man, whom you take to be his brother, may be alive, for all I know: but I am sure he is no relation to Ishtvan the herdsman!"

"But I tell you he is! Don't teach me to know Ishtvan the herdsman! It's true I haven't seen him for many years: but formerly we were much together; and last year, when he brought his brother's family to this place, they all slept in my hut. One of the children is not at all likely to live; but the other boy is a fine fellow. I am sure he'll be a better sort of a man than his father. There! now don't you believe that I am going to take you to the brother of the Gulyash of Kishlak?"

In the course of this conversation, Gatzki cast significant looks at the old hussar; and when their host had retired for the night, he said, "I'll lose my head if the fellow he speaks of isn't Viola!"

"I am sure it's he," whispered Janosh. "Let us keep our own counsel, lest he refuse to show us to the place."

"How he'll stare, when he hears that his neighbour, of whom he thinks so little, is no other than Viola, the great robber! What a treat!" said Gatz, as he lay down by the fire. "But I'm as sleepy as a dog! Good night!"

"Good night!" responded Janosh, turning round, and arranging his bunda for the night. The day had been one of extraordinary fatigue. His lair in the hut was comfortable, and the fire burnt bright and cheerful at his side; but still the old hussar could not sleep. He turned and tossed about, a prey to restlessness and harassing thought. Now that Viola was all but found, Janosh began to doubt whether he was justified in disturbing the poor man's quiet life, and whether it was not better to leave him where he was.

"He's come to be an honest man," thought he; "why should I remind him of his former misfortune? I dare say they won't hang Mr. Tengelyi; but as for Viola, I'm not at all sure whether they'll stick to their word when they have him in their power. His wife will despair, and his children come to be little vagabonds; and who will be the cause of all this misery but I, who am now trying to entrap him, for all the world like one of those d—d spies whom we used to hang in France!"

Old Janosh had but one comfort amidst these distressing reflections. He might indeed find Viola; but there was no necessity which forced him to give him up to the county magistrates: and, after all, was it not possible, in conversing with Viola, that they might find out a means of liberating the notary without any prejudice to the late robber's life and liberty?

"For," said Janosh, "God knows he has suffered enough! and his children, bless them! they are such fine creatures, and so loving. I wouldn't harm them; no, not for the world!"

As for the object of old Janosh's search, it was he who, under the assumed name of a brother to Ishtvan, the herdsman of Kishlak, inhabited the tanya to which Gatz's friend had promised to conduct the two adventurers. The outlaw's place of refuge was not quite so large and commodious as his farm-house at Tissaret; but it was as favourable a specimen of a tanya as a man of Viola's character and habits might wish to see. The roof was made

of reeds, and afforded a shelter against the rain; the walls were newly washed, and shone hospitably over the dun and desolate heath. The tanya was built on a slope of the mountains, which, forest-crowned, extended in the rear; and in front lay the immense plain, dotted with flocks and herds of cattle and horses, with here and there a steeple rising on the far horizon. Near the house was a stable and some haystacks; and close to the threshold lay a couple of large fierce wolf-hounds, basking in the rays of the sun.

Viola might have been happy. He had found a place of refuge: he was removed from all social intercourse; and this is, in itself, a blessing for the persecuted and maligned. He might have been happy, if our happiness or misery were not at least quite as much depending on the past as it is on the present. Viola's recollections were most gloomy. His mind was saddened by the thought that he was compelled to leave the scenes of his former life. An exile from the place of his birth, he languished and grieved quite as much as men of better education do, when fate compels them to fly from their own country. The lower classes cling, not only to their country, but also to the place of their birth. Their lives lie within a narrower circle; and, however great his patriotism, a peasant's love for his *home* is still greater. With some it is a predominant feeling; with others it is a madness. His real country, his real fatherland, is the village in which he saw the light,—the narrow spot of earth on which he passed his earliest years. If you remove him from that place, he finds little consolation in the thought that his new abode is still on Hungarian soil, that his country's language is still spoken around him. He sighs for his birth-place, for the humble roof of his parents, for the fields in which he used to work, for the trees in the shade of which he took his rest. His reminiscences are not national, but local; his sphere of interest and action is limited to the confines of his parish. And even if this were not the case, is not our life a totality? Can we separate the past from the present, or the present from the future? Are not our joys bound up in remembrance and hope? And what was there in Viola's past, what was there in his future, to cheer him up, and to nerve him amidst the sorrows of life?

Could he ever forget the injustice and cruelty of mankind? Could he forget that they had hunted him like a beast of the forest? And, worse than all, could he forget his own deeds? the blood he had shed,—the blood which still clung to his trembling hands? How could he hope for happiness? The future lowered over him like a pall. His name was, indeed, unknown in that

part of the country. His master, and the people with whom he had dealings, took him for a brother of the Gulyash of Kishlak; but what guarantee had he for his safety? The arrival of any of his former associates, the discovery of his having come to the county with a false passport, was sure to divulge his real name, and deliver him into the hands of justice. Every stranger who approached the tanya made him tremble. He trembled to think that his own boy might betray the secret of his father's guilt. But still, he could have borne all this. He might have inured his heart to sorrow and anxiety if his wife had been happy, if the love of his children had withdrawn his mind from the remorse and fear in which it lay shrouded.

Fate willed it otherwise!

Susi wanted but little for happiness. To love, was her vocation. She had no wish but to live with her husband and her children, to devote herself to them, to care, labour, and pray for them. Her heart was made to resist the blows of fate, if they failed to strike at that one tender point. When she knew of her husband's liberation,—when she took her children to their new home, she felt as if there was nothing to wish for, or to hope; and all her past sufferings were lost in the feeling of happiness which pervaded her mind. To live far away from mankind, removed from the scene of her former sufferings,—to live a new life, lonely and unknown,—had been her wish for many years; and that wish was now realised. She knelt down at the threshold of her new tanya, and wept and prayed with a grateful heart. She had nothing to ask for, nothing to desire!

But her happiness was of short duration. Her younger child was weak and sickly. Its little face had that expression of sadness which, in children, is a sure sign of suffering and disease.

"How could it be otherwise?" said Susi; "sorrow was its first food. My tears have effaced its smiles, and ever since it opened its soft blue eyes it has seen nothing but grief and sorrow. The poor child cannot help being sad!"

The unsettled life which Susi had latterly been compelled to lead, and which the infant had shared with her; the cold autumnal air to which it was exposed; and last, not least, the fatigue and exposure of the journey to their place of refuge, had a fatal effect upon the tender health of the child. So long as the excitement continued, and while she had to tremble for the

safety of her husband, Susi took no heed of its altered appearance; but a few days after their meeting in the tanya, she became alive to the danger which threatened the infant's life. To see and despair of all hope was one and the same thing. After some days of maddening anxiety, the child died, and a little grave near the tanya was all that remained of so much sorrow and so much love.

The child's death struck a deeper blow to Susi's heart, from the circumstance of its occurring in the very first week of her new-found repose; but when she remarked her husband's sadness, who, still depressed by the late events, considered the death of his youngest born as a harbinger of the approach of avenging fate, she felt that Viola wanted to be cheered and comforted, and her love for him conquered the grief of her mother's heart.

"Who knows," said she, "whether the child is not all the better off for leaving this world of sorrow; and perhaps this misfortune has been sent to us, to prevent our becoming too presumptuous in our happiness? And, after all, have we not Pishta, and does he not grow up to be a fine bold fellow, like his father?"

But in January little Pishta was seized with the fever. His mother's anxiety, her watchfulness, her care, the smiles of comfort from her breaking heart, and her secret tears and wailings,—all,—all could not prevail against the stern decree of fate; and after three long weeks, Pishta was buried by the side of his little brother, and Susi felt that there was nothing in the world that could make her happy.

She complained not; she spoke not of her misfortune; she strove to hide her grief from her husband: but the forced smile on her pale face, the rebellious sigh which *would* break forth, the trembling of her voice, when an accident, when

"The wind, a flower, a tone of music"

reminded her of her children, and her turning away to hide the tears which *would* bedew her cheeks, spoke more plainly than any wailing and mourning by which the wretched woman might have given vent to her grief. Viola loved his wife too warmly to be deceived by her seeming calmness;

his keen eye found the traces of secret tears upon her face; he understood her wordless woe, and his heart was a prey to the bitterness of sorrow. To love, to see the loved one suffering, and to feel that we cannot do any thing to lessen her grief, is a bitter feeling indeed; and Viola felt as if fate had saved his life, only for him to drain the cup of misfortune to the very dregs.

"Wretched man that I am!" cried he, as he stood alone on the heath; "after all my sufferings, must I live to see this day? If I had suffered for my crimes, God would perhaps have pitied my children; but now His hand strikes me in them! There is blood on my hands,—but is it Susi's fault? Are my little ones guilty? Father in heaven! what have they done, that Thy wrath should pursue them?"

Thus lost in the bitterness of his grief, he sat on the hill near his house, when his attention was attracted by the violent barking of his dogs, and as he looked in the direction of the tanya, he beheld a stranger approaching him. Viola lived in solitude; the Gulyash of Kishlak had only called on him once since he dwelled in the tanya, and the herdsmen and outlaws of the county were by no means inclined to cultivate the acquaintance of their new neighbour, for a few unsuccessful attempts had convinced them of his reluctance to join them in their illicit doings. No wonder, then, that the approach of a stranger attracted Viola's attention. But his astonishment passed all bounds when he recognised the sheriff's hussar, and when the latter called him by his real name, a name which he had not heard for many months.

At some distance from the tanya, Janosh had thanked his guide for his trouble, and sent him and Gatzi back, for he wished to speak to Viola freely and without being interrupted. The latter could hardly trust his own eyes, when he saw the old soldier, who used to be a pattern of neatness, attired in a peasant's dress, travel-stained, and with his hair and beard neglected.

"Is it you, Janosh?" said he, addressing the new comer. "What does this dress mean?"

"It's strange, isn't it? We are naked when we are born, and naked do we go to the grave, or at best they give us a gatya to sleep in. A soldier was a peasant at one time, and to a peasant's estate he returns; that's how the world goes. After all, my present dress is none of the worst, only I felt queer

in it at first, accustomed as I am, you know, to be buttoned up in a tight hussar jacket. For some days I fancied I was not dressed at all!"

"But where did you come from, and what has brought you all this way from home?"

The old soldier, who had some secret misgivings about the honesty of his errand, felt uncomfortable at this question.

"Why," said he, scratching his head, "I wanted to call on you,—that is to say, I wanted to find you. I've some important matters to talk to you about. But don't be frightened, man!" added he, on seeing Viola's astonishment; "I have indeed promised to find you, but I have not promised to tell them where you are. I'll have my palaver with you, that's all, and you may afterwards do as you please. As for the worshipful magistrates, they shall never get any thing out of me; no! not even if they'd skin me alive! I'm not the man to blow upon a deserter! Bless you! I never did that sort of a thing!"

Viola's curiosity was heightened by the words and the manner of Janosh; and his desire for an account of the sudden and mysterious appearance of the latter was at length gratified by a circumstantial statement of all the events which had taken place at Dustbury and Tissaret, since the assassination of Mr. Catspaw. The impression which this news produced upon Viola was fearful.

When Janosh told him of Tengelyi's situation, he cast a despairing look to heaven, and cried:—

"I am a cursed being! I am born to destroy all who come near me, no matter whether they are my friends or my foes!"

And covering his eyes with his hands, he gave himself up to a transport of grief.

His distress moved the old hussar, who endeavoured to comfort him in his own rough manner.

"Don't you think," said Janosh, "that Mr. Tengelyi is very badly off! Nonsense, man! he isn't even in gaol."

"But where is he?"

"Why he is not exactly in gaol; but he's in a room of his own in the prison. He has plenty to eat and to drink, for it's I who wait upon him; and you might have known that I am not a man who would give Master Akosh's father-in-law cause to complain. He's all right and comfortable, and there's no reason why he should not walk away, if they had not got that accursed criminal process (for that's the name they give it, I believe,) against him. But there's the rub! Unless his innocence is proved, they'll sentence him—Heaven knows to what! And you see——"

"Did I not wish to serve him?" cried Viola, in a violent burst of grief. "I'm in gratitude bound to serve him! He gave shelter to my wife and children. I would have given my life to make him happy. I killed the attorney because I thought to do him good, and what has come of all my gratitude?"

"Well?"

"Why, this has come of it! He's the honestest man on the face of the earth, and they accuse him of *my* crime! and it's I who have got him into prison,—oh! and if you had not come and told me all, they would execute him in my place!"

"Viola! my boy," said the hussar, "you're wrong. The case is not half so bad as you make it out, I assure you."

"Oh, Janosh! why, when I was sentenced at Tissaret, did you come to my assistance? Why did you save my life? You see what I have come to! I'm ready to bless the day of my death. When a mad dog feels the distemper, he will run away from the house of his master, in order not to harm his benefactor! That's what a mad dog does,—but I, I am worse than a dog, for I am dangerous to those whom I love best!"

Janosh, who was deeply moved by Viola's remorse, endeavoured to comfort him, by protesting he was sure there must be some means of extricating the notary from his present dangerous position.

His words, rude and awkward as they were, had their effect upon Viola. He became more composed, and said—

"As for the notary, he is safe. It will take us three days to go to Dustbury. The papers which I took from the attorney are in my hands; they are covered with blood, and when I tell them how the thing was brought about, they cannot possibly suspect Tengelyi."

The old hussar shook his head.

"I don't think," said he, "you can do it in that way. You're not in a fit state to take a resolution. You are in despair, and what you intend to do ought to be well considered. Nothing is more easy than to go to Dustbury. 'Here I am! I'm Viola! I've killed that rascal, Catspaw!' Why it's mere child's-play to say the words. But the worst is behind. When they've once got you into gaol, I don't see how you can get out of it."

"I don't care!"

"But you ought to care! Why, man! it's the very first thing you ought to think of! They have indeed promised not to take your life, and even the sheriff has pledged his word for your safety! But who can tell? I wouldn't advise you to rely on the promises of the gentry, and it's far more prudent to manage the business otherwise."

"Have you any idea how it can be done?" said Viola, sullenly.

"Of course I have! Give me the papers! I'll take them to Dustbury, and tell the gentlemen that I have spoken to you, that you gave me the papers, and that you made no denial of your having murdered the attorney."

"They'll never believe you!"

"If they don't, I'll call in another witness—Gatzi the Vagabond, who is a good fellow. He's come along with me, and he's now at your neighbour's, the Gulyash. Two honest witnesses can prove any thing; but as Gatzi is not, perhaps, quite honest, because he's in the habit of stealing now and then, we'll have the Gulyash as a third witness. While we are telling our story at Dustbury, you and your wife and children leave this place, and when they come to arrest you they'll find an empty house. That's *my* plan!"

"I have no children!" said Viola, with a deep sigh; "our last—our little Pishta—was buried two months ago!"

"Pishta!" cried Janosh; "my little Pishta! Why, that's a dreadful misfortune!"

"The two little ones are dead! I am childless! My poor Susi is not likely to survive her sweet children long. She is sinking fast; poor woman, she won't see the next snow!"

The two men sat in silence. Viola was lost in gloomy thought, and old Janosh's eyes were full of tears. At length he said,—

"Truly, God alone knows why fate deals harshly with some people! They tell me we're all going to the same place in the end, and that God, who is a great general, commands us to march straight through this world into another. But I must say, the men of the rear-guard have the worst of it. The advanced guard have it all to themselves—grub, and glory, and all; and those that remain behind are in for short commons and kicks. I've known that sort of thing, my boy! When an army retreats, the best men are ordered to the rear; and in the wars I've been dealt with as you are on this earth. 'Devil take the hindmost!' is a true proverb. Bless me! you can't fancy what hard blows we got, and how we were starved! but, after all, it was then I learnt that a man ought never to despair. For when you've come to the camp, a good general is sure to praise and reward the last man of the regiment; and I'm sure our Father in Heaven will do the same when you march into quarters. And besides, who knows but the tide will turn? Susi is left you, and that's a great blessing. Why shouldn't she have half a dozen children? You won't have another Pishta, I'm afraid; for there is not another such a child on the earth, nor will there ever be; but you'll have plenty of children. And, I say, no one knows what a deal of good luck such a child may bring you; and all I say to you is, you're a fool if you put your neck into the keeping of the Dustbury gentry. Bless you, man, it's the worst you can do! and there's time enough for the worst, I should hope!"

Viola listened to the old hussar's advice, without showing his dissent either by words or gestures; but when Janosh ceased speaking, and looked at him, waiting for a reply, he shook his head sadly, hopelessly, and said,—

"You would not advise me as you do if you could but know what I have suffered. You warn me not to surrender to my judges and you counsel me to fly from punishment. But do you really think, my poor Janosh, that my present and past sufferings are not a hundred times more painful than any

punishment which they can award to me? You say they will sentence me to death. It's no more than what I deserve. And what is even the most painful death, compared to the unceasing fear which has weighed upon my heart ever since I came to this place? I am eighty miles from home; but what, after all, are eighty miles? *You* have found me, and others may!"

"There you are out! It's not every man has been in the wars, and——"

"You found me by accident! Oh, I tell you, I've played the coward! I've crouched among the ferns and the brushwood, when I saw a stranger approaching my house! When my master asked me about my former pursuits, I felt the hot blood rush into my face, and I trembled for all the world as if I stood before my Judge. No, Janosh! my life is a hell! it's not the life of a human being, and the sooner I've got rid of it the better for me, for Susi, for all!"

"They won't hang you!" said Janosh. "The sheriff has come to quarrel with his wife, and he has been an altered man ever since. He has promised to spare your life, and I'm sure he'll stick to his word, that is to say, if he *can*; for, after all, who knows but the other gentleman may get the better of him? and it's always my opinion one ought never——"

"Stop!" cried Viola. "I'm sure you mean well; but I've made up my mind. Believe me, ever since my children died I've often thought whether to surrender is not the best thing I can do. Even if you had not come and told me of the notary's danger, I think I should have given myself up to the police, to rid myself of the torments which now prey upon my mind. A few days before my poor Pishta died, the child was so thin and worn out you would not have known him if you had seen him at the time. Nothing was left of him but his sweet soft voice; methinks I hear it now; and he—— What were we saying?" continued Viola, wiping his eyes; "to think of him makes me forget all and everything. What was it, Janosh?"

"You spoke of Pishta's death. Don't go on, pray!"

"I must! I must tell you, that shortly before he died, and, indeed, all the time he was ill, he entreated me not to go on being a robber: 'Won't you, father, dear! you won't be a robber any more?' were the last words I ever heard him say. Now, tell me, is it in my power to obey my dying child's request if I

remain here? Let the meanest thief come to this house who has seen me in former times; is he not my master, because he has my secret? Can he not force me to join him in any crime he may choose to perpetrate? I'm lost! My very honesty depends upon an accident; and chance alone can protect me from falling back into my old ways."

Janosh sighed; for he felt the truth of Viola's remarks.

"There's blood on my hands, and I must die! It's but common justice! I've thought the matter over, and I see no other way to get out of it. And, after all, there is neither peace nor comfort in this world after such a deed! When they have pronounced my sentence, my conscience will cease from accusing me. I have not, indeed, ever had the *intention* of killing any body! Accident has made me what I am—a murderer! and fate has decreed that I am to suffer for my crime. What man can prevail against his destiny?"

"This is all very well; but what's to become of Susi, I'd like to know?" said Janosh, with a deep sigh.

Viola made no reply. His features were violently contracted; his hands clung with a tremulous grasp to the staff which lay by his side; his chest heaved as if it were bursting. At length he said, with a trembling voice,—

"What is to become of Susi when I am dead? Why, it's this which unnerves me! But what am I to do? Poor woman! If I could do aught to remove her sorrow, if her misery were not so great that nothing can add to it, I would suffer all! all! all! I would not care for the pangs of my conscience! I would not mind my fears and my sorrows, neither here, nor even in the world to come, if I could hope that my life would serve to comfort Susi. But her heart is brimful of anguish. There is no room for fresh griefs, no room for comfort of any kind; nay, more, my presence compels her to forego the only relief she has—that of taking her fill of weeping! No! no!" continued he, passionately, "I cannot bear it any longer. I'll do it, since it *must* be done, and I'll do it at once. God will perhaps have mercy on her when I'm dead and gone! He'll take her away from this world, in which there is no place of rest—no! none at all for those that love Viola; and even if she does not die, she will be safe, and perhaps some charitable hearts will pity her case and provide for her. Come, Janosh! bind my hands and take me to Dustbury. Be quick!"

These words, and the tone in which they were spoken, convinced Janosh of the firmness of Viola's resolution, which he did not attempt to oppose, because he felt the weight of the arguments which the repentant robber had advanced in support of it.

"After all, you're not far from right," said he, after a short pause. "I'll be bound for it they won't hang you; and perhaps it's better for you to have your punishment over, and have done with it. It makes you a free man; and prevents you being brought back to your old ways. But as for the binding part of the business, it's sheer stuff and nonsense, I tell you. If you come of your own accord, they'll put it down on the bill as a special point in your favour, and strike off a few years from the time of your captivity. But, hang me if I take you to Dustbury! It would be a disgrace to me to the end of my life, if people could say, it was old Janosh who arrested Viola!"

"Very well!" said Viola, "if you won't take me, you may go to Dustbury at once, and tell Mr. Tengelyi to be of good cheer, I'll be at Dustbury on the fourth day from this. My Bojtar^[33] will soon come back to take charge of the cattle. I must talk to Susi lest she should be shocked by my sudden departure. Poor woman! it will be a hard thing to take leave of her."

[33] Bojtar, *i.e.* helpmate.

"Why," said old Janosh, "if you've made up your mind to go, you had better not mention your plans to Susi. After you've come to Dustbury, I'll go to fetch your wife; and when the sheriff tells her that your life is not in danger, I'm sure she'll get reconciled to the arrangement. Be of good cheer!" added the old soldier, shaking Viola's hand; "all's well that ends well! They'll lock you up for a few years, and after that time you'll go back to Tissaret as an honest man. But I must be off now. It would frighten Susi to death to find me here, and in this dress too!"

Saying which, the hussar turned to leave the spot; but after walking a few yards he came back, and said:

"I forgot to mention, that you need not come if you should repent of your resolution. I'll take my oath nobody shall ever learn from me where your tanya is; and all they can say is, that I'm a greater donkey than they thought I was, because I couldn't manage to find you. But, believe me, I don't care what they say. God bless you, my boy!"

Janosh did not wait for an answer. He hurried away; and after a few minutes, Viola heard the quick trotting of a horse. It was Janosh on his way back from the tanya.

"After all, my life will be good for something," muttered Viola. "I wanted to prove my gratitude to my benefactor, and all I did was to bring another misfortune upon him. At present I have it in my power to save his life by the sacrifice of my own! But what is to become of Susi?"

He sat lost in gloomy thoughts, with his head leaning on his hand, when his wife returned to the tanya. Her voice awoke him from his dreams. It struck her that he looked as if he had wept. But for the poor woman, who came from the grave of her children, there was nothing extraordinary in his tears.

CHAP. X.

Viola had many difficulties to encounter before he could carry his project into execution. His resolution was irrevocable; but what was his most plausible pretence for leaving the tanya without alarming the fears of his wife? Ever since their change of abode, Susi showed the greatest anxiety whenever her husband left her, though but for a few hours; and this anxiety, so natural to a woman in her position, had risen to a formidable height ever since the death of her children. Her husband was her all—her only treasure,—her sole comfort on this earth. And was he not always in danger of a discovery of his former character and pursuits? Her anxious care was, in the present instance, almost maddening to Viola. In the course of that day he attempted a hundred times at least to tell his wife that he must leave her for a few days; and a hundred times he felt that he wanted the strength to break the matter to her. At one time it struck him that Susi was more cheerful than usual, and he was loth to distress her at such a moment; another time he thought she looked sadder than she generally did, and he considered that frame of mind unfavourable to the reception of his communication. Indeed there is no saying how he could have executed his project if Susi had not been struck with his embarrassed manner, and the preparations he made for the journey. She questioned him, and he told her that his master had sent in the morning ordering him to fetch some cattle from a neighbouring county. Susi trembled; but there was no help for it. Viola was bound to obey his master's orders: he could not possibly refuse obedience by stating the reasons of his aversion to the journey; and the poor woman was reduced to snatch at the straws of comfort which lay in her husband's assurance that the place to which he was sent lay at a greater distance from the county of Takshony than their present abode did.

"Don't be afraid. Nobody can know me at that place; no Tissaret people come there!" said Viola; and Susi did her best to appear quiet and unconcerned.

Viola was conscious of the fate which awaited him. Whenever he looked at his wife he shuddered to think what her anguish would be when the true nature of his errand was revealed to her; and all his strength of mind could scarcely suppress his tears. He struggled hard to keep them down; and in the evening, when, after pressing Susi to his heart for the last time, he mounted his horse, she could not, by any outward signs, get a clue to the deep despair which ate into his heart. When his voice came to her with the

last "God bless you!" she had no idea of the truth. It never struck her that she heard his voice for the last time.

Viola was inured to suffering. His grave aspect hid the anguish which convulsed his mind: but when his horse had borne him onwards to the deep forest, his grief leapt forth like a giant; and, shaking off the bonds of restraint, he bent his head low down on his horse's neck, and his powerful frame trembled with the convulsions of deep, hopeless, unmitigated grief.

It was late in the afternoon when he left the tanya; the faint rays of the setting sun shone from the west, and the crescent, shedding her silver light through a few feathery clouds, shone upon the solemn silence of the earth below. The beauty of Nature cannot prevail against the existence of care; but it can lessen its intensity: grief, with its bitter and passionate expression, yields to solemn sadness. Nature seems to share our woe: each star looks feelingly down from its sphere; and the boundless horizon brings our own littleness, and the trivial character of our sorrows, home to us.

The peaceful silence which surrounded Viola gave peace to his weary heart. He dried his tears as he looked up to the stars, that send forth their rays of hope from their spheres of silence and mystery.

He came to the hill whence, but a few short months ago, he had cast the first glance at his new tanya. He stopped his horse and looked back. The dim light of the moon showed him but a whitish speck, and a herdsman's fire near it. He thought of the hopes which bloomed in his heart when he came to the place; he thought of the events which destroyed those hopes in their first and fairest bloom. He thought of his children, who lay buried at the foot of the hill, and of their wretched mother, and of the cruel blow which was about to descend on her devoted head. Again the big tears gushed forth from his eyes; but when this sudden burst of sorrow was over, he regained all his former firmness.

"Who can help it?" said he, with a deep sigh, as he turned his horse's head away from the place which contained all he loved best. "What man can run away from his fate? I was born for misery!"

Viola intended to go to Tissaret and to surrender to Akosh Rety, or, if he did not find him, at least to send the Liptaka to tend and comfort his wife. The

distance from the tanya to Tissaret was full eighty miles; and Viola, to avoid being seen by any one, especially in the county of Takshony, shunned the roads and beaten paths, and journeyed mostly at night. He had therefore time enough to think of his situation and prospects. But his thoughts would still return to Susi.

"I would not care," said he to himself, "if I could but be comforted on her account. She'll despair when they tell her that I have surrendered to the county magistrates. She will think me cruel! But what was I to do? They would have found me out at last. Old Janosh found me sure enough, and others might follow in his track any day. They would have pounced upon me and arrested me. But now that I surrender of my own free will, I can at least prevent them from taking Mr. Tengelyi's papers. I can get him out of his troubles, and who knows? perhaps they'll give me a pardon, Janosh said they would!"

This last reflection was a great comfort. If ever a man expected the approach of death calmly and with firmness, that man was Viola. But death by the hands of the executioner is terrible even to the most courageous; and Viola, who thought of Susi, was prepared to suffer all and everything, except this one last infamy, which he felt convinced his wife could never survive.

"Perhaps they will lock me up for ten years—let them! they may torture me, they may do their worst, I won't care for it. It will give Susi strength to know that I am alive, and that she can be of use to me; and I, too, I'm sure I'll bear any thing if I can see her at times; and after all there must be an end even to the worst punishment, as Janosh told me, and I shall be able to live as an honest man to the end of my life!"

Such is human nature. In the worst plights we cast the anchor of our hope amidst the shoals of lesser evils; but without hope we could not live for a day.

Viola's reflections on his position tended greatly to calm and comfort his mind. He was a two-fold murderer: but there were a variety of extenuating circumstances in both the cases; and, with the exception of his two great crimes, of all his breaches of the law, there was not one which exposed him to capital punishment; the circumstance that he had already undergone what

the Hungarian law calls "*the agony*,"^[34] namely, the mortal anxiety of a culprit under sentence of death, and in the present instance his voluntary surrender to the criminal justice of his country would stand in the way of a capital sentence. And if he succeeded in liberating the notary from his present painful position, could he not rely on the protection of Akosh Rety and his friends?

[34] See [Note II](#).

The third night of his journey found him at a few miles' distance from Tissaret. Here he was under serious apprehensions lest he should fall into the hands of Mr. Skinner's Pandurs, before he could surrender or manage to deliver the papers to Akosh Rety. Viola had no idea of the real cause of the importance of the papers, but when he remembered that they were taken from him at the time of his capture in the St. Vilmosh forest, and that Mr. Skinner had attempted to deny their existence, he was justified in his fear that the justice would annihilate the documents if they were to fall into his hands. He resolved therefore to defend them to the last, and to prefer death to captivity, unless he could place the notary's papers in the hands of a trustworthy person.

At break of day he reached the St. Vilmosh forest. He had been on horseback ever since sunset, and his horse was fatigued. It was a good two hours' ride to Tissaret from the place where he stood, and he pitied the horse, which had done many a good service in by-gone days. He knew the danger to which he exposed himself by approaching the village by daylight, for nothing was more likely than that he would be seized and dragged to the justice's before he could meet young Rety. But what was he to do? The forest had been cleared in the course of the winter; the trees were still stripped of their foliage, and there was no place in which he could have remained till sunset. He had no other alternative but to proceed.

"And after all," thought he, "on the plain I can keep a good look out, and get out of the way, if need be. *Hollo*, my boy!" added he, patting his horse's neck, "don't fail me to-day, old comrade! I'll give you into good hands. Perhaps Master Akosh will take you to his stable. He'll use you for hare-hunting, for you've had a good schooling in racing. They've hunted us many a time; but never mind! Your time has come at last, *Hollo*, my boy, for this is the last time you and I are on the heath together!"

He continued his way in deep thought; and the horse, too, as if conscious of his master's grief, walked dejectedly amidst the trees on the outskirts of the forest.

Viola's train of gloomy reflections was interrupted by the sound of hoofs. He looked up, and beheld three Pandurs, who were travelling on the other side of the clearing. He turned his horse's head to steal away; but they had seen him, and rode up to him.

There was but one means of safety. He knew it at once, and, putting spurs to his horse, he rushed forward.

"Stand, or die!" shouted his pursuers; but, though fatigued, Hollo was still a match for the jaded hacks^[35] of the county police, and the reports of the pistols which were fired behind him only heightened his speed. He rode on in the direction of Tissaret, and the Pandurs, who still kept their eyes upon him, followed, though at a distance.

[\[35\] Note V.](#)

Akosh was at that time in Tissaret. Ever since his wife's death, the sheriff felt an aversion to return to his family seat. He left the management of the property to his son, who lived in old Vandory's house; for he too had an aversion to the Castle and the reminiscences connected with it.

The morning on which Viola approached his native village, Vandory arose early, according to his habits, and seeing that the sky was clear and unclouded, he could not resist his desire to visit the Turk's Hill, to see the sunrise from its summit. He roused Akosh, and induced him to accompany him to the hill, on which we found the curate and Tengelyi at the commencement of this history.

There are few people in the world who like to be disturbed in their sleep; and though Akosh Rety yielded to his uncle's entreaties, his temper was none of the sweetest, as he accompanied the enthusiastic old man, who, in the course of their walk, held forth on the beauties of the rising sun, while he delighted in the anticipation of the glorious spectacle which awaited them. To the shame of Akosh Rety be it spoken, that not all the glories of that gorgeous phenomenon, and much less his uncle's arguments, could convince him that it was worth while to wake him from his sweet dreams,

merely for the purpose of seeing a few pink clouds and breathing the moist and chilly air of an April morning. But though the beauties of Nature failed to engage his interest, his attention was soon directed to and attracted by another spectacle.

Akosh had not been on the Turk's Hill ever since the autumn, when he met Vandory and the notary after the hunt. It was but natural that he should think of all the events that had occurred since that time. His heart was full, and he turned to the curate, saying,—

"I remember, for all the world as if it had happened yesterday, that poor Tengelyi stood where we now stand. Our horses were at the bottom of the hill. To the right stood Paul Skinner, the great fool. I think even now I hear his curses when he looked to the forest of St. Vilmosh, and saw that the Pandurs were escorting a prisoner. You remember it, don't you? I protested that it was not Viola whom they had with them!"

As he said these words, Akosh turned in the direction of the St. Vilmosh forest, and his quick eye discovered the horsemen, who at that moment broke from the forest and spurred over the plain.

"What does this mean?" cried he, as he directed Vandory's attention to the chase.

"What is it?"

"Look! look! they are going at a fearful rate. One man in front, and three after him as if they were pursuing him!"

The curate sighed.

"Heaven forbid!" said he. "I have seen one of my fellow-creatures hunted down from this very spot. I hope and trust——"

"It's a chase!" cried Akosh. "It's the foremost man they are after. How he cuts away! straight through the meadows and over the fields!"

"God help him!" said the curate, folding his hands.

"He can't escape! they are driving him up to the village, and his beast is done up. They have been gaining upon him ever since we first saw him!"

"Let us hope the man is not a robber!" said Vandory, who watched the proceedings of the horseman with painful attention. "I am sure he is a robber, or at least his pursuers take him for one," added he, after a short pause.

"I see the carbines of the Pandurs!" cried Akosh. "The poor beast is done up! One of the rascals is close at his heels—there! he's come down horse and all! On! on! my fine fellow! you're safe for a few minutes! you've got a start now! Goodness knows!" added the young man, "I'd do any thing to give him a fresh horse!"

Viola's position—for we need not say that it was he whom Akosh and Vandory beheld from the Turk's Hill—was improved by the fall of one of his pursuers; for when the second Pandur came up to the place where his comrade struggled under the weight of his horse, he stopped and dismounted to assist him. As for the third officer, he was far in the rear; and as it was Viola's greatest desire to reach the village, and to give the papers into the hands of a trustworthy person, he could for a moment hope to succeed in his endeavours.

"Hollo! my good horse, don't fail me in this last extremity!" gasped he, as he spurred his steed. "On! on! Hajra! Hajra! Hollo!"

But Hollo's last strength was spent. The poor beast came from a long and fatiguing journey, and for the last half-hour the race had been over broken ground, fields and ditches. From a gallop he fell into a broken trot; and Viola, who was close to the Turk's Hill, and who saw his pursuers coming nearer and nearer, tried all he could do, with voice, whip, and spur, to urge the exhausted animal onward. The horse was covered with white foam, the perspiration ran down his long black mane, he trembled on his legs—but despair made Viola blind to the sufferings of his faithful companion, and again and again he buried his spurs in his bleeding sides. Hollo made another rush forward.

"Stand and surrender!" cried a voice behind him.

Viola turned round.

The Pandur was at the distance of but a few yards from him; another minute would have brought him to his side.

The outlaw seized the pistol at his saddle-bow, and turned it upon his pursuer. But the Pandur had his carbine in readiness.

He raised it, and fired.

Viola uttered a loud shriek! He flung back his hands and fell on his horse's neck. The frightened animal leaped, plunged, and rolled on the ground!

Akosh Rety, who had left his position on the hill for the purpose of interfering, if possible, in behalf of the pursued, came just in time to prevent the Pandur from ill-treating the wounded man.

The latter had dismounted, and would have struck Viola with a fokosh, had not young Rety prevented him.

"You're a dead man, if you dare to hurt him!" cried Akosh, endeavouring to extricate the robber from the weight of his horse. "Scoundrel! don't you see you've killed him?"

"Killed him, indeed! So much the better!" said Tzifra, (for it was he, whom the patronage of Paul Skinner had established among the county police). He would have resisted, but on consideration he thought it best to avoid a quarrel with the sheriff's son.

"I don't care, sir, whether I've killed him or not," said he; "I'm sure it does not matter. Don't you see, sir, it's Viola; and I'm entitled to the reward of five hundred florins, which the county has promised to the man who captures or kills him. I hope he'll die before my comrades come. Confound them, they'd be after claiming part of the money!"

Akosh paid no attention to the Pandur's brutal expressions, and with Vandory's assistance he succeeded in removing the horse from the body of the wounded man.

"He is dead!" said Akosh, as they laid him on the turf. "Life is extinct, and with it all hope of proving Tengelyi's innocence!"

The curate knelt down and examined the wound.

"No!" said he. "He is alive, but the ball has pierced his breast. He is not likely to live; still I think he will linger on for a few hours. I say!" added he,

addressing the Pandur, "mount and ride to the village! Tell them to send a stretcher and call in a surgeon!"

"I'd rather——" replied Tzifra. "Don't you think me such a fool as all that. I'm entitled to a reward of five hundred florins, and if I go, my comrades will come and claim the money. And, after all, your worships are my witnesses that it was I who shot him!"

"If you don't go this very moment, I'll blow your brains out!" shouted Akosh, taking up a pistol which had fallen from Viola's hands. "Be off! I'll give the blood-money if no one else will!"

His threats and promises induced Tzifra to hasten away. Young Rety and the curate remained with Viola, and when the two Pandurs came up they were at once despatched for some water; but neither the water, nor the words of comfort and consolation spoken by Vandory, availed to break through the deep slumber of death which lay on the wounded man.

Half an hour passed thus, and already did the people from the village flock to the spot, when Viola gave some signs of returning life.

He moved his limbs, opened his eyes, and looked around.

"Do you know me?" said Akosh, leaning over him, and taking his hand. "Pray look at me, Viola!"

"I know you!" replied the outlaw, with a broken voice. "It's well you are here, for it's you I wanted to see."

He raised his hand, and made a vain attempt to open his dress.

"Open my coat for me!" said he. "Take the papers away. They are Mr. Tengelyi's papers, which Jantshi the Jew and Catspaw the attorney stole. I came to restore them to their owner."

Akosh took the papers in his hand.

"They are covered with blood!" groaned the outlaw. "There's some fresh blood on them; but it's no matter,—it's my own blood. Mr. Tengelyi deserved well of me,—we are quits now. Tell him I kiss his hands, and don't let him say that Viola was a reprobate who returned evil for good!"

While he spoke, the people of the village came in crowds and stood round him.

Vandory advanced, and said,—

"My friend, perhaps you are not aware of the fearful suspicion which rests on Mr. Tengelyi, on account of these very papers?"

"I know all about it!" replied Viola. "Janosh told me everything; and it was for the purpose of clearing him from suspicion that I came to deliver myself to the magistrates."

With a violent effort he raised himself on his arm, and exclaimed:

"Men of Tissaret, listen to me! Whoever says that it was Mr. Tengelyi who killed the attorney, that man tells an untruth, no matter who he be! *I* am the murderer. I intended to take the papers which the attorney and the Jew stole from the notary. He threatened to shoot me, and I slew him. The notary is not guilty of the murder, so help me God!"

He fell back, and lay motionless. The villagers were deeply moved by his words. They stood silent, and many of them wept.

"Poor fellow!" said an old peasant at length, "why has fate dealt with you in this manner? You were a good neighbour, and I thought you would close my eyes after my death, as I closed your father's eyes before you."

Viola turned his glance upon the speaker.

"Old man," said he, "when you pass my house, and see it desolate or inhabited by strangers, you will not forget Viola, your neighbour, who owned it in former times. God sees my soul! it was not by my own fault that I came to be what I am. May God have mercy upon me, and upon those who made me a robber!"

"Clear the way! let me pass! for mercy's sake, let me come to him!" cried a female voice at a distance; and as the people fell back on each side, old Mother Liptaka came running up to her dying kinsman.

"Take him up!" cried she. "Why don't you take him to the village? There's life, and hope, and help! Come along, some of you, and carry him to my

house!"

"Leave me alone, coz!" said Viola, drawing his breath with great difficulty; "leave me alone! Nothing can do me good. It's over with me, and it serves me right. There's blood on my hands, and I pay for it with my own blood. Heaven is just, coz! But since die I must, let me die here in the free air of heaven, and in the warm rays of the sun."

His voice grew fainter and fainter.

He moved his hand.

The Liptaka, obedient to his wish, knelt down by his side.

"Go to Susi, coz!" said he; "tell her I implore her pardon for having deceived her when I left my home. Tell her I could not help it. I could not abandon my benefactor in his distress; and if I had told her what I was going to do——"

The words died on his pale lips. Once more did he open his eyes on the clear blue sky, on the distant village, and the people around him. He closed them again. A strange smile passed over his face, and with his last breath he whispered,—

"Susi!"

"May God have mercy on every sinner!" said the old peasant. "He has much to answer for!"

"His sufferings were great!" said Vandory. "May the earth be light to him, after the struggles of this life!"

CONCLUSION.

It is scarcely necessary to detail the results of Viola's last confession. Tengelyi's liberation and the alliance of his house with the Retys, and of the Retys with the Kishlakis, by means of Kalman and Etelka, were its first

fruits. The happy consummation of the wishes of the young people, and the heartfelt contentment which expressed itself in the faces of all around him, sufficed to rouse Mr. Rety from the gloomy lethargy into which the events detailed in this history, and especially the death of his wife, had sunk him. He did not, indeed, feel at ease in his official position, which he resigned, under the pretence of ill health; nor at Tissaret, for the place reminded him of many things which he wished to forget; but he sought and found all his heart longed for in his dignified retirement at Dustbury. He was respected by all factions, for he never opposed any, and he was the favourite of the ruling party, whatever it might be, for his political opinions were always exactly those of the majority. Some people believed that he intended to remove to Pesth. They were mistaken. Rety was the first man in Dustbury: he did not care to follow, since he might lead. Besides, he became, in course of time, sincerely attached to old Kishlaki, who disliked Pesth, and who preferred Dustbury, his pipe, and the frequency of his intercourse with his son, Kalman, and his daughter-in-law, Etelka, to all the capitals of Europe. It need hardly be said, that Mr. Kishlaki was not any longer, nor did he ever intend to act again as, president of a court-martial.

The notary was moody and depressed for many months. Misfortunes are apt to spoil the most facile temper, and Mr. Tengelyi's temper was *not* facile. His wife's entreaties could never induce him to inhabit the Castle of Tissaret, and to join the family circle of Akosh and Vilma Rety. But the happiness which surrounded him, the beneficial influence which he, the father-in-law of the lord of the manor, exercised over the condition of the inhabitants of Tissaret, and the conversation of his friends, Völgyeshy and Vandory, conquered his habitual ill-humour, and made him, in course of time, an agreeable and even indulgent member of the circle in which he moved.

As for Mr. Paul Skinner, his fate was simple in the extreme. An unfortunate mistake which he committed, by compelling the peasants of Garatsh to repair his house instead of the roads, caused the High Court to deprive him of his office, and, with it, of all the means he possessed to attract attention or merit public reproof. If he is still a tyrant—for nothing is known of his present doings—he must confine his oppression to his family circle, where it is but too likely that he will at length meet with opposition.

Susi was anxiously waiting for her husband's return when the news of his death reached her. It came upon her like lightning: she fell, and lay in a death-like swoon. When she returned to consciousness, she arose and went to the graves of her children, which were for the first time covered with the fresh verdure of spring. She knelt down and took her leave of all that remained of her loved ones; and, having done this, she consented to accompany the Mother Liptaka to Tissaret. She asked, as a favour, that she might be allowed to live in the house which she and her husband formerly inhabited. Akosh Rety had the house repaired, and everything arranged as it was when Viola was an honest and thriving peasant. It was there Susi lived, lonely and solitary, speaking to no one, and never leaving her room except by night. After sunset she would go to the Turk's Hill, where she remained till morning dawned on the far plain.

Some months passed in this manner. Akosh and Vilma (now his loving wife) were walking on a fine evening in June to the Turk's Hill, when they were startled by a female voice, singing the words of the psalm:—

"Oh that to me the wings were given,
Which bear the turtle to her nest!
That I might cleave the vaults of heaven,
And flee away, and be at rest!"

Vilma knew the singer.

Early next morning, when the peasants went to their work in the fields, they found a woman lying on her face, close to the Turk's Hill, on the spot where Viola had breathed his last.

They tried to wake her, but they could not. Susi slept, never to wake again!

My work is done; and nothing now remains but to say adieu to my readers. But before I close this book, let me turn to the boundless plain of my country, and to the scene of the joys and sorrows of my youth, to the banks of the yellow Theiss! There is a beauty in the mountains; there is a charm in the broad waters of the Danube: but to me there is a rapture in the thought of the pride of Hungary,—her *green plain*! It extends, boundless as the

ocean; it has nothing to fetter our view but the deep blue canopy of Heaven. No brown chain of mountains surrounds it; no ice-covered peaks are gilded by the rays of the rising sun!

Plain of Hungary! Thy luxuriant vegetation withers where it stands; thy rivers flow in silence among their reed-covered banks: Nature has denied thee the grandeur of mountain scenery, the soft beauty of the valley, and the majestic shade of the forest, and the wayfaring man who traverses thee will not, in later years, think of one *single* beauty which reminds him of thee; but he will never forget the awe he felt when he stood admiring thy vastness; when the rising sun poured his golden light on thee; or when, in the sultry hours of noon, the *Fata Morgana* covered thy shadeless expanse with flowery lakes of fresh swelling waters, like the scorched-up land's dream of the sea which covered it, before the waters of the Danube had forced their way through the rocks of the *Iron Gate*; or at night, when darkness was spread over the silent heath, when the stars were bright in the sky, and the herdsmen's fires shone over the plain, and when all was so still that the breeze of the evening came to the wanderer's ears, sighing amidst the high grass. And what was the feeling which filled his breast in such moments? It was perhaps less distinct than the sensations which the wonders of Alpine scenery caused in him; but it was grander still, for thou, too, boundless Plain of my country, thou, too, art more grand than the mountains of this earth. A peer art thou of the unmeasured ocean, deep-coloured and boundless like the sea, imparting a freer pulsation to the heart, extending onward, and far as the eye can reach!

Vast Plain, thou art the image of my people. Hopeful, but solitary; thou art made to bless generations by the profuseness of thy wealth. The energies which God gave thee are still slumbering; and the centuries which have passed over thee have departed without seeing the day of thy gladness! But thy genius, though hidden, is mighty within thee! Thy very weeds, in their profusion, proclaim thy fertility; and there is a boding voice in my heart which tells me that the great time is at hand. Plain of my country, mayst thou flourish! and may the people flourish which inhabit thee! Happy he who sees the day of thy glory; and happy those whose present affliction is lightened by the consciousness that they are devoting their energies to prepare the way for that better time which is sure to come!

NOTES TO VOL. III.

NOTE I.

KITCHEN-PRISONER.

In all matters of internal management, the Hungarian prisons have always been arranged on the self-supporting system. While the service of the house, the feeding and airing, and the discipline, were in the hands of the haiduks, who acted as turnkeys, the meaner work was done by the prisoners. A few of them were always chosen to clean the wards and cellars, to sweep the yard, to cook the prisoners' dinners, and (not unfrequently) to assist the servants of those among the magistrates who occupied chambers in the county-house. The men who were used for this kind of work were called "*kitchen-prisoners*;" and as the occupation was not only a distinction but also a means of making them comfortable, the post was eagerly competed for. So accustomed were the magistrates to see certain functions discharged by prisoners instead of by free men, that once upon a time, when not a single evil-doer was confined in the county gaol of Wieselburg, and when the haiduks refused to sweep, char, and cook, such occupations being "*infra dig.*," the worshipful magistrates assembled, and, for the purpose of putting an end to so disgraceful a state of things, resolved to *hire a prisoner*, meaning thereby the engaging of a person who, for a certain pecuniary consideration, would condescend to act as servant to the turnkeys. This resolution was carried out, and the man whom they engaged was ever afterwards designated by the name of "*The hired kitchen-prisoner.*"

NOTE II.

AGONY.

The Hungarian criminal law held that the moral sufferings of a culprit on the eve of execution are quite as severe a punishment as death itself. Hence, if a culprit was hanged, and the rope broke, he was usually released. A free pardon was also granted to those whom the headsman failed to kill in three blows. If a culprit escaped, the circumstance that he had been ordered to be

executed, and that he had suffered "*the agonies*," was a great point in his favour whenever he was recaptured and brought to trial.

NOTE III. URBARIUM.

Whatever travellers and politicians may have asserted to the contrary, Hungary has not, for many years back, known any privileges of race. Her social and legislative distinctions were founded on *class privileges*. In the very first year of her history we find, indeed, a distinction between a governing and a governed race. When Arpad invaded the country, his companions and the aborigines who joined him were free. But the majority of the Slovaks, who opposed him, were defeated and reduced to servitude. The number of the serfs was increased by the frequent predatory excursions into Southern Germany, Greece, and Upper Italy, in which the followers of Arpad indulged, and from which they returned with treasures, cattle, and captives. The latter remained as bondsmen on Hungarian soil.

When St. Stephen, king of Hungary, induced his people to embrace the Christian faith (in the year 1000), all Christians, even the serfs, and all converts to Christianity, became free men; but all heathens were reduced to, and remained in, servitude. Hence many nationalities were emancipated, while part of the original Magyars became serfs. This is the origin of the Hungarian *peasantry*.

In the twelfth, thirteenth, and fourteenth centuries, the Hungarian peasant had ceased to be a serf. He was merely "*glebæ adscriptus*," and bound to a *robot*; that is to say, he was compelled to work for two days each week for the benefit of the lord of the soil. In return, a certain portion of land (from thirty to forty acres) was ceded to him, and he was compelled to pay tithes to the church. The landlord had no right to remove him from his *cession*.

In the fourteenth century, the *robot*, or labour rent, was increased, and the peasantry were moreover obliged to give one ninth of their harvests to the landlord, but, on the other hand, they were freed from military service. The noblemen, or, more justly speaking, the franklins, alone defended the country against foreign invasions. At a later period, when the Turkish wars commenced, the attacks of that hardy, numerous, and warlike race, placed

Hungary in great jeopardy, and the franklins, awed and terrified beyond measure, summoned the peasants to defend the country. A law was passed compelling twenty *cessions* to produce, equip, and maintain in the field *one* soldier; and the men who were thus raised were called *hussars*, from *hus*, which means twenty. The derivation of the name was of course speedily forgotten; and in later years the Hungarian cavalry used to boast that they were called *hussars* because each man of them was a match for twenty.^[36]

^[36] The nickname of the Hungarian infantry was Cherepai, or double dealers, because it was asserted that in the exchange of prisoners, two Turks were given for one Hungarian foot-soldier.

In the year 1512, Cardinal Bakatsh, the archbishop of Gran, thought proper to preach a crusade against the Turks, and to exhort the peasantry to rally round the standard of the cross. They obeyed the call with great readiness, but once assembled and in arms, they advanced some new and dangerous doctrines. Property, they said, ought to be equally divided. No one was entitled to one inch more of ground than his neighbour. They protested that they saw no necessity for lords and magnates, and as for the king, they put him down as a luxury. Their cry was that Hungary was large enough for all to live in plenty, if the land were equally divided. For the furtherance of their doctrine, and for the purpose of giving a practical proof of their thesis, "that there was room and plenty for all," they attacked and slaughtered, not the Turks, but their landlords, and all other opponents of their fraternal democracy. Some priests who joined them directed their destructive fanaticism against the church, and, under the cry of religious and political liberty, all ecclesiastical and secular government was declared to be vicious and damnable.

This insurrection was at its height, when the franklins and magnates of Hungary assembled under John Zapolya (afterwards King John), the Voyewode of Transylvania. A war of extermination commenced, and the forces of the fraternal democrats were eventually routed in a fierce battle, which was fought near Szegedin. Their leader, George Dozsa, fell into the hands of John Zapolya, who ordered him to be placed on a red-hot iron throne, while his temples were scorched by an iron crown. The other leaders of the insurrection were hanged, broken on the wheel, and quartered. The Diet, which assembled immediately afterwards, declared that the peasants had forfeited all their rights. They were degraded to the state of serfs, *ad*

perpetuam rusticitatem; that is to say, they could never purchase their emancipation, and rise to the estate of citizens or franklins.

Fifty years later, we find some laws which prove that this cruel decree was "more honoured in the breach than the observance." The peasants have returned to their robot of two days each week; but nevertheless their condition is extremely precarious, for the law of the land is still against them, and whatever privileges they enjoy, they hold them, not by right, but by indulgence.

In 1715 occurs the first introduction of a standing army and of war taxes. The landowners refused to pay these taxes, because they protested that, as they were the proprietors of the land, and as every burden on the peasant was a burden on his landlord, it followed that all that the peasants paid was in reality paid by them, and that to tax peasant and landlord meant no more than taxing the latter twice. The war taxes were consequently paid by the peasantry. But as these taxes rested and depended on the tenure of the peasants, the government considered itself entitled to protect them against the encroachments of the landowners, and to establish them irrevocably in their *cessions*.

In 1764, the Empress Maria Theresa proposed a law to the Diet regulating and determining the duties and rights of the peasantry. The Diet found fault with the details of the bill, and rejected it. The Empress convoked no other Diet, but, deviating from the course of the law, she decreed that the bill should be enforced throughout Hungary by means of Royal Commissioners. The Estates of Hungary demurred against this decree, not only because the clauses of the bill were utterly impracticable, but also because the interference of Royal Commissioners was a source of great annoyance to the Hungarian magistrates and landed proprietors. The Hungarian Chancery and the Home Office supported the Diet in the question of details, because it was impossible to make one rule suffice for the whole country. One councillor only, M. Izdenczy, declared that the thing could be done, and he volunteered to prepare the code, if the Empress consented to let him have an unlimited quantity of Tokay from her cellars. His wish was complied with, and he undertook and finished his gigantic task in the year 1771. His code was that very year introduced throughout Hungary under the name of *Urbarium*.

Izdenczy's work has a strong resemblance to the Domesday Book. Every village within the Hungarian countries and crownlands has its own Urbarium put down in it, stating the number of cessions, and describing the various tenures, burdens, and local rights (right of wood and turf-cutting, of pasturage, &c.) of the peasants.

The next Diet met in 1790, and memorialised the Crown about the *manner* in which the law had been introduced; but no complaints were made of the law itself, which obtained a provisional ratification under the condition of a future revision. But the French wars compelled the Diet to devote all its energies to matters of greater urgency, viz. to the defence and preservation of the House of Hapsburg. At a later period the subject would have been resumed but for the necessity under which the Hungarians were to struggle for their constitution against the attacks of the Emperor Francis; but still the revision of the Urbarium, though long delayed, was at length finished in 1836 and 1839. The revised work was far more liberal than the Urbarium of Maria Theresa: it tended to equalise the rights and duties of the peasants; and its leading principle was, that in no single case the condition of the peasantry should be harder than it was in the most favoured localities in the times of Maria Theresa. Exceptional rights were thus made general; emancipation was henceforth possible, and attainable even by common energy and industry. But the act of the free and unfettered emancipation was voted by the Diet of 1848, on the motion and by the influence of M. Kossuth, who, while he abolished the Urbarium, induced the Diet likewise to provide for the indemnification of the landowners. The present emperor of Austria has revoked all the laws of 1848; but he did not venture to repeal the Emancipation Bill. Nothing has, indeed, transpired as to what the Austrian government proposes to do respecting the indemnification of the landed proprietors.

NOTE IV.

TRIPARTITUM.

Hungary had at no time a systematic code of civil laws, although several jurists attempted to codify the Hungarian common law and the cases in which it was modified by statutes. Their zeal was great, for, from the earliest times, the Hungarian lawyers found it necessary to protect their

institutions against the encroachments of the royal prerogative, which were the more frequent and formidable as several of the kings were not only princes in Hungary, but also sovereigns of other countries. Sigismund, for instance, was emperor of Germany, and king of Bohemia and Hungary. Uladislav I. ruled over Poland and Hungary; while Ladislav Posthumus, Uladislav II., and Louis II., united the two crowns of Bohemia and Hungary. At length Uladislav II., who was a weak prince, and who was nicknamed *Doborze*, from his habit of saying "Well! well!" to everything which happened, consented to the urgent entreaties of the Diet that the common law should be codified; and *Verbötzi*, the leader of the opposition and a good lawyer, was instructed to compile a code of laws. He published his work under the title of "*Opus Tripartitum juris Hungarici*."

Verbötzi was afterwards appointed to the post of Palatine; but he was overthrown by a junta of magnates, because they considered him as a radical and a friend to the *bourgeoisie*. They protested that his work was injurious to their privileges. Before the Tripartitum could be submitted to the Diet, King Louis II. (Uladislav's successor) died in the battle of Mohatsh (1526). His death was the cause of a war of succession between King John Zapolya, Prince of Grosswarasdin, and King Ferdinand of Hapsburg. Verbötzi, who exerted himself on King John's behalf, and who was banished by King Ferdinand, took refuge with the Turks, who appointed him to the post of Cadi for the Christian inhabitants of the district of Buda, where he eventually died. After his death, the work of the exiled outlaw became the highest authority of Hungarian jurisprudence and the standard of common law. It was never formally enacted by the Diets; but as the kings of Austrian extraction considered the Tripartitum as injurious to the privileges of the Crown, they compiled another code of laws, which they published under the name of "*Quadripartitum*" and in which they set forth and enlarged upon the royal prerogatives. But the Quadripartitum was rejected by the Diet, who thus acknowledged the authority of Verbötzi's Tripartitum, which since that time has not only been considered as law, but as an integral part of the constitution; and in the eighteenth and nineteenth centuries we meet with various statutes of the Diet, interpreting or repealing certain paragraphs of the Tripartitum.

The most important parts of the Tripartitum are those treating of the rights of the nobility (Trip. part i. ch. 4-9.); part ii. chap. 3., "*Qui possint condere*

leges et statuta;" and part iii. chap. 2. "Utrum quilibet populus vel comitatus possit per se condere statuta."

The theory of voting in Verbötzi's work is extraordinary in its way. He has a maxim that the votes are to be weighed and not counted ("non numeranda sed ponderanda"), and consequently he speaks of a "pars sanior" of the community, and defends his doctrine by the following reasoning:—

"Verum si populus (*i. e.* nobilitas, part ii. ch. 4.) in duas divideretur partes, tunc constitutio *sanioris* et *potioris* partis valet. Sanior et potior pars autem illa dicitur, in qua *dignitate* et *scientiâ* fuerint *præstantiores* atque *notabiliores*"—Verbötzi, Trip. part iii. ch. 8. s. 2.

Among the numerous peculiarities of the work, we find "capital punishment with a vengeance" (*pœna mortis cum exasperatione*) pronounced against those who maliciously kill any member of the Diet in the course of the session.

"Præmissorum nihilominus malitiosi sub Diæta occisores aut occidi procurantes præviâ tamen citatione *pænâ mortis cum exasperatione* condemnentur."

Another obsolete punishment is that of making a man an "Aukarius." It is provided by law that the slanderers of magistrates shall be condemned to the "*pœna infamiæ*;" and, in explanation of this punishment, we learn that the culprit shall be made "*ut omni humanitate exuatur*." He is struck with what the Code Napoleon would term "mort civile," and, in token of his condemnation, a *rope* is tied round the culprit's body (the rope being the mark of infamy, which monks wear to show that they have resigned the pomps and vanities of this wicked world), and as the sentence is being publicly read to him, a *goose* is placed into his hands. The Hungarian word for goose is *oeke*, and from thence the Latin name of the person so treated is *Aukarius*.

NOTE V.

HAIDUKS ON HORSEBACK.

The hussars are the Hungarian cavalry, while the haiduks or pandurs are foot-soldiers. Both hussars and pandurs act as county police. Whenever the *statarium* was proclaimed in any county, the *persecutor*, or chief of the county police, was instructed to provide horses for a reasonable number of haiduks, and to send them in quest of robbers.

END OF THE THIRD VOLUME.

LONDON:
SPOTTISWOODES and SHAW,
New-street-Square.

Transcriber's Note: This novel was originally published in three volumes, without a table of contents. The title pages for the second and third volumes have been omitted, and a table of contents has been created for this electronic edition. Also, the following typographical errors present in the original edition have been corrected.

In the Preface, "attempted to pourtray" was changed to "attempted to portray".

In Volume I, Chapter IV, "Had it not been for the younker Akosh" was changed to "Had it not been for the younger Akosh".

In Volume I, Chapter V, a period was added after "know him as I know him", "gave Mr. Kislaki to understand" was changed to "gave Mr. Kishlaki to understand", and "Baron Shoskuti; and Mr. Kriver, the recorder" was changed to "Baron Shoskutiy; and Mr. Kriver, the recorder".

In Volume I, Chapter VI, a quotation mark was added after "the same as they were before".

In Volume I, Chapter VII, a period was added after "afraid for their money".

In Volume I, Chapter VIII, "an argument on Vetsöshi's abilities" was changed to "an argument on Vetshösy's abilities".

In Volume I, Chapter X, "Dont stand losing your time" was changed to "Don't stand losing your time".

In Volume I, Chapter XI, "his wife—— can" was changed to "his wife—— can", and a quotation mark was added before "I didn't think I could be happier".

In Volume II, Chapter II, a quotation mark was added before "Od's wounds!".

In Volume II, Chapter III, "its not a gentleman's carriage" was changed to "it's not a gentleman's carriage", "an iron gripe" was changed to "an iron grip", and "Even Messrs Skinner and Catspaw" was changed to "Even Messrs. Skinner and Catspaw".

In Volume II, Chapter V, "if Mr. Skinner's likes it better" was changed to "if Mr. Skinner likes it better", "be took another parcel" was changed to "he took another parcel", a period was added after "still smiling", "as Skoskuty called it" was changed to "as Shoskuty called it", "a resolulution to that effect" was changed to "a resolution to that effect", and "sighed Kisklaki" was changed to "sighed Kishlaki".

In Volume II, Chapter VIII, "to keep them sober" was changed to "To keep them sober".

In Volume II, Chapter X, "knew to be an accessory" was changed to "knew to be an accessory".

In Volume III, Chapter I, "Do not distress youselves" was changed to "Do not distress yourselves".

In Volume III, Chapter II, a quotation mark was added after "nothing can be easier to Mr. Tengelyi".

In Volume III, Chapter III, "the keeper of Dustbury goal allowed each prisoner" was changed to "the keeper of Dustbury gaol allowed each prisoner", "hade made the cold" was changed to "had made the cold", and

"utterly digusted with this resolution" was changed to "utterly disgusted with this resolution".

In Volume III, Chapter V, a period was added after "retorted Rety", and "not allowed to, abandon her" was changed to "not allowed to abandon her".

In Volume III, Chapter VI, "said Jonash, shaking his head" was changed to "said Janosh, shaking his head".

In Volume III, Chapter VIII, a quotation mark was added before "Is there no means of salvation?".

In Volume III, Chapter IX, "It's true I havn't seen him" was changed to "It's true I haven't seen him", and "dotted with flocks and herds of cattle and and horses" was changed to "dotted with flocks and herds of cattle and horses".

*** END OF THE PROJECT GUTENBERG EBOOK THE VILLAGE
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